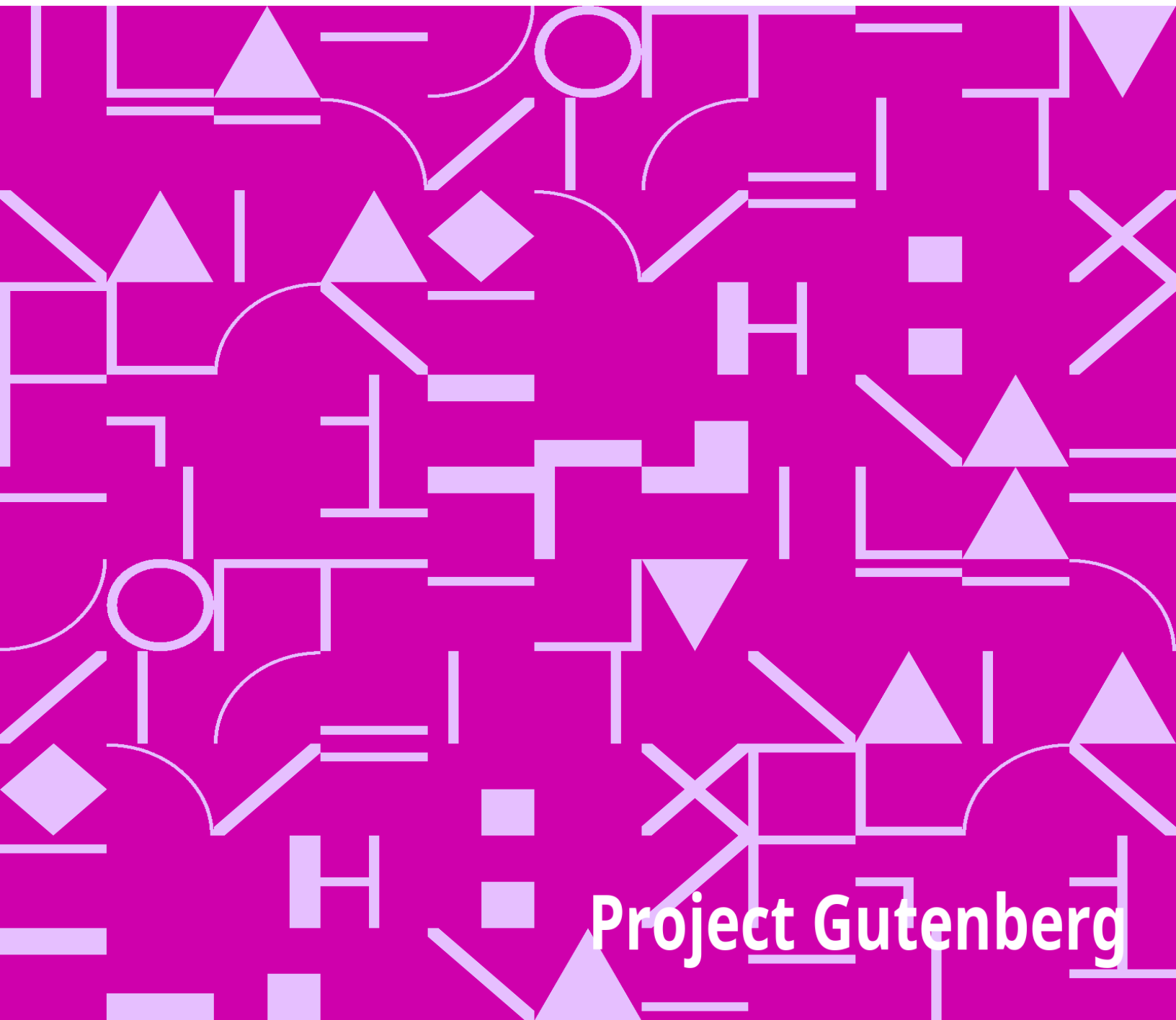


Blackwood's Edinburgh Magazine, Volume 63, No. 389, March 1848

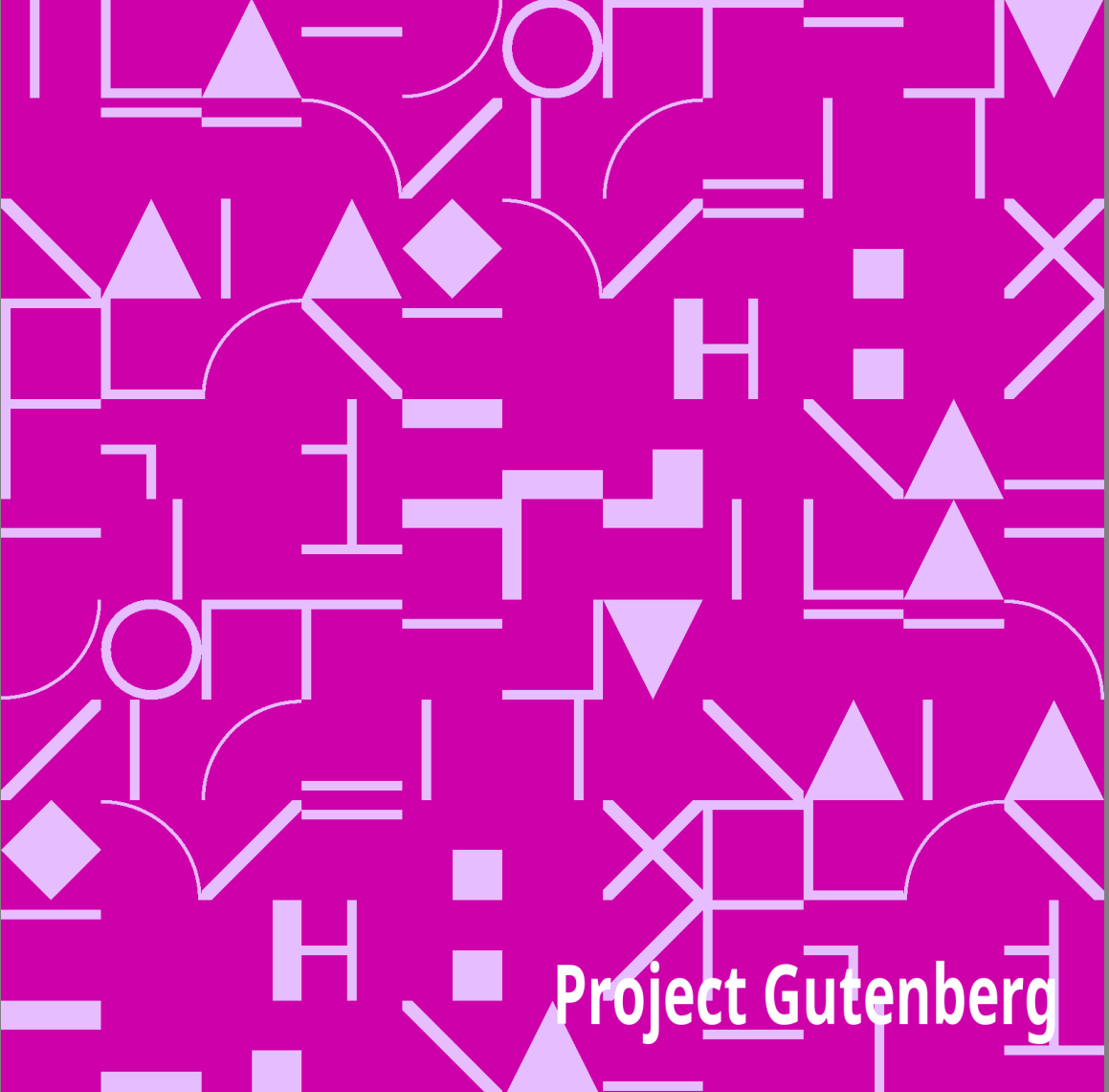
Various

A dense, repeating pattern of various geometric shapes in shades of pink and magenta, including triangles, squares, circles, and lines, covering the bottom half of the page.

Project Gutenberg

**Blackwood's Edinburgh Magazine, Volume
63, No. 389, March 1848**

Various



Project Gutenberg

The Project Gutenberg eBook of Blackwood's Edinburgh Magazine, Volume 63, No. 389, March 1848

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Blackwood's Edinburgh Magazine, Volume 63, No. 389, March 1848

Author: Various

Release date: June 26, 2012 [eBook #40071]

Most recently updated: October 23, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/40071

Credits: Produced by Brendan O'Connor, Jonathan Ingram, Julia Neufeld and the Online Distributed Proofreading Team at <http://www.pgdp.net> (This file was produced from images generously made available by The Internet Library of Early Journals.)

*** START OF THE PROJECT GUTENBERG EBOOK BLACKWOOD'S
EDINBURGH MAGAZINE, VOLUME 63, NO. 389, MARCH 1848 ***

Transcriber's note:

Archaic spelling and variations in spelling and hyphenation have been retained except in obvious cases of typographical error.

**BLACKWOOD'S
EDINBURGH MAGAZINE.**

No. CCCLXXXIX.

MARCH, 1848.

Vol. LXIII.

CONTENTS.

MR COBDEN ON THE NATIONAL DEFENCES	<u>261</u>
ROMANISM IN ROME	<u>281</u>
CRIMES AND REMARKABLE TRIALS IN SCOTLAND	<u>293</u>
SIR SIDNEY SMITH	<u>309</u>
MY ROUTE INTO CANADA	<u>328</u>
THE INTERCEPTED LETTERS: A TALE OF THE BIVOUAC	<u>340</u>
GREENWICH TIME	<u>354</u>
A MILITARY DISCUSSION TOUCHING OUR COAST DEFENCES	<u>362</u>
HUDSON'S BAY	<u>369</u>
THE BUDGET	<u>383</u>

EDINBURGH:
WILLIAM BLACKWOOD AND SONS, 45, GEORGE STREET;
AND 37, PATERNOSTER ROW, LONDON.

To whom all Communications (post paid) must be addressed.

SOLD BY ALL THE BOOKSELLERS IN THE UNITED KINGDOM.

PRINTED BY WILLIAM BLACKWOOD AND SONS; EDINBURGH.

MR COBDEN ON THE NATIONAL DEFENCES.

It is popularly averred by our Southern neighbours that the house of every Englishman is his castle. No doubt to a certain extent this may be true. In the modern mansion, as in the ancient fortalice, the victualing department is always a matter of prime importance, and Chubb's patent safety lock may be accepted as a convenient substitute for the portcullis. Yet, after all, we suspect that the resemblance, if the matter be closely investigated, will turn out to be rather imaginary than real. A castle, according to the ideas which we have imbibed from an early course of miscellaneous and feudal reading, must have been a sort of earthly paradise, and the possessors of it wholly exempt from that never-ending series of daily persecution to which we, unhappy moderns, are subjected. With a good eight-foot thick wall of solid masonry around, a moat broad enough to baffle the leap of Flying Childers, and deep enough to have drenched the scalping-lock of Goliath of Gath, and a few falconets and patereroes symmetrically arranged along the parapets, a man might afford to enjoy a quiet night's rest without dread of duns, or any fear of the visits of that most malignant of unexecuted ruffians, the tax-gatherer. He might give a jocular rejoinder to the summons of the pursuivant who appeared before his gates with the intelligence of a further railway call; and dismay any invading snip by the apparition of a scarecrow dangling from a gallows on the summit of the donjon-keep. Nay, if currency were absolutely indispensable for the purpose of paying the garrison, Castle Dangerous would be more effective than the bank parlour has shown itself in late times under the operation of Sir Robert Peel's Act for the perpetuation of national bankruptcy. A simple announcement in the neighbouring town of a large assortment of cast-off uniforms and rusty armour for sale, would infallibly attract to the stronghold a collection of Caucasians who adhere to the Jewish persuasion. Once within the guard-room, we should deal summarily, and after the manner of Sir Reginald Front-de-Bœuf, with these infidels. The forceps should be produced, and no ether or chloroform, upon any pretext whatever, allowed. We should negotiate with Moses or Mephibosheth at the rate of units for a stump, tens

for a decayed, and hundreds for an unimpeachable grinder; and may we never shake shekel again if we do not think we could extract a reasonable amount of ransom from the jaws of the Princes of the Captivity! As to the advent of many enemies, we should be utterly and entirely fearless. Cohorn and Vauban might come with their lines, and mines, and battering-trains without disturbing our equanimity, or causing the slightest tremor in our hand as we filled out our post-prandial bumpers of Bordeaux. So long as powder lasted and shot was plentiful, we should reciprocate the hostile compliments by all manner of shell and canister; and, if the metal of the rogues proved, in the long run, too heavy for us, they should have our full permission to pound away until they were tired; and, on entering the citadel, they would find us smoking our pipe in the cartridge-room, as cool as a cucumber, or as Marius at Carthage, or General Chassé at Antwerp, or any other warrior and hero of antiquity whomsoever.

Now take that picture—compare it with the state of your present domicile—and tell us whether, in effect, the fortalice is not an Eden? What kind of existence do you lead in that Heriot Row house, for which, last year, when shares were up, you were ass enough to pay some two or three thousand pounds? You cannot go into your room after breakfast to write an article for Blackwood, or to draw a condescendence, without hearing every five minutes the dissonance of that ceaseless bell. Not unearned are poor Grizzy's eleemosynary Christmas shoes, for fully one-half of the day is that most weary wight occupied in flitting from the regions beneath to answer the summons which *may* bring an invitation or a fee, but which, in nine cases out of ten, is the announcement of a gaping creditor. First, in comes a document wafered, according to that beastly practice, which, for the credit of Tyre and Sidon, we hope is a modern invention. *That*, of course, goes into the waste basket without more remark than a passing objurgation. Then follow the prospectuses of three insurance companies, you being nearly ruined already with the amount which you are compelled to pay annually, in virtue of your marriage contract, to the Scottish Widows' Fund. Next appears a long slip, purporting to be the intimation of a police assessment. You swear savagely, having ascertained the fact, by dint of a spirited correspondence in the newspapers, that the available force of that esteemed body in the metropolis of Scotland is not much over a dozen, and having accurate personal corroboration of the statistics by walking the other day

into an unmolested bicker, from which you emerged with a broken hat, and a head phrenologised by a blacking bottle. Before you have recovered from this, you receive another missive with a charge for cleaning the streets—an operation which you know, to your cost, has been performed throughout the last thaw exclusively by the petticoats of the females; and upon the back of this appear mulctures touching gas and water. A huge oblong missive, the envelope whereof bears on a corner the letters O. H. M. S., and which is sealed with a most imposing and royal escutcheon, deludes you for a moment into the belief that Lord John Russell has at last exhibited a gleam of common-sense, and has recommended you to her Majesty either for a commissionership or for a reasonable place on the pension list, in consequence of your balaamite contributions to the unsaleable Edinburgh Review. You open it, and behold, it contains nothing but a warning that you have not paid the last quarter of your compounded and thrice confounded income-tax! A gentleman next requests the honour of a moment's interview. In the hope that he may prove a Writer to the Signet, you weakly yield; and incontinently an individual with a strong Israelitish countenance, a fetid breath, and an odour of stale tobacco floating around his person, solicits the honour of your custom for a packet of sealing-wax, a gross of steel pens, or a new edition of the Pentateuch. You eject him in a tornado of wrath; but the cup of your misery is not full. Aaron is succeeded by Mendizabel—an expatriated Spanish grandee, who bears a strong recommendation from an individual whose handwriting seems to be attached to every begging petition in the country. This fellow won't choose to understand you, however frantic you may appear; so that, for the sake of peace, you violate your conscience and get rid of him at the expenditure of a shilling. Grizzly is called up, and severely reprimanded for her want of discrimination in admitting the illustrious stranger; and the consequence is that, on the very next summons, she peremptorily denies you to a Glasgow agent who has come through by special train for a consultation on a case of emergency. Last of all, just as you are settling steadily to your work, and turning over the third sheet of foolscap, in walks your friend THE HAVERIL, on no earthly errand whatever, except to inquire how you are getting on. Of all social pests, this kind of animal is undoubtedly the worst. In intellect he is singularly weak: in disposition curious and prying. He hops about your study like a magpie, eying every letter, as though he longed to make himself master of its contents; and, notwithstanding that you believe the creature to

be strictly honest, you would on no account leave him for a couple of minutes in undisturbed possession of the sanctum. He peeps into every book, indulges you with a quantity of small literary swipes, and finally fastening upon a volume of prints, entreats you to go on with your occupation, as he, the Haveril, is perfectly competent to the task of entertaining himself. Culpable homicide, say our law-books, ranges from a crime of great enormity to the smallest possible fraction of imputed guilt; and if, under such aggravating circumstances, you were to toss your acquaintance out of the window, it is not likely that your subsequent sentence would be severe. But you have at the bottom of your heart a sort of attachment to the nincompoop, whom you know to be utterly harmless, and who, moreover, to do him justice, invariably stands up for you, whenever you are assailed in your absence. Therefore you abstain from violence, and the penance which you heroically undergo is but one degree short of martyrdom. Under the visitation of these Egyptian plagues, the morning wears insensibly away; and the imp of darkness, when he calls for copy about dinner-time, is summarily exorcised, and dispatched, empty-handed, to the solitudes of his awful den! Is there, then, any feasible case of resemblance between the fortress and the modern mansion?

We have been led into this train of thought by a perusal of the speeches lately delivered at Manchester on the subject of our national defences. The question is one of undoubted interest to us all, and it is well that it should be brought forward and thoroughly discussed in time. If there is danger, either immediate or impending, let us know it, and then, to a certain extent, we shall be forewarned if not forearmed. The Duke of Wellington—a tolerable military authority, as times go—has already given us his opinion on the point, and that opinion has been immediately met and contradicted by the sapient Mr Richard Cobden. We have yet to learn the exact amount of Mr Cobden's attainments in the arts of strategy and fortification; but as he is undoubtedly a "myriad-minded" gentleman, of fair average conceit, and more than average effrontery, and as we have hitherto abstained from making special mention of him in our columns, it may, perhaps, be worth while to see how he has acquitted himself in the lists against the veteran conqueror of Napoleon. Our old friend Tomkins—he of the Ten Tumblers—used to be, if we recollect aright, rather eloquent upon this weighty topic. Tomkins, in early life, had sustained an amatory disappointment, in

competition with a thwacking drum-major; and therefore always looked upon the army with somewhat of a jaundiced eye. The sound of the fife, clarion, and trumpet was ever after distasteful to his ear; and he never trotted his mare past a marching regiment of these scarlet locusts, without a spasm of righteous indignation. "They eat our bread, sir!" he would say, "and drink of our cup, and do absolutely nothing in return. The sooner we get rid of them the better. An Englishman, sir, needs no hired supernumeraries to protect his home. When was our soil ever invaded? Let the French come, and we will give them graves!" And having delivered himself of this sublime sentiment, Tomkins would incontinently ring for another tumbler. It always struck us, however, as a singular proof of the eccentricities or rather inconsistencies of genius, that our distinguished friend, when in his cups, and towards the close of the evening, invariably began to glorify himself upon his length of lineage and descent. In support of these heraldic claims, he was wont to cite the case of his great progenitor, "the founder of the family," who just about a century ago had the condescension to hold the stirrup of Lord George Murray, as he alighted from his horse when the clans marched into Derby. Tomkins, on the strength of this anecdote, had rather a kindly feeling towards the Jacobites, and would never allow that the enterprise had at any time the character of an invasion. "We were ready, sir," he would exclaim, "to have marched up, in the Reform year, from Birmingham to London; and who can doubt that, had we done so, we should have driven the household troops before us as the chaff flies out from the fanners?"

We have often deeply regretted that Tomkins did not survive to witness the consummation of the triumphs of free-trade—a cause which he contributed materially by his efforts and his writings to advance. The leading feature of his character was the total absence of every kind of prejudice or bigotry. He held it to be a fundamental principle, as old as Magna Charta, that England was to be governed mainly through the influence of cotton: that all other interests were immeasurably inferior to this, and that the settlement and maintenance of our colonies was a gross instance of reckless and frantic extravagance. "Let us thrive," he would say, "through the arts of universal peace. Let us set a bright example to the world by opening our ports to the free admission of all foreign produce, without any kind of reciprocity whatever. If our artisans and workmen cannot maintain their ground, let

them go to the comfortable Unions we have provided, and pick oakum in return for their rations of wholesome bone-soup! Let us hear no more nonsense about humanity or short-time! Cram the children into the factories so soon as they can walk. Early habits are the surest means of promoting and fostering industry. Let us look to our imports, and the exports will look after themselves. Disband the army. Reduce the navy. Do away with Church establishments. Contract the currency. Flabbergast the colonies; and Great Britain must go ahead!" Such were the expressed opinions of that great and good man, who now sleeps in a premature sepulchre at Staley Bridge: and we need hardly add, that in matters of revenue, he was an uncompromising advocate of the sponge. Had his valuable existence been prolonged for a few years, he would doubtless have been at the head of the onward movement, and might have shared in the rewards which are gratefully accorded to the patriots of this latter age. Andrew Marvell, sitting incorruptible in his garret with a shoulder-blade of mutton, has ceased to be a favourite example with the new democratic school. They affect ovations and banquets, perform continental reforming tours, and demean themselves after the manner of our able correspondent, Mr Dunshunner, who, we are glad to observe, has been lately invited to a free-trade demonstration on the banks of the Bosphorus, by several of the leading Muftis of Constantinople. Dunshunner writes in great spirits, and has promised us an early paper, on the advantage of our establishing free-trade relations with the domestic Circassian market.

Failing Tomkins, we have every reason to be proud of his disciple and successor, Mr Cobden. In fact, the mantle of our lamented friend has fallen most gracefully upon his shoulders; and in nothing is the genuine likeness more displayed, than in the contempt which both of them have exhibited for the standing army of Great Britain. Yet, perhaps, in this we may be doing Mr Cobden some little wrong. Tomkins, we know, had just and natural reason for abhorring the sight of a red-coat; Cobden, so far as we are aware, has no such motive for dislike. Of the two, he is the calmer and the cooler man, and very naturally looks sedulously about him for the means of substantiating his theories. After all the fine words which Sir Robert Peel bestowed upon him, to no visible improvement of his parsnips, Mr Cobden very naturally felt a little uneasy at the non-fulfilment of several of his prophecies. It is a pity that a man cannot vaticinate in this country without

undergoing a certain risk of subsequent stultification; and yet, if he does not affect the gift of prophecy, your patriot is usually at a discount. Our memory is not a very good one, and yet we have hardly forgotten certain flourishes by Mr Cobden, regarding the immense amount of employment which was to accrue to this country, immediately after the passing of his favourite measures. Bread was to be as cheap as dirt, common luxuries within the reach of every one, and the whole British nation, through its length and breadth, was to hold a perpetual jubilee and jollification, to the music of the engine and the shuttle.

"Wild dreams! but such
As Plato loved; such as, with holy zeal,
Our Milton worship'd. Blessed hopes! awhile
From man withheld, even to the latter days!"

and, were we to add, in the words of Mr Canning's imitation of the above passage, the concluding line,

"Till France shall come, and all laws be repeal'd,"

it would not, we apprehend, be entirely foreign to the subject. The result, however, so far as we have yet seen, has by no means justified the experiment. Trade, instead of improving under the stimulus of free-trade, has fallen off, and a year of commercial panic and misery has been the result of the liberal nostrum. This, no doubt, is very galling to our friends of the billy-roller. Old stagers like us, who are sometimes represented as prosy, because we reverence time-honoured principles, love the constitution of our country, and defend the memory of those who were the true founders of its greatness, are supposed to feel some triumph at the aspect of the present depression, and to exult over the slough of despond in which the Whigs are left to flounder. If there be any who, judging from their own mean nature, so think of us, it is hardly worth our while to undeceive them. Bitterly indeed have we mourned over the spectacle of fraud and imbecility which the last two years have disclosed in the higher places of the land, and most earnestly do we hope that, ere long, the true-hearted people of this country will awake to a full sense of their present perilous and by no means creditable position. All the difficulties which are just now pressing upon ministers, and which, for a longer period than we can venture to calculate,

must continue to environ them, are of their own creating, and are the natural effects of that unconstitutional policy which would sacrifice every thing for the mere possession of power. Do we speak truth or not? Let the Chancellor of the Exchequer answer us. What but free-trade and its concomitant schemes has lessened the revenue and increased the pauperism of the country? What but the vicious and yet invincible desire of change, consequent on a contest for popularity, has struck a blow at the prosperity, and even the existence, of our colonies, which has already reacted with fearful effect within the centre of the mother-country?

Mr Cobden, on being twitted with the failure, or, at all events, the non-realisation of his unqualified prophecies, very naturally, but not very wisely, flies into a passion. He fixes, of course, upon the failure of the harvest of 1846 as the prime element of justification. Can I control the elements?—says he—can I regulate the seasons? Certainly not, Mr Cobden. We presume that no one, not even the stupidest operative that used to bellow in your congregation, and who believed every one of the golden promises which you were hardy enough to enunciate, ever dreamed that you were in possession of that power. Several of us, moreover, are of opinion that, upon the whole, you have been rather overrated as a conjurer, and that, having failed in your endeavours to get into an empty quart bottle, you are not a whit more likely to succeed when you come to experiment upon a pint. But let us whisper in your ear that this excuse will hardly serve your turn, and that it is wholly irreconcilable with the arguments which you used to advance. A copious supply of foreign grain was the very thing for which you and your associates primarily clamoured. You wanted an import to a prodigious extent, and you flattered yourselves that, for each quarter of American wheat, you would be able to send in exchange so many yards of that calico which you fondly maintain to be the principal fabric of the world. You were content, and you have said it over and over again, to take your chance of the home market, provided the other ones were opened to you. Now that you have them open, and now that wheat has come in such abundance as even your most sanguine anticipations could not have conceived, you have the coolness and effrontery to turn round and throw the blame upon Providence, for having speedily brought about the very thing which every charlatan in Great Britain has been shouting for since the anti-corn-law league began! Do you really think that this will go down with any

portion of the community? that such deplorable wriggling will not insure you, throughout the country, the contempt of every man of average and common understanding? or that the labourer on short time, and the artisan whom you have deprived of his employment, will put up with such miserable excuses? The plain state of the fact is,—and you know it,—that your theories are crumbling beneath your feet. You cannot expect that your gross and egregious error will escape a speedy detection. You, without any previous qualification for the task, save your natural talent, which is not much, have thrust yourself forward to a prominence which you never were entitled to occupy. You may fancy yourself, if you choose, the people's man; but so were Jack Cade, and Wat Tyler, and several others, who, mistaking energy for knowledge, and ill-regulated enthusiasm for calm deliberate judgment, took upon themselves the task of misleading the English people, and either perished amidst the ruin they had caused, or sank back into their pristine obscurity. There is a favourite cant phrase very current just now, to the effect that "we are living in new times." The same thing might have been said by our common progenitor Adam, the day after his expulsion from Paradise. It is the most trite truth of the world. Every new day brings its change, but every new day does not obliterate the memory of those which have gone before. All the "new times" which this universe has seen, have not sufficed to alter in the slightest iota the original character of mankind. Human nature still remains the same; and the man who does not acknowledge and adopt this as a principle, is a crazed and dangerous visionary. Never, under any circumstances, ought such a one to gain ascendancy in the state, or to be allowed to reduce his unsound theories to practice. If he does so, woe be to the country which countenances him in the rash attempt!

History and its philosophy are the true studies for a statesman in every age. In that educational point of view, we strongly suspect that the present ministerial cabinet is sorely deficient. The Whigs, as a body, are conversant with a very small space of history indeed. They are constantly jabbering about the fundamental principles of the constitution, which they date back no further than the advent of William of Orange. Their pet historian, and the ablest man among them, cannot make a single speech without dragging in, neck and heels, some vapidities about the Revolution Settlement of 1688; and they try to be profound in their criticisms upon the policy of Walpole and of

Bute. Charles James Fox, of course, still continues to be their principal fetish, and they cling to antiquated party toasts with a superstition that would disgrace a Mussulman. But of the freer and bolder regions of history—of all that is great and elevating—of the numerous lessons to be gleaned, and the examples to be gathered from the grand old records of kingly and loyal England, or of the fall and fate of nations through the imbecility of their rulers, or the ambition of ignorant demagogues, they either know nothing practically, or they fail to acknowledge their importance. Whiggery is a small machine which works according to conventional rules of its own, and will not make allowance for the great springs of human action. A cabinet of Whigs is admirably adapted for the control and legislation of the sovereign state of Pumpfernicket, or some analogous German principality; but they never can assume their place at the helm of affairs in a great empire such as that of Britain, without landing the whole of us in dangerous difficulties, and sneaking off at the last hour under a humiliating sense of their own impotence and presumption.

The case is still worse when men like Mr Cobden come forward to try their hand either as pilots or as coadjutors. We presume that Mr Cobden, if the question were put to him, would candidly admit the narrowness of the range of his peculiar historical studies. We understand that he does not pretend to be a scholar, and that the amount, of the information which he possesses, however great that may be, is limited to modern facts and premises, upon which he usually reasons. A worse kind of education for a statesman, or for the leader of a popular movement, cannot be found than this. It was this kind of partial knowledge, unilluminated by the clear lucid light which bygone history alone can shed authoritatively upon passing events, which, in the recollection of many still alive, led to the dark catastrophe and horrors of the French Revolution. There is hardly one social change, hardly one political experiment now making, for which a prototype cannot be furnished from the pages of history. And of what possible use, it may be well asked, is history, if we are not to recur to it for a solution of the difficulties which may arise in our onward progress? Are we to gain no confidence, nor take any warning from the rise and decline of nations, not much less powerful than our own, whose checkered career and the causes of it are open to our view? Is the world behind us a blank, that we should go stumbling on at the instigation of every reckless adventurer, more culpable

in his attempts to guide us, than the ship-captain who should presume to thread the coral reefs of the Indian Ocean without consulting the authoritative chart? Are we always to derive our information, not from what has been done and acted in the globe before—not from an attentive examination of men and their motives, and the countless springs of action which stir them, but from statistical tables and long columns of figures, compiled by rusty officials in their dens, and brought forth for the first time to be cited as overwhelming testimony by some premier who is meditating apostasy, or seeking some palliative to cover his shameful abandonment of a party? The features of the so-called statesmanship of the present day are essentially those of bureaucracy. A drudging arithmetical clerk, with whom a unit is every thing, and who would be nearly driven to despair by the discovery of a misquoted fraction, is a leading authority with our statesmen; and his vamped-up tables of export and import are considered sounder expositions of the destinies of the human race, than all the accumulated wisdom, learning, and experience which the annals of the world can afford.

The "tables," however, are now turned, and therefore we shall not say any more for the present about the blue-book and ledger system. Let us go back to Mr Cobden, whom we still find rather uselessly employed in protesting his total inability to command the clemency of the seasons. We have already shown, by papers published in this Magazine in December last and January of the present year, that our exports have lamentably fallen off, and that the balance of trade is against us. Such, we maintained, and we continue still to maintain, must be the effect of the new theories, especially under the restricted operation of the currency. We are glad to see that upon this latter point, at all events, we are supported by a large majority of the press. Mr Cobden, however, denies the evils of the currency; so that he must fall back upon something else to account for the unexpected defalcation.

Such is our position at home and abroad; and if we have been guilty of a digression, which we cannot altogether deny, we shall plead our motive in justification. When Mr Cobden comes forward with his views of foreign policy, with his ideas of the social progress of the universe, and with his notions as to the policy which hereafter may be adopted by great and ambitious foreign states,—when, after delivering his opinion upon these very weighty matters, he arrives at the inference, not only that we require no addition to our national defences, but that our present establishment of a

standing army and navy is absurd, extravagant, and superfluous, we are entitled to inquire into the success with which his first experiment in legislative agitation has been crowned. Of the abundance of good things which he promised, how many have been realised, how many are like to emerge from the dark experimental gulf? If writhing colonies, diminished exports, want of employment, distress at home, enormous failures, monetary restriction, and vast depreciation of property, have followed in the wake of free-trade—if ministry are at present racking such brains as they possess to discover some means of keeping up the revenue to its ordinary level, and if they are forced to lay on a direct additional war-tax in times of the profoundest peace,—surely we shall not incur a charge of fickleness or ingratitude, if we should receive this new oracle of the free-trading Mokanna with some symptoms of dubiety and distrust.

The whole question arose thus. It appears that the Duke of Wellington, whose illustrious reputation and great services entitle him to be heard with the deepest and most reverential respect, has long entertained great uneasiness on account of the undefended state of this country in the case of a hostile invasion. That such an event is likely to take place, no one supposes or has said—that it possibly might take place, very few will venture to deny. The idea is not a new one; for within the range of the present century, preparations have been actually made for that purpose, and that whilst the wonderful power and facilities of steam-navigation were unknown. Fulton—we have seen men who knew him when he was a humble artisan in the West of Scotland—had, despairing of success at home, submitted his models to the French government, who, fortunately for us, did not then appreciate the merits of the invention. Three years afterwards, he started his first steamer on the Hudson in America. The power which our French neighbours had once so nearly within their grasp, at a time when it might have been used to the exceeding detriment of England, became generally known and adopted, and we need not speak of its progress. It has altogether changed the tactics of naval warfare. It can conquer the old difficulties of wind and tide, and it has immensely shortened the period of transit from the continental coast to our own. The security, therefore, of our insular barriers has been materially weakened, and thus far the possibility of an invasion from abroad has been increased.

We are not now speaking of the *probability*, which is matter for subsequent consideration.

This open and admitted fact is the foundation of the whole argument of the Duke of Wellington. In the evening of a glorious life, the greater part of which has been spent in the active service of his country, the veteran soldier has thought it his duty to remind us, for our own guidance and that of our children, of the actual existing state of our national defences, which he deems to be insufficient. It is one of the last, but not, we think, the least important of the services which the venerable Duke has rendered to the nation, with whose proudest history his name will be eternally associated. We take it—or at least we ought to take it—from his lips, as a solemn warning; as the disinterested testimony of a man alike pre-eminent in war and in council; as the deliberate opinion of the GREAT PACIFICATOR OF EUROPE. For notwithstanding the irreverent, mean, and scurrilous taunts of the Manchester gang of demagogues, it is undeniable that the Great Duke has been the chief instrument in procuring for us the blessing of that peace which for two and thirty years we have enjoyed. It was his conquest at Waterloo which hushed the world. The tranquillity of Europe was the stake for which he fought, and he nobly won it. And now, when, at the last hour, this illustrious man comes forward to offer us his advice, and to warn us against the folly of trusting too implicitly to the continuance of that tranquillity, is it wise that we should scorn his counsel?

And what is the proposal which has excited such wrath, and so sorely roused the choler of the bilious Cobden? Simply this—that the British nation should at all times maintain at home a military force sufficient to repel an invasion, should such be attempted, from our shores. The Duke believes and maintains that we cannot now, as formerly, rely solely and implicitly upon our navy for defence, but that, in the event of a war, we must provide against the contingency of an enemy's landing. Our arsenals, he thinks, and our dockyards, should be supported by a military force, and at least we ought to exhibit such a front as will hold out no temptation to a hostile attempt. These are not aggressive, but precautionary measures; and without them, according to the Duke, we cannot consider ourselves secure.

Such are the proposals which Cobden and his clique—we are sorry to observe a gentleman like Sir William Molesworth among them—are

prepared to resist to the last. They want no defences at all. They are opposed to any augmentation of the army. They would rather do without it, or reduce the establishment so as to make the national saving equivalent to the diminished amount of revenue consequent upon their commercial experiments. They look upon free-trade as a universal panacea which is to cure all national and social ailments, and to remedy every grievance. War is to be no more—territorial aggressions unknown—and the advent of the millennium is to be typified by an unbounded exportation of calico!

These are the views which have been lately propounded at Manchester, and the parties are therefore at issue. Cobden has matched himself against Wellington, and Quaker Bright has volunteered to be his bottle-holder. We really wish that it had been permitted us to approach the argument without mingling with it any asperity. But this is now totally out of the question. The disgusting and vulgar language which Mr Cobden has thought fit to use towards the greatest historical character of the age—the low-minded scurrility which pervades the whole of his egotistical discourse,—put him beyond the pale of conventional courtesy, or even of dignified rebuke. The man who could stand up in his place—no matter what audience was before him—stigmatise the Duke of Wellington as being in his old age a whetter and fomentor of discord, and finally insinuate *dotage* as the only intelligible excuse, deserves, if there is a spark of national feeling left, to be publicly pilloried throughout Britain. "Would it not," says this disloyal prater, "have been a better employment for him to have been *preaching forgiveness for*, and oblivion of the past, than in reviving the recollection of Toulon, Paris, and Waterloo?" Forgiveness! and for what? For having vindicated the rights of the nations, terminated the insatiable career of Napoleon's rapine, and restored to us that peace which he is still desirous to preserve by maintaining Britain invulnerable, secure, and free!

But let us pass from a matter so deeply discreditable both to the speaker, and to the audience that applauded his sentiments. Meanly as we think of the latter, we are yet to believe that the next morning brought to many some feelings of compunction and of shame. Not so the former, who, wrapped up in the panoply of his own ridiculous conceit, a would-be Gracchus, must remain a Thersites for ever.

Irrespective of the purse argument, which, as a matter of course, is the chief motive of these gentry, the free-traders attempt to brand the Duke of Wellington with a charge of attempting to raise a hostile feeling between this country and the continental states. The accusation is as false as it is frivolous. The attitude of Britain is not, and never will be, aggressive. She is at this moment in the proud position of the mighty mediator of Europe; and it is to her strong right arm, and not to her powers of producing calico, that she owes that ascendancy. Our interest clearly and incontestibly is to maintain peace, but that we cannot hope to maintain, if we abandon the power to enforce it. Among nations as among individuals, the weak cannot hope to prosper in active competition with the strong—nay, they are even in a worse position, because the law will protect individuals, whilst to nations there exists no common Court of Appeal. If we are content to renounce our position, and to give up our foreign possessions—a consummation which the free-trade theorists appear abundantly to desire—if we are to confine ourselves simply to our insular boundaries, and advertise as the workshop of the world—then, indeed, we shall surrender our supremacy, and with it the hope of maintaining peace. Can these men read no lessons from history? Does the sight of what is daily acting around them justify their anticipations of a millennium? What is the real state of the fact? Russia, having absorbed Poland, is now engaged in a territorial war with the Circassians, upon which she has already expended an enormous amount of treasure and of men; and she is prepared for a double sacrifice, if by such means she can gain possession of the passes which are the keys to southern Asia. Austria is hanging upon the skirts of Italy, concentrating her forces upon the frontier, and menacing an immediate invasion. Very lamb-like and pacific has been the conduct of America to Mexico. As for the French, whom Cobden eulogises as the most "affectionate and domesticated race on the face of the earth"—did the man ever hear of the Revolution?—they are notoriously the most aggressive of all the European nations. Did domestic feelings excite them to the conquest of Algeria? Did affection lead them to Tahiti? Was it a mania for free-trade that brought about the Montpensier marriage? Really it is difficult to know for which palm, that of ignorance or effrontery, this Manchester manufacturer is contending. Has he forgot the Joinville letter, which was hailed with such rapture on the other side of the Channel? Was Paris fortified without a purpose? Is he blind to the fact that the peace of Europe at this moment depends upon the life of a man now in his seventy-

fifth year? We maintain that there never was a period, at least within our recollection, when the maintenance of general tranquillity throughout Europe was more precarious. And yet, this is the very moment which Mr Cobden selects for a crusade, or rather a tirade, against our military establishments!

Our feelings are any thing but those of dislike towards the "affectionate and domesticated" French. We admire their genius, and read their novels,—and we have a peculiar affection for their wine. In one point alone we agree with Mr Cobden. We still retain the ancient Caledonian predilection for claret in competition with port, and we should be sorry to be deprived of champagne. Still sorrier should we be to lose our annual spring trip to Paris; to be banished from the Boulevards and the Palais Royal, and to enjoy only in memory those delicious dinners at the Rocher de Cancale. We have no wish to run the risk of a compulsory detention at Verdun. Nay, we shall go further, and apprise Mr Cobden, that had our lot been cast a few centuries back, we should in all probability have been fervent maintainers of the ancient bond of alliance between King Achaius of Scotland and the Emperor Charlemagne; and nothing would have given us greater pleasure than to have visited Manchester along with a few thousand lads who swore by Saint Andrew, whilst the partisans of Denis were amusing themselves in the neighbourhood of Portsmouth. But times have changed. We have contracted an alliance with the nation of which Mr Cobden is so creditable a representative; and upon the whole, we are not altogether dissatisfied with the arrangement. We can now look upon the French with an eye undimmed by affection; and we must confess that we have very little, if any, faith in that marvellous change of their character which is sworn to by the Manchester spouters. They may be very excellent fellows, but we would rather not trust them with our keys. The tone and temper of a nation do not alter quite so rapidly as Mr Cobden seems to suppose. The history of Algeria is a very significant hint that the old ideas of the French on the score of conquest are not yet wholly obliterated; and we should rather imagine that they have not quite forgotten their pristine appetite for plunder. They deserve, however, considerable credit for the dexterous manner in which they have thrown dust into the eyes of Mr Cobden. You would think, to hear the man, that he is an inoculated Frenchman. Presume to criticise their character, and his scream is like that of a railway engine. Just hint that

you consider them unscrupulous, and our calico-printer overboils "with horror and shame and indignation." We have no doubt that he considers it a great pity that history cannot be annihilated—that is, supposing he has ever condescended to notice any thing so trivial as history. Will he not favour the world with a new version of the French Revolution? We are anxious to hear his grounds for supposing the French to be an "affectionate and domestic people;" and since we are, to fraternise with them altogether, it would be comfortable to know our brethren as they really are. We want to have a true account of the Noyades. Were these really wholesale drownings, or a mere ebullition of national fun? Doubtless, there is much humour—though we have not yet been able to see it—in the clanking of the guillotine; and the expeditions to Moscow and Madrid, with their accompanying tales of rapine and butchery, may possibly be demonstrated by Mr Cobden as instances of a practical joke. Davoust, as the Hamburgians know, was a fine fellow; and so, upon examination, may prove Robespierre and Marat. Perhaps, too, he will come down a little later, and tell us the particulars of the gallant and gentleman-like behaviour of M. Dupetit-Thouars towards Queen Pomare. Or will he undertake to prove that Abd-el-Kader is an infamous scoundrel, utterly beyond the pale or security of national faith and of plighted honour?

It is plain, either that Mr Cobden has been egregiously humbugged by the acute foreigners, or that he has subsided into a state of calm, settled, and imperturbable idiocy. It is too cruel in Bright to parade in such a way his former friend and master, and to quote from his private correspondence. We wonder what is Sir Robert Peel's present opinion of the man whom he chose to bespatter with his praise, and for whose sake he was content to forfeit the elaborate reputation of a life-time. But bad as Cobden may be, he is fairly surpassed in Gallic enthusiasm by the notorious George Thompson, whose patriotism may be gathered from the tone of the following paragraph:—"Why, what were the toasts given at the sixty reform banquets of France? This has been one of their toasts at least, 'Fraternity, liberty, equality.' Let us echo from these shores the shouts that have been raised there, and I am sorry to say, stifled, so far as Paris is concerned, for the banquet did not come off there. Let us send back the echo, fraternity, liberty, equality!" And this pestilential raving has been applauded to the echo in Manchester.

Let us have peace with the French by all means, and with all the world beside; but let us not fall into the despicable and stupid blunder of supposing that human passion and human prejudice, the lust for power, and the cravings of ambition, can ever be eradicated by any system of commercial arrangement. Britain is naturally an object of envy to all the continental states. It is her strength and position which have hitherto maintained the balance of power—and of that the European states are fully and painfully aware. Every step which can tend to weaken the fidelity of her colonies, is regarded with intense interest abroad, and more especially in France. The people of that country envy us for our wealth, and dislike us for our power; and war with Britain, could the French afford it, would at any time find a host of advocates. We are not believers in the probability of such an event, if we keep ourselves reasonably prepared; but the very first relaxation upon our part would inevitably tend to accelerate it. It is quite possible that France may yet have to undergo another dynastic convulsion. The death of Louis Philippe may be the signal for intestine disorder. The Count of Paris is a mere boy, and popularity is not on the side of his uncle and guardian. A powerful party still exists, acknowledging no king save the rightful heir of St Louis; and the fanatical republican section is still strong and virulent. These are things which it would be imprudent to disregard, and of which no man living can venture to predict the result. The death of the Queen of Spain would, according to all appearances, give rise to a rupture with France, and possibly test, within a shorter period than we could have believed, the sufficiency of our national defences. There is at this moment every reason why our real strength and power should be made apparent to the world, and our weakness, where it does exist, immediately remedied and repaired.

Had the Duke of Wellington proposed, like Friar Bacon in Greene's old play,

"To girt fair England with a wall of brass,"

the outcry could not have been greater. An iron wall might perhaps have been rather popular in the mining districts. But his Grace proposes no such thing. He only suggests the propriety of a small augmentation of the regular forces at home, the strengthening of our neglected fortifications, and the gradual reëmbodiment of the militia. It is for the British nation, or rather its

representatives, to adopt or reject the proposal. Now, it is worth while that we should keep in mind what is our actual disposable force at present.

According to the most recent authorities, the armies of the principal European powers would rank as follows:

Russia,	568,000
Austria,	414,000
France,	340,000
Prussia, Bavaria, and other German	268,128
Britain,	138,895

The disproportion of force exhibited by this list is sufficiently obvious; but when we descend to particulars, it will in reality be found much greater. Abroad, the majority of the male population are trained to the use of arms: with us it is notoriously the reverse. France, in the course of one week, could materially increase the amount of her regular army; whilst here that would be obviously impossible. Beyond Algeria, France has almost no colonies as stations for her standing force. We have to provide for the East and West Indies, Canada, Australia, New Zealand, the Cape, Ceylon, Hong Kong, the Mauritius, Gibraltar, Malta, the Ionian Islands, and others. The profession of the British soldier is any thing but a sinecure. A great portion of his life must be spent abroad; he may be called upon to undergo the most rapid vicissitudes of climate, to pass from one hemisphere to another in the discharge of his anxious duty. There is no service in the world more trying or severe; and it very ill becomes Mr Cobden, or any of his class, to sneer at that establishment, which is kept up for the direct promotion of our commerce. So large a portion of the territorial surface of the world is nowhere defended at so little cost either of money or of men. Indeed, as recent events have shown, we are but too apt to save the one at the expense of the other. No doubt, if the free-trade policy is carried out to the uttermost—if our colonies are to be thrown away as useless, and our foreign stations dismantled, we might submit to a still further reduction. France will be too happy to receive Gibraltar or Malta from our hands, and will cheerfully free us from the expense of maintaining garrisons there. Let us but make over to that affectionate and domesticated people the keys of the Mediterranean, and we shall soon see with what eagerness they will co-operate in the dissemination of Mr Cobden's free-trade dogmas.

Apart from the colonies, we have a serious difficulty at home. Ireland—that most wretched and ungrateful country, which no experience can improve—is as far from tranquillity as ever. The hard-working population of Britain submitted last year without a murmur to an exorbitant taxation, for the purpose of relieving the distress occasioned by the failure of the potato crop. The return is a howl of defiance from the brutal demagogue, and an immediate increase of murder and of crime. Notwithstanding every kind of remedial measure—notwithstanding their exemption, which is an injustice to us, from many of the heaviest burdens of the state—notwithstanding the mistaken policy which fostered their institutions and their schools, the Roman Catholics of Ireland stand out in bad pre-eminence, as the most cold-blooded, unthankful, and cowardly assassins of the world. In order to repress that outrage, which is so villanously rife among them, and which nothing but physical force can restrain from breaking out into open rebellion, we are compelled at all times to keep the largest portion of our remanent disposable force quartered in Ireland. The consequence is, that a mere handful of our standing army is left in Great Britain.

If Mr Cobden should like to see a little terrestrial paradise, in which few birds, with that gaudy plumage which is so offensive to his eyes, can be found, he had better come down to Scotland, and pay us another visit. He is kind enough, we observe, to make himself the mouthpiece of our sentiments upon this matter of the defences; and, certainly, if there be any truth in the adage that we are entitled at least to see what we are paying for, Scotland has no reason to be peculiarly warlike in her sentiments. Mr Cobden will find us quite as affectionate and domesticated a people as the French; and he may rely upon it, that he will not be shocked by any over-blaze of scarlet. From a turbulent, we have gradually settled down to be a quiet race; and as a natural consequence, we share in none of those benefits which are heaped so liberally upon the "persecuted Irish." Our only excitements are a Church squabble, which does not require the interference of the military, but exhausts itself in the public prints; or a bread row, which is always over, long before a detachment can be brought from the nearest station, it may be at the distance of some hundred miles. We are never noticed in Parliament, except to be praised for our good behaviour, or to have some remaining fragment of our national establishments reduced. We pay for an army and a navy which we never see; indeed, of late years the French and Danish flags

have been far more frequently displayed upon our coasts than the broad pendant of Great Britain. In many of our counties a soldier is an unknown rarity; and the only drum that has been heard for the last thirty years, is in the peaceable possession of the town-crier. England, we apprehend, except in the immediate neighbourhood of the metropolis and of Manchester, is not much better supplied: in short, so far as Britain is concerned, we have a remarkably insufficient force, and one which has been declared by the highest military authority alive, wholly incompetent for our protection in the case of an attempted invasion. Cobden, who has no veneration for successful warriors, having feathered his nest very pleasantly otherwise, admits that he has not the slightest practical knowledge of the trade of war. We therefore demur to his position that this is a question for civilians to determine, and that military and naval men have nothing to do with it. His previous admission involves an inconsistency. He might as well say, that, having no acquaintance whatever with engineering, he is entitled to deliver his opinions in opposition to Walker or Stephenson, on the construction of a skew bridge, or the practicability of boring a tunnel. If one of those vessels in the Tagus, which, according to Cobden, are kept there for the sole purpose of instructing our seamen in the culture of the geranium, was to spring a leak, we should assuredly apply to Jack Chips, the carpenter, to stop it, before invoking the aid of the peripatetic apostle of free-trade. And just so is it with the state of our national defences. Manchester must excuse us, if we prefer the testimony of the Duke of Wellington upon this point to the more dubious experiences of Cobden. It is, of course, quite another question, whether the leak shall be stopped, or the vessel permitted to founder peaceably. Mr Cobden may be heard upon that point, under special reference to the magnitude of the stake which he hazards, but we decline receiving his opinion on the subject of military fortifications. He can no more pronounce a judgement on the adequate state of our defences, than he can parse a paragraph of Xenophon; and therefore, by approaching the subject, he has been guilty of presumption and impertinence.

Mr Cobden proposes that we should rely upon the maintenance of peace by removing all obstacles to invasion. He admits, indeed, that for the present he is in a minority, but he hopes very soon to change it to a majority, and until that time comes he is content to remain in the following position:—"I say this, I am for acting justly and fairly, and holding out the olive branch to

the whole world; and I will then take upon myself, *so far as my share goes*, all the risk of any thing happening to ME, without paying for another soldier or another sailor." This is good! What a glorious insurance is here offered to the nation against the risk of foreign aggression! If every man, woman, and child in this mighty empire will remain satisfied without the means of repelling foreign invasion, the magnanimous Cobden will take his risk, *so far as his share goes*, of all that may happen to HIM! Why, who the deuce cares what happens to him or his? Are we all engrossed in Cobden's weal or woe? Would it matter one straw to us, or to the universe, if he and his calico print-works were wrapped in universal conflagration to-morrow? This is, without exception, the most impudent offer of guarantee which we ever remember to have heard of; and it justifies us in remarking that, if all accounts be true, Mr Cobden would be no very great loser by the immediate advent of the French. If any thing happens to him, he may be assured of this, that notwithstanding his cautious salvo, he will have no claim for damage and loss, and little commiseration from any quarter whatsoever. Is the man insane enough to suppose, that he, armed with his olive branch, stands forth as prominently in the eyes of the world as if he were a sign of the Zodiac? Curtius, who leaped into the gulf in the Forum, which would not close until the most precious thing of Rome was thrown into it, shrinks into insignificance, and becomes absolutely bashful, when compared with the emulous Cobden. According to the Man-in-the-Moon, Curtius was pronounced by the Flamen to be the most precious fool of his day, but in point of conceit he is fairly trumped by the honourable member for the West Riding of Yorkshire. In his opinion there is nothing worth protecting save an inland mill, and he does not care what becomes of our arsenals so long as there is an immunity for calico!

If there are no armaments, thinks Mr Cobden, there can be no wars; and for once he is tolerably right. If iron did not exist there could be no swords; and without gunpowder, or its modern substitute cotton, a discharge of musketry is impossible. But unfortunately there are other armaments besides ours, and no symptom whatever of their reduction. Here the reciprocity theory is once more brought into play. Let Britain be the first to set the example, and every other nation will follow in her wake. Cannons, by unanimous consent, will be spiked, banners handed over to the respectable fraternity of Odd Fellows, and the soldier condemned to the stiffing walls of the factory,

never more to stand at ease. Such are the dreams of Cobden; and if he really believes in them, and in the actual regeneration of human nature by means of free-trade instead of religion, we should like to see him try the experiment on a minor scale. Let him, after having collected within his premises as much plate as he can conveniently acquire, and as much cash as he is worth, dispense with the unnecessary precautions of lock and key; let him dismiss the watchmen from his works, and put up an advertisement that the whole public are welcome to enter at any hour they please, and that not the slightest attempt at resistance will be offered. We presume that the Manchester operatives are at least as affectionate and domesticated as the French; but, notwithstanding that, we should entertain some apprehension as to the fate of Mr Cobden's spoons. The temptation would really be too great. The seeming solidity of the albata plate or purified nickel-silver would infallibly tempt the cupidity of some affectionate artisan. A midnight visit would be paid, and on the morrow there would be wail for the missing tureen! To be consistent, we should begin with municipal reforms. Let us proclaim honesty as a universal principle, do away with the police, abolish Chubb, and keep our doors wide open for ingress as well as for ventilation. If our greatcoats disappear not, if umbrellas are not less, and if the tale of our forks is complete after a reasonable lease of the experiment, we shall then have acquired some data for making a further trial, and intrusting the wealth of Great Britain to the forbearance of our foreign neighbours.

When Blucher, on his visit to this country after the war, rode through the streets of London, he was observed, amidst all the shouts of acclamation, to be peering curiously at the windows of the shops, which then, as now, exhibited a tempting and valuable display. When asked what he thought of the metropolis, the worthy veteran replied with a deep sigh, whilst a tear rolled down his venerable cheek—"Mein Gott! What a city for to sack!" Such were the first impressions of old Marshal Forwards; and, with all deference to Cobden's sagacity, we suspect that the amiable French, if they had it in their power, would not be slow to realise the sentiments. Indeed, his Royal Highness the Prince of Joinville, being of an open and candid nature, does not hesitate to acknowledge it in as many words. We do not think a whit the worse of Joinville for saying so: on the contrary, we are obliged to him, and, if wise, we shall treasure the hint. He merely speaks the sentiments of a large portion of his countrymen, who very probably

have no abstract wish for war, and would rather let things rest as they are. Of all nations in the world, the French have the best possible excuse for reducing their armaments, since France is inundated with troops, and they have few foreign territorial possessions. As compared with Britain proper, France could afford to shake off nearly three-fourths of her establishment, and yet remain upon an equality; but although Algeria may now be considered as safe and tranquil, there are no demonstrations of the kind. The French army is organised and ready to act upon any emergency: ours is too small, is dispersed, and we have not an adequate reserve at home.

Whilst, therefore, the possibility of an invasion remains, we are bound on every consideration of prudence and of policy, to act as if the probability were likewise at hand. The youngest of us has seen too many changes and revolutions—too many political disagreements and jarrings among the European family, to prophesy with confidence that these shall never be renewed. Even in commerce we have not got reciprocity, and we cannot expect to get it in the more abstract point of armaments. Woodburne House was better fortified by Dominie Sampson's folios, than Britain possibly could be by bales of Cobden's cotton. Our sincere belief is, that the surest method of accelerating a war is to take the advice of the Manchester demagogues, repudiate the ideas of the Duke of Wellington, and remain in stupid inactivity. It was necessary for public safety that this matter should be laid before the country; and the Duke for doing so may yet deserve a debt of gratitude, which will amply recompense him for the vulgar contumely of a host of disloyal bagmen. But it would be preposterous to suppose that the discussion which has arisen at home has not attracted deep observation abroad. The eyes of Europe are upon us, watching what course we are to adopt; and France in particular is waiting, with indrawn breath and tremulous anxiety, the result of the coming discussion. Our weakness at home is now apparent to the world; we cannot conceal it; the sole question is, whether we shall apply the remedy.

Admit the possibility, and the question is a serious one indeed! Let us suppose that, from some unforeseen accident, some stoppage in the wheels of diplomacy, or some untoward casualty, war was declared between Great Britain and France, or even any other continental power. Such an event could not happen without dividing the nations of Europe. We could not afford to withdraw our forces from the colonies, because these would

probably be made the earliest points of attack,—nor from Ireland, except at the immediate and imminent risk of a rebellion. Even should it be thought prudent to leave the colonies to their fate, the transport of the garrisons would involve a considerable period of time—a fact of which our enemy must be aware, and of which he would be foolish not to take advantage. We should be compelled to recruit immediately, and upon a large scale; and it would take some time to metamorphose Mr Cobden's operatives, or even that respectable senator himself, into any thing like the semblance of soldiers. If fifty thousand armed men were to be landed on the southern coast—and no one seems to doubt the possibility of such an occurrence—we should like to know what are our means of resistance? We have read a good many letters upon the subject, in the daily prints—some of them apparently by ex-military men, and some by politicians of the school of Tomkins and Cobden—but not one of them has been able to make out a decent case of opposition. The best, and, indeed, the only rational letters, proceed upon the supposition that there would be a general rising *en masse* of the English population—that every hawbuck would turn out with a musket to repel the invaders, and that the railways from London would vomit forth a cloud of intrepid musketeers. Every hedge, they think, would be manned, and every farm-house a sort of minor fortress. Now, with all submission, this is downright deplorable drivel. Ever since the English people—and that is now a very old story—have given up the use and exercise of arms, and agreed to be mulcted in purse, rather than undergo the personal fatigue and annoyance of exercise, there has been no martial spirit at all exhibited by the bulk of the population. No doubt, when an invasion was actually threatened by Napoleon, and three hundred thousand men were assembled at Boulogne, there were large demonstrations of volunteer activity; but then, it must be remembered that we were in the very height and fever of a war—the belligerent spirit and strong antipathy to France had prepared us for such a crisis, and we had not been besotted and enfeebled by more than thirty years of peace, and almost as many of gradual but sure demoralisation. We had not then adopted such men as the Manchester Jacobins for our teachers; we were then content to be national and not cosmopolitan in our ideas. We were fighting for our faith and our freedom—not truckling for calico or for yarn. The same crisis is not likely to occur again, and we cannot—dare not venture to calculate upon a similar demonstration of energy. Free-trade and liberal measures have put that

utterly beyond our power. We have no more doubt than we have of our own existence, that a body of men of Mr Cobden's way of thinking could be found in this country, ready to contract with the French government for conveying over to Britain an invading army at the rate of eight shillings a-head, victuals included; and, if the weather was stormy, they would unquestionably clear a handsome profit by the speculation. Morals have nothing earthly to do with free-trade—patriotism is opposed to it—and why make any distinction between the freightage of Frenchmen and of bullocks? The contractors, of course, would take care that their own premises were sufficiently far removed from the scene of immediate action; and we cannot pitch upon a fitter locality than that which is exhibited in Manchester.

We would ask any or all of those gentlemen who depend upon a general rising, to take the trouble, for some half hour or so, to revert to history. If they do so, and seriously think over the matter, they will speedily be convinced that an invasion is by no means a difficult matter, and that no reliance whatever can be placed upon the co-operation of the undisciplined people, either of the country or the metropolis, in the event of an actual invasion. In fact, judging from history, Paris is literally impregnable compared with London, and yet it has been occupied by the Allies. In 1688, William of Orange, a foreign prince, having no claim to the crown, and against the will of the people of England, whatever may be said of the aristocracy, landed in Britain, advanced to London, and took the throne, without the slightest demonstration of hostility. The population were perfectly quiescent. It was not their business to fight: they paid for an army; and accordingly they allowed the Orangeman to march on, just as they would do to Joinville, provided he desired his troops to be reasonably accommodating and civil. Sack and rapine might undoubtedly provoke resistance; but if ordinary courtesy were used, and more especially if the French proclaimed that they came upon a free-trade errand, and a friendly visit to Mr Cobden, there would be far fewer shots fired, than at the present moment are resounding from the peaceful hedgerows of Tipperary.

The next instance we select—omitting minor efforts—is the enterprise of 1745, which peculiarly concerns Scotland, and of which we are by no means ashamed. The heir of the Stuarts landed in the North, supported by no force at all. The clans, to their immortal honour, and a portion of the best Lowland blood of Scotland, maintaining those principles of loyalty which

free-trade cannot comprehend, assumed the white cockade, and after thrashing the English army effectually at Prestonpans, marched south, on the desperate errand of displacing the reigning dynasty. And how were they received? It is important to note the idea which the English people had, at that time, of the Highlanders. They considered them a race of cannibals who ate children; so that it was no uncommon matter, when a Highland officer entered a house, to find the mistress on her knees, praying for a Lenten diet, whilst the terrified urchins were all the while concealed beneath the bed. Such is the positive fact; and yet we will venture to say, that there never was, in the history of the world, an instance of a more blameless or more humane invasion. Donald, though quite ready to cleave a bearded Hanoverian to the chin, had an extreme weakness for children, and would not, on any provocation, have insulted a defenceless woman. Had Mr Cobden fallen into his hands, the Highlander, after a due estimate of his physical capabilities, would probably have put him to ransom for a quarter of a pound of tobacco. The feeling in England was not in favour of the exiled family, the antipathy to the Highlanders was extreme, and yet an irregular and ill-disciplined host of about six thousand men, with no artillery, no commissariat, and a mere handful of cavalry, penetrated into the heart of England without any show of popular opposition, and reached Derby without the loss of a single man. It is not difficult to understand why Manchester is so uproarious against the military, when we recall to mind the splendid instance of poltroonery exhibited by the manufacturing capital on that memorable occasion. The town of Manchester was captured by a Scots sergeant of the name of Walter Dickson, who, supported by a drummer and a wench, took possession of it in name of Prince Charles, four-and-twenty hours before the clans came up! Not a magistrate was to be found bold enough to issue his warrant against the intruder, nor a constable to execute it, nor a single operative to support it. There was no talk then about finding graves for the invaders: the invaded were quite content with finding cellars for their own particular shelter. Gentlemen who had talked big enough when the danger was at a distance, recoiled at the idea of personal peril, whenever the danger drew nigh; and, being unsupported by a regular force, very prudently abstained from opposing their persons to the terrible sweep of the claymore. But for internal dissensions and some infirmity of purpose, it is now beyond a doubt that the clans might have penetrated, without any opposition, to London. So little martial spirit was exhibited in the capital,

that parties were actually made and carriages engaged for Caxton, to see the Highlanders march by; and George the Second was in full preparation for removing, and had stowed away his valuables in his yachts. As it was, the invaders returned back to their own country almost as scaithless as they came, without any experience of that fiery and patriotic spirit which the correspondents of the newspapers profess to discover blazing within the bosom of every Briton at the mere idea of an invasion.

In fact, it is mere trash to maintain that raw levies or extempore guerilla resistance can be of the slightest use in opposition to a disciplined force. For ourselves, we do not believe that such resistance would be attempted. Men require to be brought together and trained before their individual stanchness can be relied on; and we know perfectly well that a mob has no chance, at any time, against an immeasurably smaller body, if properly organised and directed. Let the people of this country be disciplined and accustomed to the use of arms, and you may search the world in vain for braver or better soldiers. But the power is still latent, and, according to Cobden, it never must be called forth. This is mischievous and stupid folly. If any thing is to be done at all, it must be done regularly and effectively. Let us have the knowledge, the certainty that, at a few hours' notice, a formidable body of troops, well disciplined and prepared, can be concentrated at any given point of the island,—let this fact be made known to the world, and we have a far better security for the maintenance of peace than if we were to adopt the stupid and pragmatistical notions of Mr Cobden. Mr Disraeli took a sound view of the case, when he reminded the honourable member, "that although the profound peace which he had announced might come within the time of those who heard him, still there was something in the catastrophes of nations *sævior armis*,—catastrophes from other causes leading to their decay. Happily in those causes the limited experience of the Roman empire had not included the rapacity of rival industry, and the quackery of economic science." We are afraid that the lesson which Mr Disraeli attempted to inculcate—one which, of late years, we have repeatedly insisted on in these pages—was somewhat thrown away upon his pupil. Gentlemen of the Cobden school set little store upon the philosophy of history, and prefer to reason within the limits of their own experience. They can as little explain the causes of the decline of ancient empires, as they can account for the palpable falling off in the amount of

our exports; and it is idle to remind men of things which they have never heard. It is not to them, but to the intelligent classes of the community, that we would fain address our argument. There is a remarkable and striking analogy between the present state of the country, and the position of England at the time of the Highland descent in 1745. The nation had become accustomed to peace at home, and was therefore proportionally enervated. The use of arms, and the training of the militia had been abandoned; a false economy had reduced the numbers of the regular forces; and the greater proportion of those which remained were abroad. Under those circumstances the expedition took place: the weakness of the front exhibited by England was the temptation, and we have already seen the consequences. It is now seriously proposed that we shall remain liable to a similar assault, when the stake at issue is incomparably greater. What would be the result of a swoop upon London according to the published Joinville plan? and yet there is hardly another capital in Europe, which has not during the last fifty years been occupied by a hostile force.

We have all an interest in this question, for a descent may be made any where. We have not even the benefit of ships to protect us here in the North; and three or four French frigates would, we apprehend, find little difficulty in effecting a landing in the Forth. Will Mr Cobden be good enough to favour us with his opinion as to the course we should pursue, supposing such a calamity to happen? A simultaneous attack may be made on the south of England, and the Castle and Piershill barracks emptied for the purpose of reinforcing Portsmouth, too weak to maintain itself without their aid. Would he advise us to resist or succumb? Shall we throw ourselves under the protection of our friend George M'Whirter, W.S., and the Edinburgh squadron of the Royal Mid-Lothian Yeomanry? Shall we sound the tocsin of war, and call out Captain Haining with his reserved band of twenty police, all fierce and furious for battle? Shall we persuade the Archers to string their bows, and compete for the Goose medal with a fire-eating Frenchman as the butt? Shall we barricade Leith Walk, block up the Granton Railway in the teeth of a suspension and interdict, and contest, to the last drop of our blood, the possession of every house in Inverleith Row? May we calculate upon any support from the middle districts of England in the event of such a calamity? Will Mr Bright array himself in drab armour, and come to our rescue, with Welford the flower of chivalry, who has a

special objection to guns? Can we depend upon Cobden himself? Will he pledge himself to back us at our need with an overpowering army from the factories, clad in calico, and armed with the tremendous and invincible billy-roller? Will George Thompson, chief of a thousand wordy fights, be there,—or Wilson, ex-monarch of the league? Shall we send them the beacon blaze, or—faster still—the telegraphic signal to the south imploring immediate succour? Or shall we trust to their own noble impulses, and hold —

Ye need not warn the Cobden clan,
That ever are stout and true;
And when they see the blazing bale,
The Brights and Thompsons never fail!

Indeed, if we are to believe the last mentioned gentleman, we have that assurance already, for he has spoken as follows:—"I may venture to foretell that the Free-Trade Hall, of Manchester will be more than a match for Apsley House and the Horse Guards put together;"—a highly satisfactory account of the town which was whilom captured by a sergeant!

Upon the whole, unless we can come to a serious understanding with Manchester, we have grave doubts as to the propriety of offering any very obstinate resistance. If we are to do it, we must send off all the women to the Trosachs by the Scottish Central Railway, and perhaps it would be as well for all of us to join the Celtic Society, and fight the battles of our country in the pass of Roderick Dhu. An honourable capitulation, on the understanding that the French were to behave themselves, would probably be the wisest course we could pursue under the circumstances. We love George M'Whirter, and have every confidence in his valour, but we could not bear to see him gasping in his gore; and therefore, unless the regulars are forthcoming, or the Manchester legion on their way, he had better fall back with his comrades upon the western warriors of Dalmahoy. The number of our guardians of the night is at present so small, that we positively cannot afford to spare even one of them as food for powder. It would, we fear, be imprudent to risk the fate of the Scottish capital upon the issue of a combat between our dashing Toxophilites and a body of French artillery, and we are reluctantly compelled to admit that there was some truth in Major Dalgetty's sarcasm against bows and arrows. And now,

having gone over the catalogue of our available native forces, which is not quite so long as the Homeric muster-roll of the ships, will any body tell us what we are to do? It would be a sore humiliation were we compelled to illuminate Holyrood, and give a grand ball in honour of the Duc D'Aumale, and our other ancient and now reintegrated allies. But if you abolish the British uniform, and allow the French to supersede it, what else can you expect? We want to be loyal if you will only tell us how—if not, we see nothing for it but the illumination and the ball.

Mr Cobden is pleased to be especially bitter upon the "horrid trade" of soldiering. He characterises it as barbarous and damnable, and would be rid of it at all risks. Now, setting aside the idiocy of his remarks, there is a monstrous deal of ingratitude in this language of the free-trade apostle. Had it not been for our arms, where would our market have been? If we had succumbed to France instead of humbling her at Waterloo—and we presume that Mr Cobden would have preferred the former alternative, since he thinks that the Duke should now be preaching forgiveness for the past—where would have been our trade, and where our exportations of calico? Hindostan is an acquired country, and British arms have opened up the markets of China; and are these commercial evils? Really it is throwing away language to attempt enforcing a point so clear as this. Commerce owes every thing to the exertions and protection of that military power which these purblind theorists complain of; and were our armaments abolished to-morrow, we should look round us in vain for a customer.

And pray what does the arrogant upstart mean by characterising the honourable profession of a soldier as a damnable trade? Does he intend to disgorge his contempt and contumely upon the graves of those who fell on the field of battle fighting nobly for their king and country? Are we now to be told that the names which we have written in our annals, and embalmed in our memories, are detestable and odious as those of homicides and of robbers? If it has come to this, and if public scorn is not roused to overwhelm the man who can conceive and utter such ignoble sentiments, then indeed we may believe that demoralisation has partially done its work, and that the mean ethics of Manchester are henceforward to influence the nation. Not damnable nor horrid, unless justice and freedom be so, is the profession of those who have drawn the sword in the service of Britain, and died for the maintenance of order, liberty, and religion. Other trades there

are far more liable to such epithets, but with these, thank heaven! we have but little practical acquaintance. The trade of the greedy taskmaster, who rears infants for his mills, and grinds them to their task until the sinews shrivel up and the limbs are warped into early decrepitude—of him who will not recognise the existence of an imperishable soul within the tender framework of the children whom he makes the victims of his avarice—of the advocate of long hours, because thereby he may keep his human machinery under the complete control of exhaustion,—the trade of that man, we say, though it may be tolerated in a Christian land, is but one shade less horrid, and not a whit less damnable, than that of the slave-trader, who is now chuckling over his living cargoes on the African coast—cargoes for which he is indebted to the enlightened legislation of Mr Cobden and his liberal confederates! Are these the men who are to revile and traduce our army? Faugh! The leprosy of mammon is upon them, and our nature recoils from their breath.

In conclusion, let us express a fervent hope that we have heard the last of this dull and deplorable drivelling. It is to the credit of the Whigs, that, far as they have been led astray by adopting the newfangled political doctrines, rather, as we believe, for the sake of maintaining power than from any belief in their efficacy, they have declined all participation with the Manchester crew in their recent attempt to lower the position and diminish the influence of Great Britain. The chiefs of that party know full well how much we have at stake, and what a responsibility would rest upon their heads, were they to reject the advice of the great captain who has already saved his country, and who again comes forward at the close of life to warn that country of its danger. Mr Cobden likewise is furious with the public press, and charges a large portion of it for refusing to be dragged through the Manchester mire, with having abrogated their duties on this question. We apprehend that the editors of the journals to which he alludes are perfectly competent to the discharge of their duties, without submitting to the dictatorial interference of this very much over-rated and extremely shallow personage. As for the Duke of Wellington, he is not likely to suffer in health or reputation from any want of respect or veneration on the part of Mr Cobden. His fame is too bright to be polluted by such dirty missiles; and the veriest vagabond who broke the windows of Apsley House would shrink from repeating the insults which fell from the lips of the calico-printer.

In short, our impression in rising from the perusal of this notable speech, is deep surprise that such a man should ever have been made the leader of a popular party, or the representative of a fixed opinion. That it should have been so, is a reflection that cannot be flattering to many of his followers, and least of all to those who threw aside their opinions to undertake the advocacy of his. But the spell is now broken, the mask removed, and we behold the egotist, the railer, and the fanatic. Let us sum up in a few words, for the benefit of posterity, the great free-trader's opinion of the Duke of Wellington, and then take leave of the most discreditable subject which for a long time we have been called upon to notice.

MR COBDEN DOES NOT SHARE IN THE GENERAL VENERATION FOR THE DUKE. MR COBDEN THINKS THAT THE DUKE OUGHT TO PREACH FORGIVENESS FOR WATERLOO. MR COBDEN THINKS THAT EVERY MAN, POSSESSING THE ORDINARY FEELINGS OF HUMANITY, MUST CONDEMN THE DUKE FOR HAVING STATED THAT, IN HIS OPINION, THE DEFENCES OF THE COUNTRY ARE INSUFFICIENT. MR COBDEN THINKS IT A LAMENTABLE SPECTACLE THAT THE DUKE SHOULD HAVE WRITTEN SUCH A LETTER. MR COBDEN HINTS THAT THE DUKE IS A DOTARD, BECAUSE HE HAS VENTURED TO EXPRESS, ON A MILITARY SUBJECT, AN OPINION CONTRARY TO THAT OF COBDEN. AND COBDEN FURTHER MAINTAINS, THAT THERE IS NOT A MORE AFFECTIONATE NOR DOMESTICATED RACE ON THE FACE OF THE EARTH THAN THE FRENCH.

After this we need add nothing more. Our opinion of Mr Cobden could be thoroughly expressed in a much shorter sentence.

ROMANISM IN ROME.

CATECHISM IN THE MINERVA.

"Occidit miseros crambe repetita magistros."—JUVENAL.

"Et qui parlant beaucoup ne disent jamais rien."—BOILEAU.

Visitors to Rome are oftentimes puzzled and surprised at hearing the very unusual affix, *della Minerva*, applied to one of the Christian churches of that city; more especially when they find it also familiarly known to the common people, not so well read as their priests in the calendar of the saints, as LA STA. MINERVA; but the apparent misnomer originates in an ellipsis of the full title, which runs thus, *Sta. Maria sopra Minerva*—the church in question having supplanted a temple formerly dedicated to Pallas, upon the ruins of which it has been reared. But though the goddess of wisdom still retains a *nominal* interest in the edifice, certainly, to judge from the catechetical exercises of which we are about to give a specimen, her reign is past, and there remains but the *nominis umbra* in lieu of it. Exorcised the church, she has been fain to accept such a humiliating asylum in the library adjoining, as inquisitorial Dominicans would be likely to afford a heathen goddess, whose proceedings they must narrowly watch. There she has the mortification of hearing, from year to year, some new relay of "gray-hair'd synods damning books unread," and, club-fashion, blackballing all *her* friends in order to make way for their own; just as old Pope Gregory is said to have burned a whole library of Pagan literature, that the Christian Fathers and Roman Catholic Saints might have more elbow-room; and also that, in the absence of rivals, their authority might not be disputed. "*Fertur beatus Gregorius bibliothecam combussisse gentilium, quo divinæ paginæ gratior esset locus et major auctoritas et diligentia studiosior.*"^[A]

At Easter-tide, those who have any curiosity on the subject may hear Bellarmine's Catechism, as it is squealed, bawled, or otherwise intoned by

the young children of the different *Riones*, and commented on and explained for their edification by the pedagogue priest of the district. He is generally surrounded at such times by a bevy of from forty to fifty scholars, *gamins* or *gamines* as the case may be; and to work they set with such earnestness of vociferation that all Bedlam and Parnassus, raving and reciting together, could not well surpass the discord: the shrill diapason, peeling through nave and aisle, shakes the floating *Baldaquino*, and makes the trembling walls bellow again, furnishing an apt and lively illustration of the "*convulsaque marmora clamant*" of the poet.

Though we had often frequented the churches at this season, and had scores of times heard questions both asked and answered therein, yet, generally intent on the marbles or monuments of the edifice, we had not hitherto given ear to the proceedings of these obstreperous young bull-calves: but, before leaving Rome definitely, it seemed fair to give them an hour's attention on some convenient opportunity, in order to form an unbiassed judgment of how their early religious education was carried on. One soon presented itself in the above-named church of the Minerva; for, chancing to be there at the right hour on an examination-day, in crossing in front of the black-columned chapel of St Dominick, we came suddenly upon a covey of little girls nestling in one of its corners, under the sumptuous tomb of the thirteenth Benedict, and waiting, all primed, for their instructor. Some, absorbed in the contemplation of the silver crown and faded finery of St Philomel—we trust, at so tender an age, without infringement of the tenth commandment—were delighting themselves in anticipating the day when they too might become saints, and wear similar decorations; others, too young for such speculations, were staring with intense vacancy at the flickering of a tiny lamp, in front of a very dingy-looking madonna, to which one or two, in baby simplicity, were repeating *Latin* creeds, paternosters, and aves. Not knowing exactly how long the preceptor of these small folk might keep them waiting, we left them, and proceeded to the body of the building, where a detachment of boys was already drawn up for action, with their *padre* in the midst. Approaching as softly as might be, we stood against a neighbouring pilaster to hear what might be required of such young pupils, and how they were prepared to acquit themselves. Their incessant movements did not promise a very sustained attention, whatever might be the business in hand: many of them were evidently plagued with

fleas—all with fidgets; some shrugged up their shoulders, others swung themselves by their hands on the form; these were buttoning, those unbuttoning their dress; and not a few warmed their feet by kicking the sounding pavement, and then listening to the echoes from the vaults. Every boy carried a book in his hand; but on these no wandering eye ever looked, not even for an instant, in its numerous glancings round. As soon as the additional commotion, occasioned by the approach of a stranger, had subsided, the priest, harking back to what he had just been saying, and not quite sure of his whereabouts, asks his class touching the last question. "You asked that boy," said one, pointing to a comrade near him, "how he supposed he ought to come to church." "Well," said the priest, resuming his cue, and reverting to the last examinee; "and how did you tell me you were to come?" "*Colle mani giunte così*," said the boy, locking his hands, and standing up as he did so. "*Niente avanti?*" said the priest, glancing at two very dirty paws. "Oh yes! I was to wash them." "*Poi?*" "I was to cross myself as I came out of my room, and to cast down my eyes, like the *Mater Indolorata* yonder." "And then?" "As I came to church, besides looking grave, I was to walk, not *così*"—and he walked a few paces as he ought *not* to walk,—"*but così*"—changing the rhythm of his march—"as if I were following my brother's funeral. *E poi finalmente*," (as he resumed his place with a jerk,) "I was to be seated so, and hold my tongue till the *padre* should address me." "Well, my little man," (to another of the motley class,) "were we not talking about the sacrament?" "Oh yes! no one may receive *that* who has been guilty of any mortal sin." "*Bene*, that's quite right; but *why not?*" The following gabble, to which it was quite obvious that none were of an age to attach *any* meaning, served for a reply, and was received as perfectly satisfactory by the priest:—"Siccome il pane naturale non può dare vita ad un corpo morto; così il pane della Santissima, Eucaristia non può dare vita ad un anima morta." "And what may mortal sins be?" turning to the next scholar. "*Eh! chi lo sa*; who is to tell you that?" said a young butcher's boy, turning off the question, and freely offering it to any one who would take it up. Upon this the boys made much noise, and laughed out lustily, not encountering any reprimand from the *padre*, or so gentle a one as to prove no check to their mirth. At length, quiet being partially restored, he resumed his task, and asked a child of six years old to give him an example of mortal sin! Not receiving an answer, this question travelled nearly to the end of the first line before any one would take upon himself to venture even a random

response; then, at last, by dint of prompting, one boy suggested, that the tasting food before receiving the sacrament was of such a kind; and having been first much commended for his erudition, was next subjected to a long list of *suppositions* from the examiner; such as, "Suppose I were to drink a little water merely?" "*Niente!* no, you mus'nt." "Well; but suppose I only took a small piece of consecrated wafer?" "*Ne anchè*; not that neither." "What! would even these small indulgences be infringing the rule?" But as the boy had received an approving "*bene*" for his first negative, he had no difficulty in keeping to his text; and at last the whole class, enjoying the joke of punishing their *padre* by cutting him off from all supplies at every fresh demand, roared out *in chorus*, "*Niente, niente*—you mus'nt touch a bit;" till, tired of the shouting, the good man proceeded to the next interrogatory. We were tiring too; but being really desirous of hearing, if possible, something more to the purpose, remained, notwithstanding, yet another half hour at our post—indeed quite long enough to be sure that "*niente*" was all we were likely to get for our pains. Some of the questions were simply frivolous, many jesuitical, others deeply profound; and whatever their character, all were answered in the same careless and irreverent tone; *à tort et à travers*, according to the fancy of the young respondent. In a word, a more complete waste of time for both teacher and taught could not have been easily devised. The instruction of this and similar classes—for we have no reason to suppose that others differ from it—seems about as intellectual and useful (and no more so) than that of an aviary of parrots in the town of Havre, where the young French *psittaci* chiefly learn their *χαίρης*, and their "*petits dejeuners*." Alike in quality, it is not very dissimilar neither in the mode of its administration. The shopman proposes the first word of a sentence to the whole community, and the greater or less accuracy with which it is taken up and completed, evinces the relative aptitudes of his tyros; and though great allowance is always made, in the case of both boy and bird, for transpositions or leavings out, yet the priest, like the parrot-merchant, keeps an eye on the pupil who promises to do most credit to his training, and brings him forward on every public occasion. "In all labour," says Solomon, "there is profit, but the *talk of the lips* tendeth only to poverty." It requires no Solomon to see how completely this is the case here; but there is one particular in which the *padre* really deserves praise, and we cheerfully accord it. The forbearance, the patience, meekness, and *bonhomie* which he exercises in proposing the

dull routine of questions, and in listening while the pupils "ring round the same unvaried chimes" in reply, cannot be too much admired. Like the patient schoolmaster in Juvenal, he puts up with all their idleness and inattention—in the very doubtful proficiency of many of his scholars, gives them the favour of the doubt—and, above all, never loses his temper! This drilling and preparation of the district classes has for ulterior object a general field-day,^[B] which occurs once a-year; when the congregated schools, in the presence of the canons and other dignitaries of the church, being now supposed fully supplied

"With stores of spiritual provision,
And magazines of ammunition,"

for the warfare, are expected

"To rise and start the ready wherefore,
To all that sceptic may inquire for;
Then raise their scruples dark and nice,
And solve them after in a trice;
As if divinity had catch'd,
The itch, on purpose to be scratch'd!"

In short, these living *fantoccini* are taught to expose heresies, and expound the dogmas of their faith, in words found for them by their priests; and he who best retains the lesson, and proves himself most loud and overbearing in the exercise, receives, for reward, a crown and royal robe, and is metamorphosed out of the *imp*, which he was an hour before, into the *imperator*; more fortunate by half, in the undisputed tenure of his title for a twelvemonth, than many of his Roman predecessors in the laurel. The little girls have an exhibition somewhat similar, but still more theatric in its character. At Christmas they assemble in the churches, dressed out by their parents (who delight in making them as fine as possible) very much, it must be admitted, like ballet-dancers; but supposed to represent, in their habiliments, youthful Christian virgins and martyrs. Thus apparelled, they hold forth on a platform in front of some favourite *Præsepe*, and sustain, with Pagan rivals, long dialogues on the Nativity, syllogising, in the shrill thin voice of childhood, upon all the sublime mysteries of our faith, till the Pagans abandon the scornful air with which they are taught to commence

the discussion, and confess themselves vanquished by the arguments brought against them. The chief spokeswoman is then rewarded, like the head-boy, with robe and crown, and retains her regal dignity for the same period. Of all such education, what shall we say? Why, truly, in Hudibrastic plainness of speech, that it is

"More fitted for the cloudy night
Of Popery, than Gospel light."

Are our British *infant* schools quite free from participation in the defects just noticed? By no means; and though the subject is far too important to be dismissed with a few words at the end of a slight sketch like the present, (especially since we hope to return to it later,) yet, even here, we must glance at one or two blemishes, that lie so immediately on the surface as to strike even the most casual observer, when once his attention is called to them. In such seminaries, it is known, the ages of the children usually vary from eighteen months to six years, at which tender period of life it is almost impossible to exercise too much discretion not to over-burden the memory, or to obscure the dawning reason; but alas! in the always well-meant, but certainly not always judicious, zeal for beginning education betimes, how often is it begun too early and pushed too far! In an over-anxiety to prevent, by pre-occupation of the ground, the arch-enemy of mankind from sowing his tares, how often is the good seed thrown in before it can have a chance of quickening! *Festinare lente* should be the motto, in moral and religious, as it is in all other branches of education; since neither in religion nor morals can we hope to arrive at the full stature of perfection, but by slow degrees and long training. The Bible, to be sure, (the only true source of either,) is *the* Book for all mankind; but as it contains "strong meat for men," as well as "milk for babes," great judgment is necessary, in separating these diets, to give to each age the food particularly adapted for it. We have the apostolic injunction for such discrimination,—"Every one that uses milk is unskilful in the word of righteousness: for he is a babe. But *strong meat* belongeth to them that are *of full age*; even those who *by reason of use have their senses exercised* to discern both good and evil."[\[C\]](#) It is further obvious, from St Paul's catalogue of the armour which is to resist *all* the attacks of the world, the flesh, and the devil, that it comprises many pieces of which young children can neither be made to comprehend the design, nor, at their time of life, to require the use. How unskilful, then, and

abortive must be the attempt to put into the hands of *instinct* the weapons of mature *reason*; to seek to explain the "beauty of holiness" to a child who does not "know his right hand from his left," and to invest an unbreeched urchin in the whole Christian panoply at once! With all due respect, too, to the pains-taking compilers of some of the *manuals* used in these classes, we cannot help thinking that their labour has been at times worse than thrown away; and it has excited our surprise to hear really judicious^[D] persons speak of these lesson-books as "perfectly suited" to the purpose of infant education, and as requiring no amendment. Surely they cannot have read them; or they must have forgotten, when doing so, the *age* and *condition* of those for whom they are intended. Not to be thought captious for nothing, we will let that "*farrago libelli*"—that sausage of all the sciences—that "Teacher's Assistant," speak for itself. It has gone through we know not how many editions, and continues to perpetuate in each succeeding one all the blunders of its predecessors. To begin at the beginning,—The scholars have to learn therefrom as many alphabets as there are letters; a historical, a geographical, a profane, and a biblical alphabet, &c., &c., not to attempt an enumeration of the whole. In the biblical, each letter is put opposite to some proper or *improper* person mentioned in Scripture, for whom it is said to stand representative—(leaving it to be supposed that it has been called into existence for no other purpose.) By this means the *written* character of course becomes associated in the child's mind with the *moral* character of the individual whose initial it is; and thus a certain prejudice is apt to arise against certain letters. For instance, the letter *H* is rendered fearfully significant,—

"*H* stands for Herod, who spilt *infants'* blood!"

A theorist might, perhaps, trace the absence of the aspirate in the speech of maturer years to the awe created by that dread tetrarch's name in infancy, when it is first feebly articulated, then dropped, and not recovered afterwards.^[E] But we are not theatrical; in proof whereof, we observe that a child's natural aspirations are for tarts, dolls, or marbles; while, to counteract such propensities, these little hypocrites, before their time, are taught to sing out, among other *Scripture wishes*, the following formulary, which must, of course, act as a specific:—

"May Isaiah's *hallow'd* fire,

All my *fervent* heart inspire;
Joseph's *purity* impart!
Isaac's *meditative* heart!!!"

A rhythmical dispute between two children, entitled a "Sabbath Dialogue," brings to our mind a similar farce at Ferrara, which we have formerly described. In this lively piece of absurdity, the naughty boy invites the good one to play instead of going to church, and, waxing warm as the other proves intractable, at length becomes absolutely abusive on finding he is not to prevail.

Once again. Behold a class of children with the picture of a sheep before them—to be taught, one would have supposed, the natural history of that animal, and to learn something about the material of which their little flannel petticoats and worsted stockings are made; when lo! in place of this, they are informed that "though their sins are red as crimson, they shall be as wool!!!" If it were necessary to use any interjection here, surely a loud ovine *bah!* would be the most appropriate and natural. But *revenons à nos moutons*, for presently afterwards occurs this question—"What does the Bible tell us about wool?" Answer: "Gideon wrung a fleece!" Bah! again, for what other *commentary* can be made on such *instruction* as this? Why, Jason filched one; and the Lord Chancellor sits upon a woolsack; and either of these answers would convey as much useful knowledge to a child's mind, though they are not to be met with in the Bible.

These unfortunate babes are to know a little of every thing: so, after going through *versified* weights and measures—arithmetic, including the higher branches—geometry—we hardly know what is *omitted* in this most comprehensive miscellany—they arrive at philosophy, and learn a great deal to the tune of "Miss Bailley." We give one stanza out of many, as an example:—

"The wondrous globe on which we live,
Is close surrounded every where
By something quite invisible,
And callèd *atmospheric air!*

This air is fluid, light and thin,

And formed of *gases* well *combined*!
It carries sound and odour well,
But put in motion it is *wind*!"

At the end of each verse, the infant chorus repeats with enthusiasm, not "Poor Miss Bailey! unfortunate Miss Bailey!" &c., but—

"Oh how curious,—wonderfully curious,
The *laws of nature* are indeed
Most wonderfully curious!"

The geography is as good as the physics:—

"A *channel* is a passage wide
That flows from sea to sea;
When narrow it is call'd a *strait*,—
Thanks to Geography!"

.

"When wise and older I am grown,
I'll try and tell you more,
But Teacher says *enough is known*
An infant's mind to *store*!"

No doubt of it! enough and to spare! This is a fine specimen of the class of truths called *unquestionable*. There is, moreover, a pleasing *enjouement* about this last line, which recommends it to our regard. The teacher seems to be expostulating with her young charge, and saying, "My dear little four-year-old, eager for instruction beyond your years, but fearful of *learning up* every thing at school,—don't be frightened; the world will always find science sufficient to employ all good little boys like you." But though this *truth* be unquestionable, we doubt whether the line which conveys it be genuine; and rather fancy, should the original manuscript turn up, it would be found to run—

"*Enough's enough* an infant's mind to store!"

which, though somewhat harsh to the ear, conveys an excellent meaning. Should this be thought to make the verse too rugged, we have yet a second various reading to propose, and that is simply to change the last word into *bore*, by which means the easy flow of the verse is preserved, and the *significatio prægnans* of the original, though somewhat modified, is maintained.

Notwithstanding these blemishes—which, after our strictures on foreign classes, we felt bound to point out—our English schools are very far superior to the Italian for the same rank. With us, the attention of government and of the public is roused, and directed to their improvement; laymen join with the clergy in forwarding the same scheme; great part of the tuition devolves upon females—and who so fitted as woman to form the mind at an early age? It is no small advantage, too, that authoresses of talent and judgment should have devoted their time to the composition of exclusively moral and religious tales and histories for the young. Lastly, with us, there is none of that masquerading and display, which we reprobate as forming so prominent a part in all Italian tuition. In these schools, women are excluded from their natural office of teaching; there are no books adapted to infant minds; the whole business is vested in the hands of the priests; and they, in strict compliance with the spirit of their Church, train the pupils in passive obedience to authority, and teach them very little besides. We fear it will be long before any revolution can reach these seminaries. The sense of personal importance attaching—not only to the children themselves, but to their parents—from these contemptible yearly exhibitions, added to the interested motives which induce the Church to foster such vanity, would render any considerable alteration for the better extremely difficult, even were the evil more generally *felt* than we fear it is likely to be under the present system of things. We state this opinion with regret; for what is the tendency of such education? Can it inculcate that real humility, not abasement of mind, which should characterise the true disciples of our blessed Saviour? Nay, must it not rather, by holding out, as it does, a premium to natural quickness and a superficial acquaintance with the dogmas of theology, tend to foster pride and selfishness—those monster evils which it is the prime object of religion to eradicate—whilst the heart remains untouched and the moral sense unexercised? and will not the poor

children, who are its victims, learn to prize a few dry leaves from the Tree of Knowledge, beyond the fair fruit of the Tree of Life?

LA CARA VITA.

"Mais où sont les vertus qui dementent les tiennes?
Pour éclipser ton jour quel nouveau jour parait?
Toi qui les remplaces, ^[E] qui te remplacerait?"

DE LAMARTINE, *Harmonies, Hymne au Christ*.

The Cara Vita is a small church situated in the Corso, and not possessing within itself any thing to attract the stranger's particular attention. It is interesting, however, from the solemn services which take place there every Friday in Lent. On these occasions, after an exciting harangue from the officiating priest, the lights are extinguished, knotted scourges are handed round by the sacristan, and each individual of the congregation takes one and begins to flagellate himself. We have been told—for we were never present at these exhibitions—that the noise and excitement are terrible—every penitent seeking to ease his inner at the expense of his outer man, and proportioning the amount of his physical suffering to that of the moral evil which it is intended to counteract. But all the ceremonies in the Cara Vita are not of this character; and the same friend who described the above, informed us that the preaching there was often eloquent, and the music always fine; so, when we read in the *Diario di Roma*, that at twelve o'clock on Good Friday there was to be a solemn *funzione*, or Service in commemoration of our Saviour's Passion, and that in all probability the church would be crowded, we repaired thither on that day an hour before the time mentioned in the paper, in order to secure a place. Doubtful of the propriety of witnessing, as a pageant, a representation of the most awful and affecting scene that the mind of man can contemplate, yet fearing, from some experience in Roman ceremonies, that our visit might issue merely in *that*, we lingered some time about the porch; then, pushing aside the heavy curtain, irresolutely entered; and what a contrast presented itself between the two sides of that matted door! It seemed the portal between life and death: light, noise, confusion, reigned without; within, all was dark, solemn, still. The ear that had been stunned by the babel of the streets, was startled at the unwonted calm; and the eye, dazzled by the splendour of the meridian

sun upon the pavement, experienced a temporary blindness, and required some time before it could accommodate its powers to the obscurity of the interior. By degrees, however, it was, apparent that the church, notwithstanding the voiceless quiet which prevailed, was full. The whole assembly sat as if spell-bound; not a whisper was to be heard; an awful curiosity tied every tongue. The business and pleasures of life were forgotten; the sexes exchanged no furtive glances; men and women, alike unobservant of their neighbours, counted their beads and bent their eyes upon the ground; while each new comer, awed by the deep silence, entered with cautious tread, and took his seat noiselessly. When our eyes had become somewhat familiarised with the artificial light, they were attracted to two elevated extempore side-boxes, brilliantly illuminated with wax, and filled with choristers in full costume. Between them was stretched a voluminous curtain, not so opaque but that a number of tapers might be seen faintly glimmering through it; and before this curtain a dark temporary stage was erected. The, religious calm that prevailed around was at length gently broken by some soft and plaintive notes, proceeding from the white-robed choir. In a few minutes these died away again upon the ear, and a figure, suddenly rising from the stage, exclaimed in a voice of strenuous emotion—"Once again, ye faithful ones! ye are assembled here to accompany me to Calvary! Yes! another Good Friday has come round, another anniversary of the day announced by God himself for man's deliverance from the wages of his sin; this is the great day when typical sacrifice was done away with, and our blessed Lord made of 'himself a full and sufficient sacrifice for the sins of the' *faithful*. But in order to triumph, my brethren, we must conquer—to conquer we must contend; there is no warfare without wounds, and our Saviour, while in the flesh, must partake of our infirmities: he must be 'the man of sorrows and acquainted with grief,' before he can 'lead captivity captive, and receive gifts' *for his holy Church*; the ransom of his faithful followers must be at the expense of his own blood. He bled, as you know, on Good Friday; and accordingly, we are met here—not to celebrate a triumph, but to learn humility, patience, and forgiveness of injuries at the foot of the cross, in order that *we*, like our great Head, may become perfect *through suffering*. Permit me, then, to ask you, with the Psalmist, 'Are your hearts set upon righteousness, O ye congregation?' and are your minds prepared to follow the Lord to Calvary? Have you, for instance, been studying lately his sufferings at *the different*

stations of the cross? have you been thinking at all upon his passion? thinking what it must have been to be hooted at, spit upon, reviled, buffeted, and friendless upon earth? If not, ponder well these things now; *now*, at *this moment*; for are we not arrived at the most sacred *hour* of this most sacred but sad and solemn day? About this hour was the Saviour condemned by his unjust judge, delivered up to the rabble to be crucified. Go back in your minds to that moment; see him crowned with thorns, and bearing the cross upon his shoulder, till, lo! he faints under its weight, and his persecutors compel a stranger to carry it to the fatal spot. Then see him toiling onward, surrounded by his deadly enemies; his chosen friends have forsaken him and fled! a few women follow him afar off, bewailing his fate; he turns and speaks; listen to his words—'Daughters of Jerusalem! weep not for me, but weep for yourselves and *for your children!*' Well might the merciful Saviour speak thus, when he had just heard the mad shout of the multitude, 'his blood be upon us and *upon our children.*' The crowd approaches Golgotha! they halt to rear the fatal tree; methinks I hear the exulting outcries of his vindictive murderers as they fix it in the ground!" Here the curtain drawn between the preacher and the back of the stage fell, revealing three wooden crucifixes lit up by a lurid red light from above. The effect was startling, and produced a shudder of horror throughout the whole auditory. After a breathless pause, the preacher, turning towards the cross, exclaimed, "What! are we too late for the beginning of this tragedy! Is the Redeemer of mankind already nailed to the cross? Oh, cruel and fiendlike man, is this your triumph! surely he who came to save will reject you now! Such might be our feelings, but they were not Christ's. No, my brethren, far from it. Oh, let us contemplate, for our own future guidance, the behaviour of Jesus to his murderers, not *after* but at the *moment* of his extreme torture; and may the Holy Spirit give us grace to profit by the exercise. Look on your crucified Redeemer writhing and maddened with suffering; and listen to the first words uttered in the depth of his agony: he imprecates no curse upon these guilty men, but exclaims, 'Father, forgive them; they know not what they do!' *Caro Jesu!*" Here there was much emotion both in the preacher and in the congregation; when it had subsided, he added persuasively, "You have heard Christ pray that his *murderers* may be forgiven, and shall you hesitate to forgive one another?" Then, taking the words of our Saviour for a text, he delivered a short animated sermon upon the forgiveness of injuries; after which came a prayer for grace to perform this duty; the pause

which succeeded being filled with music and chanting. Then again the dark form of the preacher rose up. "What, my brethren! did not Christ pass *three hours* in his agony, and shall we leave him in the midst? He has still more gracious words in store. My dear brethren and fellow sinners, now hear his dying address to the penitent thief, 'Verily I say unto thee, to-day shalt thou be with me in Paradise!' *Ladro felice!* but was *he* then *predestinated* to salvation, and his companion to be the victim of God's wrath? *Niente, niente*; believe, not a word of this false and heretical creed." Then followed a second discourse, with a diatribe against Calvin (who deserved it!) and *all* heretics (who might not deserve it), with an anathema against heresy in general, and a prayer for the pardon and acceptance of the true Catholic, *id est* ROMAN, Church. In like manner the preacher continued to set before his hearers all the circumstances of our Saviour's passion; pronouncing a short discourse upon every sentence uttered by him in his agony. Each sermonette was succeeded by prayer; and that by an interlude of music and chanting, which enabled him to recover himself, and proceed with undiminished energy during a three hours' service. We had listened attentively, not always agreeing with his doctrine, but without any great shock to our Protestant principles, when, in conclusion, he exclaimed, "Now, brethren, before we disperse, let us do homage to the blessed Virgin, and sympathise with the afflicted and inconsolable Mother of our Lord. Think of her sufferings to-day; think and weep over them; and forget not the worship due to her holy name; whom Christ honoured, shall not we honour too? Sons of the blessed Virgin! is not your brother Christ her son also? make her then your friend; propitiate her, in order to obtain pardon from him! Let us all, then, fall down upon our knees before the *Indolorata*." A long prayer to the Madonna followed, then a hymn in her honour; and after a last glorious outburst of the organ, accompanying the ardent and sustained Hallelujahs of both choir and congregation, the curtain falls, the doors are thrown open, daylight rushes in through the no longer darkened windows; and presently the thronged and noisy Corso has absorbed the last member of the much moved, slowly dispersing crowd.

A heartfelt and affecting ceremony was that we had just witnessed; every body had shed tears, and there had been evidently great *attrition*, and probably some *contrition* also. The strong appeals of the priest had *told*, though they were not legitimate; for what could be less so than, in the end,

his misdirecting the thoughts from the *true* object of worship, to *her*, who was, after all, but a mere mortal like ourselves?

Yet devotional feelings had been called forth, and in this it was unlike, and surely better than, the ordinary cold, formal, glittering, shifting pantomimic service of Te-Deums, and high masses, which, instead of "filling the hungry with good things," send all "empty away;" or worse, *satisfied* with "that which is not bread." Could piety really be appealed to through the senses, then might the ceremonies of the Romish Church hope to reach it, captivating as they are to most of them. The ear is pleased with exquisite music; the eye is dazzled with pictures, processions, scenic representations, glittering colours, gorgeous robes, rich laces, and embroidery; and even the nostril is propitiated by the grateful odour of frankincense; but the only address to the heart and intellect is a barbarous Latin prayer, unintelligible (were it to be heard) to most of the congregation, and rendered so to all by the mode in which it is gone through. On returning from such exhibitions as these, we feel more forcibly than ever, how much reason we have to thank those pious compilers of our expurgated English prayer-book, who, renouncing an *unknown tongue*, and rejecting all unscriptural interpolations, drew from the rich stores of Rome herself, and from the primitive Church, an almost faultless Liturgy,^[G] where every desire of the human heart is anticipated, and every expression so carefully weighed, that not an unbecoming phrase can be found in it.

It is impossible for any one who has been much in Roman Catholic countries, to avoid drawing comparisons between the two services; and especially at this time, when many of our countrymen are halting between two opinions, and almost persuading themselves that there was no need of a Reformation, it behoves those not under the influence of

"That dark lanthorn of the Spirit
Which none see by but those that bear it;"

nor yet led away

"By crosses, relics, crucifixes,
Beads, pictures, rosaries, and pyxes;
Those tools for working out salvation
By mere *mechanic* operation,"

to protest against the return of Popery to this land, to the surrender of our consciences and our Bibles again into the hands of a fellow sinner.^[H] "Quis custodet custodem?"—who shall watch our watcher?—was a question that men had been asking themselves for many years in England, but hitherto without result; till our pious Reformers, addressing themselves to the study of the Scriptures, received the sword of the Spirit, with which they were enabled to wage successful war against that wily serpent, coiled now for centuries round the Church of Christ, and waiting but a little further *development* to crush her in his inextricable folds. Alike unallured by concessions and unterrified by threats, they boldly denounced the *heretical* usurpation of Rome; opposing an honest conscience, and Christ the only mediator, to the caprice of councils, and the false unity of a pseudo-infallible head;^[I] refusing to purchase their lives by rendering homage to any Phalaris of the Triple Crown.

Their perjured faith, though zealot Popes command,
Point to *their* Bull, and raise the threatening hand:
They deem'd those souls consummate guilt incurr'd,
At conscience' fearful price, who life preferr'd:
No length of days for bartered peace can pay,
And what were life, take life's great end away?^[J]

THE BEATIFICATION.

"*Sanctis* Roma, suis jam tollere gestit ad astra,
Et cupit ad *superos* evehere usque deos."

MILTON'S *Sonnets*.

To receive Beatification, which is the first step towards Canonisation, and may in time lead to a fellowship with the saints,—to be pronounced "blessed" by him who arrogates to himself the title of *Holy*, and must therefore know the full value of the dignity he confers—*sic laudari a laudato*, and that too in the finest church in Christendom, before the eyes of a countless assembly of all the nations of Europe,—is an honour indeed! No wonder, then, that every promotion should be jealously canvassed, and that sometimes the rumour of "unfairness," or "favouritism," should be heard among the people, when each fresh brevet comes out. For example—"Who's this third St Anthony? Are not two enough in the Calendar? The

great St Antonio, and he of the pig!—(*del porco*,)—another will only create confusion;" or else, "Surely the *Beata Ernestina* has not been long enough dead to have attained to such an 'odour of sanctity;" or, "Though the good Pasquale might deserve the title, the pious Teodoro's miracles are as well attested, and much more numerous, and should therefore have been first recognised." Of such sort are the comments of the crowd. All this grumbling, however, is at an end, when once the *Festa* comes round; the Church, by the brilliancy of her exhibitions, wins over her discontented children, and the installation is sure to be well attended. Sometimes the saint expectant stops short of true canonisation; and, having gained one step, finds himself like a yellow admiral, placed on the shelf without chance of further promotion. (This by the way.) No one can say precisely what entitles the dead to these honours. Large bequests alone are not always sufficient; witness the rejection of a certain distinguished Begum, who left much of her enormous wealth to the Pope, with a well-known view to this distinction. Some imagine that eminent piety is a necessary condition; but no! there is very little talk of religion. It seems chiefly to be the attestation of a sufficient number of miracles at a tomb, which confers the title of *Beatus* on its tenant, and converts it into a shrine, sure ever after to be profusely hung with glass eyes, wax fœtuses, silver hearts, discarded crutches, votive shipwrecks, &c., &c., [\[K\]](#) in token of cures and deliverances which have emanated from it. Next to miracles, perhaps, we may reckon *dates*—*seniores priores*—first buried, first beatified, and no superannuation here: on the contrary, holiness, like many other good things, requires time to ripen its virtues and to bring it to perfection; and it is a rule of the Church that chemistry must disintegrate the mortal before she can build up the saint. Thus it happens of two candidates of equal merit; he whose dissolution took place half a century or so before his rival, obtains the preference. The first steps are taken by the lawyers; one being retained to advance the merits of the aspirant saint, another to asperse them if possible. Should the election be contested, much special pleading is then resorted to. Both sides are paid by the Church, but he who opposes the nomination is termed the *devil's* counsel. This title, however, is a legal or rather a theological fiction; the miracles alleged to have been performed by the defunct being only more triumphantly established and set off by the apparent disposition of the rival pleader to deny their reality; who, after a proper show of resistance and incredulity, allows himself to be foiled. This

is indeed beating Satan with his own weapons; but the advocates of saints belong to that party who

"E'en to the Devil himself will go,
If they have motive thereunto;
And think, as there is war between
The Devil and them, it is no sin
If they by subtle stratagem
Make use of him as he does them."

We had never witnessed a Beatification: so, when the Pope, in his character of umpire, had pronounced his fiat in favour of "good sister Frances," and all that remained to be done was the church ceremonial necessary to admit her to piety's peerage, we procured one of the many thousand tickets printed for the occasion, and followed the crowd to St Peter's. Here all was prepared to give due effect to the scene: the interior was studiously darkened, that the rich upholstery might be set off by a grove of countless wax lights, thick and tall as young pine trees. The workmen, after a whole fortnight of bustle and activity, had done their part well. Curtains had been hung and carpets spread; organs wheeled up towards the throne of St Peter; and a whole gallery of villanously painted historical pictures, blasphemous and absurd, were suspended round, representing the miracles for which the new "beatified" was to receive her first degree towards sainthood; and showing amongst other wonders, how in one case her blood, in another her image, restored a blind man to sight, and so completely cured the palsy of one Salvator di Sales, that he is dancing a hornpipe on his recovery, while a priest is looking on approvingly. We were too early for the ceremony; and after curiously scanning these preparations, our attention was attracted to a group near, eagerly listening to the recital of a bare-footed Capuchin. On approaching, we found that he was discoursing on the virtues of a picture of the Virgin, known by the name of *Sta Maria del Pianto*, a fresco daub, painted in a very dirty back street. He was affirming that it had lately taken to *winking*, and had also been seen to shed tears over the body of a man recently found murdered under the lamp. "Who saw her weep?" inquired one of his hearers. "Do you doubt the miracle, my son?" said the friar. "No indeed, father," returned he; "but why did she not call out to the assassin; and what is the use of weeping over a dead man?" "It was owing to the

gentleness of her sex," said another, who appeared interested in proclaiming the notoriety of the shrine: he proceeded, therefore, to inform the attentive listeners, that he had the face newly painted some months back, since which operation there was no end to the miracles performed by it. Several persons round hereon testified to having heard repeatedly of these wonders. "Ah!" said a sceptical craftsman, "I dare say you live in another quarter of the city, for it is well known that those at a distance see these things more clearly than the neighbours, unless, like our friend here," nodding to the restorer of the shrine, "they hope to attract customers to the shop by drawing votaries to the shrine." "I don't believe a word of it," said we, taking part in the colloquy. "*Caro lei*—who can help that? we can only pity your unbelief," said the good-humoured Capuchin, offering us, however, a pinch out of his snuff-box. "*You*," continued he, "should call to mind '*in dubiis fides*;' and we, in compassion to your being a heretic, will remember '*in omnibus caritas*.'" We accepted the good man's courtesy, albeit no snuff-taker; and he was resuming the interrupted narrative, when a stir among the crowd outside announced the near approach of the procession, and every one hastened to secure a good seat. Presently the Swiss guards enter, the choristers take their places, in come priests, bishops, cardinals, all sumptuously arrayed; at length the Pope himself arrives and assumes his throne. Mass commences.

And here the reader doubtless expects, if not a full description of the ceremony of canonisation, at least an accurate detail of the various steps of the process by which it was effected; but, as we have stated above, the incubation had been completed six weeks before in a private Eccaleiobion, and the pageant to-day was merely to give publicity to the metamorphosis—to read in, and to enrol among the saints the Beata Francesca. As we cannot give a particular account of the *funzione*, we give a general one of all masses:—

High mass! The stall'd and banner'd quire—
White canons—priests in quaint attire—
The unfamiliar prayer:
The fumes that practised hands dispense,
The tinkling bells, the jingling pence,
The tax'd but welcome chair:
The beams from ruby panes that glow,

Of rhythmal chant the ebb and flow:
The organ, that from boundless stores
Its trembling inspiration pours
O'er all the sons of care;
Now joyous as the festal lyre,
When torch and song and wine inspire;
Now tender as Cremona's shell,
When hush'd orchestras own the spell
And watch the ductile bow—
Now rolling from its thunder-cloud,
Dark peals o'er that retiring crowd,
And now has ceased to blow.

CRIMES AND REMARKABLE TRIALS IN SCOTLAND.

INCIDENTS OF THE EARLIER REIGNS—AN INQUIRY INTO THE CHARACTER OF MACBETH.

The sunshine and the green leaves embrace not all that we should know of physical nature. Storm and darkness have their signs, which we do well to study; and in the tempests of the tropics, or the long winter darkness of the poles, we have types of the character of different sections of the globe, more marked than the varying warmth of the sun, or the character of the vegetation—but not perhaps so pleasing. Even so, the storm and darkness of the human soul—the criminal nature of man, provide their peculiar food for the thinker and inquirer. The annals of virtue have their own elevations and delights; but those of vice are no more to be passed over than the dark and stormy hours in the history of each revolution round the sun. "While some affect the sun, and some the shade," there may even be those whose most deeply cherished associations are with these unlit hours—who prefer the night thoughts to the day dreams. But to all, the crimes peculiar to different nations are a large part of the knowledge which man may profitably have of his race. In the history of its great criminals, a nation's character is drawn, as it were, colossally, with the broadest brush, and in the deepest shadows. National virtues have delicate and subtle tints, and exquisitely minute shadings, inviting to a nearer view—like Carlo Dolci's Madonnas, or Constable's forest landscapes: the crimes of a nation present the character of its people, as they rise from the dead in Michael Angelo's Last Judgment. The *ordinary* vices of men have a certain vulgar air of uniformity; but each great crime is a broad dash of the national character of the people among whom it was committed. The Cenci, and Joanna of Naples were of Italy. It was in Holland that two great and virtuous statesmen were torn to pieces by the mob. The dirk, long buried beyond the Grampians, has re-appeared across the Atlantic in the shape of the bowie-knife. The country of Woldemar and the sorrows of Werther produced that most amiable and sentimental of murderesses, Madame Zwanziger, who loved and was

beloved wherever she went; so sensitive, so sympathising, so sedulous, so studious of the wants of those by whom she was surrounded, so disinterestedly patient; she had but one peculiarity to distinguish her from an angel of light—it was an unfortunate propensity to poison people! We read in the *Causes Célèbres*, of a Bluebeard who slew a succession of wives by tickling them till they died in convulsions; and at once we are reminded of that populace who are said to partake of the natures of the ape and the tiger. The people who, for more centuries than are included in the events of European history, have been resolved into the mysterious classification of castes, produced those equally mysterious criminals the Thugs, for whose deeds our so utterly different habits and ideas are quite incapable of finding or conceiving a motive. Our own country produced the assassinations of Rizzio, Regent Murray, and Archbishop Sharpe—all pregnant with marked national characteristics; aristocratic pride, revenge of wrong, and fanatical fury. We propose to offer for the amusement or instruction—which he pleases—of our reader, a few more records of Scottish crimes, not probably all so conspicuously known to the general reader as the three we have just alluded to, yet not, we trust, without something to commend them to notice, as characteristic of the country and the age in which they were respectively enacted.

The raw materials from which we propose to work out our little groups, are the records of our criminal trials; and yet we feel an insuperable inclination to begin with a name not certainly unknown, yet not to be found in the proceedings of the Court of Justiciary—Macbeth, King of Scotland. Perhaps we might consider it a sufficient reason for holding his case equivalent to a trial, that before a tribunal called the Public Opinion, he has been tried, and that at the instance of such a public prosecutor as never opened his lips in any court of law—one whose accusation has carried a conviction deep into the very heart of literature, whence no archæological evidence, and no critical pleading will ever eradicate it. Nor would we desire to touch it: let Macbeth the murderer remain to all time the most powerful picture of temptation, leading its victim through crime into the hideous shadows of remorse, that human pen has ever drawn. But there was an actual prose Macbeth, as different from the ideal as the canvass bought by Raphael of some respectable dealer in the soft line, was from the Transfiguration which he afterwards painted on it. With *him*, being but a

simple historical king, we may take liberties; and the liberty we propose to take on the present occasion is that of vindicating his character. Vindications are fashionable; and since Catiline and Machiavelli, Richard III., and Philip II. have been vindicated, why not Macbeth? We shall say 'tis our humour to whiten him, and no man can say it is a criminal or mischievous one.

The main question is, did Macbeth murder Duncan? It was an older story in Shakspeare's time than the murder of Darnley is now, and he may have taken a false view of it. We shall approach the question by an inquiry who Duncan and Macbeth were, and in what relation they stood to each other. About the end of the eleventh century, there reigned in Scotland a king called Kenneth III. Like all the other Scottish monarchs of the period, the chroniclers have given him his own peculiar tragic history, in this wise: he was induced to poison the young prince Malcolm Duff, who might possibly show a title to the throne enabling him to compete with Kenneth's own offspring. This troubled his conscience. He "ever dreaded in his mind," in the expressive words of old Bellenden, that it "should come some time to light: and was so full of suspicion, that he believed when any man rounded to his fellow, that they spake evil of him; for it is given by nature to ilk creature, when he is guilty of any horrible crime, by impulsion of his conscience, to interpret every thing that he sees to some terror of himself." He was one night appalled by a terrific vision, and next morning making his confession, he was sentenced to a pilgrimage to the tomb of St Palladius at Fordun. When the pilgrimage was over, he was invited to partake of the hospitalities of a lady named Fenella—a very neat name for a romance—at her fortalice of Fettercairn. In the civil conflicts or the administration of justice during his reign, some of the relations of this lady had been slain; among the rest her son. Having got the king into her toils, she resolved to put him to death; and the method which the chroniclers make her adopt, shows a superfluous ingenuity ridiculous enough to strip a murder of all its horrors. Kenneth was taken to see a tower of the castle "quhilk was theeket with copper, and hewn with maist subtle mouldry of sundry flowers and imageries, the werk so curious, that it exceeded all the stuff thereof." In the middle of this tower stood an image of Kenneth himself, in brass, holding in his hand a golden apple studded with costly gems. "That image," said the lady, "is set up in honour of thee, to show the world how much I honour my

king; the precious apple is intended for a gift for the king, who will honour his poor subject by taking it from the hand of the image." Now matters were so arranged, that the removal of the apple caused certain springs to touch the triggers of a series of bent cross-bows pointed to the spot, and so, when the unsuspecting monarch went to take the gift, a whole sheaf of arrows penetrated to his heart. On the death of this king, though he left a son called Malcolm, the succession went to a rival line. His immediate successor was Constantine, who was killed by another Kenneth, called IV., who in his turn was killed by Malcolm, who thus regained the throne his father had filled. "The gracious Duncan" was the son of a daughter of this Malcolm. His father, strangely enough, appears to have been a priest; he is called in the old dry chronicles, which are the only ones to be depended on, Duncan the son of Trini, or Trivi, abbot of Dunkeld. Now the Kenneth IV. of the rival line, who had been slain by Duncan's grandfather, left behind him a son, and that son left a daughter, whose name was Gruach, and in whom the reader, though certainly in an unusual shape, must welcome Lady Macbeth herself. There being thus two rival races, alternately seizing the throne: while Duncan was the son of a daughter of one king, *she* was the daughter of the son of another. This gave her no contemptible title to the throne, and when she married Macbeth, or Machaboedth, as he is called by the chroniclers, she had a husband who, possessing the almost independent principality of Ross, might be able to fight her battles. It is somewhat remarkable that, in an ecclesiastical record still preserved, in which a royal grant is made to a religious house, dedicated to St Servanus, Macbeth's wife appears along with himself, as granter of the deed; and they are called, "Machabet filius Finlach, et Gruach filia Bodhae—Rex et Regina Scotorum;"^[L] an equal juxtaposition, only to be accounted for by the supposition that Macbeth was king in right of his wife. As to Macbeth himself, his origin, save in the supernatural legend we shall hereafter notice, appears not to have been known; but Fordun seems to intimate, that he was a descendant of that same Fenella who had so curiously murdered Duncan's great-grandfather. If we were disposed, indeed, to take a proper antiquarian partisanship of the one dynasty against the other, we might speak of Duncan as a treacherous usurper, and Lady Macbeth as an injured and insulted queen, whose cause is heroically adopted and vindicated by a true knight, who, while redressing her wrongs, wins her heart and hand.

Let us now look to the manner in which the death of Duncan is spoken of by the most ancient authorities. Old Andrew Wyntoun, Prior of St Serfs on Lochleven, who has never yet, to our great wonder, been upheld as one of the greatest poets of his own or any other age,—perhaps we may undertake the task some day, let our readers judge by the extracts on the present occasion with what prospect of success:—Wyntoun narrates the event with the true simplicity of genius, in these two lines:—

"He murthrified him in Elgyne,
His Kynrik he usurped syne."

This is distinct enough, in all truth: there is no ambiguity, or room for critical doubt; nor is his fellow annalist, Fordun, less distinct, for he speaks of the slain monarch as *occisus scelere*. But these chroniclers wrote between three and four centuries after the event they commemorate, standing chronologically almost as near our own day as Macbeth's; and when we look into those far older, if not contemporary, annals, which narrate successive events in the briefest possible shape, we find that they contain nothing to indicate that Duncan's death took place in any more atrocious manner than the multitudinous slaughters of kings, with which their narratives are often as crowded as a Peninsular campaign gazette with killed officers. Thus, the register of the Priory of St Andrews simply states, that Duncan *interfectus est*. It is true that the Latin language is deficient in any word to express murder as distinguished from other kinds of slaughter. *Trucido* is the verb we have been accustomed to associate most nearly with the idea of assassination; but in one of the most circumspect and prosaic of the old annals, that of Tighernac, this very word is applied to the death of Macbeth himself. Blackstone notices the circumstance that the English lawyers had to coin, for their own special use, the substantive *murdrum* and the verb *murdrare*; equally creditable to their good taste in Latinity and to the social condition of their country. In fact, the Romans looked upon death, in any form, as so bad a business, that they cared little for making nice distinctions about the motive that had occasioned it, or the manner in which it was effected; and it was a condition so generally disliked, that, if any man was absurd enough voluntarily to place himself in it, neither the law nor public opinion troubled itself to express disapproval, either by driving a stake through the body or in any other way. Undoubtedly there were justifiable slaughters and unjustifiable; but the practice of single combat had not arisen to draw a strong and distinct line between death in a fair tournament or duel, and secret assassination. A recollection that this was also the social state of Scotland in the days of Macbeth, will help us far better towards the truth than a criticism on the ambiguous Latin words. It was between that age and the period of Wyntoun and Fordun that single-combat chivalry and the laws of honour had grown up; so, while the older

chroniclers had simply to say that the man was killed, without troubling themselves about the manner, those of later date were moved to divide the deaths into two departments—the killed in combat and the murdered. More, probably, by chance than design, the fate of Duncan was put into the latter category; and then a super-structure of particulars was raised upon it—for it must be observed, that the romantic incidents of the slaughter were added at a still later period than that of Fordun or Wyntoun—by Boece and Hollinshed. Here, then, is our case, as lawyers say: Macbeth, in right of his wife, was a claimant of the crown. He kills the existing holder; but there is nothing in the older accounts of the affair to show that he did so otherwise than in the fair course of war. It was what the old civilians would have called a *casus belli*,—an expression which, by the way, we find some accomplished editors using as the Latin for a justification of war. The murder is found only in the later chronicles, which, in all parts of their narrative, have covered their more sober predecessors with a coating of fabulous details like the stalactites of a dripping cave. However the real fact may have stood, we have no *statement* of Macbeth having murdered Duncan until between three and four centuries after the event. Why,—the case looks vastly better than we thought it did when we began with it; we have some thoughts of believing our own theory, which is more than ever we knew a historical critic do, within the range of our personal observation.

Having so disposed of this question, we are inclined to amuse our readers with some further notices—real and unreal—about Macbeth. Wyntoun gives us a strange wild legend of his supernatural parentage, beginning

"Bot, as we fynd be some stories,
Gotten he was in fairly wys;
His modyr to woods made oft repaire,
For the delyte of halesome air;
Swa sho passed upon a day
'Til a wood her for to play,
Scho met of cas with a fair man
(Never nane so fair as sho thought than
Before than had sho seen with sight)
Of beauty pleasand, and of hycht
Proportioned wele in all measure,
Of limb and lyth a fair figure."

Such is the description of the putative father of Macbeth. In the sententious explanation of Wyntoun, who scorned expletives, "he the devil was;" and so he told the wandering damsel—

"And bade her nought fleyed to be of that,
But said that her son should be
A man of great state and bounty;
And na man sould be born of wife
Of power to reve him of his life.
And of that deed in taknyng,
He gave his leman then a ring,
And bade her that sho sould keep that wele,
And hald for his love that jewel."

Wyntoun's melodious verses were lying in a dusty parchment manuscript when Shakspeare wrote; we know not if he had access to the volume, nor have we any strong reason for presuming that he would have perused it if he had. It would be too adventurous to predict whether, knowing the legend, he would have considered any reference to it as consistent with the character of his drama; but it is curious to observe, that the tale appears to have been in the eye of Sir Walter Scott, when he wrote the history of Brian the Hermit, in the *Lady of the Lake*, beginning—

"Of Brian's birth strange tales were told:
His mother watch'd a midnight fold."

We shall now indulge our readers with a glance at a totally different feature in the career of Macbeth. It appears that he was a very able financier. We presume that he was his own First Lord of the Treasury and Chancellor of the Exchequer: yet in his days there was no pressure on the money-market; there was no drain of gold; there was no restriction of issue; no great houses suspended payment; there were no rumours of turns-out and distress in the manufacturing districts; there was no Highland destitution. Our proof of this position lies in two lines of our illustrious poet Wyntoun, which contain as much as a smaller genius could have crowded into a volume on "The state and progress of Scotland during the reign of Macbeth; with an account of the arts, industry, and manufactures of the country; returns of the exports and imports, and of the goods entered for home consumption, with the

annual gross and net revenue from customs and excise, post-office, assessed taxes, hereditary revenue, and other miscellaneous sources, during that reign: dedicated, by permission, to the Statistical Society." Wyntoun's simple statement is—

"All his time was great plenté,
Abundant both by land and sea."

What more is necessary? It is true, that on another occasion we have repudiated Wyntoun as an authority; but it is the privilege of the antiquarian speculator to found on an author when he is right, and repudiate him when he is wrong.

We now come to a subject on which really, jocularly apart, we stand upon firm and secure ground—the spot where Macbeth fell. All the chroniclers with one voice state that it was at a place called Lunfanan. Even Raphael Hollinshed, whose version, it is universally admitted, was the one perused by Shakspeare,—after he tells how the beleaguered fugitive beheld the miraculous forest with which his doom was involved approaching him, continues to say—"Nevertheless, he brought his men in order of battle, and exhorted them to do valiantly: howbeit, his enemies had scarcely cast from them their boughs, when Macbeth, perceiving their numbers, betook him straight to flight, whom Macduff pursued with great hatred, even till he came to Lunfannane." Perhaps Shakspeare, not knowing precisely where Lunfanan lay, supposed that it was some spot close to Dunsinane, and did not wish to burden his action with the particularity of an unimportant movement. Lunfanan is, however, north of the Dee, and distant full fifty miles in a straight line from Dunsinane, the rough mountains of the Braes of Angus lying between the two places; so that the two parties must have had a pretty long running fight, and Macbeth stood out even harder game than he has generally credit for. Our favourite poet describes the chase across the broad valley of Strathmore, through the rocky glens of Clova, over the Isla and the Esk, down through the hoary forest of Glentanner, across the raging Dee, and up again through mountain and forest, in this sententious and emphatic couplet,

"And our the Month they chaised him than
"Till the wood of Lunfanan."

When the victory was completed, we are told that they cut off his head, and bore it to King Malcolm at Kincardine—a pleasant village on the banks of the Dee, about ten miles from Lunfanan.

This same Lunfanan is a spot which it requires particular taste to love, and yet we have perambulated it not without interest. The Chroniclers speak of it as a forest, but the highest elevations are now generally bare of trees, save where in a few sheltered hollows the birches cling to the rocks. The hills are of considerable height, but round and bare, with few precipices, and little character of outline; but the glens between the hills are sheltered and well cultivated, each is enlivened by a small stream, and still more enlivened by the scanty population seeking the shelter of the recesses of the glen, and making it populous amid the waste. But we shall afford a better description than our own, in a few lines from "The Fortunate Shepherdess," by a poet who lived in a glen not far distant—Alexander Ross. It will be admitted, by the way, that our poetical quotations to-day are not of a hackneyed kind, whatever other censure they may incur.

"The water keely on a level sleed,
Wi' little din, but couthy what it made:
On ilka side the trees grew thick and strang,
And wi' the birds they a' were in a sang;
On ev'ry side, a full bow-shot and mair,
The green was even, gowany, and fair;
With easy sklent, on ev'ry hand, the braes,
To right well up, wi' scattered busses raise,
Wi' goats and sheep aboon, and ky below,
The bonny braes a' in a swarm did go."

Occasionally, when the new earth is turned up, strange uncouth warlike instruments are found in this district—remnants of ancient strife, so unlike any weapons recorded in the genuine history of the military art, that it were hard to say whether they belong to the age of Macbeth, or to unknown anterior centuries. Flint arrow-heads, stone hammers and axes,—such is their general character, though we have also seen among these mysterious discoveries, such a thing as a long flat mass of decomposed iron, which may have once been the blade of a dagger, or short sword. Here the knowing reader, who has been induced, on the field of Waterloo, to

purchase a ball-perforated cuirass and helmet, which he afterwards discovers to have been made at a manufactory of Waterloo relics, will curl his lip in scorn; but he is wrong. Lunfanan is no relic-collecting district. We question if the inhabitants ever made a shilling of any one, the present company excepted, by the military stores discovered by them when ploughing their tough peat soil. We did not require there to practise the method of self-defence which we adopted on a visit to the field of Waterloo; and by the way—as we are inclined to recommend it strongly to our friends, as an effectual preservative from the main annoyance to which the hero-worshipper is subjected—we may here describe our method. On hiring our guide, we desired him to procure for us a fragment of an old kettle. Carrying this conspicuously in our hand, to each band of relic-sellers who came up, we stated that we were in the trade ourselves, that we had just acquired a very valuable article, and were willing to part with it at a moderate price. The cuirassiers did not look more ridiculous, when they attempted to storm the squares, than our assailants, when we fortified ourselves behind this piece of defensive armour. But to return to Lunfanan.

In one of the narrow glens, near the old parish-church, there is an oblong solid turf bank, or mound, of considerable height, and regular construction, as clean and sharp in its outline as the glacis of a modern fortification. A neighbouring stream has been diverted round it, or rather the waters have been divided and distributed on either side, so as to surround it with a fosse. This curious antiquity is called "the Peel Bog," or Castle Bog. "The course," says the author of the statistical account of the parish, "by which the water was conveyed from the burn of Lunphanan may still be traced; the measure of the circumvallation by which the water was confined may still be made; the situation of the drawbridge is still discernible; the path leading from the fosse to the top of the mound may still be trodden; and the sluice by which the water issued from the moat, was laid bare by the flood of 1829."[\[M\]](#) Even the sceptical Lord Hailes ventured to associate Macbeth's name with the spot; "as no remains of buildings," he says, "are to be seen, it is probable that the fortress was composed of timber and sod. In this solitary place, we may conjecture that Macbeth sought an asylum." At some distance from the Peel Bog, a low thin rampart of earth and stone encircles the summit of a conical hill; it is an inferior specimen of the old British hill-fort, well known both in Scotland and the north of England. But on the

brow of one of the hills, there is a still more emphatic memorial of the monarch's fate. There a heap of gray stones, considerably larger than many others surrounding it, is still called, and is represented in the county maps as *Cairn Beth*. We must admit that, were it in a tourist's district, or were it the spot which popular literature, of any kind had marked as the grave of Macbeth, this would be suspicious. But no tourist's footstep seeks the quiet uninviting wilds of Lunfanan. There is no railway line, not even a stage-coach communication, between it and the world. You have but to see the rough, primitive, granitic air of the Lunfananers assembled at the parish church, to know that they are incapable of any imposition. Legends we always distrust, especially when they are connected with any spot sanctified by poetry. At Dunsinane, we believe, some vestiges are shown as marking the spot of the usurper's death, the "genuine" spot, "all others being spurious imitations;" but we suspect this legend is not even so old as Shakspeare's day, that it is no older than the revival of Shakspearean literature, and the rise of a general public interest in the spots illuminated by his genius.^[N] For more than one castle, Cawdor included, has the merit been claimed of being the identical edifice in which Duncan was slain, and undoubted four-posted bedsteads have been shown in actual existence to put scepticism to scorn. But any popular association of the actual events of Macbeth's career with quiet remote Lunfanan has been barred by the silence of Shakspeare, and the unwillingness of topographical critics to break the spell of the accepted localities. Though legends spring up like rumours, with a breath, the *names* of places which they have received from historical incidents are generally of long standing, and, indeed, a large proportion of the lowlands of Scotland is full of places which to this day bear Celtic names, given them by tribes who cannot have inhabited the districts for a thousand years at least. The old chroniclers, without exception, lay Macbeth's death in Lunfanan; the people of the spot, who never read these chronicles, and never, perhaps, heard of Macbeth, or if they did, heard the popular account of his death in Dunsinane, call a certain monumental tumulus Cairn Beth—this, we think, is very nearly conclusive.^[O] And yet, sitting on that Cairn, with the fresh breeze blowing round one, and the blue heavens above, and the blooming heather-bells around, or reclining on the smooth green turf of the Peel Bog, on a summer day, with the sun shining hot upon the hills, and the babbling brook singing its "quiet tune," it is not easy to associate the spot with that history of blood and horror, or to feel that its features are ancient, or that

they ever were connected with warfare. In the gloomy, galleries of Glamis or Cawdor, with their grim old portraits, their armour, their secret staircases, their mysterious hidden chambers, and iron hooks in the wall—the idea of the haggard murderer, and all the associations of his deeds and his remorse creep more vividly on that imaginative conscience, which more or less makes cowards of us all in such places. Yet the history of the arts tells us that not one stone of these edifices, ancient though they be, can have stood upon another till the history of Macbeth was as old as that of Queen Mary is now. Why, then, should they retain their hold on us? They are contemporary with Shakspeare's Macbeth, though not with the historians', and are the style of edifice in which he cast his tragedy. It must be a feudal stronghold, heavily arched, buttressed, fortified, and gloomy,—where the lady in a vaulted half-lighted chamber may say:

"The raven himself is hoarse
That croaks the fatal entrance of Duncan
Under my battlements."

The timber edifice on such an eminence as the Peel Bog—probably, as the sagacious Lord Hailes imagines, the true character of the edifices possessed by Macbeth—would no more fill up the true architectural wants of the drama, than a marble Grecian temple, or a Canadian settler's log-house.

Crimes briefly told without details have no interest, unless they can be put in the shape of statistics—some people will be inclined to deny that the exception is the reverse of the rule. We are not writing history, and if we were, the historical details which go no further than that A stabbed B, and C poisoned D, and E mutilated F, are not such as we are inclined to believe our readers would thank us for. It is very clear that the death of Duncan, if we had no more than authentic annals to deal with—if it had been a question merely of history, and not in some measure incidentally connected with the highest rank of human intellectual effort—would have formed a very meagre object of comment. The society of antiquaries might have endured a paper on it—for such endurance is the martyrdom they have chosen—but no other person would. In looking, then, down through Scottish history from the accession of Macbeth's successor, we find little that can be noticed with any applicability to our particular purpose, until we reach the time when the records provide us with some of the details.

Yet there is one very early tragic incident, which appears to us to have considerable interest, as one of the first striking instances where the fierce spirit of clan animosity—the burning desire to avenge the wrongs of the chief—was exhibited by the Highlanders. It occurred about the year 1242. A tournament was held on the English Border, at which two young knights, Patrick Earl of Athole, and Walter de Bysset, a cadet of the family who were lords of the great northern districts, subsequently the patrimony of Lord Lovat, encountered each other. Bysset was unhorsed. Not long afterwards, the building in which the Earl of Athole lived, in Haddington, was burned to the ground, and he, with several of his followers, died in the flames. By some accounts the Earl was previously murdered, and the house was burned to conceal the deed. Let us here have recourse to the distinct and considerate account of the incident in our favourite poet:—

"Whether it was of recklessness,
Or it of forethought felony was,
Into the Inns, lang ere day,
Quhare that the Earl of Athole lay
A fell fire him to coals brynt,
Thus suddenly was that Earl tynt.
And with him mony ma
There houses and men were brunt alswa."

Some Highland gillies from Bysset's country had been seen in the neighbourhood, and suspicion immediately fell upon the head of that house. He tried to prove an alibi—that he was, at the time of the tragedy, in Forfar, some eighty miles distant from Haddington, doing the honours of hospitality to the Queen. As our historical poet says:

"But this Sir William at Forfar
That night was late at the supper
With the Queen, and her to chamber led,
And in his own chamber yhed till his bed,"

like a good old country gentleman. But an alibi went for little in a Highland feud.

"To purge him for this the Queen

Profered her to swear bodily,
But that assythed not the party,
That was stout and of great might,
They said—Wherever he was that night
Bathe his armouries and his men
Intil Haddington were seen then,
When this earl was brynt with fire:
They said the Byssets in their ire
Of auld feud and great discord
That was between them and that lord,
Did that in forethought felony."

It was still the age of ordeals. The hot ploughshares were, perhaps, obsolete, but single combat was in full practice; and even jury trial was considered a species of ordeal rather than a deliberate judgment upon evidence. The accused party in the one case appealed to the chances of war—or, taking the reference in its more solemn aspect, he left his cause to be vindicated by the God of battles: in the other, he threw himself upon the suffrages of his peers. Both ordeals were considered about equally reasonable and fair; and if the man who preferred the ordeal of battle were a gigantic warrior, unconquered, and terrible in the lists, he was, to the true believer in ordeals, not more formidable than the feeblest of his contemporaries, for a just Deity might wither his uplifted arm; and if he retained the physical superiority he had previously indicated, it was because the All-seeing Eye knew of the justice of his cause. Now Bysset, who seems to have been somewhat of a sceptic in ordeals, had no objection to trust the issue to single combat, and challenged whomsoever would dare to stand forth against him. But he would not submit to an assize or jury, for he said the whole country had prejudged him. His opponents had, somehow or other, greater faith in the ordeal of an assize than that of battle, and would not accept his challenge. In the meantime, to show his sincerity, he requested the northern clergy to curse and excommunicate the perpetrators of the deed.

"Sir William Bysset gert for thi,
His chaplain in his chapel,
Denounce cursed with book and bell,
All they that had part
Of that brynnin, or any art.

The Bishop of Aberdeen alswa,
He gart cursed denounce all tha
That either by art or part, or swike,
Gart burn this time that Earl Patricke,
In all the kirks halely
Of Aberdeen's diocesy.
Sir William Bysset this process
Gart be done."

Wild justice began to be enforced in the country of the Byssets, which was overrun by their enemies: in the pathetic language of our poet—

"His landis quite,
Was for that burning all herryet,
Bathe of nowt, and sheap, and kye,
And all other goods halely."

At length, the Byssets agreed "to come into the king's will," or abide by his arbitration. They came under an obligation to depart to the Holy Land, and there for the remainder of their days pray for the soul of the murdered man. Their broad estates were forfeited, and a portion of them coming into the hands of a family named Frezelier or Frazer, they planted the roof-tree of the great chiefship of that name in the northern Highlands.

There is little doubt that the murder of Athole was a piece of clannish vengeance over which the chief had no control. His wild Highland followers saw him unhorsed: it was enough. Into such puerile refinements as the law of chivalry, which bound him to take the unhorsing with the meekness of those who turn the left cheek when the right is smitten, they could not enter. The more they believed in the high spirit of their chief, the more they would be confident, that he would exult in a signal vengeance for the insult. Of course, when the vengeance was accomplished, it would rouse an unquenchable desire of retaliation in the men of Athole; and indeed it may be conjectured from the circumstances of the whole proceeding, that the king believed the Byssets personally innocent, but dared not, for the peace of the country, allow them to remain in Scotland. And yet, what is on the whole the most remarkable feature of the Highland feuds of the day,—neither the Athole nor the Bysset family were old hereditary patriarchs of

the people. They were foreign adventurers, but recently rooted in the country. The Celtic races seem to have at once rallied round such intruders, in the strongest and fiercest spirit of devotion. When a chief had descendants, his race held, of course, generally a position which a stranger could not shake. But if the people had quarrelled with their chief, or if from other circumstances the headship were vacant, they clung with instantaneous tenacity to the first Norman adventurer to whom the monarch assigned their territory; and the descendants of these refined sons of chivalry by degrees assimilated themselves to the people among whom they were cast; becoming ostensibly of the same race as that over which they held rule.

The banishment of Bysset was connected with important historical results. Instead of going to Palestine, per agreement, to pray for the soul of the slaughtered Earl of Athole, he went, according to Matthew Paris, to a nearer and more agreeable place, the court of England. There he fostered in Henry III., those notions of the feudal vassalage of the Scottish kings to England, which produced the invasion of his successor, Edward I. Bysset had a considerable personal interest in this question; for, if the king of England had a paramount superiority over Scotland, his banishment and forfeiture might be reversed. Such conduct shocks all historical notions of patriotism; but what better claim had Scottish nationality on the Norman adventurer, than the respectability of Juggernaut has on a member of the supreme council of Calcutta? The ancestors of the house probably came over with William, a century and a half earlier; the banished lord was perhaps brought over from England with his father or grandfather, to accept the chiefship of a portion of the Highland wastes, over which the King of Scots professed to hold sovereignty. Aggrandisement was the sole object among the barbarians of the north; and when they ceased to derive a territorial revenue within Scotland, their connexion with the country where they lived was as completely closed, as that of the governor of a colony when he is recalled.

The subsequent history of this race was as strange and eventful as their first appearance in the Scottish annals. They became great lords in Ulster; and early in the fifteenth century they were again represented by a Scotsman, Donald Balloch, the hero of the battle of Inverlochy, whose mother was the heiress of the Byssets. For some time after this, we might trace their descent, like the track of a wild beast, by the marks of rapine and disorder;

and at a later period we finally lose sight of the pedigree of the Byssets, in Montrose's celebrated ally, Kilkittoch.

Few of the incidental notices connected with those minor offences which mark the general character of the people, can be found anterior to the commencement of the criminal records. Hector Boece and our friend the poet occasionally tell wondrous incidents; but they are not to be depended on, and few of them have enough of dramatic spirit to be interesting as fables. We are inclined, however, to mention, in passing, the judicial feats of stout old Regent Randolph, whom the poet maintains to have been the greatest of law reformers; in testimony whereof, he adduces a case in point, far beyond the nicety of modern juridical philosophy. The regent hanged a man for stealing his own property. There was a law, that the community should make good every theft, the perpetrator of which could not be discovered. Founding on this law, a husbandman secreted his plough-irons, and received compensation.

"A gready earl soon after was,
Burnin' in sik greediness,
That his plough irons himself stall,
And hid them in a peet pot all.
He playned to the sheriff sare,
That stolen his plough irons were;
The sheriff than paid him shillings twa,
And after that he done had sa,
Soon a great court he gart set,
Wytting of that stelth to get."

The fraud was discovered, and the perpetrator of it hanged.

The murder of James I. is one of the few crimes anterior to the commencement of the records, of which a contemporary account, circumstantial and truthlike, has been preserved.^[2] Few historical tragedies bear comparison with this, either in the audacity with which the assassination was planned, or the relentless atrocity with which it was perpetrated. Nothing can afford so lively an illustration of the perilous tenure of the Scottish crown in the fifteenth century. We would fain have had the telling of this story, and of that part, especially, where, after the

household traitor had removed the great iron bolt, a young damsel, a daughter of the house of Douglas, thrust her arm in the socket. "She was but young," says Hector Boece, "and her bones not solid, and therefore her arm was soon broken in sunder, and the door dung open by force." Poor child! few have been the acts of loyal devotion so heroic as hers; but the whole narrative has been so fully and minutely incorporated with history, as to afford us no excuse for here repeating it.^[Q]

There are, on the other hand, among the early criminal records, two instances of conspiracy against the life of the monarch, of which the particulars are not sufficiently ample to give them the interest of mystery. To excite curiosity, we must see a certain way, while we are unable to see so far as we desire: but in these cases we have little more than the accusation and the condemnation. One of the sufferers was Janet Lady Glamis, condemned to be burned on the 17th of July 1537; we find her name in the criminal record five years earlier, charged with "art and part of the intoxication of John Lord Glamis her husband." The charge has not a very formidable sound, but it doubtless meant either poisoning or sorcery or both; for they were then held to be one concern, as the Romans showed that they deemed them by the title they conferred on the witch, "venefica." This trial is remarkable from the circumstance of a number of gentlemen having preferred paying a penalty to acting on the jury. Perhaps they were inclined, as a later bulwark of our constitution is said to have done, to find a verdict of 'sarved him right.' It was through the instrumentality of poison that the unfortunate lady was charged with intending to effect her design against the life of the king; but of her motive, or ultimate object there is no indication, beyond her relationship to the Douglas family, and probable connexion with their intrigues. The other charge of treason occurred so closely at the same juncture, that for this reason alone historians have supposed that they had both some untraced connexion with a common plot. The culprit in this instance was John Master of Forbes, who was charged with a design to shoot the king as he passed through the town of Aberdeen. It was a service which he was likely to have performed as successfully as Bothwellhaugh, for he had already shown his abilities in the murder of his neighbour, Seton of Meldrum. In those days, the people who took upon them to fire at kings—very different from the maudlin wretches whose diseased brains conceive such horrid projects in a civilised age—knew what they were about, and

were generally successful. They were well accustomed to "break into the bloody house of life;" and the attempt on a crowned monarch was merely a higher range of practice, tasking their best abilities. The simple truth is this: that in the present age we are not accustomed to shooting people, and therefore, when any wretch takes into his frenzied brain a design to fire at a Louis Philippe, he gets confused and makes a bungle of it. It is not a practice suited to the age, and no man of any sense would adopt it.

The earliest of the Scottish criminal records that have been preserved begin in the reign of James IV., about the year 1488. Mr Pitcairn, who has generously laid these early records before the public, not at the expense of the record commission but at his own, says of them,—"The books of adjournal and minute books of the supreme criminal tribunal of Scotland, as well as the records of the Justice Aires, &c. at these remote periods, were kept in an obscure forensic Latin. This circumstance, added to the well-known difficulty of deciphering the ordinary MSS. of these centuries, and the fact of the books now preserved being generally mere scrolls and memoranda, written with many contractions and evidently during the hurry of the court proceedings, have hitherto rendered the task of examining them, and presenting the public with the more important cases, a labour of a peculiarly irksome and repulsive kind." We do not doubt it, and hence our gratitude to Mr Pitcairn, for not only deciphering these discouraging manuscripts, but translating the Latin into English. Those indeed who, like ourselves, have perused his volumes—if any other person *has* perused them—owe a double debt of gratitude to Mr Pitcairn; for he has enabled us to read, in excellent type, what we would otherwise have had to decipher in distressing MS., and he has given us the means of pursuing the task of research by our own fireside, instead of in the interior of the Register House; while we have the satisfaction to feel, in perusing his quartos, that the number of people to whom, in common with ourselves, they have laid the field open, is a very limited one indeed—so limited, that we shall consider every quotation we make from his volumes as select and valuable as if we were able to subjoin MS. *penes auct.* to it.

The earliest of these translations from the old Latin records contain the minutes of circuit courts on the Borders. The entries are as like each other as those of a police charge book. Plunder of cattle is the perpetual theme,

and the quantity of business done by individuals is sometimes startling. Here is an ordinary specimen:—

"Walter Scott of Howpaslot, allowed to compound for treasonably bringing in William Scott, called *Gyde*, John his brother, and other traitors of Levyn, to the Hereship of Harehede. *Item*, for theftuously and treasonably resetting of Henry Scott and other traitors of Levyn: *item*, for the treasonable stouthrief of forty oxen and cows, and two hundred sheep, from the tenants of Harehede, at the same time. Robert Scott of Quhitchester became surety for his entry at the next Justice Aire."

Such were the gentry who, in the words of the namesake of Howpaslot,

"Drove the beeves that made their broth,
From England and from Scotland both."

Another entry like the former, containing more names that will sound not unfamiliar, may be given as a further specimen. The two, from their similarity, will satisfy the reader that it would tend little to edification to make a more extensive selection.

"John Scott of Dalloraine, allowed to compound for art and part of the resetting of John Rede and John Scott in Tushielaw in his theftuous deeds; and especially the time that the said John Scott stole a 'drift' of sheep from Thomas Johnson forth of Quhithop. *Item*, for treasonably resetting Hector Armstrong, a traitor of Levyn, in his theftuous deeds and treasons, &c., &c. *Item*, for common oppression of the lieges, in taking and plundering them of their horses and goods by his own authority. *Item*, for intercommuning with the English in treasonable manner. *Item*, for common reset of the thieves of Liddesdaile, Eskdale, and Ewesdale. *Item*, for slaughter of one called Colthride, &c., &c. Robert Scott of Quhitchester became surety to satisfy the parties."

The reader of Scottish history knows that, in the year 1530, James V., finding that by Circuit Courts of Justiciary he produced little more effect upon these Border depredators than if he had made a gratuitous distribution of *Cicero de Officiis* among them, made war on them, by leading an army through their country, and destroyed their strong-holds, as the German free cities destroyed the castles of their professional brethren on the Rhine. It

was on this occasion that Johnny Armstrong visited him with twenty-four armed "gentlemen," according to Pitscottie, "very richly apparelled," and that the king, turning haughtily round from the freebooter's proffered courtesy said, "What wants yon knave that a king should have?" There is something sad in Armstrong's fate. He appears almost to have considered the king one of his own class,—a leader of men, but a greater leader. Somewhat pompous and conceited he appears to have been;—somewhat too trustful in the effect of his hearty hail-fellow-well-met way of approaching the royal presence. In fact, Johnny Armstrong "did not know his place," and treated the king too much like a brother freebooter, of a higher standing than himself. But, in his apprehension and execution, there is something that makes the nearest possible approach to treachery; and we can imagine a blush rising in the royal cheek, when the robber captain turned haughtily round and said, "I am but a fool to seek grace at a graceless face." The entry regarding the redoubted leader, in these records, is as brief as it is humiliating, for the lion had not the telling of the tale;—"John Armstrong, alias BlakJok, and Thomas his brother, convicted of common theft, and reset of theft, &c., hanged."

During the same reign, outbreaks in the Highlands assumed a somewhat similar character to those of the Border rieviers; but the Celts conducted their operations on a much larger scale, and we intend to devote to them a separate paper.

The disturbances connected with the Reformation are essentially a part of the history of the kingdom, and in that shape too well known to have a place here: but a considerable time before these great convulsions, some smaller offences occasionally connected themselves with the priesthood, and their relation to the rest of the community. Even in the days when the church of Rome was so far Catholic as to be almost co-extensive with Christianity, Scotland was not without occasional ebullitions, in which the savage nature burst the spiritual bonds that, in its ordinary moments, held it in subjection. Boece relates an affair of this sort, and its consequences, with a rapidity almost unmatched, when we consider the quantity and the serious character of the business transacted. It was in the reign of Alexander III. that, according to his translator, "The men of Caithness burnt Adam, their bishop, after that he had cursed them for non-payment of their teinds. King Alexander hearing sic terrible cruelty done to this noble prelate, ceased not

till four hundred of the principal doers thereof were hanged." "King Alexander," continues the chronicler, "for this punishment was gretumly beloved by the Pope." No wonder! Nearly contemporary with the crusade of James V. against the Border rieviers, was the murder of James Inglis, abbot of Culross, by Blacater baron of Tullyallan, and William Lothian, a priest, both of whom were found guilty and beheaded, while others were acquitted. The trial seems to have excited much interest, for Bishop Leslie tells us that the ceremony of the degradation of the priest, previously to his being handed over to the civil power, took place upon "ane public scaffold in the toun of Edinburgh," "the King, the Queen, and a great multitude of people being present." A year or two afterwards we find the somewhat singular circumstance of a whole list of priests charged with an act of violence;—"John Roull, prior of Pittenweem; Patrick and Bartholomew Forman, and six other canons; Mr Alexander Ramsay, rector of Muckart; Sir John Ramsay, and three other chaplains, and John Blackadder, parish clerk of Sawling." They were re-pledged to be tried by their own ecclesiastical court. It appears that, in the course of a dispute regarding the right to the produce of the land of Pittenweem, an officer of the court was appointed to reap the crop. When he repaired to the spot, the sub-prior and an assemblage of followers threatened him with violence. He found himself placed in a very curious position, and made an equally curious request. When a messenger is deforced, those who have used violence are liable to damages. The messenger on this occasion, being a shrewd and calculating man, surveyed the forces of his opponents before making a "return of deforcement." To his mortification he perceived that, to use an expression of modern origin, "they were not worth powder and shot." There were none among them "but religious men and priests, hinds' wives and bairns, which were not responsal to our sovereign lord gif he had taken deforce." He made a request that they should "send for Andrew Wood in Pittenweem, John Brown of Anstruther, the laird of Balcasky, or some other responsal persons, to stop him, so that he might indorse his deforcement and depart, which they plainly refused." The request was about as reasonable as if a gentleman, knocked down by a ragged ruffian, were to ask him to get some capitalist, able to pay respectable damages, to come and aid in the operation. The prior, meanwhile, came to the assistance of his subordinates, and put himself at the head of a truly formidable array: three hundred men, who "with hagbutts, culverings, cross-bows, hand-bows, spears, halberts,

axes, and swords, came in arrayed battle, with convocation and ringing of their common bell," and, falling on the messenger's party, "shot divers pieces of artillery at them." The ecclesiastical people were removed to their own court, so that we lose trace of the proceedings against them. Some of the laymen were charged with the slaughter of the messenger's followers, and others outlawed for failing to appear.

The same Spartan brevity that characterises the early portions of the criminal records, sometimes reduces the history of bloody family feuds, the particulars of which might fill volumes of romance, to the most tantalising dimensions. They are rather inventoried or enumerated by head-mark, than even recorded, and generally present no more satisfactory detail than the following:—

"1554, Oct. 26.—Robert Henry, alias *Deill amang us*, convicted of art and part of the cruel slaughter of Thomas Bissate, young laird of Querrel. Beheaded."

"1532, July 3.—Rolland Lindesay, Alan Lokhart of Lee, and William Mosman, convicted of art and part of the cruel slaughter of Ralph Weir. Beheaded."

That one of the parties might be a magistrate administering the law, was no impediment to the prosecution of a feud, but rather served to give solemnity and importance to the perpetration of some act of vengeance: thus—

"1527, October 8.—George Ramsay of Clatty, John Betoune of Balfour, James Betoune Of Melgum, John Grahame of Claverhouse, and others, found caution to underly the law at the first Justice Aire of Fife, for convocation of the lieges, to the number of 80 persons, and in warlike manner invading John Lord Lindesay, Sheriff of Fife, in the execution of his office, in a fenced court within the Tolbooth of Cowper, the doors being shut, and the assize inclosed; and for breaking up the said doors."

The meagreness of these entries whets one's appetite for some detail of the stirring and tragical events of which they form the bare indexes. With the exception of the great Highland feuds, which burned on so large a scale as

to be in a manner historical, the earliest detailed account of a crime arising in family animosity is connected with the feud between the Drummonds and the Blairs in the year 1554. The crime which brought the feud within the notice of the law, was the murder of George Drummond of Leadcrieff and William his son. The perpetrators, besides a long list of Blairs, include several other names still known in the Braes of Perthshire—such as Chalmers, Butter, Smyth, and Robertson. They were charged with assembling to the number of eighty, "with jacks, coats of mail, steel bonnets, lance-staffs, long culverings with lighted lints, and other weapons invasive." The day on which this tumultuous assembly proceeded to their work of vengeance was a Sunday, and the place chosen for the perpetration was the church of Blair. Being apparently afraid of the number of friends and retainers by whom their victims happened to be surrounded during the performance of divine worship, it is stated that they were obliged to postpone their purpose, and that "they passed to the Laird of Gormok's place, and their dynded with him:" a pretty large dinner-party, certainly. Leaving spies to watch the enemy's motions, they were soon afterwards summoned to their task, and their victims became an easy prey. The occupation of Drummond and his son—when we remember that it was a Sabbath afternoon—might, perhaps, be scarcely considered so characteristic of Scottish habits as their assassination. They were "alane, at their pastime-play, at the row-bowles, in the high market-gate, beside the kirk of Blair, in sober manner, trusting na trouble nor harm to have been done to them, but to have lived under God's peace."

The retribution on the offenders is certainly not the least curious part of the affair. That eighty armed men should seize, and put to death, two individuals, either in or out of a church, appears to have been a matter with which the law and the public were under no obligation to interfere, if the parties immediately interested could come to terms. Accordingly, we find on the record some fragments of a negotiation between the head of the Drummonds and the murderers. Some of them, among other more substantial offers, agree "to gang, or cause to gang," the four head pilgrimages of Scotland; to do penance for the souls of the dead for any reasonable number of years; and, thirdly, "to do honour to the kin and friends" by kneeling and offering the handle of a naked sword held by the point. These offers are treated with some disdain, as too "general and

simple" to require an answer. A further offer of a thousand merks is treated with more attention; but the kin declare that it is far too small a fine "for the committing of so high, cruell, and abominable slaughters and mutilations of set purpose." To heighten the picture, the deed of the murderers is set in contrast with the peaceable and inoffensive conduct of the deceased, whose great merit was his "never offending them, neither by drawing of blood, taking kirks, tacks, steadings, or rooms, over any of their heads, or their friends'." Thus the murder would have been considered less unjustifiable, if the victim had ever been concerned in ejecting his assailants from their holdings, or offering to take them "over their head:" a doctrine of the sixteenth century in Scotland, which events of the nineteenth, in other parts of the empire, have made only too intelligible. The negotiation was not quite successful, for some of the parties were beheaded. One of them, Chalmers of Drumlochie, along with an offer to let his son marry Drummond's daughter, and his cousin marry his sister, "without any tocher,"—an arrangement which he seems to have thought might be equivalent to "lands, goods, or money," of none of which was he possessed,—proclaimed himself "ready to do any other thing quhilk is possible to him, as please my lord and friends to lay to his charge, except his life and heritage." He bound himself to Lord Drummond as a personal vassal and follower, by a "band of man-rent:" an instrument well-known in old Scottish jurisprudence, and perpetually cropping out in connexion with any historical events—such as the murder of Rizzio,—in which many persons united themselves together for the perpetration of a great crime. It was a curious feature of national character,—the form of law running down through every thing, even to the very document framed for setting law at defiance. Chalmers' bond was merely one of general partisanship and following, and he bound himself to the Drummonds, and their heirs, to "take their true and one-fold part, in all and sundry their actions and causes, and ride and gang with them therein upon their expenses, when they require me or my heirs thereto, against all and sundry persons, our sovereign lady and the authority of this realm alanerly excepted. And hereto I bind and oblige me and my heirs to the said noble and mighty lord and his heirs in the straitest form and sicker stile of band of manrent that can be devised, no remeid nor exception of law to be proponed nor alleged in the contrair." It might be no small consolation to the chief who had lost a vassal to get a

slave in his stead; but the public peace would not be much benefited by this method of settlement.

Some of the precautions against turbulent offences are not less curious than this method of dealing with them when they were committed. An heiress might be compelled to find security, or enter into recognisances that she shall not give her hand and fortune to an outlaw or scapegrace. Thus, on the 13th of September 1563, Mariene Carruthers, being "ane of the twa heretrixes of Moweswald," produced two landed proprietors who became bound that she "shall not mary ane chief traiter nor other broken man of the country, nor join herself with any sic person, under the pain of ane thousand pounds."

Whatever it may have been in England, there was little divinity hedging a Scottish king of the sixteenth century. Perhaps, as a rich peer and a poor peer are very different things in popular estimation, though equal in the Lord Chamberlain's list of precedence, so it may have been with kings. The Scottish king was poor, ill-housed, parsimoniously served, meagerly guarded. His pulse might beat with the blood of a hundred monarchs; but the far-stretching palaces, the long gorgeous trains of attendants, the wealth at command, were wanting, and divine right was but a theory, that could neither give parasites rich offices, nor dazzle the eyes of worshippers. Thus it happens that, side by side with the most magnificent theoretical assumptions of regal prerogative, stand the most ludicrous instances of the crown's weakness and smallness. On the 11th July 1526, Robert Bruce of Airth and others are respited for having committed a highway robbery on his Majesty's artillery—"for art and part of the stouthrief of certain manganelis and artillery coming from the castle of Stirling to the king's Majesty, at his burgh of Edinburgh, for the defence of his person; and for art and part of the stouthrief of the king's letters from his officers, and laying violent hands on them." We have not far to wander for like instances, making the monarch a simple human being, against whom one commits, not the majestic crime of high treason, but the vulgar offences of theft and robbery. Thus, in the very next entry, we find "Walter Drummond acquitted by an assize of art and part of the theft and concealment of the king's crown from his crown-room, with the precious stones therein contained, forth of the palace and monastery of Holyrood."

Every petty laird dined and slept within the walls of his thick square tower; isolated by moat or precipice, by long dark passages and iron grated door. In an age when individuals thus protected themselves, it naturally astonishes one to observe how accessible the royal person generally appears to have been—how slightly protected from contact with the people, how easily approached by the assassin. One man was able to remove all the impediments which stood in the way of the Highland band who slew James I. at Perth. The murder of Rizzio, with all its circumstances of cool premeditation, and calm, steady, bitter insult, need not be recalled to the reader, among the other incidents, which show how thin a partition separated the sovereign from rude violence. The various forms in which that turbulent and most pertinacious of rebels, Francis Earl of Bothwell, assailed King James, are fraught with a ludicrous versatility in the art of haunting and tormenting a king. The official act of forfeiture characterised it as "invading, assieging, and persuing of his Majesty's most noble person, by fire and sword, breaking up his chalmers doors with fore hammers, and cruelly slaying his Highness' servants coming to his Majesty's rescue." "Ane treason and cruelty," continues the indignant document, "not heard nor seen committed by subjects so highly obliged to their native king and prince." The contemporary chronicler, Birrel, characterised the outrage as "a stoure," which the rebel created by striking "with ane hammer at his Majesty's chamber door." In his more renowned and successful attempt, the pathway to the person of royalty was so completely cleared for him by a courageous female, the Duchess of Athole, whose house was next door to the palace, that the weapons of the guard were removed; the queen's bed-room, to which the beleaguered monarch might have fled, was locked; and the prime conspirator and his assistant were comfortably lodged behind the arras of the ante-room to the king's sleeping apartment. What might not a boy Jones have accomplished in those days? Should we, however, pursue this subject further, we would be trespassing on that ground of established history which it is our desire on the present occasion to avoid.

SIR SIDNEY SMITH.

[R]

A glance at the history of European fleets would give, perhaps, the highest conception of human powers in the whole progress of mankind. Philosophy, literature, and legislation, of course, have attained illustrious distinctions. But the naval service combines every thing: personal intrepidity, the strongest demand upon personal resources, the quickest decision, the most vigorous exertion of manual and mechanical skill, the sternest hardihood, and the most practical and continual application of science.

The unrivalled triumph of human invention is the instrument by which all those powerful qualities are brought into play: a ship of the line, with all its stores, its crew, and its guns on board, is the wonder of the world. What must be the dexterity of the arrangement by which a thousand men can be victualled, at the rate of three meals a-day, for four months; a thousand men housed, bedded, clothed, and accoutred; a battery of a hundred and twenty guns—the complement of an army of fifty thousand men, and two or three times the weight of field-guns—fought; this mighty vessel navigated through every weather, and the profoundest practical science applied to her management, through night and day, for years together? No combination of human force and intellectual power can contest the palm with one of those floating castles, of all fortresses the most magnificent, the most effective, and the most astonishing.

The history of the British navy, in its present form, begins with that vigorous and sagacious prince, Henry VII., who was the first builder of ships, calculated not merely for the defence of the coast, but as an establishment of national warfare. The strong common-sense of his rough, but clear-headed son, Henry VIII., saw the necessity for introducing order into the navy; and he became the *legislator* of the new establishment. He first constructed an admiralty, a Trinity-board for the furtherance of scientific navigation; appointed Woolwich, Deptford, and Portsmouth as dockyards, and declared the naval service a *profession*.

Elizabeth, who had all the sagacity of Henry VII., and all the determination of his successor, paid especial attention to the navy; and the national interest was the more strongly turned to its efficacy by the preparations of Spain, which was then the paramount power of Europe. When the Armada approached the English shores, she met it with a navy of one hundred and seventy-six ships, manned with fourteen thousand men. And in that spirit of wise generosity, which always marked her sense of public service, she doubled the pay of the sailor, making it ten shillings a-month. The defeat of the Armada gave a still stronger impulse to the popular feeling for the sea; signals were formed into a kind of system, and all the adventurous spirits of her chivalric court sought fame in naval enterprise.

From that period a powerful fleet became an essential of British supremacy; and the well-known struggle of parties, in the time of the unfortunate Charles, began in the refusal of a tax to build a fleet. In the early part of his reign, Charles had built the largest ship of his time, "The Sovereign of the Seas," carrying one hundred guns.

The civil war ruined every thing, and the navy was the first to suffer. Cromwell found it dilapidated, but his energy was employed to restore it. Blake, by his victories, immortalised himself, and raised the name of the British fleet to the highest point of renown; and Cromwell, at his death, left it amounting to one hundred and fifty-four sail, of which one-third were of the line. The Protector was the first who proposed naval estimates, and procured a regular sum for the annual support of the fleet.

The Dutch war, in the reign of Charles, compelled further attention to the navy; and when William ascended the throne, he found one hundred and fifty-four vessels, carrying nearly six thousand guns; but the French still exceeded us by one thousand guns.

In the reigns of George I. and II. the fleet continued to increase in size, strength, and discipline. Much of this was owing to the Spanish and French wars. In the war of 1744 we had taken thirty-five sail of the French line! But the incessant treachery of French politics was soon to be still more strikingly exhibited, and more severely punished.

The revolt of the American colonies stimulated the French government to join the rebels. The hope of doing evil to England has always been enough

to excite the hostility of foreigners. France was in alliance with us; but what was good faith to the temptation of inflicting an injury on England? An act of intolerable treachery was committed; France, unprovoked, suddenly sent a fleet and army to the aid of America, and the French war began, to the utter astonishment of Europe.

But there is sometimes a palpable retribution even here. In that war, which was wholly naval on the part of France, her fleets were constantly beaten; and the defeat of De Grasse, in the West Indies, finished the naval contest by the most brilliant victory of the period. Another vengeance was reserved for England in Europe. The siege of Gibraltar, if not undertaken directly at the suggestion of France, at least a favourite project of hers, and attended by French officers and princes, became one of the most gallant and glorious defences on record; the besiegers were defeated with frightful loss, and the war closed in a European acknowledgment of English superiority.

But the retribution had not yet wrought its whole work. Rebellion broke out in France. The French troops returning from America had brought back with them republican views and vices. The treaty-breaking court was destroyed at the first explosion; the treaty-breaking ministers were either slain, or forced to take refuge in England: the treaty-breaking king was sent to the scaffold; and the treaty-breaking nation was shattered by civil and foreign war; until, after a quarter of a century of fruitless blood, of temporary successes, and of permanent defeats, the empire was torn in pieces; France was conquered, Paris was *twice* seized by the Allies, and Napoleon died a prisoner in English hands.

The naval combats of the American war had a remarkable result. They formed a preparation for the still more desperate combats of the French naval war. They trained the English officers to effective discipline; they accustomed the English sailors to victory, and the French to defeat; and the consequence was, a succession of English triumphs and French defeats in the war of 1793, to which history affords no parallel.

The French republican declaration of war was issued on the memorable first of February 1793. Orders were instantly sent to the ports for the fleet to put to sea. Such was its high state of preparation, that almost immediately fifty-four sail of the line, and a hundred and forty-six smaller vessels, were ready

for sea. The republican activity of France had already determined on contending for naval empire; and a fleet of eighty-two sail of the line were under orders, besides nearly as many more on the stocks. But all was unavailing. The defeats suffered in the ten years previous to the peace of Amiens in 1803, stripped France of no less than thirty-two ships of the line captured, and eleven destroyed; and her allies, Holland, Spain, and Denmark, of twenty-six of the line, with five hundred and nineteen smaller ships of war taken or destroyed, besides eight hundred and seven French privateers also taken or destroyed. The French had become builders for the English. Of their ships of the line fifty were added to the English navy.

On the recommencement of the war in 1804, the British fleet numbered nearly double that of the enemy; but the French ships were generally larger and finer vessels. It is difficult to understand from what circumstance the French, and even the Americans, seem always to have the superiority in ship-building. Our mechanical skill seems always to desert us in the dockyard.

During the war, our naval armament continued to increase from year to year, until, in 1810, it had reached the prodigious number of five hundred pennants, of which one hundred were of the line, with one hundred and forty-five thousand seamen and marines!

Since the peace, a good deal of attention has been paid to the construction of ships of war. But it appears to have been more successful in the economical arrangement of the interior than in the figure, which is the essential point for sailing. The names of Seppings, Symonds, Hayes, Inman, and others, have attained some distinction; but we have not yet obtained any certain model of a good sailing ship. Some vessels have succeeded tolerably, and others have been total failures, though built on the same stocks and by the same surveyor. Yet the strength, the stowage, and the safety, have been improved. It is rather extraordinary that government has never offered a handsome reward for the invention of the best sailing model; as was done so long since, and with such effect, in the instance of the time-keepers. Five thousand pounds for a certain approach to the object, and five thousand more for complete success, would set all the private builders on the pursuit; and it can scarcely be doubted that they would ultimately succeed. Even now, the private yacht-builders produce some of

the fastest sailing vessels in the world; the merchant ship-builders send out fine ships, of the frigate size, and the private steam-ship builders are unrivalled; while we have continual complaints of the deficiencies of the vessels built in the royal dockyards.

Some of those complaints may be fictitious, and some ignorant; but the constant changes in their structure, and their perpetual repairs, imply inferiority in our naval schools of architecture. The chief attention of the royal dockyards, within these few years, has been turned to the building of large steam-ships, armed with guns of the heaviest calibre. But the attempt is evidently in a wrong direction. The effort to make fighting ships of steamers, ruins them in both capacities. It destroys their great quality, speed; and it exposes them with an inadequate power to the line-of-battle ship. They are incomparable as *tugs* to a fleet, as conveying troops, as outlying vessels, as every thing but men-of-war. A shot would break up their whole machinery, and leave them at the mercy of the first frigate that brought its broadside to bear upon them in their helpless condition. In all the trials of the fleet during the last two years, the heavy armed steamers were invariably left behind in a gale, while one of the light steamers ran before every frigate.

We have now two fleets on service, one in the Tagus, and another at Malta; but both are weak in point of numbers, though in a high state of equipment. A few rasee guardships are scattered round the coast. Some large steamers remain at Portsmouth and Plymouth ready for service; but, from all accounts, there is nothing of that active and vigorous preparation which ought to be the essential object of the country, while France is menacing us from day to day, while she has an immense naval conscription, is building powerful ships, is talking of invasion, and hates us with all the hatred of *Frenchmen*. In such emergencies, to think of sparing expense is almost a public crime; and no public execration could be too deep, as no public punishment could be too severe, if neglect of preparation should ever leave us at the mercy of the most mischievous of mankind. But no time is to be thrown away.

Whether we shall be prepared to meet and punish aggression, ought no longer to be left dependent on the will of individuals. The *nation* must bestir itself. It must have meetings, and subscriptions, and musters. We must be

ready to give up a part of our superfluities to save the rest. Whether France intends to attack us, without provocation, and through a mere rage of aggression, we know not; but the language of her journals is malignant, and it is the part of wise and brave men to be prepared.

We shall now give an outline of the gallant career of one of those remarkable men, who, uniting courage and conduct, achieved an imperishable name in our naval annals.

William Sidney Smith was born on the 21st of June 1764. He began his naval career before he was twelve years old. All his family, for four generations, had been naval or military. His great-grandfather was Captain Cornelius Smith. His grandfather was Captain Edward Smith, who commanded a frigate, in which he was severely wounded in an attack on one of the Spanish settlements in the West Indies, where he died shortly after. His father was the Captain Smith of the Guards, whose name became so conspicuous on the trial of Lord George Germaine, to whom he was aide-de-camp at the battle of Minden, and who after that trial retired from the army in disgust. Sir Sidney's uncle was a general, and his two brothers were Lieut.-Colonel Douglas Smith, governor of Prince Edward's Island, and John Spencer Smith, who held a commission in the Guards, but afterwards exchanged the service for diplomacy, in which his name became distinguished as an envoy to several Continental courts during the war of the Revolution. Sir Sidney's mother was the daughter of a Mr Wilkinson, an opulent London merchant, who, however, seems to have disinherited his daughter from discontent at her match, and left the chief part, if not the entire, of his property to her sister, who was married to Lord Camelford. Sir Sidney was for a few years at Tunbridge School, from which, however, he was withdrawn at an age so early that nothing but strong natural talent could have enabled him to exhibit in after-life the fluency, and even the occasional eloquence, which distinguished his pen. His first rating on the books of the Admiralty was in the Tortoise, in June 1777. In the beginning of the next year he was appointed to the Unicorn, and began his career by a gallant action, in which his ship captured an American frigate. He was then but fourteen. In 1779 he joined the Sandwich, the flag-ship of Rodney, in which he was present at the victory obtained over the Spaniards in the next year.

Those were stirring times. In the same year he was appointed lieutenant of the Alcide. And in this ship he was present at Graves' action with the French, off the Chesapeake.

In the following year he was in the greatest naval action of the war—the famous battle of the 12th of April 1782, off the Leeward Islands, when Rodney defeated the French fleet, commanded by the Comte de Grasse. In the following May, he was appointed to the command of the Fury sloop, by Rodney; and in the October following was promoted to the rank of captain into the Alcmena, having been on the list of commanders only five months.

Thus he was a captain at the age of eighteen! The war was now at an end; his ship was paid off, and he went to reside at Caen, for the purpose of acquiring a knowledge of the French language. There he spent a well-employed and agreeable time. Many of the French families of condition resided in the neighbourhood; and the young captain, having brought letters to the Duc de Harcourt, governor of the province, was hospitably received. The French were then a polished people; they knew nothing of republicanism, and were not proud of their ferocity; they had none of that frantic hatred of England which is the folly and the fashion of our day, and might be regarded as a civilised people. The duke invited him to his country-seat, and there showed him the improvements in his grounds, and introduced him to his visitors.

Like most men destined to distinction, Sir Sidney Smith was constantly preparing himself for useful service, by the acquisition of knowledge. The Mediterranean is naturally presumed to be the great theatre of naval exploits. He obtained leave of absence, and went to the Mediterranean. While at Gibraltar, thinking, from the violent language of the Emperor of Morocco, that there might be a Moorish war, he made a journey along the coast of Morocco, for the purpose of acquainting himself with the condition of its naval force and harbours. Having obtained the necessary information, which obviously required considerable exertion and no slight expense, he stated its results in a manly and intelligent letter to the Admiralty, offering his services in case of hostilities, and suggesting the appointment of a squadron to be stationed outside the Straits, for the prevention of any naval enterprise on the part of the Moors.

Among the most accessible ports, he mentions Mogadore, which, as not being a bar harbour, is easily approachable by ships of force; and though the works contained many guns, yet they were so ill-placed, that in all probability they could not resist an attack. We recollect that the cannonade of this town was one of the exploits on which the Prince de Joinville plumed his heroism, and of which all France talked as if it were the capture of a second Gibraltar.

The same spirit of inquiry and preparation for probable service led him to Sweden, during the war of the brave and unfortunate Gustavus with the Empress Catherine.

We may pause a moment on the memory of one of the most remarkable princes of his time. Gustavus, born in 1746, in 1771 ascended the throne of Sweden, on the death of his father Frederic.

The Swedish nobility were poor, and affected a singular habit of following the fashions of France, of whose government, probably, the chiefs of their body were pensioners. The lower orders were ignorant, and probably not less corrupted by the gold of Russia. Gustavus found his throne utterly powerless between both,—a States-General possessing the actual power of the throne, and even that assembly itself under the control of a Russian and a French faction, designated as the hats and caps. Gustavus, a man of remarkable talent, great ardour of character, and much personal pride, naturally found this usurpation an insult, and took immediate means for its overthrow. He lost no time; his first efforts were exerted to attach the national militia to his cause. When all was ready, the explosion came. The governor of one of the towns suddenly issued a violent diatribe against the States-General. The king was applied to to punish the contumacious rebel. He instantly sent a large military force, with his brother at its head, to punish the governor. By secret instructions it joined him. The plan was now ripening. In all that follows, we are partly reminded of Charles I., of Cromwell, and of Napoleon. Like Charles, the king entered the assembly of the States and demanded some of the members. Like Napoleon, he had the regiments of the garrison ready on parade, and rushing out of the assembly, he was received by the troops with shouts. The oath of allegiance was renewed to him with boundless acclamation. Several of the chiefs of the States-General were immediately put under arrest, and the whole body were

completely intimidated. On the next day, the States-General were once more invited to assemble. The king, at the head of his military staff, like Cromwell, entered the hall, and presented them with the "new constitution." The troops had already settled the question. On its being put to the vote of the assembly, a majority appeared in its favour. The States-General sank into a ciphers, and the revolution was triumphant.

The new constitution had given great joy to the people, long disgusted with the arrogance of the States-General. But the nobles, whose powers had been curtailed, nourished a passion for vengeance. The war of 1788 with Russia, in which the finances of the kingdom began to be severely pressed, gave them the opportunity. The States still existed; and the disaffected nobles, influenced their votes, to the extent of refusing the supplies, though the Danes were in the Swedish territory, and actually besieging Gothenburg at the moment. The king must have been undone, but for the patriotism of the mountaineers of Dalecarlia; who, if they could not give him money, gave him men. Gustavus, indignant at his palpable injuries, now determined on extinguishing the power which had thus thwarted him in his career. In 1788, he suddenly arrested the chiefs of the opposition, and introduced a law, still more controlling the power of the nobles. But this act was regarded as doubly tyrannical, and deserving of double vengeance.

On the conclusion of the war within two years after, the malcontents, fearful that the leisure of peace would produce further assaults on their privileges, resolved to take the decision into their own hands.

The period began to be troubled. The French revolution had just broken out, and it had at once filled all the Continental sovereigns with alarm, and all the population with vague theories of wealth, enjoyment, and freedom. The king of Sweden, known for his talents, distinguished in war, and loud in his hatred of France and her furies, had been chosen by the allied monarchs to head the invasion of the republic. Whether the councils of the nobles partook more of fear, or hatred, or the hope of political overthrow, can now be scarcely ascertained; but they issued in an atrocious conspiracy against the royal life.

It is remarkable that there is scarcely an instance of conspiracy against the lives of eminent personages, in which the design was not previously

discovered, and was successful only through an unwise and contemptuous disregard of the intelligence. This seems to have been the course of things, from the days of Cæsar. The King of Sweden was informed of his danger; and even that the attempt was deferred only until the period of some *fêtes*, to be given at court. But the king, accustomed to danger, and probably refusing to believe in the existence of a crime rare among his countrymen, disdained all measures of precaution, and even appears not to have taken any further notice of the conspiracy. This might have been the conduct of a brave man, but the consequence showed that it was not the conduct of a wise one.

On the 16th of March 1792, the ball was given: the king appeared among the maskers: he was evidently careless of all hazard, and was conversing with a group, when, Ankerstrom, the intended assassin, entered the Salle. This traitor had been a captain in the service, but had been dismissed, or had conceived himself to be insulted by the king. Gustavus was pointed out to him by one of the conspirators: he stole behind the king, and fired at his back a pistol loaded with slugs and nails. Gustavus fell mortally wounded, and was carried to his chamber in agony. The assassin coolly walked out of the Salle, unobserved in the confusion, but was arrested next day. He was brought to trial, and died the death of a regicide. The chief conspirators were banished. The king languished until the end of the month, when he died, with great firmness and resignation.

On the pistol of Ankerstrom may have turned the fortunes of the French Revolution. Gustavus, a king, a man of military genius, and ardent in all that he undertook, would have escaped all the errors of the Duke of Brunswick. His personal rank would have rendered him independent of the wavering politics of the allies; his talent would have rectified the obsolete notions of their statesmen; and his spirit of enterprise would have rescued his army from the most fatal of all dangers to an invader—delay. He would have overruled the prejudices of the Aulic Council, and the artifices of the Prussian cabinet; and hoisted the allied flag in Paris, before the first levy of the Republic could have taken the field.

France can scarcely be regarded as having an army until 1795. The old royal army, though consisting of 180,000 men, was scattered in position and doubtful in principle. The Republican levies were yet but peasantry. The

King of Sweden, at the head of 150,000 Prussians and Austrians, then the first troops in Europe in point of equipment and discipline, would have walked over all resistance; and France would have been spared the most miserable, and Europe the bloodiest, page of its annals.

The fall of Gustavus was also fatal to his dynasty. His son, Gustavus IV., inheriting his passions without his talents, and quarrelling with his allies without being able to repel his enemies, was expelled from the throne, after a series of eccentricities almost amounting to frenzy. He was arrested in the streets by General Alderkreutz, by order of the Diet. His uncle, the Duke of Sudermania, was appointed regent; and, on the king's subsequent abdication, was proclaimed king, by the title of Charles XIII.

On his death, Bernadotte was elected to the throne, which he retained through life;—the solitary instance of permanent power among all the generals of the French empire; but an instance justified by high character, by his acquirement of the throne without crime, and by its possession without tyranny.

There may be no royal road to fame, but there are some habits which naturally lead to it; one of those, activity of spirit, Sir Sidney Smith possessed in a remarkable degree. Wherever any thing new or exciting in his profession was to be seen, there he was certain to be. In 1789, the Swedish and Russian fleets were fighting in the Baltic. England was at peace,—his ship had been paid off; relaxation, the London balls, the Parisian theatres, rambles through the German watering-places, were before him. Ten thousand idlers of the navy would have enjoyed them all without delay. But the young captain was determined to rise in his profession; and, as the time might come when a Swedish or a Russian war might be on the hands of England herself, he felt that it might be advantageous for an English officer to have some knowledge of the Baltic.

Unluckily, the chief portion of his correspondence in Sweden has been lost. It was very voluminous; but, with all his documents on the subject of his Swedish service, it had been left in Camelford House, to the care of its proprietor, Lord Grenville. The house was subsequently let for the residence of the Princess Charlotte, and the papers were removed to the care of a tradesman near Cavendish Square, whose premises were destroyed by fire,

and the MSS. were almost wholly consumed. If there is no other moral in the story, it should at least be a warning to diplomatic and warlike authorship, to apply to the press as speedily as possible.

But, from his Swedish expedition is certainly to be dated the whole distinction of his subsequent career. He might otherwise have lingered through life on half-pay, or have been suffered merely to follow the routine of his profession, and been known only by the Navy List.

In 1789, he applied for six months' leave of absence to go to the Baltic, but without any intention to serve. There he was introduced to the King of Sweden, and attracted so much interest by his evident ability and animation of manner, that the king was desirous of fixing him in his service, and of giving him an important command. The temptation was strong, but we need scarcely say, that even if leave were given, it *ought not* to have been accepted. No man has a right to shed the blood of man but in defence of his own country, or by command of his own sovereign. But in the next year he received the following flattering request from the king.

"Captain Sidney Smith,—The great reputation you have acquired in serving your own country with equal success and valour, and the profound calm which England enjoys not affording you any opportunity to display your talents at present, induce me to propose to you to enter into my service during the war, and principally for the approaching campaign.

"To offer you the same rank and appointments which you enjoy in your own country, is only to offer you what you have a right to expect; but to offer you opportunities of distinguishing yourself anew, and of augmenting your reputation, by making yourself known in these northern seas as the *élève* of Rodney, Pigot, Howe, and Hood, is, I believe, to offer you a situation worthy of them and yourself, which you will not resist; and the means of acquitting yourself towards your masters in the art of war, by extending their reputation, and the estimate in which they are held already here.

"I have destined a particular command for you, if you accept my offer, concerning which I will explain myself more in detail when I have your definitive answer. I pray God to have you in his holy keeping. Your very affectionate

"Haga, January 17, 1790."

This showy offer overcame Sir Sidney's reluctance at once; but as he could not enter into the Swedish service without leave from home, he took advantage of the opportunity of bringing home despatches from the minister in Stockholm, and thus became the bearer of his own request. The Duke of Sudermania, the king's second in command, also wrote to him a most friendly letter, entreating of him to return as speedily as possible, and bidding him bring some of his brave English friends along with him.

The offer to him had been the command of the light squadron. Sir Sidney set out on the wings of hope accordingly, and expected to be received with open arms by the ministers; but he was seriously disappointed in the expected ardour of his reception. It was with extreme difficulty that he could find any one to listen to him. At last he obtained an audience of the Duke of Leeds, who, however, would give no answer, until the whole matter had been laid before a cabinet council. The gallant sailor now began to experience some of those trials to which every man in public life is probably subjected, at one time or another. He now determined to wait with patience, and his patience was amply tried. In this state he remained for six weeks, until at last he determined to write to the King of Sweden, proposing to give up his appointment, but stating that he was determined to return to join the Duke of Sudermania as a volunteer. Sir Sidney now offered to be the bearer of despatches to Sweden, but the offer was declined with official politeness. He immediately sailed for Sweden, when the King placed him on board a yacht which followed the royal galley in action.

We must now take leave of this war of row-boats, in which, however, several desperate actions were fought; but though row-boats or galleys were the chief warriors, both fleets exhibited a large number of heavy frigates or line-of-battle ships. Those, however, were scarcely more than buoys, among the narrow channels of the Baltic, obstructed as they were by islands, headlands, and small defensible harbours. Sir Sidney was active on all occasions. In one instance, where an attack on the Russian fleet was proposed, and the objection made by the captains was the difficulty of proceeding by night through an intricate channel, he rode across a neck of

land, took a peasant's boat from the shore, sounded the channel during the night, and made himself master of the landmarks, settling the signals with the advanced post on shore.

He was soon after engaged in a desperate action, in which he, with his little troop, having been abandoned by the divisions ordered to attack on other points, was beaten, after a most gallant resistance.

But the King knew how to feel for brave men, however unlucky, and sent him a complimentary letter, on the gallantry and zeal which "he had the faculty of communicating to those who accompanied him." The King, in several communications, remarks on this quality of exciting the spirit of activity and enterprise in others, which seems to have been Sir Sidney's characteristic in almost every period of his naval career; and which doubtless proceeded from peculiar ardour and animation in himself.

The war closed by an armistice and treaty, in 1792. But Sir Sidney then received the reward of his gallant zeal, in his investiture with the Grand Cross of the Swedish Order of the Sword, by George III. himself; which we believe to have been an unusual distinction in the instance of foreign orders, and to have been at the request of the late King of Sweden.

Though Sir Sidney Smith had apparent reason to complain of the coldness of his reception on his first return to England, it is evident that his conduct in Sweden had attracted the attention of ministers. As a simple English captain, attracting the notice of the most warlike monarch of Europe, evidently holding a high place in his confidence, offered a distinguished command, and receiving one of the highest marks of honour that could be conferred by Gustavus, he was regarded as having done honour to his country. But we have heard from those who were intimate with him in early life, that he was also a remarkably striking personage in person and manners; his countenance singularly expressive, his manner full of life, and his language vivid and intelligent. His person was then thin and active, which in after-life changed into heaviness and corpulency—a most complete transformation; but if the countenance had lost all its fire, it retained its good sense and its good nature.

From an early period of the Revolutionary war, the eyes of France had been turned on Egypt, a country which the extravagant descriptions of Savary

had represented as capable of "being turned into a terrestrial paradise, if in possession of France." There her men of science were to reveal all the mysteries of the Pyramids, her philosophers were to investigate human nature in its most famous cradle, her soldiers were to colonise in patriarchal ease and plenty; and even her belles and beaux were to luxuriate in gilded galleys on the waters of the inscrutable Nile, and revel in painted palaces in the shade of tropical gardens, and bowers that knew no winter! Further collision with England led to further objects; and in time, when the Republic had assumed a shape of direct hostility with all Europe, with England at its head, the seizure of Egypt tempted France in another form, as the first step to the conquest of India.

But long before this period, the sagacity of the English cabinet had seen the probable direction of French enterprise, and felt the necessity of obtaining all possible information relative to the coasts of Asiatic Turkey and Syria. For this important purpose Sir Sidney Smith was chosen, and sent on a secret mission to Constantinople; partly, perhaps, from the circumstance that his brother, Mr Spencer Smith, who was then our ambassador there, would communicate with him more advantageously than with a stranger; but undoubtedly much more for his qualifications for a service of such interest and importance.

Nothing is left of those memorials, further than a few notes of the expenses of his journeys; from which he appears to have examined the coasts of the Black Sea, the Bosphorus, the Dardanelles, the Archipelago, and the Ionian Islands. But he was now to distinguish himself on a higher scene of action.

In September 1793, the officers of the French navy at Toulon, and the chief inhabitants, disgusted with the Revolution, and alarmed by the cruelties of the Revolutionary tribunals; hoisted the white flag, and proposed to Lord Hood, commanding the British squadron off the coast, that he should take possession of the city and shipping, in the name of Louis XVII.

It must be confessed, that there never was a great military prize, more utterly thrown away, nor an effort of loyalty more unlucky. The whole transaction only gives the lesson, that what the diplomatists call "delicacy" is wholly misplaced when men come to blows, and that in war promptitude is every thing. The first act of Lord Hood ought to have been to remove the

fleet, strip the arsenals, and send the whole to England, there to be kept secure for its rightful king. The next ought to have been, to give every inhabitant the means of escaping to some safer quarter, with his property. The third ought to have been, to garrison the forts with every soldier who could be sent from Gibraltar and England; from which we could have sent 50,000 men within three weeks. Toulon then might have been made the stronghold of a loyal insurrection in the south, and the garrison of all the foreign troops, which the French princes could muster.

Not one of these things was done. The ships were left until the last moment, through "delicacy" to the people; the people were left to the last moment, through a perilous confidence in the chances of war; and Toulon was lost by an attack of ragamuffins, and the battery of Lieutenant Buonaparte, which an English regiment would have flung into the sea, and sent its commandant to an English prison.

But, even in the midst of these instances of ill-luck, Sir Sidney Smith made himself conspicuous by his services. When returning from his Mediterranean survey, he happened to stop at Smyrna; and there observing a number of British sailors loitering about the streets, he offered them service; and purchasing a small lateen-rigged vessel, about forty feet long, which he manned with forty sailors, and steering for Toulon, he turned over his little vessel and its crew to Lord Hood.

This was another example of that activity of mind and ready attention to circumstances, which characterised his career. A hundred other officers might have seen those sailors wandering about Smyrna, without thinking of the purchase of a vessel to make them useful to their country; or might have been too impatient to return to England, for a *detour* to Toulon.

Lord Hood, though a brave man, was a dull one, and had all the formality of a formal time. Sir Sidney's gallant volunteering was forgotten, and the defence of Toulon was carried on under every possible species of blundering. At length the enemies' guns began to play from the heights, and the order was given for the fleet to retire. Whether even this order was not premature may still be doubted; for the French batteries, few and weak, could scarcely have made an impression on so powerful a fleet; and the British broadsides might have made it impossible for the enemy to hold the

town, especially after all its works had been dismantled. But the order was given, and was about to be executed, when Sir Sidney asked the question which seems to have occurred to no one else: "What do you mean to do with all those fine ships: do you mean to leave them behind?" Some one called out,— "Why, what do you mean to do with them?" The prompt answer was,— "Burn them, to be sure." By some chance, the answer reached Lord Hood's ears; he immediately sent for Sir Sidney, and to him, though on half pay, and then irregularly employed, was given this important duty.

The employment was highly perilous, not only from the hazards of being blown up, or buried in the conflagration, but from the resistance of the populace and galley-slaves, besides that of the troops, who, on the retreat of the English, were ready to pour into the town. His force, too, was trifling, consisting only of the little vessel which he had purchased at Smyrna, three British gun-boats, and three Spanish. But the operation was gallantly performed. The stores of the arsenal were set on fire; a fireship was towed into the middle of the French fleet, and all was soon one immense mass of flame: perhaps war never exhibited a scene more terribly sublime. Thirteen sail of the line, with all the storehouses, were blazing together. The French, too, began to fire from the hills, and the English gun-boats returned the fire with discharges of grapeshot on the troops as they came rushing down to the gates of the arsenal. All was uproar and explosion.

The most melancholy part of the whole narrative is the atrocious vengeance of the Republicans on gaining possession. An anecdote of this scene of horror, and of the especial treachery of Napoleon, is given on the authority of Sir Sidney.

"The Royalist inhabitants, or the chief portion of them, had been driven into the great square of the town, and compressed there into one huge mass. Napoleon then discharged his artillery upon them, and mowed them down. But as many had thrown themselves on the ground to escape the grapeshot, and many were only wounded, this villain of villains cried out aloud,— 'The vengeance of the Republic is satisfied, rise and go to your homes.' But the wretched people no sooner stood up than they received another discharge of his guns, and were all massacred. If any one act of man ever emulated the work of the devil, this act, by its mingled perfidy and cruelty, was the one."

It is impossible to read the life of this intrepid and active officer, without seeing the encouragement which it holds forth to enterprise. In this sense it ought to have a part in the recollections of every soldier and sailor of England. Sir Sidney had perhaps rivals by the thousand in point of personal valour and personal intelligence; but the source of all his distinctions was, his never losing sight of his profession, and never losing an opportunity of service. On this principle we may account for every step of his career, and on no other. He appears to have had no parliamentary interest, no ministerial favour, no connexion of any kind which could essentially promote his interest, and even to have been somewhat neglected by admirals under whom he served. But he never lost an opportunity of being present where any thing was to be done, and of doing his best. It was this which produced even from the formal English admiral a note of this order, written on the evening of the conflagration,—

"My dear Sir Sidney,—You must burn every French ship you possibly can, and consult the governor on the proper method of doing it, on account of bringing off the troops.

"Very faithfully yours,

"HOOD."

This was written at three in the afternoon. It would appear that Sir Sidney, in his answer, made some observation with reference to the smallness of the force put under his command. His Lordship, in a note dated at six in the evening, thus replied:—

"I am sorry you are so apprehensive of difficulty in the service you volunteered for. It *must* be undertaken; and if it does not succeed to my wishes, it will very probably facilitate the getting off the governor and the troops in safety, which is an object. The conflagration may be advantageous to us. No enterprise of war is void of danger and difficulty; both must be submitted to.

"Ever faithfully yours,

"HOOD."

The remonstrance of Sir Sidney must evidently have been with respect to the inadequacy of preparation, for he remarks,—"I volunteered the service under the disadvantage of there being no previous preparation for it whatever;" and the only failure arose from the want of force; for he was unable to burn the ships in the basin; while it argues extraordinary skill and daring, to have effected the burning of the rest with a few gun-boats and a felucca.

But this service, executed at the right time, and in the right spirit, immediately fixed upon him the eyes of the fleet; and the admiral, on sending home the despatches from Toulon, made Sir Sidney their bearer. He was received with great attention by ministers; and Lord Spencer, then at the head of the Admiralty, particularly complimented him on the promptness and energy of his services at Toulon.

As it was now determined to fit out a light squadron for the purpose of disturbing the enemy's coasts on the Channel, Sir Sidney Smith was selected for the command; and he was appointed to the Diamond frigate, with which he immediately made sail for the coast of Holland. This little fleet consisted of thirty-two vessels of various sizes, from the frigate to the gun-boat. With this fleet he kept watch on the enemy's harbours, hunted privateers, made landings on the shore, carried off signal-posts, and kept the whole coast in perpetual alarm. One of those services shows the activity and intelligence required on this duty. It being rumoured that a French expedition had sailed from Brest, Sir Sidney was ordered to execute the difficult task of ascertaining the state of the harbour. He disguised his ship so as to look like a French vessel, hoisted French colours, and ran into the road. Unluckily, a large French ship of war was working in at the same time, but which took no notice of him, probably from the boldness of his navigation. At sunset the Frenchman anchored, as the tide set strong out of the harbour, and Sir Sidney was compelled to do the same. He had hoped that, on the turning of the tide, she would have gone up the harbour, but there she lay in the moonlight, a formidable obstacle. The question was now whether to leave the attempt incomplete, or to run the hazard of passing the French line-of-battle ship. The latter course was determined on, and she was fortunately passed. As they advanced up the road, two other ships, one of which was a frigate, were seen at anchor. Those, too, must be passed, and even the dawn must be waited for before a good view of the road could be

obtained. The crew were ordered to be silent: the French ships were passed without notice. As morning broke, a full view of the road was obtained, and it was evident that the enemy's fleet had put to sea. The task was performed, but the difficulty was now to escape. On the first attempt to move towards the sea, a corvette, which was steering out in the same direction, began to give the alarm by making signals. The two vessels at anchor immediately prepared to follow, and the line-of-battle ship made a movement so as completely to obstruct the course. There seemed to be now no alternative but to be sunk or taken. These are the emergencies which try the abilities of men, and the dexterity on this occasion was equal to the difficulty. As resistance was hopeless, Sir Sidney tried stratagem. Running directly down to the line-of-battle ship, which he now perceived to be in a disabled state, pumping from leaks and under jury topmasts, he hailed the captain in French, which he fortunately spoke like a native, offering him assistance. The captain thanked him, but said that he required none, as he had men enough; but on this occasion Sir Sidney exhibited a feeling of humanity which did him still higher honour than his skill. As he lay under the stern of the Frenchman he might have poured in a raking fire, and, of course, committed great slaughter among the crew, who were crowded on the gunwale and quarter, looking at his ship. The guns were double loaded, and his crew were ready and willing. But, considering that, even if the enemy's vessel had been captured, it would be impossible to bring her off, and that the only result could be the havoc of life; and, to use the language of his despatch, "conceiving it both unmanly and treacherous to make such havoc while speaking in friendly terms and offering our assistance, I trusted that my country, though it might be benefited in a trifling degree by it, would gladly relinquish an advantage to be purchased at the expense of humanity and the national character; and I hope, for these reasons, I shall stand justified in not having made use of the accidental advantage in my power for the moment."

And even then this act of generosity may not have been without its reward; for the other ships, seeing that he was spoken to by the French vessel, discontinued the pursuit. The exploit was finished, and the harbour was left behind. If he had fired a shot into the exposed line-of-battle ship, he would inevitably have been chased by the others and probably taken. From this

period scarcely any of the smaller convoys, conveying ammunition or provisions to the enemy's ports, could escape.

Yet, in the midst of this warlike vigilance and vigour, humanity was not overlooked; the British vessels were forbidden to fire at patrols on shore, and were ordered to spare fishing-boats, villages, and private dwellings.

The winter was spent in hunting along the shore every French flotilla that ventured to peep out. But one action deserves peculiar remembrance, from its mingled daring and *perseverance*. A convoy, consisting of a corvette of 16 guns, four brigs, and two sloops, had been chased into, Herqui. As they, of course, were likely to take the first opportunity to escape, Sir Sidney determined not to wait for the rest of his squadron, but to attempt their capture in the Diamond frigate alone. While he was preparing for this adventure, two other armed vessels joined him. The attempt was hazardous, for the bay was fortified. Two batteries were placed on a high promontory, and the coast troops were ready to oppose a landing.

The Diamond dashed into the bay, but the fire from the batteries began to be heavy, and could be returned only with slight effect, from the commanding nature of their position. It was, therefore, necessary to try another style of attack. This was done by ordering the marines and boarders into the boats, and sending them to attack the batteries in the rear. This movement, however, was met by a heavy fire of musketry on the boats, from the troops drawn up to oppose their landing. The frigate, too, was suffering from the fire of the batteries, and the navigation was intricate. At this critical moment Sir Sidney pointed out to Lieutenant Pine, one of his officers, that it might be possible to climb the precipice in front of the batteries! The gallant officer and his men started immediately, landed under the enemy's cannon, climbed the precipice, and made themselves masters of the guns, before the troops on the beach could regain the heights. The frigate continued her fire to check the advance of the troops. The guns were spiked, and the re-embarkation was effected. It might have been expected that this brilliant little assault could not have been effected without serious loss; but such is the advantage of promptitude and gallantry, that the whole party returned safe, with the exception of one officer wounded.

But the enemy's vessels still remained. To get them out was impossible, for the rocks around were covered with troops, who kept up an incessant fire of musketry. It was, therefore, determined to burn them. The corvette and a merchant ship were set on fire: but the tide falling, the troops poured down close to the vessels, and the party in possession of them returned on board.

Here Sir Sidney might have stopped. He had done enough to signalise his own talent and the bravery of his people. But this success was not enough for him. The convoy were still before him, though still under the protection of the troops. He determined on attacking them again. The boats were manned and rowed to the shore. The troops poured in a heavy fire. But the vessels were finally all boarded and burnt, with the exception of one armed lugger.

Enterprises of this order are the true school of the naval officer. They may seem slight, but they call out all the talent and activity of the profession. They might also have had an important influence on the naval war, for these convoys generally carried naval stores to the principal French dockyards, and the loss of a convoy might prevent the sailing of a fleet.

Lieutenant Pine was sent to the Admiralty with the colours which he had captured on the heights, and with a strong recommendation from his gallant captain. The whole affair was regarded in England as remarkably well conceived and well done. The exploits of the Diamond were the popular theme, and Sir Sidney rose into high favour with the Admiralty and the nation.

These are the opportunities which distinguish the frigate service. An officer in a line-of-battle ship must wait for a general engagement. An officer on land must wait for the lapse of twenty years at least before he can expect the command of a regiment, or the chance of seeing his name connected with any distinguished achievement. But the youngest captain, in command of a frigate, may bring the eyes of the nation upon him. The young lieutenant, even the boy midshipman, by some independent display of intrepidity, may fix his name in the annals of the empire.

But the caprices of fortune are doubly capricious in war. While the captain of the Diamond was receiving plaudits from all sides, the mortifying intelligence arrived, that he had fallen into the enemy's hands.

The origin of this casualty was his zeal to capture a lugger, which had done considerable damage among our Channel convoys. Its stratagem was, to follow the convoys, until it could throw men on board, then to let the prize continue her course, to avoid attracting the vigilance of the escorting frigate, and, when night fell, to slip off to a French port. Sir Sidney determined to cut short the lugger's career. At length the opportunity seemed to have come. The vessel was discovered at anchor in the inner fort of Havre under a ten-gun battery. The Diamond's boats were instantly manned and armed; but, on the inquiry who was to command, it was found that the first lieutenant was ill and in bed, and the second and third lieutenants were on shore. Sir Sidney then took the command himself. The attacking party proceeded in four boats and a Thames wherry, in which was Sir Sidney, to the pier of Havre, where the lugger lay. It was night, and the vessel was gallantly boarded on both sides at once, the crew of the wherry boarding over the stern. The Frenchmen on deck were beaten after a short struggle. Sir Sidney, rushing down into the cabin, found the four officers starting from their sleep and loading their pistols. He coolly told them that the vessel was no longer theirs; ordered them to surrender, and they gave up their arms.

But the flood-tide was running strong, and it drove the vessel above the town, there being no wind. At day-light the lugger became the centre of a general attack of the armed vessels of the port. The Diamond could not move from want of wind; and, after a desperate resistance of three quarters of an hour, Sir Sidney and his companions were forced to surrender. Six officers and nineteen seamen were taken.

Sir Sidney's capture was a national triumph, and he was instantly ordered to be sent to Paris. No exchange could be obtained; his name was too well known. He was charged with incendiarism for the burning of Toulon; and it was even hinted that his being found so close to Havre was for the purpose of burning the town.

Sir Sidney's imprisonment was at first in the Abbaye, which had been made so infamously memorable by the slaughters of September 1793. He was afterwards placed in the prison of the Temple. In all probability, the first object was to exhibit him to the Parisians. An English captain as a prisoner was a rare exhibition, and his detention also saved them from the most

active disturber of their Norman and Breton navigation. But his confinement was not strict, and he was even suffered occasionally to walk about Paris on giving his parole to the jailer. At length, after various British offers of exchange, which were all rejected by the French, he escaped by a counterfeit order of liberation; and, encountering several hair-breadth hazards, reached Havre, seized a boat, put off, and was taken up at sea by the *Argo* frigate, commanded by Captain Bowen, who landed him at Portsmouth, and he arrived in London in April 1798, having been in France about two years and a month.

It is sometimes difficult to know, respecting any event, peculiarly in early life, whether it is a misfortune or the contrary. Sir Sidney's capture must have been often felt by him as the severest of calamities, by stopping a career which had already made him one of the national favourites, and had given him promise of still higher distinction. From the command of the *Diamond* to the dreary chambers of the Temple was a formidable contrast; yet the event which placed him there may have been an instance of something more than what the world terms "good luck." If he had remained in command of his frigate, he might have fallen in some of those fights with the batteries and corvettes which he was constantly provoking. But in his French prison he was safe for the time, and yet not less before the public eye. In reality, the sympathy felt for him there, and the fruitless attempts of the Admiralty to effect his exchange, kept him more the *Lion* than before; and he returned just in time, to be employed on a service of the first importance, and which, by its novelty, adventure, and romantic peril, seemed to have been expressly made for his genius.

The French expedition, under Napoleon, had taken possession of Egypt; the Turks were a rabble, and were beaten at the first onset. The Mamelukes, though the finest cavalry in the world as individual horsemen, were beaten before the French infantry, as all irregular troops will be beaten by regulars. At this period, the object of the ministry was to excite the indolence of the Turkish government to attempt the reconquest of Egypt, and Sir Sidney was appointed to the command of *Le Tigre*, a French eighty gun-ship, which had been captured by Lord Bridport three years before. If it be said that he owed this command in any degree to his having been sent on a mission to Turkey some years before, which is perfectly probable; let it be remembered, that that mission itself was owing to the gallantry and intelligence which he had

displayed in his volunteer expedition to Sweden. Sir Sidney's present appointment was a mixture of diplomacy with a naval command; for he was appointed joint-plenipotentiary with his brother Spencer Smith, then our minister at Constantinople. But this junction of offices produced much dissatisfaction in both Lord St Vincent and Nelson; and it required no slight address, on the part of Sir Sidney, to reconcile, those distinguished officers to his employment. However, his sword soon showed itself a more effectual reconciler than his pen, and the siege of Acre proved him a warrior worthy of their companionship. After the siege, Nelson, as impetuous in his admiration as he was in his dislikes, wrote, to Sir Sidney the following high acknowledgment:—

"MY DEAR SIR,—I have received, with the truest satisfaction, all your very interesting letters, to July. The immense fatigue you have had in defending *Acre* against such a chosen army of French villains, headed by that arch-villain Buonaparte, has never been exceeded; and the bravery shown by you and your brave companions is such as to merit every encomium which all the civilised world can bestow. As an individual, and as an admiral, will you accept of my feeble tribute of praise and admiration, and make them acceptable to all those under your command?

"NELSON.

"Palermo, Aug. 20, 1799."

Sir Sidney found the Sultaun willing to exert all the force of his dominions, but wretchedly provided with the means of exertion—a disorganised army, an infant navy, empty arsenals, and all the resources of the state in barbaric confusion. Two bomb-vessels and seven gun-boats were all that he could procure for the coast service. He ordered five more gun-boats to be laid down, waiting for guns from England. But he was soon called from Constantinople. Advice had been received by the governor of Acre, Achmet Pasha, that Buonaparte, at the head of an army of twelve or thirteen thousand men, was about to march on Acre. The position of this fortress renders it the key of the chief commerce in corn at the head of the Levant, and its possessor has always been powerful. Its possession by the French would have given them the command of all the cities on the coast, and

probably made them masters of Syria, if not of Constantinople. Buonaparte, utterly reckless in his cruelties, provided they gained his object, had announced his approach by the following dashing epistle to the Pasha:—"The provinces of Gaza, Ramleh, and Jaffa are in my power. I have treated with generosity those of your troops who placed themselves at my discretion. I have been severe towards those who have violated the rights of war. I shall march in a few days against Acre." His severity had already been exhibited on an unexampled scale. Having taken Jaffa by assault, and put part of the garrison to the sword, he marched his prisoners, to the number of three thousand seven hundred, to an open space outside the town. As they were disarmed in the town, they could make no resistance; and, as Turks, they submitted to the will of Fate. There they were fired on, until they all fell! When this act of horrid cruelty was reported in Europe by Sir Robert Wilson, its very atrocity made the honourable feelings of England incredulous; but it has since been acknowledged in the memoir by Napoleon's commissary, M. Miot, and the massacre is denied no longer. The excuse which the French general subsequently offered was, that many of the Turks had been captured before, and liberated on parole; that having thus violated the laws of war, he could neither take them with him, nor leave them behind. But the hollowness of this excuse is evident. The Turks knew nothing of our European parole; they felt that it was their duty to fight for their Pasha; they might have been liberated with perfect impunity, for, once deprived of arms, and stript of all means of military movement, they must have lingered among the ruins of an open town, or dispersed about the country. The stronger probability is, that the massacre was meant for the purposes of intimidation, and that on the blood of Jaffa the French flag was to float above the gates of Acre.

It is satisfactory to our natural sense of justice, to believe that this very act was the ruin of the expedition. Achmet Pasha was an independent prince, and might have felt little difficulty in arranging a treaty with the invader, or receiving a province in exchange for the temporary use of his fortress. But the bloodshed of Jaffa must have awakened at once his abhorrence and his fears. The massacre also excited Sir Sidney's feelings so much, that he instantly weighed anchor, and arrived at Acre two days before the French vanguard. They were first discovered by *Le Tigre's* gun-boats, as the heads

of the column moved round the foot of Mount Carmel. There they were stopt by the fire of the boats, and driven in full flight up the mountains.

But another event of more importance occurred almost immediately after. A flotilla was seen from the mast-head of *Le Tigre*, consisting of a corvette and nine sail of gun-vessels. The flotilla was instantly attacked, and seven struck, the other three escaped, it being justly considered of most importance to secure the prizes, they containing the whole battery of artillery, ammunition, &c., intended for the siege. Previously to his arrival, Sir Sidney had sent Captain Miller of the *Theseus*, a most gallant officer, and Colonel Phelypeaux, to rebuild the walls, and altogether to put the place in a better defensive order. Nothing could be more fortunate than this capture, for it at once gave Sir Sidney a little fleet, supplied him with guns and ammunition for the defence of the place, and, of course, deprived the French of the means of attack in proportion. But it is not to be supposed that Napoleon was destitute of guns. He had already on shore four twelve-pounders, eight howitzers, a battery of thirty-two pieces, and about thirty four-pounders. The siege commenced on the 20th of March, and from that day, for sixty days, was a constant repetition of assaults, the bursting of mines, and the breaching of the old and crumbling walls.

At length Buonaparte, conscious that his character was sinking, that he was hourly exposed to Egyptian insurrection, that the tribes of the Desert were arriving, and that every day increased the peril of an attack on his rear by an army from Constantinople, resolved to risk all upon a final assault. After fifty days of open trenches, the Turkish flotilla had been seen from the walls. The rest deserves to be told only in the language of their gallant defender.

"The constant fire of the besiegers was suddenly increased tenfold. Our flanking fire from afloat was, as usual, plied to the utmost, but with less effect than heretofore, as the enemy had thrown up epaulements of sufficient thickness to protect them from the fire. The French advanced, and their standard was seen at daylight on the outer angle of the town, which they had assaulted. Hassan Bey's troops were preparing to land, but their boats were still only halfway to the shore."

It was at this moment that the spirit and talents of Sir Sidney had their full effect. If he had continued to depend on the fire of his boats, the place would have been taken. The French were already masters of a part of the works, and they would probably have rushed into the town before the troops of Hassan Bey could have reached the shore.

"This," says the despatch, "was a most critical point, and an effort was necessary to preserve the place until their arrival. I accordingly landed the boats at the mole, and took the crews up to the breach, armed with pikes. The enthusiastic gratitude of the Turks, men, women, and children, at the sight of such a reinforcement, at such a time, is not to be described; many fugitives returned with us to the breach, which we found defended by a few brave Turks, whose most destructive weapons were heavy stones.

"Djezzar Pasha, hearing that the English were on the breach, quitted his station, where, according to ancient Turkish custom, he was sitting to reward such as should bring him the heads of the enemy, and distributing musket cartridges with his own hands. The energetic old man, coming behind us, pulled us down with violence, saying, that if any thing happened to his English friends, all was lost.

"A *sortie* was now proposed by Sir Sidney, but the Turkish regiment which made it was repulsed. A new breach was made, and it was evident that a new assault in superior force was intended.

"Buonaparte, with a group of generals, was seen on Cœur-de-Lion's Mount, and by his gesticulation, and his despatching an aide-de-camp to the camp, he showed that he only waited for a reinforcement. A little before sunset, a massive column was seen advancing to the breach with solemn step." The Pasha now reverted to his native style of fighting, and with capital effect. "His idea was, *not* to defend the breach this time, but to let a certain number in, and then *close with them*, according to the Turkish mode of war. The column thus mounted the breach unmolested, and descended from the rampart into the Pasha's garden, where, in a very few minutes, the most advanced among them lay headless; the sabre, with the addition of a dagger in the other hand, proving more than a match for the bayonet. In this attack, General Lannes, commanding the assault, was wounded, and General

Rambaut, with a hundred and fifty men, were killed. The rest retreated precipitately.

"Buonaparte will, no doubt, renew the attack, the breach being perfectly practicable for fifty men abreast! Indeed, the town is not, nor ever has been, defensible by the rules of art. But, *according to every other rule, it must and shall be* defended. Not that it is worth defending, but we feel that it is by this breach Buonaparte means to march to further conquest.

"'Tis on the issue of this conflict that depends the opinion of the multitude of spectators on the surrounding hills, who wait only to see how it ends, to join the victor. And with such a reinforcement for the execution of his well-known projects, Constantinople, and even Vienna, must feel the shock."

The siege continued, perhaps as no other siege ever continued before; it was a succession of assaults, frequently by night. From the 2d of May to the 9th, there were no less than nine of those assaults! In another letter he writes:—

"Our labour is excessive; many of us, among whom is our active, zealous friend, Phelypeaux, have died of *fatigue*. I am but half dead; but Buonaparte brings fresh troops to the assault two or three times in the night, while we are obliged to be always under arms. He has lost the flower of his army in these desperate attempts to storm, as appears by the certificates of service which they had in their pockets, and eight generals."

From this period the desperation of Buonaparte was evident. Besides the eight generals killed, he had lost eighty officers, all his guides, carabineers, and most of his artillerymen,—in all, upwards of four thousand soldiers. But the desperation was in vain. All the assaults were repulsed with slaughter. The French grenadiers mounted the breach, only to be shot or sabred. At length, the division of Kleber was sent for. It had gone to the fords of the Jordan to watch the movements of the Turkish army, and had acquired distinction in the Egyptian campaign by the character of its general, and by its successes against the irregular horse of the Desert. On its arrival, it was instantly ordered to the assault. But the attempt was met with the usual bravery of the garrison; and Kleber, after a struggle of *three hours*, was repulsed. All was now hopeless on the part of the enemy. The French grenadiers absolutely refused to mount to the assault again. Buonaparte was furious at his failure, but where force was useless, he still had a resource in

treachery. He sent a flag of truce into the town to propose an armistice for the burial of the dead, whose remains were already poisoning the air. This might naturally produce some relaxation of vigilance; and while the proposal was under consideration, a volley of shot and shells was fired. This was the preliminary to an assault. It, however, was repulsed; and the Turks, indignant at the treachery, were about to sacrifice the messenger who bore the flag. But Sir Sidney humanely interposed, carried him to his ship, and sent him back to the French general with a message of contempt and shame.

Retreat was now the only measure available, and it began on the night of the 20th of May. The battering-train of twenty-three pieces was left behind. The wounded and field-guns had been suddenly embarked in country vessels, and sent towards Jaffa. Sir Sidney put to sea to follow them, and the vessels containing the wounded, instead of attempting to continue their flight, steered down at once to their pursuers, and solicited water and provisions. They received both, and were sent to Damietta. "Their expressions of gratitude were mingled with execrations against their general, who had thus," they said, "exposed them to perish."

As the garrison was without cavalry, the pursuit of the flying enemy could not be followed with any decisive effect. But the gun-boats of the English and Turks continued constantly discharging grapeshot on them, so long as they moved within reach of the shore, and the Turkish infantry fired on them when their march turned inland. Their loss was formidable; the whole tract, between Acre and Gaza, was strewn with the bodies of those who died either of fatigue or wounds. At length two thousand cavalry were put in motion by the Turkish governor of Jaffa, making prisoners all the French who were left on the road, with their guns; and nothing but the want of a strong body of fresh troops to fall on the enemy seems to have prevented the capture of every battalion of that army, which, but two months before, had boasted of marching to Constantinople.

It ought to be remembered, as the crowning honour to his human honours, that the man who had gained those successes, was not forgetful of the true source of all victories which deserve the name. Sir Sidney had gone to Nazareth, and there made this expressive memorandum:—

"I am just returned from the Cave of the Annunciation, where, *secretly* and *alone*, I have been returning thanks to the Almighty for our late wonderful success. Well may we exclaim, 'the race is not always to the swift, nor the battle to the strong.' W. S. S."

It may naturally be presumed that the whole progress of the siege had interested the fleet and army of England in the highest degree. There had been nothing like the defence of Acre in all the history of European war. A siege is pronounced, by military authorities, to be the *most certain* operation in war; with a fixed number of troops, and a fixed number of guns in the trenches, the strongest place *must fall* within a prescribed time. But here was a town almost open, and with no other garrison, for the first six weeks of the siege, than a battalion of half-disciplined Mussulmans, headed by such men as could be spared from two British ships of war.

The whole defence was justly regarded by the nation, less as a bold military service, than as an *exploit*—one of those singular achievements which are exhibited from time to time, as if to show *how far* intrepidity and talent combined can go; a splendid example and encouragement to the brave never to doubt, and to the intelligent never to suppose that the resources of a resolute heart can be exhausted.

But the siege of Acre did more. It certainly relieved the Sultaun from a pressure which might have endangered his throne. It *may* have saved India from an expedition down the Red Sea, for which the native princes looked, with their habitual hatred of their British masters; and above all, it told England that her people were as invincible on shore as on the waves, and prepared her soldiery for those triumphs which were to make the renown of the Peninsular war imperishable.

On the meeting of parliament in September 1799, George III. opened the session with an energetic speech, in which the siege of Acre held a prominent part. The speech said—"The French expedition to Egypt has continued to be productive of calamity and disgrace to our enemies, while its ultimate views against our Eastern possessions have been utterly confounded. The desperate attempt which they have lately made to extricate themselves from their difficulties, has been defeated by the courage of the Turkish forces, directed by the skill, and animated by the courage of the

British officer, with the small portion of my naval force under his command."

In the discussion, a few days after, the thanks of the Lords to Sir Sidney Smith, and the seamen and officers under his command, were moved by Lord Spencer, the first Lord of the Admiralty, in terms of the highest compliment.

His lordship said, that he had now to take notice of an exploit which had never been surpassed, and had scarcely ever been equalled;—he meant the defence of St Jean d' Acre by Sir Sidney Smith. He had no occasion to impress upon their lordships a higher sense than they already entertained of the brilliancy, utility, and distinction of an achievement, in which a general of great celebrity, and a veteran and victorious army, were, after a desperate and obstinate engagement, which lasted almost without intermission for sixty days, not only repulsed, but totally defeated by the heroism of this British officer, and the small number of troops under his command.

Lord Hood said, that he could not give a vote on the present occasion without bearing his testimony to the skill and valour of Sir Sidney Smith, which had been so conspicuously and brilliantly exerted, when he had the honour and the benefit of having him under his command (at Toulon).

Lord Grenville said, that the circumstance of so eminent a service having been performed with so inconsiderable a force, was with him an additional reason for affording this testimony of public gratitude, and the highest honour which the House had it in its power to confer.

His Lordship then adverted to his imprisonment in the Temple. "In defiance of every principle of humanity, and of all the acknowledged rules of war, Sir Sidney Smith had been, with the most cold and cruel inflexibility, confined in a dungeon of the Temple; but the French, by making him an exception to the general usages of war, had only manifested their sense of his value, and how much they were afraid of him." In the House of Commons, Mr Dundas, the Secretary of State, after alluding to the apprehensions of the country, the expedition to Egypt, and the memorable victory of Aboukir, said, "that the conduct of Sir Sidney Smith was so surprising to him, that he hardly knew how to speak of it. He had not recovered from the astonishment which the account of the action had

thrown him into. However, so it was; and the merit of Sir Sidney Smith was now the object of consideration, and to praise or to esteem which sufficiently, was quite impossible."

The thanks of both Lords and Commons were voted unanimously; the thanks of the Corporation of London and the thanks of the Levant Company were voted, with a piece of plate. The king gave him a pension of £1000 a-year for life; and the Sultaun sent him a rich pelisse and diamond aigrette, both of the same quality as those which had been sent to Nelson.

We now hasten over a great deal of anxious and complicated correspondence, explanatory of a convention entered into with the French for the evacuation of Egypt. Kleber, indignant at Buonaparte's flight, and his army disgusted with defeat, proposed a capitulation, by which they were to be sent to France. The distinction which Sir Sidney had now attained even with the French army, had made him the negotiator, and all was preparation to embark, when Lord Keith informed him, by orders from home, that the French must surrender as prisoners of war.

The armistice was instantly at an end. The Turks, who with their usual indolence had remained loitering in sight of Cairo, were attacked in force and broken, and all was war again. Sir Sidney's letters deprecate the measure in the strongest terms. And nothing can be clearer than that, though our expedition under Abercrombie was glorious, Sir Sidney's treaty would have saved us the expenditure of a couple of millions of money, and, what was more valuable, have spared the lives of many brave men on both sides; while the result would have been the same, as it was not our purpose to retain Egypt. Eventually, the French army capitulated in Egypt to Lord Hutchinson, on nearly the terms of the convention of the year before; and to the amount of about twenty thousand men were sent home in British vessels.

Sir Sidney's reception in England was by acclamation. But we must conclude. He was immediately employed in the defence of the coast, as the threats of invasion came loudly from France. He afterwards sailed to the defence of the Neapolitan territories. He was then sent to the protection of the King of Portugal during the French invasion, and conveyed him and his nobles to the Brazils. Where-ever any thing bold, new, or active, was

required, the public eyes were instantly fixed on him, and they were never disappointed.

After the peace of 1815, he resided chiefly on the Continent, and died in Paris on the 26th of May 1840, aged 76.

The essential merit of this distinguished officer's character was, that his whole heart was in his profession; that all his views, his acquirements, his leisure, and his active pursuits, were directed towards it; and that he never lounged or lingered, or lay on his laurels, or thought that "any thing was done while any thing remained to be done."

It is observable, that all his successes arose out of his indefatigable activity and sincere zeal. If he had stayed dancing or gaming or feasting, a week longer, in Constantinople, he would have only seen Acre in possession of the French. The same principle and the same result existed in every instance of his career. He had his oddities and his fantasies in later life, but all were covered by the knightly spirit, romantic bravery, and public services of his early days. He was the *chevalier* of the noblest navy in the world!

MY ROUTE INTO CANADA.

The sources of the Hudson must be sought in those wilds of the state of New York which lie in the interior between Lake Ontario and Lake Champlain. The tide of immigration setting westward through the valley of the Mohawk, or eddying about the shores of those lakes, has insulated that region of country, and it remains to this day almost a wilderness. Within a morning's ride from the springs of Saratoga, where luxury and fashion keep holiday from June to September, one can find oneself in a solitude that would become the Rocky Mountains. The amateur Daniel Boone may there roam through the primeval forest, and even yet snap his trigger at the wild buck, or engage the panther and bear.

Starting from such a cradle, the Hudson, like a young Hercules playing with serpents, catches up a hundred little tributary brooks, and goes leaping and brawling through the woods till it finds itself a river. Then, gathering size and strength through every curve of its way, it turns eastward to seek its fortunes in the big world. As if on purpose to try its strength and power, it comes roaring to the rocks at Glenn's falls, and there flings itself down in a froth, with the air of a stripling who signalises his majority by a terrible outbreak from parental restraint. Then, with a graceful sweep that seems the result of society upon the young forester's impetuosity, it turns its full tide into a picturesque valley, and, bending southward, begins its bright and prosperous career. Awhile it loiters along, now winding through meadows, now murmuring through glens; and then, catching to its strong embrace the lovely Mohawk that comes down with her roar of waters to meet it, the espoused Hudson, with a new dignity, that soon swells into majesty, takes its straight and glorious course through sloping uplands and mountain passes, to lose itself in the sea.

From the point where it receives the Mohawk, full a hundred and fifty miles above New York, the Hudson becomes navigable for vessels with keels. Higher up, it floats only the flat-boat and canoe. Ascending its banks till they turn abruptly westward, you have but twenty miles of land-travel to the head of Lake Champlain; from which a delightful trip through a hundred

miles of mountain scenery brings you fairly into Canada. Or, if you follow up the river to Glenn's falls, 'tis only a rambbler's walk to the head of Lake George, whose quiet and unburdened waters are out of the thoroughfare, but, lying parallel with Lake Champlain, return you to the direct line of travel through the ravines of its romantic outlet at Ticonderoga. Thus, from the Mohawk to the St Lawrence, through this charming section of America, you have every where a profusion of interest in the natural scenery; and whether you would see lake, mountain, river, or cataract, you may find them all to your taste, in a wilderness that retains somewhat of that fresh beauty which fancy attributes to the world before the Flood.

So long ago as the summer of 18—, I was a traveller in these regions, making my way into Canada. In those days there were no railways in America. By the steamer, *Chancellor Livingston*, I had ascended the Hudson to Albany in something less than twenty-four hours. From Albany to Lake Champlain I was one of a party chartering a post-coach, and permitted by the terms of our contract to make as easy stages as might suit our pleasure or convenience. At Whitehall we took a small sailing-craft down the lake a hundred miles and more, to Plattsburgh; and thence, resuming the land route, made our way into Canada. Compared with the more modern rate of travel, we went at a snail's pace; but with all its inconveniences, our way of making the journey had its peculiar benefits and charms. We were less superficial observers of men and things than railway passengers can possibly be. We were intelligent persons; we conversed with the men of the soil; we asked questions of plain farmers and sailors, and heard with pleasure their long stories of ancient battles in those parts, from the days of the Iroquois to the days of General Brock. We stopped by the roadside and examined places of interest, and took views of beautiful landscapes from commanding heights. And now I can say of my route into Canada what Wordsworth says of the Wye:—

"Those beauteous scenes,
Through a long absence, have not been to me
As is a landscape to a blind man's eye;
But oft in lonely rooms, and mid the din
Of towers and cities, I have owed to them,
In hours of weariness, sensations sweet,
Felt in the blood, and felt along the heart."

In many such hours I have refreshed my memory by recurring also to such books of tourists as I have at hand, but especially in the later authors of this kind I have found little satisfaction. They all seem to have hurried over their journey without stopping to take breath; and I am inclined to believe that I was lucky in beginning my travels, while as yet the spirit of the nineteenth century was only just putting on its seven-leagued boots, and still permitted the good habit of hastening slowly. Let me, then, go over my former stages, at least in fancy; and while I interweave my histories with the personal adventures of an old-fashioned traveller, let me be met also by some of the indulgence humanely accorded to narrative old age.

Our travelling party had been thrown together less by choice than accident; and for our commander-in-chief we had unfortunately selected as wild a young Irish officer as was ever turned loose from Cork to fight his fortunes in the world. Fitz-Freke, as he called himself, had no single qualification for being our "guide, philosopher, and friend," except a boasted familiarity with the way. He had travelled it very often, and indeed seemed to hang somewhat loosely to his regiment, which was stationed at Montreal. Before we had half finished our first day's drive, we had begun to wish furloughs and half-pay had never been invented; and I am sorry to add, that his affectionate recollections of his family in Cork led him quite too frequently to the bottle. Poor Freke! we profited by his good-humour, yet abused his forbearance under rebuke; and I must own in justice, that when we at last parted company, and were to see no more of him, we were all ready to protest that he was, after all, as downright a worthy as ever buttoned an Irishman's heart beneath a buff waistcoat.

Leaving Albany before the day began to be hot, we went rapidly through the green levels upon its right bank, and crossed the river at Troy. Here we were conducted to Mount Ida, and by a geographical miracle made an easy

transition to Mount Olympus, from which the view is extensive, but by no means celestial. Freke seemed to think there was some reason to suspect a hoax; but as his classical information was not of the most accurate description, I am not sure but he still labours under the impression that he has stood where the three goddesses displayed their charms to Paris; and smoked a cigar where that boisterous siege was as interminably contested, as were ever those consequent hexameters of Virgil and Homer, which he adorned with dog's-ears and thumb-prints, under the diurnal ferule of his tutor. In passing through the streets, we were gratified to observe that, in spite of Diomedes and Ulysses, Troy still retains its "Palladium of liberty, and independent free press;" and though we could discover no relics of the famous wooden-horse, I notice in the accounts of later tourists that an "iron horse" may now be found there in harness, which daily brings strangers into the heart of the city without any incendiary effect. Such is the change of manners and times since the days of the pious Æneas!

We rattled over a bridge, and had a fine view of the mouths of the Mohawk. Here are numerous islands, with steep sides and piny summits, to which the American General Schuyler retreated before Burgoyne, and prepared to sustain an investment. While arranging his defences, he was unjustly deprived of his command, at the very moment when, by the arrival of additional force, he would have been enabled to turn upon his pursuers; and thus the laurels of the subsequent victory were put into the hand of General Gates, while the worst effects of the expedition fell upon the estates of Schuyler, which were ravaged by the advancing foe. Gates appears to have been in all respects inferior to the gallant officer whom he superseded; and as he had the full advantage of Schuyler's preparatory measures, there is a deep jealousy of his fame, which must account for the fact noticed by the author of "Hochelaga," that he is by no means credited by his countrymen with the vastly important consequences of the capture of Burgoyne. "Gates has been called the hero of Saratoga,"—says an American biographer,—"but it has a sound of mockery."

The county of Saratoga through which we were now passing, if not in these parts remarkable for scenery, is nevertheless full of interesting places, as having been the field of some of the warmest contests of the American Revolution. Traditions also still linger among its inhabitants of the earlier battles with the Indians and French; and authentic anecdotes are frequently

reviving upon the road, which those who are familiar with the romances of Cooper will recognise, at once, as the ground-work of some of his fictions. So far as is possible, therefore, in America, we were now on historical ground. In the beginning of the seventeenth century, the valley of the Mohawk was filled with those fierce nations of savages called the Iroquois. The shores of the St Lawrence harboured their deadly enemies, the Adirondachs, who belonged to the powerful race of Algonquins. At the same time, the advance-guard of English adventure was pressing up through the Hudson; and from Quebec, the pioneers of New France were pushing their way towards the Mohawk. The inveterate foes of two continents thus encountered one another in the passes of Lake George and Lake Champlain; and these natural channels of reciprocal invasion became, of course, the scenes of frequent collision and deadly strife. When these preliminary feuds were ended, and the power of England reposed on both banks of the St Lawrence, the earliest and fiercest affrays of the war of Independence found here their inevitable fields. The first years of the present century were again disgraced by war between England and America, and instinctively the tide of battle returned to its old channels; and if ever—which God forefend—the mother and the daughter should fall out again, it cannot be doubted that the same passes must echo once more to the tread of martial men, and the same waters be crimsoned with the blood of brethren. They are the very breeding-places of border-feud; and Nature has furnished them with that wild luxuriance of beauty with which she loves to prepare for history, and by which she seems to challenge her to do as much again, in adorning it with romantic associations.

For several miles between the towns on the left bank of the river, we had nothing else in view more interesting than a dull canal connecting Lake Champlain with the Hudson, at Albany. But the river itself is always beautiful. Even here it is a fine wide stream, and seems to scorn the beggarly ditch that drudges like a pack-horse by its side. But at certain seasons it is too low for boating, and at all seasons is rendered unfit for navigation by numerous rocks. It was a relief to shut my ears to the perpetual humour of Freke, and watch the course of the stream through the broad meadows; sometimes refreshing us with cool sounds where it foamed over shelving shoals, and then dazzling our eyes with the reflected

sunbeam, glancing from its deep smooth breast, on which the blue heavens looked down without a cloud.

We came to Stillwater, which deserves its name, if it has any reference to the Hudson. A ridge of hills stretching inland, in this neighbourhood, is the memorable scene of the two engagements which sealed the fate of Burgoyne's expedition, and which are thought to have been the decisive blow in the revolutionary struggle of America. Here also is shown the miserable wooden shed of a house in which the gallant and accomplished General Frazer died of his wound. It stands near the river, and at the foot of a hill, on the top of which the General was buried. Though the remains have long since been disinterred, and returned to England, the spot is marked by several pines, and is constantly visited by tourists. The house is a mere tap-room, and must, at any time, have been a miserable hovel to die or live in. Yet it once was dignified as the temporary abode of high-born and elegant women. During the battles, it was the receptacle of the dying and wounded British officers, and the scene of many of those tender acts of self-denying mercy, by which woman, in the hour of suffering and extremity, becomes transfigured into a ministering angel.

Several miles above, we crossed the Fishkill, a little river by which the Lake of Saratoga discharges its waters into the Hudson; and shortly after we passed the domain of General Schuyler, and the site of his mansion, which was burned by a foraging-party during the advance of Burgoyne. Of the adventures of a single night spent at Saratoga, it is not necessary to say any thing here, as in less than twenty-four hours we were again on our immediate route. At Fort Miller the road crosses the river, and from thence we went along the eastern shore of the Hudson, eight miles, to Fort Edward. It was here that Burgoyne began to encounter those difficulties of his situation, which rapidly increased upon him, till they became insurmountable. He had forced his way from Whitehall to this place, through an obstinate fight, and over bad roads, encumbered by all the mischief that a retreating foe could leave behind them. Here, falling short of stores and ammunition, his only resource was to transport them from the head of Lake George, where one of his officers had captured a fort. This occasioned that fatal delay of more than a month, during which the American army changed commanders, was recruited with fresh troops, and returned from the Mohawk to show fight. As he was roundly censured for

his sluggishness in the British parliament, and pleaded in excuse the extraordinary face of the country, over which he was forced almost to construct a road; it is but justice to his memory to quote, on this point, the corroborative evidence of an eminent American geologist. "I was much struck," says Professor Silliman, "with the formidable difficulties which General Burgoyne had to encounter in transporting his stores, his boats, and part of his artillery over this rugged country: at that time, without doubt, vastly more impracticable than at present."

But Fort Edward is chiefly memorable for the horrible murder of Miss M'Crea, by a party of Indians, in circumstances peculiarly tragic and affecting. It was an event which not only spread horror and alarm throughout America, but was related with thrills of indignation in England, and particularly in the debates of parliament. The vehement remonstrance of Burke against Indian alliances seems to have been in a measure inspired by the sensation which it produced; and it was doubtless fuel to the fire of old Lord Chatham, when, a few months after the butchery of Fort Edward, he blazed out in that fierce philippic against Lord Suffolk, who had spoken of savages as instruments "which God and nature had put in our hands." Detestable as was a confederacy with Indians, however, and instinctively as the English conscience recoiled from the alliance, it must be remembered that in America it was at least no novelty. It is remarked by Silliman that the French, the English, and the Americans themselves had all partaken in this sin, in the various early wars of the continent.

About half a mile from Fort Edward, and hard by the road-side, still stands a venerable pine-tree, from a mound at whose roots gushes a clear crystal spring. This is pointed out as the spot where the mangled corpse of Miss M'Crea was found. The tree is scored with the scars of bullets, and marked with the lady's name, and the date 1777. To this tree her body is said to have been bound, and pierced with nearly a score of wounds, which crimsoned the spring with her blood. On the same day were massacred a young officer, and a party of soldiers under his command, whose bodies were left in the same place, covered only with some brushwood and ferns.

At Sandyhill, where we paused for an hour, we encountered traditions of Indian barbarities, in the history of the old French war of 1758, which, without any romance, were singularly revolting. Fort Anne, at the end of

our next stage, was the scene of a hot action, in the advance of Burgoyne, in which the Indians were thought to have contributed something to his success, but even this is doubtful. We had now an easy stage of ten miles to Whitehall, during which we debated with Freke on the merits of the unfortunate general, whose history we had retraced on the road.

The moon was rising over the ravine in which Whitehall appears to be built, when we reached it, and were set down at our inn. This place is the Skenesborough of Burgoyne's despatches, and must have changed its name soon after the close of the war. It so happened that we were detained at this place somewhat longer than we desired to be, and when we got under weigh down the lake, we seemed to have begun a new journey. If I may be allowed to make a similar pause in my story, I will venture, before going further, to recur to the history of Burgoyne's expedition, which, with the knowledge of places that I have endeavoured to impart, may possibly be as interesting to others, as it has proved to myself.

These places, and the incidents at which I have rapidly glanced, were, at the close of the last century, as familiarly known in England as those of the Peninsular war are at present. While the issue of the revolt was yet undecided, the eloquence of Parliament, and the conversation of fashionable circles, kept them continually before the world: and long after the termination of the contest, mutual recriminations and impassioned self-defence would not suffer their memory immediately to die. Succeeding events enabled men to forget America for a long while; and when they again recurred to her affairs, it was with no disposition to contend with the award of Providence which had made her a nation. The history of America was English history no more. Yet there is a period in her history up to which an Englishman should be familiar with it; for he who reads the speeches of Burke and Chatham, or reverts to the Johnsonian age of literature, will otherwise be often at a loss how to regard events and facts to which the men of those days always referred with the warmth of political party, but which we can now examine with candour, and judge without prejudice or passion.

No man of that day is more entitled to the candid retrospect of posterity than General Burgoyne, for no one suffered more than he from the heat of contemporaries. I have no other interest in his memory than what has been inspired by my visit to the scenes of his misfortunes, and by the observation

that he is respectfully remembered in America, while no one ever hears of him in England. I have, therefore, nothing to present in his defence, but the narrative of his expedition, as illustrating the journey I have described.

The war of the American Revolution opened with some dashing exploits in the north, among which those of Allen and his mountaineers of Vermont are memorable, as well for their eccentricity as for their consequences. Accompanied by the crack-brained adventurer Benedict Arnold, he made a descent upon Lake Champlain, took Ticonderoga by surprise, and reduced the fort at Crown Point. Elated by success, and conceiving it probable that the invasion of Canada would be attended with a rising of the French in favour of the colonies, Arnold obtained a commission from the Congress to attempt it, and actually succeeded in leading a small force to Quebec, through incredible difficulties. Emulous of Wolfe, he would stop at nothing short of scaling the heights of Abraham; and by indomitable perseverance he accomplished thus much of his enterprise, and found himself on the scene of Wolfe's death and renown, before Quebec, with less than four hundred men. But there the achievement ceases to bear any resemblance to the event of sixteen years before. Arnold was not wanting in courage, nevertheless; and after an ineffectual attempt to provoke a sortie, finding himself in a condition which would make a siege ridiculous, he was obliged to make a mortifying descent. He returned again, in the depth of winter, with a larger force, under the brave General Montgomery, and was wounded in a daring attempt to storm the city, while Montgomery himself fell in forcing a barrier at Cape Diamond. Arnold now made a desperate retreat, closely followed by Sir Guy Carleton, the governor of Canada, who had repulsed the attempt on Quebec. As soon as the spring opened, Carleton, who had been joined by Burgoyne, pursued him to Lake Champlain, and, with extraordinary energy, built and fitted a fleet to chase him up the lakes, and regain the forts which had been taken, intending afterwards to press on towards the Hudson. Arnold, with equal activity, prepared a flotilla to meet him, and seems to have commissioned himself as its admiral. It was but small, yet, such as it was, he brought it up to the neighbourhood of Cumberland Bay, where is now situated the town of Plattsburgh. The fleet of Sir Guy must have presented a beautiful appearance as it appeared around Cumberland Head, the cape which creates the bay, for it was of no less formidable a force than forty-four transports,

twenty gunboats, a radeau, two schooners, and one three-masted ship. Of these, however, only a part could be rendered of service, for the wind was in favour of Arnold, who had also taken an advantageous position with his little squadron, consisting of but one sloop, three schooners, and several gondolas or galleys. For six hours he stood fire like a salamander, and then, favoured by a dark night and a wind which sprang up from the north, he escaped with his shattered fleet, and made his way up the lake unperceived. Pursued by Carleton the next day, he maintained a running fire until his leaky and disabled vessels could do no more; on which, driving them aground, and landing his marines, he set them on fire, escaped to the shore, and so made his way through the woods to Crown Point, and thence to Ticonderoga. Carleton lost no time in reducing the former fortress; but his delay in building the squadron had made it now too late to carry out his projected advance to the Hudson, and he did no more, but returned to Canada, apparently satisfied with having destroyed all hopes of exciting a revolt among the French, or of shutting out the royal troops from the St Lawrence.

In the spring of the following year, Burgoyne, who had been to England in the mean time, superseded Carleton as governor of Canada, who, though an efficient officer and an accomplished gentleman, seems to have given some momentary dissatisfaction to the ministry. It was the ambition of the new governor to force a passage to the Hudson, and, by the aid of Sir Henry Clinton, to open a direct communication with New York, seizing the intermediate posts, and so cutting off all connexion between New England and the army in the south. This plan, had it been successful, would probably have put an end to the war; and as nothing less than so splendid a result was the object of Burgoyne's expedition, it may be imagined with what anxiety it was watched by the Congress, and prepared for by the vigilance of Washington.

In June 1777, the new governor ascended Lake Champlain. He was attended by a powerful armament, consisting, besides the regular troops, of Canadian rangers, German mercenaries, and a ferocious retinue of savages. He immediately invested the fort at Ticonderoga, by land and water, bringing his gun-boats and frigates to a point just beyond the range of the guns of the fort, and sending part of his troops to the eastern shore of the lake. Over against the fortress, a little to the south, and hardly a thousand

yards distant, rises the inaccessible sugar-loaf summit of Mount Defiance, and with great energy the British general immediately commenced the construction of a road up the rough sides of this mountain. St Clair, who was in command of the fort, and prepared to defend it vigorously, having received special instructions from Congress, and knowing himself to be watched with the deepest anxiety by the whole country, looked up one morning, and found the summit occupied by a strong battery, under command of Burgoyne himself, who had dragged his cannon up the precipitous ascent, with an activity and enterprise worthy of Wolfe. It was now planted where it could, at any moment, pour death and destruction into the fort, from which not a ball could be returned with any effect. The heights of Mount Defiance, as the name imports, had been supposed to defy escalade; and the dismay of St Clair may be imagined when he thus beheld his garrison not only exposed to the fire, but also to the jeers of the enemy, who could observe his every manœuvre, and count every man within his walls. The astounded general did all that remained for him to do. He contrived to start a flotilla up the lake, with some stores and baggage, towards Skenesborough, and, crossing to the eastern shore, commenced his retreat through Vermont, pursued by a detachment under Generals Frazer and Reidesel, who brought him to action next day at Castleton, from whence he further retreated to Fort Edward. General Phillips, on the other shore, ascended Lake George, and captured the fort at its head, forcing Schuyler to Fort Edward, where St Clair joined him, and both together continued the retreat down the Hudson. Burgoyne himself pursued the flotilla to Skenesborough, destroyed it, and followed the American troops, who had evacuated the place, retreating to the Hudson. Before he could reach Fort Edward, he was obliged to clear the roads of innumerable trees which had been felled and thrown in his way; and, besides contending with other obstacles, to fight one obstinate battle at Fort Anne. It was August before he arrived, and then came the unavoidable and fatal delay which I have noticed, in transporting supplies from Lake George.

It was while he was advancing towards Fort Edward, that the ungovernable ferocity of his Indian mercenaries became so painfully apparent, by the butchery of Miss M'Crea, and the massacre, of which the tragically dramatic particulars are these:—As he approached the Hudson, he was met by an American loyalist of the name of Jones, whose adhesion to the royal

standard he rewarded by an appointment to a command. The gentleman was betrothed to a young lady of great beauty, residing a few miles below Fort Edward; and, becoming alarmed for her safety, he begged permission to have her brought into the British camp, which was already graced by the presence of two elegant women, the Baroness Reidesel and the Lady Harriet Ackland. He contrived to send her word to repair to the house of a relative near Fort Edward, and there to await a convoy which he would send to conduct her farther. What the unhappy gentleman deemed a convoy, or what prevented his going in person for his affianced bride, does not now appear: but at the set time he despatched a party of savages on the gallant errand, promising them a barrel of rum as an incentive to their fidelity. With some misgivings, perhaps, as to the wisdom of their commission, he seems almost immediately afterwards to have sent off a second party of Indians, with promise of a like reward. The lady was at the appointed place when the first party arrived, and, with her entertainer, was not a little alarmed at their appearance. Their conduct, however, was friendly, and they delivered a letter from her lover, assuring her that she might safely confide in their respectful behaviour and diligent care. With the heroism of her sex, in circumstances so trying, she obeyed without hesitation, suffered herself to be placed upon horseback, and set off with her savage attendants. Just at this time a picket, under one Lieut. Van Vechten, had been surprised near the spring which I have described in my journey, by the second party of Indians, who massacred and scalped the officer and several of his men. The convoy approached the spring with Miss M'Crea just as the horrid tragedy had concluded, and immediately began to dispute with the other party, with furious outcries and ferocious gestures. The horrors of the unfortunate young lady, as she saw the rising passions of her conductors, must be imagined; but she could not have understood the nature of their quarrel, which was as to which party should have the custody of her person, and so secure the promised reward. The defenceless creature remained a passive spectator of the combatants, who began to belabour each other with their muskets. The alarm which had been given by the picket, had caused the officer in command of Fort Edward to send a company of soldiers to the aid of Van Vechten, and as these were now seen approaching, one of the chiefs, to terminate the strife, discharged his musket at Miss M'Crea, who instantly fell. Then, seizing her by her hair, which was long and flowing, he cut the scalp, and dashed it into the face of his antagonist with a fiendish yell. After

inflicting several additional wounds, both parties retreated towards Fort Anne, and tradition reports that on their way they so far compromised their quarrel as to divide their trophy; so that, on arriving at the fort, and meeting their impatient employer, each of the chiefs exhibited half of the scalp, and claimed a proportionate payment. That Jones's own scalp was so far affected as to turn white in a single night we may readily believe, and that he soon died of a broken heart is a still more credible part of the story. Who can wonder that such an event rendered the name of Burgoyne a bugbear to scare babies in all the neighbouring country; or that the massacre of Fort Edward, after inspiring the indignation of Burke, and rekindling the expiring ardour of Chatham, was cast into the teeth of Burgoyne himself, when he took his seat as a senator in the British parliament! That such an attack was unjust and unmerciful, the facts of the case, which were long misrepresented, sufficiently prove; yet, as Cardinal de Retz said of the Parisians, that he who convoked them made an *emeute*,—so it is true historically that whoever armed the American Indians made them "hell-hounds of war."

It was at Fort Edward that the disasters of the expedition began to present themselves to the British general as formidable. A detachment of Germans who had made a circuit into Vermont, after the reduction of Ticonderoga, had been defeated in a battle at Bennington, and now with great difficulty rejoined the army, diminished in numbers, deprived of their commander, who had been killed, and stripped of their baggage and artillery. Another excursion under St Leger had been but partially successful; and as the result of both these unfortunate episodes, Burgoyne found himself shorn of one-sixth part of his troops. While he was sending his baggage-waggon to Lake George, moreover, the American army, now recruited to a force of ten thousand men, began to come back from the Mohawk, desirous of bringing him to an engagement. It would have been prudent, perhaps, had he fallen back upon Skenesborough, and awaited further supplies from Canada; but *vestigia nulla retrorsum* is a pardonable motto for the pride of an English general. As soon as he was able, therefore, he set forward; crossed the Hudson on a bridge of boats; foraged on the estates of General Schuyler, and burned his seat at Schuylerville, and so advanced to Stillwater, where he drew up his line before the American intrenchments on the 18th of September. The next day a manœuvre of some of the troops seeking a better

position, was mistaken by General Gates for an intended assault. A counter movement was made by the Americans, which produced a collision, and the engagement soon became general. It was desperately maintained, and continued through the day, the battle ending where it had begun, when it was too dark to see. Burgoyne claimed a victory, and the American general, Wilkinson, confesses a drawn game: but it was such a victory as rendered another battle almost sure defeat. "It was one of the largest, warmest, and most obstinate battles," says Wilkinson, "ever fought in America."

Burgoyne found himself weakened by this conflict, but Gates was daily receiving new accessions to his strength. The decisive action was postponed, on both accounts no doubt, till the 7th of October. In the afternoon of that day a strong detachment of the British troops, advancing towards the American left wing with ten pieces of artillery, for the purpose of protecting a forage party, was furiously attacked, and the action almost immediately involved the whole force of both armies. The right wing of the English was commanded by General Frazer, the idol of the army, and admired by none more heartily than by his foes. The first shock of the battle was sustained by him, and by the grenadiers under Colonel Ackland, who were terribly slaughtered, while the Colonel fell dangerously wounded. Frazer, exposing himself in the hottest of the fight, and conspicuously mounted on an iron-gray, seemed the very soul of the battle, and showed himself every where, bringing his men into the action. His extraordinary efficiency, and the enthusiasm with which he inspired the ranks, was noticed by the Americans; and Colonel Morgan, of the Virginia riflemen, to whom he was immediately opposed, smitten with the incomparable generalship of his antagonist, is said to have resolved upon his fall. Drawing two of his best marksmen aside, he pointed to his adversary and said, "Do you see yonder gallant officer? It is General Frazer. I admire and esteem him, *but it is necessary that he should die*: take your places, and do your duty." In a few minutes he fell from his horse mortally wounded.

Burgoyne commanded the whole line in person, directing every movement, and did all that valour and heroism could do to supply the places of the brave officers whose destruction he observed with anguish. Twice he received a bullet, either of which might have been fatal—one passing through his beaver, and the other grazing his breast. The Earl of Balcarres distinguished himself in rallying the disheartened infantry; and Breyman,

commanding the German flank, fell dead on the field. The Brunswickers scattered like sheep, before a man of them had been killed or wounded, and some German grenadiers, who served with more spirit behind a breast-work, were driven from their stockade at the point of the bayonet. The American general remained in camp, overlooking the field; but his officers fought bravely, and none more so than Benedict Arnold, who hated him, and was smarting under disgrace. This hot-brained fellow, however, had no business to be there. He was not only disobeying orders, but actually at this time had no command in the army; and yet, being in rank the first officer on the field, he flew about issuing orders, which were generally obeyed. Gates, indignant at his presumption, despatched a messenger after him; but Arnold, understanding the design, evaded the message by dashing into a part of the fight where no one would follow him. He seemed to court death, acting more like a madman than a soldier, and driving up to the very muzzles of the artillery. It is singular that to this execrable traitor, as he afterwards showed himself, was owing the whole merit of the manœuvre which closed the day, and decided in favour of America a battle upon which her destinies hung suspended. Flourishing his sword, and animating the troops by his voice and reckless contempt of danger, he brought them up to the Hessian intrenchment, carried it by assault, and, while spurring into the sally-port, received a shot in his leg, which killed his horse upon the spot. It was this crowning exploit that forced Burgoyne back to his camp, from which, during the night, he made a creditable movement of his troops to higher grounds without further loss. In the morning, the abandoned camp was occupied by the Americans, who played upon his new position with an incessant cannonade.

The anecdotes of this battle are full of interest, and some of them worthy of perpetual remembrance. Soon after the decisive turn of the action, Wilkinson, the American officer whom I have already quoted, was galloping over the field to execute some order, when he heard a wounded person cry out—*Protect me, sir, against that boy*. He turned and saw a British officer wounded in both legs, who had been carried to a remote part of the field, and left in the angle of a fence, and at whom a lad of about fourteen was coolly aiming a musket. Wilkinson was so fortunate as to arrest the atrocious purpose of the youngster, and inquiring the officer's rank, was answered—"I had the honour to command the grenadiers." He of

course knew it to be Colonel Ackland, and humanely dismounted, helped him to a horse, and, with a servant to take care of him, sent him to the American camp.

In his own narrative, Burgoyne did ample justice to the rest of this story; but it will bear to be told again to another generation. The Lady Harriet Ackland, as I have already said, was in the British camp. She had accompanied her husband to Quebec, and in the campaign of 1776 had followed him to a poor hut at Chambly, where he had fallen sick, and there, exposing herself to every fatigue and danger, had assiduously ministered to his comfort. She was left at Ticonderoga, under positive injunctions to remain there; but her husband receiving a wound in the affair at Castleton, while pursuing St Clair, she again followed him, and became his nurse. After this, refusing to return, she was transported in such a cart as could be constructed in the camp, to the different halting-places of the army, always accompanying her husband with the grenadiers, and sharing the peculiar exposures of the vanguard. At Stillwater she occupied a tent, adjoining the house in which Frazer expired, and which was the lodge of the Baroness Reidesel, who with a similar fidelity had followed the fortunes of her husband, accompanied by her three little children. Lady Ackland is described by Burgoyne as one of the most delicate, as well as the most lovely of her sex. She was bred to all the luxuries and refinements incident to birth and fortune, and while thus enduring the fatigues of military life, was far advanced in the state in which the hardest matron requires the tenderest and most particular defence.

If, notwithstanding the inconveniences of such a presence, the residence of these ladies in the British camp had thrown additional radiance on the sunniest days of hope and success, it may well be imagined that they seemed as angels in the eyes of wounded and dying men, to whom they ministered like sisters or mothers. The Baroness herself has left a touching account of the scenes through which she passed, in that rude shed on the Hudson. "On the 7th of October," she says, "our misfortunes began." She had invited Burgoyne, with Generals Phillips and Frazer, to dine with her husband; but, as the hour arrived, she observed a movement among the troops, and some Indians, in their war finery, passing the house, gave her notice of the approaching battle by their yells of exultation. Immediately after, she heard the report of artillery, which grew louder and louder, till the

skies seemed coming down. At four o'clock, her little table standing ready, instead of the cheerful guests for whom she had prepared, General Frazer was brought in helpless and faint with his wound. Away went the untasted banquet, and a bed was set in its place, on which the pale sufferer was laid. A surgeon examined the wound, and pronounced it mortal. The ball had passed through the stomach, which was unfortunately distended by a bountiful breakfast. The general desired to know the worst, and, on learning his extremity, simply requested that he might be buried on the hill, beside the house, where a redoubt had been erected, at the hour of six in the evening; but the Baroness afterward heard him sigh frequently,—“Oh, fatal ambition—poor General Burgoyne,—oh, my poor wife!” The wounded officers were continually brought in, till the little hut became an hospital. General Reidesel came to the house for a moment, towards nightfall, but it was only to whisper to his wife to pack up her movables, and be ready at any moment to retreat. His dejected countenance told the rest. Soon after, Lady Ackland was informed of her husband's misfortune, and that he was a prisoner in the American camp.

Consoling her distressed companion, and ministering to the wounded gentlemen—hushing her little ones lest they should disturb General Frazer, and collecting her camp-furniture for the anticipated remove—thus did the fair Reidesel spend the long dark night that followed. Towards three in the morning, they told her that the General showed signs of speedy dissolution; and, lest they should interfere with the composure of the dying man, she wrapped up the little ones and carried them into the cellar. He lingered till eight o'clock, frequently apologising to the lady for the trouble he caused her. All day long, the body in its winding-sheet lay in the little room among the sufferers, the ladies moving about in their charitable ministries, with these lamentable sights before them, and the dreadful cannonade incessantly in their ears. General Gates, now in possession of the British trenches, was assailing the new position of the troops, which, with the house occupied by the Baroness, was becoming every hour more untenable. Burgoyne had decided upon a further retreat; but, magnanimously resolved to fulfil General Frazer's request to the letter, would not stir till six o'clock. This was the more noble, as the enemy was now advancing, and had set fire to a house not far off, which was building for the better accommodation of the Reidesel. At the hour, the corpse was brought out, amid these

impressive scenes of fire and slaughter, and under the constant roar of artillery. It was attended by all the generals to the redoubt. The procession not being understood, and attracting the notice of the American general, was made the mark of the cannon, and the balls began to fall thick and heavy around the grave. Several passed near the Baroness, as she stood trembling for her husband at the door of the lodge. Burgoyne himself has described this remarkable funeral, to which, owing to the intrepidity of the priest, the rites of the Church were not wanting. The balls bounded upon the redoubt, and scattered the earth alike upon the corpse and the train of mourners; but, "with steady attitude, and unaltered voice," says Burgoyne, the clergyman, Mr Brudenel, read the burial service, rendered doubly solemn by the danger, the booming of the artillery, and the constant fall of shot. The shades of a clouded evening were closing upon that group of heroes, and they seemed to be standing together in the shadow of death; but some good angel waved his wing around the holy rite, and not one of them was harmed.

That night the army commenced its retreat, leaving the hospital with three hundred sick and wounded to the mercy of General Gates, who took charge of them with the greatest humanity. Lady Ackland demanded to be sent to her husband; but Burgoyne could only offer her an open boat in which to descend the Hudson, and the night was rainy. Nothing daunted, she accepted the offer, to the astonishment of Burgoyne, who on a piece of dirty wet paper scrawled a few words, commending her to General Gates, and suffered her to embark. What a voyage, in the storm and darkness, on those lone waters of the Hudson! The American sentinel heard the approach of oars, and hailed the advancing stranger. Her only watchword was—a woman! The sentinel may be forgiven for scarce trusting his senses, and refusing to let such an apparition go on shore, till a superior officer could be heard from; but it was a cheerless delay for the faithful wife. As soon, however, as it was known that Lady Ackland was the stranger, she was welcomed to the American camp, where, "it is due to justice," says Burgoyne, "to say that she was received with all the humanity and respect that her rank, her merits, and her fortunes deserved."

The Hudson girdled the forlorn intrenchments to which the British general now retired, and its fords were all in possession of the American forces. By means of these fords they had regained the forts on Lake George, and the

road to Skenesborough, and all retreat was cut off—even the desperate retreat which Burgoyne had proposed, of abandoning artillery and baggage and carrying nothing away but bodies and souls. Yet for six days his proud soul stood firm, unable to endure or even face the thought of surrender. The American batteries were constantly at play upon his camp. Blood was the price of the water which they were forced to bring from the river. The house which contained the Baroness and her children, hiding in the cellar, was riddled with shot. A soldier, whose leg was under the knife of the surgeon, had the other carried off by a ball as he lay upon the table. After six such days, even Burgoyne saw that there was no hope. He signed "the articles of Convention," and the next day surrendered in the field of Saratoga. "From that day," says a British writer, "America was a nation."

After the surrender, the Baroness Reidesel went to join her husband in the American camp. Seated in a calash with her children, she drove through the American lines, presenting such a touching picture of female virtue, as awed even the common soldiers, and moved them to tears as she passed along. She was met by a gentleman who had once enjoyed the command of the army in which she thus became a guest; one whose patriotism no injury from his country could disaffect, and whose gallantry and politeness no severity from his foes could disarm. Taking the children from the calash, he affectionately kissed them, and presenting his hand to their mother, said pleasantly,—*"You tremble, madam! I beg you not to be afraid."* She replied, —*"Sir, your manner emboldens me; I am sure you must be a husband and a father!"* She soon found that it was General Schuyler: and he afterwards had the happiness of entertaining both her and General Reidesel, with Lady Ackland, her husband, and Burgoyne himself, at his hospitable mansion in Albany, "not as enemies," says the Baroness, "but as friends." While thus entertained, Burgoyne said one day to his host,—*"You show me much kindness, though I have done you much harm."* "It was the fortune of war," answered Schuyler; "let us say no more on the subject." The author of "Hochelaga" adds the following painful story, with reference to Colonel Ackland. On a public occasion in England, he heard a person speaking of the Americans as cowards. "He indignantly rebuked the libeller of his gallant captors; a duel ensued the next morning, and the noble and grateful soldier was carried home a corpse."

Of poor General Burgoyne, we have partially anticipated the subsequent history. His military career closed with this defeat; and though, on his return to England, he took a seat in parliament, his chief business, as a senator, appears to have been his own defence against repeated assaults from his enemies. Though he is said to have carried to his grave the appearance of a discouraged and broken man, he amused himself with literary pursuits, and in 1786 was the popular author of a successful play, entitled "The Heiress." About six years later, he was privately committed to his grave, in Westminster Abbey.

At this distance of time, I see no reason why the field of Saratoga may not be regarded by Englishmen, as well as by Americans, with emotions as near akin to pleasure as the horrors of carnage will allow. It is a field from which something of honour flows to all parties concerned, and in the singular history of which even our holy religion, and the virtues of domestic life, were nobly illustrated. On the one side was patriotism, on the other loyalty; on both sides courtesy. If the figures of the picture are at first fierce and repulsive—the figures of brethren armed against brethren, of mercenary Germans and frantic savages, Canadian rangers and American ploughmen, all bristling together with the horrid front of war—what a charm of contrast is presented, when among these stern and forbidding groups is beheld the form of a Christian woman, moving to and fro, disarming every heart of every emotion but reverence, softening the misfortunes of defeat, and checking the elation of victory! The American may justly tread that battleground with veneration for the achievement which secured to his country a place among the nations of the world, but not without a holy regard for the disasters, which were as the travail-throes of England, in giving her daughter birth. And the Briton, acknowledging the necessity of the separation, as arising from the nature of things, may always feel that it was happily effected at Saratoga, where, if British fortune met with a momentary reverse, British valour was untarnished; and where History, if she declines to add the name of a new field to the ancient catalogue of England's victories, turns to a fairer page, and gives a richer glory than that of conquest to her old renown, as she records the simple story of female virtue, heroism, fidelity, and piety, and inscribes the name of Lady HARRIET ACKLAND.

THE INTERCEPTED LETTERS.

A TALE OF THE BIVOUAC.

The green slope of a hill, at the base of a southern spur of the Pyrenees, presented, upon a spring night of the year 1837, a scene of unusual life. The long grass, rarely pressed save by some errant mountain-goat, or truant donkey from the plain, was now laid and trodden beneath the feet and hoofs of a host of men and horses; the young trees, neglected by the woodcutter in favour of maturer timber, resounded beneath the blows of the foraging-hatchet. Up the centre of the hill, an avenue, bare of wood, but not less grass-grown than the other portions of the slope, communicated with the steep and rocky path that zigzagged up the face of the superior mountain. On either side of this road—if such the track might be called, that was only marked by absence of trees—several squadrons of cavalry, hussars, lancers, and light dragoons, had established their bivouac. There had been hard fighting over that ground for the greater part of the afternoon; but with this the horsemen had little to do. On the other hand, the fragments of smoked paper strewing the grass showed that musketeers had been busy, and many cartridges expended, amongst those very trees, where the enemy had made a vigorous stand before he was driven up and finally over the mountain by the Queen's troops. A little higher, where less cover was to be had, dead bodies lay thick; and there had been a very fair sprinkling of the same, in great part despoiled of clothes by the retiring Carlists, upon the luxuriant pasture the Christino cavalry now occupied. From the immediate vicinity of the bivouac, however, these offensive objects had, for the most part, been dragged away. The infantry were further in advance up the mountain, and on the right and left. The enemy having vacated the plain on the approach of a superior force, the cavalry had scarcely got a charge, but had had, upon the other hand, a large amount of trotting to and fro, of scrambling through rugged lanes, and toiling over heavy fields. They had also had a pretty view of the fighting, in which they were prevented taking a share, but which their brass bands frequently encouraged by martial and patriotic melodies; and they had received more than one thorough drenching from the heavy

showers that poured down at brief intervals from sunrise till evening. The sun had set, however, in a clear blue sky; the stars shone brightly out; the air was fresh rather than cold; and, but for the extreme wetness of the grass, the night was by no means unfavourable for a bivouac. This inconvenience the men obviated, in some measure, by cutting away the long rank herbage with their sabres, in circles round the fires, made with some difficulty out of the green moist branches of oak and apple-trees; and which, for a while, gave out more smoke than flame, more stench than warmth.

It chanced to be my turn for duty that night; and this prevented my following the example of most of my brother-officers, who, after eating their share of some Carlist sheep, (the lazy commissariat mules were far behind,) wrapped themselves in their cloaks, with logs or valises under their heads, and with the excellent resolution of making but one nap of it from that moment till the reveillée sounded. I was not prevented sleeping, certainly; but now and then I had to rouse myself and go the round of the portion of the encampment occupied by my regiment, to see that the horses were properly picketed, the sentries at their posts, and that all was right and conformable to regulation. Then I would lie down again and take a nap, sometimes at one fire, sometimes at another. At last, a couple of hours before daybreak, I was puzzled to find one to lie down at; for the bivouac was buried in sleep, and the neglected fires had been allowed to die out, or to become mere heaps of smouldering ashes. I betook myself to the one that gave the greatest symptoms of warmth, and on which, just as I reached it, a soldier threw an armful of small branches. Then, falling on his knees and hands, and lowering his head till his chin nearly touched the ground, he blew lustily upon the embers, which glowed and sparkled, and finally blazed up, casting a red light upon his brown and mustached countenance. I recognised a German belonging to my troop. We had several Germans and Poles, and one or two Italians and Frenchmen, in the regiment; some of them political refugees, driven by want to a station below their breeding; others, scamps and deserters from different services, but nearly all smart and daring soldiers. This man, Heinzl by name, was rather one of the scampish sort; not that he had ever suffered punishment beyond extra guards or a night in the black hole, but he was reckless and unsteady, which prevented his being made a sergeant, as he otherwise assuredly would have been; for, in spite of a very ugly physiognomy of the true Tartar type, he

was a smart-looking soldier, a devil to fight, and a good writer and accountant. He had been a corporal once, but had been reduced for thrashing two Spanish peasants, whilst under the influence of *aguardiente*. He said they had tried to make him desert; which was likely enough, for they had certainly furnished him with the liquor gratis,—an improbable act of generosity without an object. But he could not prove the alleged inveiglement; the civil authorities, to whom the boors had complained, pressed for satisfaction; and it was necessary to punish even an appearance of excess on the part of mercenary troops, often too much disposed to ill-treat the inoffensive peasantry. I had a liking for Heinzl, whom I fancied above his station. He spoke tolerable French; had rapidly picked up English in our regiment; and expressed himself, in his own language, in terms showing him to spring from a better class than that whence private soldiers generally proceed. Moreover, he had a mellow voice, knew a host of German songs, and although not a tithe of the squadron understood the words, all listened with pleased attention when he sang upon the march Arndt's dashing ditty in honour of Prince Blucher,—every note of which has a sound of clashing steel and clanging trumpet, Hauff's milder and more sentimental

"Steh' ich in finstrer Mitternacht,"

and other popular *Soldaten-lieder*. Not very frequently, however, could he be prevailed upon to sing; for he was of humour taciturn, not to say sullen. He would drink to excess when the chance was afforded him; and although he could bear an immense deal either of wine or brandy without its affecting his head, he was oftener the worse for liquor than any other foreigner in the squadron, with the exception of one infernal Pole, who seemed to enjoy the special protection of Bacchus, and would find means to get drunk as the sow of Davy when the rest of the regiment were reduced to the limpid element.

Having got up a respectable blaze, Heinzl produced from his schapska a small wooden pipe and a bag of tobacco; filled the former, lit it at the fire, and with an "*Erlauben Sie, Herr Lieutenant*," (he usually spoke German to me,) seated himself at a respectful distance upon a fallen tree-trunk, on one end of which I had taken my station.

"A cold morning, Heinzl," said I.

"Very cold, *Herr Lieutenant*; will you take a *schnapps*, sir?"

And from the breast of his jacket he pulled out a leather-covered flask, more than half full, from which I willingly imbibed a dram of very respectable Spanish brandy. Considering the absence of rations, and our consequent reduction, since the preceding morning, from beef, bread, and wine, to quivering mutton and spring water, I at first gave Heinzl infinite credit for having husbanded this drop of comfort. But I presently discovered that I was indebted for my morning glass to no excess of sobriety on his part, but to his having fallen in with a Spanish canteen-woman, whom he had beguiled of a flaskful in exchange for two lawful reals of the realm.

The cordial had invigorated and refreshed me, and I no longer felt inclined to sleep. Neither to all appearance did Heinzl, who sat in an easy soldierly attitude upon his end of the log, gazing at the fire and smoking in silence. It occurred to me as a good opportunity to learn if my suspicions were well-founded, and if he had not once been something better than a private dragoon in the service of her Catholic majesty. We were alone, with the exception of one soldier, who lay at length, and apparently asleep, upon the other side of the fire, closely wrapped in his red cloak, whose collar partially concealed his face.

"Who is that?" said I to Heinzl.

The German rose from his seat, walked round the fire, and drew the cloak collar a little aside, disclosing a set of features of mild and agreeable expression. The man was not asleep, or else the touching of his cloak awakened him, for I saw the firelight glance upon his eyes; but he said nothing, and Heinzl returned to his place.

"It is Franz Schmidt."

I knew this young man well, although he belonged to a different squadron, as an exceedingly clean well-behaved soldier, and one of the most daring fellows that ever threw leg over saddle. In fact, from the colonel downwards, no man was better known than Schmidt. He was a splendid horseman, and had attracted notice upon almost the first day he joined, by a feat of equitation. There was a horse which had nearly broken the heart of

the riding-master, and the bones of every man who had mounted him. The brute would go pretty quietly in the riding-school, but as soon as he got into the ranks, he took offence at something or other—whether the numerous society, the waving of pennons, or the sounds of the trumpet, it was impossible to decide—and started off at the top of his speed, kicking and capering, and playing every imaginable prank. The rough-riders had all tried him, but could make nothing of him. Still, as he was a showy young horse, the colonel was loath to have him cast; when one day, as we went out to drill, and Beelzebub, as the men had baptised the refractory beast, had just given one of the best horsemen in the regiment a severe fall, Schmidt volunteered to mount him. His offer was accepted. He was in the saddle in a second; but before his right foot was in the stirrup, or his lance in the bucket, the demon was off with him, over a stiff wall and a broad ditch, and across a dangerous country, at a slapping pace. Schmidt rode beautifully. Nothing could stir him from his saddle; he endured the buck-leaps and other wilful eccentricities of his headstrong steed with perfect indifference, and amused himself, as he flew over the country, by going through the lance-exercise, in the most perfect manner I ever beheld. At last he got the horse in hand, and circled him in a large heavy field, till the sweat ran off his hide in streams; then he trotted quietly back to the column. From that hour he rode the beast, which became one of the best and most docile chargers in the corps. Beelzebub had found his master, and knew it.

The attention Schmidt drew upon himself by this incident, was sustained by subsequent peculiarities in his conduct. The captain of his troop wished to have him made a corporal; but he refused the grade, although he might be well assured it would lead to higher ones. He preferred serving as a private soldier, and did his duty admirably, but was more popular with his officers than with his comrades, on account of his reserved manner, and of the little disposition he showed to share the sports or revels of the latter. Before the enemy he was fearless almost to a fault, exposing his life for the mere pleasure, as it seemed, of doing so, whenever the opportunity offered. He did not cotton much, as the phrase goes, with any one, but in his more sociable moments, and when their squadrons happened to be together, he was more frequently seen with Heinzl than with any body else. In manner he was very mild and quiet, exceedingly silent, and would sometimes pass whole days without opening his lips, save to answer to his name at roll-call.

To return, however, to Master Heinzl. I was resolved to learn something of his history, and, by way of drawing him out, began to speak to him of his native country, generally the best topic to open a German's heart, and make him communicative. Heinzl gave into the snare, and gradually I brought him to talk of himself. I asked him if he had been a soldier in his own country—thinking it possible he might be a deserter, from some German service; but his reply was contradictory of this notion.

"All my service has been in Spain, sir," he said; "and it is not two years since I first put on a soldier's coat, although in one sense, I may say, I was born in the army. For I first saw light on the disastrous day of Wagram, and my father, an Austrian grenadier, was killed at the bridge of Znaym. My mother, a sutler, was wounded in the breast by a spent ball whilst supporting his head, and trying to recall the life that had fled for ever; and although she thought little of the hurt at the time, it occasioned her death a few months afterwards."

"A melancholy start in the world," I remarked. "The regiment should have adopted and made a soldier of the child born within sound of cannon, and deprived of both father and mother by the chances of war."

"Better for me if the regiment had, I dare say," replied Heinzl; "but somebody else adopted me, and by the time I was old enough to do something for myself, fighting was no longer in fashion. I might think myself lucky that I was not left to die by the road-side, for in those days soldiers' orphans were too plenty for one in a hundred to find a foster-father."

"And who acted as yours?"

"An elderly gentleman of Wurzburg, at whose door my mother, overcome by fatigue and sickness, one evening fell down. Incapacitated by ill-health from pursuing her former laborious and adventurous occupation, she had wandered that far on her way to Nassau, her native country. She never got there, but died at Wurzburg, and was buried at the charges of the excellent Ulrich Esch, who further smoothed her dying pillow by the promise that I should be cared for, and brought up as his child. Herr Esch had been a shopkeeper in Cologne, but having early amassed, by dint of industry and frugality, the moderate competency he coveted, he had retired from

business, and settled down in a snug country-house in the suburbs of Wurzburg, where he fell in love and got married. Since then several years had elapsed, and the union, in other respects happy, had proved childless. It was a great vexation to the worthy man and to his meek sweet-tempered spouse, when they were finally compelled to admit the small probability of their ever being blessed with a family. Herr Esch tried to draw consolation from his pipe, his wife from her pet dogs and birds; but these were poor substitutes for the cheering presence of children, and more than once the pair had consulted together on the propriety of adopting a child. They still demurred, however, when my mother's arrival and subsequent death put an end to their indecision. The kind-hearted people received her into their house, and bestowed every care upon her, and, when she departed, they took me before the justice of peace, and formally adopted me as their child. For some months my situation was most enviable. True, that old Hannchen, the sour housekeeper, looked upon me with small favour, and was occasionally heard to mutter, when my presence gave her additional trouble, something about beggar's brats and foundlings. True also that Fido, the small white lapdog, viewed me with manifest jealousy, and that Mops, the big poodle, made felonious attempts to bite, which finally occasioned his banishment from the premises. I was too young to be sensible to these small outbreaks of envy, and my infancy glided happily away; when suddenly there was great jubilee in the house, and, after eight years of childless wedlock, Madame Esch presented her husband with a son. This event made a vast difference in my position and prospects, although I still had no reason to complain of my lot. My worthy foster-parents did their duty by me, and did not forget, in their gush of joy at the birth of a child to their old age, the claims of the orphan they had gathered up at their door. In due time I was sent to school, where, being extremely idle, I remained unusually late before I was held to have amassed a sufficient amount of learning to qualify me for a seat on a high stool in a Wurzburg counting-house. I was a desperately lazy dog, and a bit of a scapegrace, with a turn for making bad verses, and ridiculous ideas on the subject of liberty, both individual and national. My foster-father's intention was to establish me, after a certain period of probation, in a shop or small business of my own; but the accounts he got of me from my employers were so unsatisfactory, and one or two mad pranks I played caused so much scandal in the town, that he deferred the execution of his plan, and thinking that absence from home,

and a strict taskmaster, might be beneficial, he started me off to Frankfort-on-the-Maine, where a clerk's place was ready for me in the office of the long-established and highly respectable firm of Schraube & Co."

Here Heinzl broke off the narrative strain into which he had insensibly fallen, and apologised for intruding upon me so commonplace a tale. But he had got into the vein, I saw, and was willing enough to go on; and, on my part, I was curious to hear his story out, although I had already assigned to it, in my mind, the not unnatural termination of flight from a severe employer, renunciation by the adoptive father, and consequent destitution and compulsory enlistment. I begged him to continue, and he did not need much pressing.

"Frankfort is a famous place for Jews," continued Heinzl, "and Jews are notoriously sharp men of business; but the entire synagogue might have been searched in vain for a more thorough Hebrew in character and practice than that very Christian merchant, Herr Johann Schraube. He was one of those persons who seem sent into the world for the express purpose of making themselves as disagreeable as possible. A little, bandy-legged, ill-made man, with small ferret's eyes, and a countenance expressive of unbounded obstinacy and self-conceit; he had a pleasant way of repeating his own words when he ought to have listened to the answer, was never known to smile except when he had made somebody miserable, or to grant a favour till he had surlily refused it at least half-a-dozen times. His way of speaking was like the snap of a dog. Every body about him hated and feared him; his wife and children, his servants, his clerks, and even his partner, a tall strapping fellow who could have crushed him with his foot like a weasel, but who, nevertheless, literally trembled in presence of the concentrated bile of his amiable associate. I anticipated a pleasant time of it under the rule of such a domestic tyrant, especially as it had been arranged that I was to live in the house. Accordingly, a bed-chamber was allotted to me. I took my meals, with some others of the clerks, at the lower end of the family dinner-table, and passed ten hours a-day in writing letters and making out accounts. My scanty moments of relaxation I was fain to pass either out of doors or reading in the counting-house; for although nominally treated as one of the family, I could see that my presence in the common sitting-room, was any thing but welcome to Schraube and his circle. Altogether I led a dog's life, and I make no doubt I should have deserted my

blotting book and fled back to Wurzburg, had I not found one consolation amongst all these disagreeables. Herr Schraube had a daughter of the name of Jacqueline—a beautiful girl, with golden curls and laughing eyes, gay and lively, but coquettish and somewhat satirical. With this young lady I fell in love, and spoiled innumerable quires of post paper in scribbling bad poetry in praise of her charms. But it was long before I dared to offer her my rhymes; and, in the meantime, she had no suspicion of my flame. How could she possibly suspect that her father's new clerk, of whose existence she was scarcely conscious, save from seeing him twice or thrice a-day at the furthest extremity of the dining-table, would dare to lift his eyes to her with thoughts of love. She had no lack of more eligible adorers; and, although she encouraged none of them, there was one shambling lout of a fellow, with round shoulders and a sodden countenance, whom her father particularly favoured, because he was exceedingly rich, and whose addresses he insisted on her admitting. Like every body else, she stood in much awe of old Schraube; but her repugnance to this suitor gave her courage to resist his will, and, for some time, the matter remained in a sort of undecided state; stupid Gottlieb coming continually to the house, encouraged and made much of by the father, but snubbed and turned into ridicule by the vivacious and petulant daughter, both of whom, probably, trusted that time would change each other's determination.

"Such was the state of things when, one evening as I sat in the counting-house hard at work at an invoice, a servant came in and said that Miss Jacqueline wished to speak to me. A summons to appear at the Pope's footstool would not have surprised me more than this message from a young lad who had long occupied my thoughts, but had never seemed in the least to heed me. Since I had been in the house, we had not exchanged words half-a-dozen times, and what could be the reason of this sudden notice? Without waiting to reflect, however, I hurried to her presence. She was seated at her piano, with a quantity of music scattered about; and her first words dissipated the romantic dreams I had begun to indulge on my way from the counting-house to the drawing-room. She had heard I was clever with my pen, and she had a piece of music to copy. Would I oblige her by doing it? Although I had never attempted such a thing, I unhesitatingly accepted the task, overjoyed at what I flattered myself might lead to intimacy. I sat up all that night, labouring at the song, and after

spoiling two or three copies, succeeded in producing one to my satisfaction. Jacqueline was delighted with it,—thanked me repeatedly,—spoke so kindly, and smiled so sweetly that my head was almost turned, and I ventured to kiss her hand. She seemed rather surprised and amused than angry, but took no particular notice, and dismissed me with another piece of music to copy. This was done with equal despatch and correctness, and procured me another interview with Jacqueline, and a third similar task. Thenceforward the supply of work was pretty regular, and took up all my leisure time, and often a good part of my nights. But in such service I was far from grudging toil, or lamenting loss of sleep. Nearly every day I found means of seeing Jacqueline, either to return music, to ask a question about an illegible bar, or on some similar pretext. She was too much accustomed to admiration not at once to detect my sentiments. Apparently they gave her no offence; at any rate she showed no marks of displeasure when, after a short time, I ventured to substitute, for the words of a song I copied, some couplets of my own which, although doubtless more fervent in style than meritorious as poetry, could not leave her in doubt of my feelings towards her. I even thought, upon our next meeting at the dinner-table, after she had received this effusion, that her cheek was tinged with a blush when I caught her bright blue eye. With such encouragement I continued to poetise at a furious rate, sometimes substituting my verses for those of songs, at others writing them out upon delicate pink paper, with a border of lyres and myrtles, and conveying them to her in the folds of the music. She never spoke to me of them, but neither did she return them; and I was satisfied with this passive acceptance of my homage. Thus we went on for some time, I sighing and she smiling; until at last I could no longer restrain my feelings, but fell at her feet and confessed my love. A trifling but significant circumstance impelled me to this decisive step. Going into the sitting-room one afternoon, I beheld her standing at the window, engaged in the childish occupation of breathing on the glass and scribbling with her finger upon the clouded surface. So absorbed was she in this pastime that I approached her closely before she seemed aware of my presence, and was able to read over her shoulder what she wrote upon the pane. To my inexpressible delight, I distinguished the initials of my name. Just then she turned her head, gave a faint coquettish scream, and hurriedly smeared the characters with her hand. My heart beat quick with joyful surprise; I was too agitated to speak, but, laying down the music I carried, I hurried to my apartment to meditate in

solitude on what had passed. I beheld my dearest dreams approaching realisation. I could no longer doubt that Jacqueline loved me; and although I was but her father's clerk, and he was reputed very wealthy, yet she was one of many children—my kind foster parent had promised to establish me in business—and, that done, there would be no very great impropriety in my offering myself as Herr Schraube's son-in-law. Upon the strength of these reflections, the next time I found myself alone with Jacqueline, I made my declaration. Thrice bitter was the disenchantment of that moment. Her first words swept away my visions of happiness as summarily as her fingers had effaced the letters upon the tarnished glass. But the glass remained uninjured, whilst my heart was bruised and almost broken by the shock it now sustained. My avowal of love was received with affected surprise, and with cold and cutting scorn. In an instant the castle of cards, which for weeks and months I had built and decorated with flowers of love and fancy, fell with a crash, and left no trace of its existence save the desolation its ruin caused. I had been the victim of an arrant coquette, whose coquetry, however, I now believe, sprang rather from utter want of thought than innate badness of heart. Her arch looks, her friendly words, her wreathed smiles, the very initials on the window, were so many limed twigs, set for a silly bird. Jacqueline had all the while been acting. But what was comedy to her was deep tragedy to me. I fled from her presence, my heart full, my cheeks burning, my pulse throbbing with indignation. And as I meditated, in the silence of my chamber, upon my own folly and her cruel coquetry, I felt my fond love turn into furious hate, and I vowed to be revenged. How, I knew not, but my will was so strong that I was certain of finding a way. Unfortunately, an opportunity speedily offered itself.

"For some days I was stupefied by the severity of my disappointment. I went through my counting-house duties mechanically; wrote, moved, got up and lay down, with the dull regularity, almost with the unconsciousness, of an automaton. I avoided as much as possible the sight of Jacqueline, who, of course, took no notice of me, and studiously averted her eyes from me, as I thought, when we met at meals; perhaps some feeling of shame at the cruel part she had acted made her unwilling to encounter my gaze. My leisure time, although not very abundant, hung heavily upon my hands, now that I had no music to copy, no amorous sonnets to write. A fellow-clerk, observing my dulness and melancholy, frequently urged me to accompany

him to a kind of club, held at a *kneipe*, or wine-house, where he was wont to pass his evenings. At last I suffered myself to be persuaded; and finding temporary oblivion of my misfortune in the fumes of canaster and Rhine wine, and in the boisterous mirth of a jovial noisy circle, I soon became a regular tavern-haunter; and, in order to pass part of the night, as well as the evening, over the bottle, I procured a key to the house-door, by means of which I was able to get in and out at hours that would have raised Herr Schraube's indignation to the very highest pitch, had he been aware of the practice.

"It chanced one night, or rather morning, as I ascended the steps, of mingled wood and brick, that led to the door of my employer's spacious but old-fashioned dwelling, that I dropped my key, and, owing to the extreme darkness, had difficulty in finding it. Whilst groping in the dusty corners of the stairs, my fingers suddenly encountered a small piece of paper protruding from a crack. I pulled it out; it was folded in the form of a note, and I took it up to my room. There was no address; but the contents did not leave me long in ignorance of the person for whom the epistle was intended. The first line contained the name of Jacqueline, which was repeated, coupled with innumerable tender epithets, in various parts of the billet-doux. It was signed by a certain Theodore, and contained the usual protestations of unbounded love and eternal fidelity, which, from time immemorial, lovers have made to their mistresses. Whoever the writer, he had evidently found favour with Jacqueline; for again and again he repeated how happy her love made him. Apparently, he was by no means so certain of the father's good-will, and had not yet ventured to approach him in the character of an aspirant to his daughter's hand; for he deplored the difficulties he foresaw in that quarter, and discussed the propriety of getting introduced to Herr Schraube, and seeking his consent. He begged Jacqueline to tell him when he might venture such a step. The letter did not refer to any previous ones, but seemed written in consequence of a verbal understanding; and the writer reminded his mistress of her promise to place her answers to his missives in the same place where she found these, twice in every week, upon appointed days, which were named.

"The perusal of this letter revived in my breast the desire of revenge which its possession gave me a prospect of gratifying. At that moment I would not have bartered the flimsy scrap of paper for the largest note ever issued from

a bank. I did not, it is true, immediately see in what way its discovery was to serve my purpose, but that, somehow or other, it would do so, I instinctively felt. After mature consideration, I quietly descended the stairs, and restored the letter to the hiding-place whence I had taken it. That afternoon it had disappeared, and on the following day, which was one of those appointed, I withdrew from the same crevice Jacqueline's perfumed and tender reply to her beloved Theodore. It breathed the warmest attachment. The coquette, who had trifled so cruelly with my feelings, was in her turn caught in Cupid's toils; and I might have deemed her sufficiently chastised for her treatment of me by the anxieties and difficulties with which her love was environed. She wrote to her admirer, that he must not yet think of speaking to her father, or even of getting introduced to him; for that, in the first place, Herr Schraube had officers in peculiar aversion, and would not tolerate them in his house; and, secondly, it had long been his intention to marry her to Gottlieb Loffel, who was rich, ugly, and stupid, and whom she could not bear. She bid Theodore be patient, and of good courage; for that she would be true to him till death, and never marry the odious suitor they tried to force upon her, but would do all in her power to change her father's purpose, and incline him favourably to the man of her choice. Whilst deploring old Schraube's cold-blooded and obstinate character, she still was sanguine that in the main he desired her happiness, and would not destroy it for ever by uniting her to a man she detested, and by severing her from him with whom alone would life be worth having, from her first and only love, her dearest Theodore, &c., &c. And so forth, with renewed vows of unfailing affection. This was a highly important letter, as letting me further into the secrets of the lovers. So the lucky Theodore, who had so fascinated Jacqueline, was an officer. That the old gentleman hated military men, I was already aware; and it was no news to me that his daughter entertained a similar feeling towards the booby Loffel. I had long since discovered this, although fear of her father induced Jacqueline to treat her unwelcome suitor with much more urbanity and consideration than she would otherwise have shown him.

"The next day the lady's letter, which I carefully put back in the nook of the steps, was gone, and the following Saturday brought another tender epistle from the gentle Theodore, who this time, however, was any thing but gentle; for he vowed implacable hatred to his obnoxious rival, and devoted

him to destruction if he persisted in his persecution of Jacqueline. Then there were fresh protestations of love, eternal fidelity, and the like, but nothing new of great importance. The correspondence continued in pretty much the same strain for several weeks, during which I regularly read the letters, and returned them to the clandestine post-office. At last I grew weary of the thing, and thought of putting a stop to it, but could not hit upon a way of doing so, and at the same time of sufficiently revenging myself, unless by a communication to Herr Schraube, which plan did not altogether satisfy me. Whilst I thus hesitated, Jacqueline, in one of her letters, after detailing, for her lover's amusement, some awkward absurdities of which Loffel had been guilty, made mention of me.

"'I never told you,' she wrote, 'of the presumption of one of my father's clerks; a raw-boned monster, with a face like a Calmuck, who, because he writes bad verses, and is here as a sort of gentleman-volunteer, thought himself permitted to make me, his master's daughter, the object of his particular regards. I must confess, that when I perceived him smitten, I was wicked enough to amuse myself a little at his expense, occasionally bestowing a word or smile which raised him to the seventh heaven, and were sure to produce, within the twenty-four hours, a string of limping couplets, intended to praise my beauty and express his adoration, but, in reality, as deficient in meaning as they were faulty in metre. At last, one day, towards the commencement of my acquaintance with you, dearest Theodore, he detected me childishly engaged in writing your beloved initials in my breath upon the window. His initials happen to be the same as yours, (thank heaven, it is the only point of resemblance between you,) and it afterwards occurred to me he was perhaps misled by the coincidence. In no other way, at least, could I explain the fellow's assurance, when, two days afterwards, he plumped himself down upon his knees, and, sighing like the bellows of a forge, declared himself determined to adore me till the last day of his life, or some still more remote period. You may imagine my answer. I promise you he left off pestering me with bad rhymes; and from that day has scarcely dared raise his eyes higher than my shoe-tie.'

"This last assertion was false. My love and rejection were no cause for shame; but she might well blush for her coquetry, of which I could not acquit her, even now the incident of the window was explained. Her injurious and satirical observations deeply wounded my self-love. I read

and re-read the offensive paragraph, till every syllable was imprinted on my memory. Each fresh perusal increased my anger; and at last, my invention stimulated by fury, I devised a scheme which would afford me, I was sure, ample scope for vengeance on Jacqueline and her minion. A very skilful penman, I possessed great facility in imitating all manner of writing, and had often idly exercised myself in that dangerous art. I was quite sure that, with a model beside me, I should not have the slightest difficulty in counterfeiting the handwriting both of Jacqueline and Theodore; who, moreover, unsuspecting of deceit, would be unlikely to notice any slight differences. I resolved in future to carry on their correspondence myself, suppressing the real letters, and substituting false ones of a tenor conformable to my object. I calculated on thus obtaining both amusement and revenge, and, enchanted with the ingenuity of my base project, I at once proceeded to its execution. It was fully successful; but the consequences were terrible, far exceeding any thing I had anticipated."

I could not restrain an exclamation of indignation and disgust at the disclosure of this vindictive and abominable scheme. Heinzl—who told his tale, I must do him the justice to say, not vauntingly, but rather in a tone of humility and shame which I have perhaps hardly rendered in committing the narrative to paper—Heinzl easily conjectured the feeling that prompted my indignant gesture and inarticulate ejaculation. He looked at me timidly and deprecatingly.

"I was a fiend, sir—a devil; I deserved hanging or worse. My only excuse, a very poor one, is the violent jealousy, the mad anger that possessed me—the profound conviction that Jacqueline had intentionally trifled with my heart's best feelings. Upon this conviction, I brooded till my blood turned to gall, and every kind of revenge, however criminal, to me appeared justifiable."

He paused, leaned his head mournfully upon his hand, and seemed indisposed to proceed.

"It is not for me to judge you, Heinzl," said I. "There is One above us all who will do that, and to whom penitence is an acceptable offering. Let me hear the end of your story."

"You shall, sir. You are the first to whom I ever told it, and I scarce know how I came to this confidence. But it does me good to unburden my conscience, though my cheek burns as I avow my infamy."

His voice faltered, and again he was silent. Respecting the unaffected emotion of the repentant sinner, I did not again urge him to proceed; but presently he recommenced, of his own accord, in a sad but steady voice, as if he had made up his mind to drink to the dregs the self-prescribed cup of humiliation.

"According to my determination, I kept back Jacqueline's next letter, and replaced it by one of my own, whose writing the most expert judge would have had difficulty in distinguishing from hers. In this supposititious epistle I gave Theodore a small ray of hope. The father, Jacqueline wrote, (or rather I wrote it for her,) was kinder to her than formerly, and had almost ceased to speak of her union with Loffel. Her hopes revived, and she thought things might still go happily, and Theodore become her husband. To obviate all probability of my manœuvres being discovered, I strictly enjoined the favoured officer to abstain in future from speaking to her (as I knew from previous letters he was in the habit of doing) on the promenade, or in other public places. I gave as a reason, that those interviews, although brief and guarded, had occasioned gossip, and that, should they come to her father's ears, they would materially impede, perhaps altogether prevent, the success of her efforts to get rid of Loffel. Her lover was to be kept informed of the progress she made in bringing Herr Schraube to her views, and to receive instant intimation when the propitious moment arrived for presenting himself in the character of a suitor. So far so good. This letter elicited a joyful answer from Theodore, who swore by all that was sacred to be quiet, and take patience, and wait her instructions. I suppressed this, replacing it by one conformable to my arrangements. And now, in several following letters, I encouraged the officer, gradually raising his hopes higher and higher. At last I wrote to him that the day approached when he need no longer sigh in secret, but declare his love before the whole world, and especially before the hitherto intractable old merchant. His replies expressed unbounded delight and happiness, and eternal gratitude to the constant mistress who thus ably surmounted difficulties. But in the meanwhile things progressed precisely in the contrary direction. Herr Schraube, more than ever prepossessed in favour of Loffel's well-stored

coffers, was deaf to his daughter's arguments, and insisted upon her marrying him. In one of Jacqueline's letters, kept back by me, she mournfully informed her lover of her father's irrevocable determination, adding that she would only yield to downright force, and would never cease to cherish in her heart the ill-fated love she had vowed to her Theodore. Then—and upon this, in my vindictive wickedness, I prided myself as a masterly stratagem—I caused the correspondence on the part of the officer to become gradually colder and more constrained, until at last his letters assumed a tone of ill-concealed indifference, and finally, some weeks before the day appointed for the wedding, ceased altogether. Of course I never allowed him to get possession of the poor girl's mournful and heartbroken replies, wherein she at last declared that, since Theodore deserted her, she would sacrifice herself like a lamb, obey her father, and marry Loffel. Life, she said, had no longer any charm for her: her hopes deceived, her affections blighted, the man she had so dearly loved faithless to his vows, she abandoned the idea of happiness in this world, and resigned herself to the lot imposed by a parent's will. Instead of these notes of lamentation, I sent to Theodore words of love and hope, and anticipations of approaching happiness. And at last, to cut short this long and shameful story, I wrote a concluding letter in Jacqueline's name, desiring him to present himself on the following Sunday at her father's house, and demand her hand in marriage. She had smoothed all difficulties, the unacceptable wooer had been dismissed, her father had relented, and was disposed to give the officer a favourable reception. Theodore's reply was incoherent with joy. But the Sunday, as I well knew, was the day fixed for Jacqueline's marriage with Gottlieb Loffel. The climax approached, and, like a villain as I was, I gloated in anticipation over my long-prepared revenge. The day came; the house was decorated, the guests appeared. The bride's eyes were red with weeping, her face was as white as her dress; repugnance and despair were written upon her features. The priest arrived, the ceremony was performed, the tears coursing the while over Jacqueline's wan face; when, just at its close, the jingle of spurs was heard upon the stairs, and Theodore, in the full-dress uniform of a Prussian officer, his face beaming with hope and love, entered the apartment. The bride fell senseless to the ground; the officer, upon learning what had just taken place, turned as pale as his unhappy mistress, and rushed down stairs. Before Jacqueline regained consciousness, I had thrown into the post-office a packet to her

address, containing the intercepted letters. It was my wedding present to the wife of Gottlieb Loffel."

Since the interruption above recorded, I had listened in silence, with strong but painful interest, to Heinzl's details of his odious treachery. But the climax of his cruel revenge came upon me unexpectedly. A hasty word escaped me, and I voluntarily sprang to my feet.

"I deserve your contempt and anger, sir," said Heinzl: "but, believe me, I have already been severely punished, although not to the extent I merit. Not one happy hour have I had since that day—no moment of oblivion, save what was procured me by this" (he held up his dram-bottle.) "I am haunted by a spectre that leaves me no rest. Did I not fear judgment there," and he pointed upwards, "I would soon leave the world—blow out my brains with my carbine, or throw myself to-morrow upon the bayonets of a Carlist battalion. But would such a death atone for my crime? Surely not, with the blood of that innocent girl on my head. No, I must live and suffer, for I am not fit to die."

"How! her blood?" I exclaimed.

"Yes, sir, as you shall hear. Jacqueline's fainting fit was succeeded by hysterical paroxysms, and it was necessary to put her to bed and send for a physician. He ordered great care and repose, for he feared a brain fever. Her mother watched by her that night, but, towards daybreak, retired to repose, leaving her in charge of a servant. I heard that she was ill, but so obdurate was my heart rendered by the vindictive feelings possessing it, that I rejoiced at the misery and suffering I had occasioned her. Early the next morning I was entering the counting-house when I met the postman with letters for the family; and I chuckled as I perceived amongst them the packet containing the correspondence between Jacqueline and Theodore. I betook myself to my desk, next to a window that looked into the street, and commenced my usual quill-driving labours, pursuing them mechanically, whilst my mind dwelt upon Jacqueline's despairing regret on receiving the packet, conjectured her exclamations of grief and indignation when she discovered the bitter deception, her vain endeavours to guess its author. Nearly half an hour passed in this manner, when a sudden and momentary shade was cast upon my paper by an object passing before the window.

Almost at the same instant I heard a heavy thump upon the pavement, and then a chorus of screams from the upper windows of the house. Throwing up the one near which I sat, I beheld, not six feet below me, the body of a woman attired in a long loose wrapper. She had fallen with her face to the ground, and concealed by her hair; but my mind misgave me who it was. I sprang into the street just as a passer-by raised the body, and disclosed the features of Jacqueline. They were livid and blood-streaked. She had received fatal injury, and survived but a few moments.

"A servant, it appeared, during Madame Schraube's absence, had delivered my letter to Jacqueline, who, after glancing at the address, of which the handwriting was unknown to her, (I had taken good care to disguise it,) laid the packet beside her with an indifferent air. A short time afterwards a movement of curiosity or caprice made her take it up and break the seal. The servant attending her saw her glance with surprise at the letters it enclosed, and then begin to read them. Seeing her thus occupied, the woman, unsuspecting of harm or danger, left the room for a few minutes. She reopened the door just in time to see Jacqueline, in her night-dress, her long hair streaming from her uncovered head, precipitate herself headlong from the window, a height of nearly thirty feet from the ground.

"The letters, scattered over Jacqueline's bed, served but partially to disclose the real motive of her melancholy suicide, which was publicly attributed to the delirium of fever. Old Schraube, who might well have reproached himself with being, by his tyrannical conduct, its indirect cause, showed no signs of remorse, if any he felt. His harsh voice sounded perhaps a trifle more rasp-like; I fancied an additional wrinkle on his low, parchment forehead, but no other changes were perceptible in him. No one suspected (as how should they?) my share in the sad business, and I was left to the tortures of conscience. God knows they were acute enough, and are so still. The ghastly countenance, of Jacqueline, as it appeared when distorted, crushed, and discoloured by its fall upon the pavement, beset my daylight thoughts and my nightly dreams. I was the most miserable of men, and, at last, unable longer to remain at the place of the grievous catastrophe, I pleaded bad health, which my worn and haggard countenance sufficiently denoted, as a pretext for a journey to Wurzburg, and bade adieu to Frankfort, fully resolved never to return thither. The hand of a retributive Providence was already upon me. Upon reaching home, I found the

household in confusion, and Herr Esch and his lady with countenances of perplexity and distress. They expressed surprise at seeing me, and wondered how I could have got my foster-father's letter so quickly. Its receipt, they supposed, was the cause of my return, and they marvelled when I said I had not heard from them for a month. An explanation ensued. By the failure of a house in whose hands the greater part of his property was deposited, Herr Esch found himself reduced nearly to indigence. He had written to his son to leave the expensive university at which he was studying, and to me to inform me of his misfortune, and of his consequent inability to establish me as he had promised and intended to do. He recommended me to remain with Schraube & Co., in whose service, by industry and attention, I might work my way to the post of chief clerk, and eventually, perhaps, to a partnership. With this injunction I could not resolve to comply. Insupportable was the idea of returning to the house where I had known Jacqueline and destroyed her happiness, and of sitting day after day, and year after year, at the very window outside of which she had met her death. And could I have overcome this repugnance, which was impossible, I might still not have felt much disposed to place myself for an indefinite period and paltry salary under the tyrannical rule of old Schraube. I was unsettled and unhappy, and moreover, I perceived or fancied that absence had weakened my hold upon the affections of my adopted parents, who thought, perhaps, now fortune frowned upon them, that they had done unwisely in encumbering themselves with a stranger's son. And when, after a few days' indecision, I finally determined to proceed southwards, and seek my fortune in the Spanish service, Herr Esch, although he certainly pointed out the risk and rashness of the scheme, did not very earnestly oppose its adoption. He gave me a small sum of money and his blessing, and I turned my face to the Pyrenees. My plan was to enter as a cadet in a Spanish regiment, where I hoped soon to work my way to a commission, or to be delivered from my troubles and remorse by a bullet; I scarcely cared which of the two fates awaited me. But I found even a cadetship not easy of attainment. I had few introductions, my quality of foreigner was a grave impediment, many difficulties were thrown in my way, and so much time was lost that my resources were expended, and at last I was fain to enlist in this regiment. And now you know my whole history, sir, word for word, as it happened, except some of the names, which it was as well to alter."

"And the unfortunate Theodore," said I, "what became of him?"

"He resigned his commission two days afterwards, and disappeared from Frankfort. No one could think how he intended to live, for he had scarcely any thing beside his pay. I have sometimes asked myself whether he committed suicide, for his despair, I was told, was terrible, on learning the infidelity and death of Jacqueline. That would be another load on my conscience. But if he lives, the facts you have just heard must still be a mystery to him."

"They are no longer so," said a voice, whose strange and hollow tone made me start. At the same moment Schmidt, who during all this time had lain so still and motionless that I had forgotten his presence, rose suddenly to his feet, and, dropping his cloak, strode through the hot ashes of the fire. His teeth were set, his eyes flashed, his face was white with rage, as he confronted the astonished Heinzl.

"Infernal villain!" he exclaimed, in German; "your name is not Heinzl, nor mine Schmidt; you are Thomas Wolff, and I am Theodore Werner!"

Heinzl, or Wolff, staggered back in consternation. His jaw dropped, and his eyes stared with an expression of vague alarm. Grinding his teeth with fury, Schmidt returned his gaze for a moment or two, then, flashing his sabre from the scabbard, he struck his newly-found enemy across the face with the flat of the weapon, and drew back his arm to repeat the blow. The pain and insult roused Heinzl from his stupefaction; he bared his sword, and the weapons clashed together. It was time to interfere. I had my sheathed sabre in my hand; I struck up their blades, and stood between them.

"Return your swords instantly," I said. "Stand to your horse, Schmidt; and you, Heinzl, remain here. Whatever your private quarrels, this is no time or place to settle them."

Heinzl dropped his sabre point, and seemed willing enough to obey, but his antagonist glared fiercely at me; and pressed forward, as if to pass me and get at his enemy, who had retreated a pace or two. I repeated my command more imperatively than before. Still Schmidt hesitated between thirst for revenge and the habit of obedience, when, just at that moment, the

trumpets clanged out the first notes of the reveillée. The Spanish bands were already playing the *diana*; the sky grew gray in the east, a few dropping shots were heard, exchanged by the hostile outposts whom the first glimmer of day rendered visible to each other. Heinzl hurried to his horse; and the instinct of discipline and duty prevailing with Schmidt, he sheathed his sabre and gloomily rejoined his squadron. The men hastily bridled up, and had scarcely done so when the word was given for the left squadron (which was mine) to mount. We were no sooner in the saddle than we were marched away under the guidance of a Spanish staff-officer.

The day was a busy one; and it was not till we halted for the night that I found an opportunity of speaking to Heinzl. I inquired of him how it was that he had not recognised Theodore Werner in his comrade Schmidt. He then informed me that he knew the lover of the unhappy Jacqueline only by name, and by his letters, but had never seen him. At the time of his abode in Frankfort, there were a large number of Prussian officers in garrison there, in consequence of the revolutionary attempt of 1833; and it was not till after Werner's sudden appearance in Herr Schraube's house, upon the day of the wedding, that Heinzl learned his surname. In the letters Theodore was the only name used. Heinzl seemed to have been greatly shaken and alarmed by that morning's unexpected meeting. He was a brave fellow in the field; but I could see that he did not relish the idea of a personal encounter with the man he had so deeply injured, and that he would be likely to do what he could to avoid it. There was no immediate necessity to think about the matter; for the squadron did not rejoin the regiment, as we had expected, but was attached to a Spanish brigade, and sent away in a different direction.

Two months elapsed before we again saw the main body of the regiment, and the various changes and incidents that intervened nearly drove from my memory Heinzl's story and his feud with Schmidt. At last we rejoined headquarters, one broiling day in June, at a small town of Old Castile. After so long a separation, in bustling times of war, comrades have much to say to each other, and soon the officers of the three squadrons were assembled at the posada, discussing the events that had filled the interval. The trumpet-call to evening stables produced a dispersion, at least of the subalterns, who went to ascertain that the horses were properly put up, and the men at their duty. My troop was quartered in half-a-dozen houses, adjacent to each

other, and on arriving there, the sergeant-major reported all present except Heinzl. I was not very much surprised at his absence, but concluded that the heat of the day, and the abundance of wine,—particularly good and cheap in that neighbourhood,—had been too much for him, and that he was sleeping off, in some quiet corner, the effects of excessive potations. I mentally promised him a reprimand, and an extra guard or two, and returned to my billet. The next morning, however, it was the same story—Heinzl again absent, and had not been at his quarters all night. This required investigation. I could not think he had deserted; but he might have got quarrelsome in his cups, have fallen out with the Spaniards, and have been made away with in some manner. I went to the house where he was billeted. The stable, or rather cowshed, was very small, only fit for two horses, and consequently Heinzl and one other man, a Pole, were the only troopers quartered there. I found the Pole burnishing his accoutrements, and singing, in French most barbarously broken, the burden of a *chanson à boire*. He could give no account of his comrade since the preceding day. Towards evening Heinzl had gone out with another German, and had not since made his appearance. I inquired the name of the other German. It was Franz Schmidt. This immediately suggested very different suspicions from those I had previously entertained as to the cause of Heinzl's absence. On further questioning, the Pole said that Schmidt came into the billet, and spoke to Heinzl loudly and vehemently in German, of which language he (the Pole) understood little, but yet could make out that the words used were angry and abusive. Heinzl replied meekly, and seemed to apologise, and to try to soften Schmidt; but the latter continued his violence, and at last raised his hand to strike him, overwhelming him, at the same time, with opprobrious epithets. All this was extracted from the Pole by degrees, and with some difficulty. He could not, or would not, tell if Heinzl had taken his sabre with him, but there could be little doubt, for it was not to be found. The Pole was afraid of getting himself, or Heinzl, into trouble by speaking openly; but he evidently knew well enough that the two Germans had gone out to fight. I immediately went to the captain of Schmidt's troop, and found him in great anger at the absence of one of his best men. Several foreigners had deserted from the regiment within the last few months, and he suspected Schmidt of having followed their example, and betaken himself to the Carlists. What I told him scarcely altered his opinion. If the two men had gone out to fight, it was not likely that both were killed; and if one was,

the survivor had probably deserted to escape punishment. The affair was reported to the colonel, and parties of foot and horse were sent to patrol the environs, and seek the missing men. At last they were found, in a straggling wood of willows and alder-bushes, that grew on marsh land about a mile from the town. Heinzel was first discovered. He lay upon a small patch of sandy soil, which had manifestly been the scene of a desperate struggle, for it was literally ploughed up by the heavy trampling and stamping of men's feet. He had only one wound, a tremendous sabre-thrust through the left side, which must have occasioned almost instant death. From his corpse a trail of blood led to that of Schmidt, which was found about a hundred yards off. The conqueror in this fierce duel, he had fared little better than his victim. He had received three wounds, no one of them mortal, but from which the loss of blood had proved fatal. He had made an effort to return to the town, but had sunk down exhausted, probably in a swoon, and had literally bled to death.

Both the deceased men being Protestants, the Spanish priesthood would of course do nothing for them, and we had no chaplain. They were buried soldier-fashion in the same grave, near the place of their death, and the funeral service of the Church of England was read over them. A rough block of stone, that lay near at hand, was rolled to the grave, and partly imbedded in the earth; and I got a soldier, who had been a stone-cutter, to carve on it a pair of crossed swords, a date, and the letters T. W. None could understand the meaning of these initials, until I told that evening, after mess, the story of the Intercepted Letters.

GREENWICH TIME.

"The time is out of joint—oh, cursed spite!"—*Hamlet*.

We are no friends to modern miracles. Whether these be wrought at Trêves, Loretto, or Edinburgh, we protest and make head against them all; and we care not a farthing for the indignation of the miracle-monger, be he pope, prelate, priest, potentate, protector, or provost. The interference of modern town-councils, to which we have all been long accustomed, has at last reached a point which borders upon absolute impiety. Not content with poking their fingers into every civic and terrestrial mess—not satisfied with interfering in the functions of the superintendent of the city fulzie, and giving gratuitous and unheeded advice to prime ministers—they have at last aspired to control the sun, and to regulate the motions of the heavenly bodies according to their delectable will. Pray, do these gentlemen ever read their Bibles? Do they really think that they are so many Joshuas? Do they know what they are doing when they presume to interfere with the arrangements of Providence and of nature—to alter times and seasons, and to confound the Sabbath with the week? Our amazement at their unjustifiable proceedings is only surpassed by our wonder at the apathy which prevails among the insulted population. Beyond one or two feeble letters in the newspapers, there have been no symptoms of resistance. Surely they have some respect left for their beds and their religion—for their natural and their commanded rest. It will not do to remain suffering under this last monstrous outrage in apathy and indifference. The bailies shall not be permitted to eclipse Phœbus, and proclaim false hours to us with impunity. We are ready and willing to head a crusade upon this matter, and we call upon all sorts and sundries of our fellow-citizens to join us in insurrection against the nuisance.

How stand the facts of the case? Listen and perpend. At twelve of the night of Saturday the thirteenth day of January, one thousand eight hundred and forty-eight, the public clocks of the city of Edinburgh were altered from their actual time by command of the Town Council, and advanced by twelve minutes and a half. To that extent, therefore, the clocks were made to

lie. They had ceased to be regulated by the sun, and were put under civic jurisdiction. The amount of the variation matters little—it is the principle we contend for: at the same time it is quite clear that, if the magistrates possess this arbitrary power, they might have extended their reform from minutes to hours, and forced us, under the most cruel of all possible penalties, to rise in the depth of winter at a time when nature has desired us to be in bed.

Now, we beg once for all to state that we shall not get up, for the pleasure of any man, a single second sooner than we ought to do; and that we shall not, on any pretext whatever, permit ourselves to be defrauded, in the month of January, of twelve minutes and a half of our just and natural repose. Life is bitter enough of itself without enduring such an additional penalty. In our hyperborean regions, the sacrifice is too hard to be borne; and one actually shudders at the amount of human suffering which must be the inevitable consequence, if we do not organise a revolt. For let it be specially remembered, that this monstrous practical falsehood is not attended with any alleviating relaxations whatever. It is a foul conspiracy to drag us from our beds, and to tear us from connubial felicity. The law courts, the banks, the public offices, the manufactories, all meet at the accustomed matutinal hour; but that hour, be it six, eight, or nine, is now a liar, and has shot ahead of the sun. Countless are the curses muttered every morning, and not surely altogether unheard, from thousands of unhappy men, dragged at the remorseless sound of the bell from pallet and mattress, from bed of down or lair of straw, from blanket, sheet, and counterpane, to shiver in the bitter frost of February, for no better reason than to gratify the whim of a few burgesses congregated in the High Street, who have a confused notion that the motions of the sun are regulated by an observatory at Greenwich.

What, in the name of whitebait, have we to do with Greenwich more than with Timbuctoo, or Moscow, or Boston, or Astracan, or the capital of the Cannibal Islands? The great orb of day no doubt surveys all those places in turn, but he does not do so at the same moment, or minute, or hour. It has been ordained by Providence that one half of this globe should be wrapped in darkness whilst the other is illuminated by light—that one fraction of the town-councils of the earth may sleep and be silent, whilst another is awake and gabbling. Not the music of the spheres could be listened to by man or angel were the provision otherwise. And yet all this fair order is to be

deranged by the civic Solons of the Modern Athens! It is small wonder if few of these gentlemen have personally much appetite for repose. The head which wears a cocked-hat may lie as uneasy as that which is decorated with a crown; and there is many a malignant thought to press upon and disturb their slumbers. They are men of mortal mould, and therefore it is fair to suppose that they have consciences. They cannot be altogether oblivious of the present disgraceful state of the streets. The Infirmary must weigh upon them, heavy as undigested pork-pie; and their recent exhibitions in the Court of Session have been by no means creditable to their understanding. Therefore we can readily comprehend why they, collectively, are early driven from their couches; but it is not so easy to discover why they have no bowels of mercy towards their fellow-citizens. The cry of the Parliament House is raised against them, and we own that our soul is sorry for the peripatetics of the Outer boards. An ancient and barbarous custom, which long ago should have been amended, forces them to appear, summer and winter, before the Lords Ordinary at nine o'clock; and we have heard more than one of them confess, with tears in their eyes, that their fairest prospects in life have been cruelly blighted, because the darlings of their hearts could not think of marrying men who were dragged from bed, throughout a considerable portion of the year, in the dark, who shaved by candle-light, and who expected their helpmates to rise simultaneously, and superintend the preparation of their coffee. If these things occurred under the merciful jurisdiction of the sun, what will be the result of the active cruelties of the magistracy? Why, Advocate will become a word synonymous with that of bachelor, and not a single Writer to the Signet be followed by a son to the grave!

And why, we may ask, has this unwarrantable alteration been made? For what mighty consideration is it that the lives of so many of the lieges are to be embittered, and their comforts utterly destroyed? Simply for this reason, that there may be a uniformity of time established by the railway clocks, and that the trains may leave Edinburgh and London precisely at the same moment. Now, in the first place, we positively and distinctly deny that there is any advantage whatever, even to the small travelling fraction of the community, in any such arrangement. There is no earthly or intelligible connexion between the man who starts from Edinburgh and the other who starts from London. They have each a separate rail, and there is no chance

of a collision because the sun rises in the one place later than it does in the other. The men, we shall suppose, are not idiots: they know how to set their watches, or, if they do not possess such a utensil, they can desire the Boots to call them at the proper hour, and go to bed like Christians who intend to enjoy the last possible moment of repose. If they are particular about time, as some old martinets are, they can have their watches reset when they arrive at the place of their destination, or regulate them by the different railway clocks as they pass along. They have nothing else to do; and it is as easy to set a watch as to drink off a tumbler of brandy and water. Or if the Fogies choose to be particular, why cannot the railway directors print alongside of the real time a column of the fabulous Greenwich? John Bull, we know, has a vast idea of his own superiority in every matter, and if he chooses also to prefer his own time, let the fat fellow be gratified, by all means. Only do not let us run the risk of being late, in our endeavour to humour him, by forestalling the advent of the sun. May his shadow never be less, nor ours continue to be augmented, in this merciless and arbitrary manner!

But, in the second place, we beg leave to ask, whether the comforts of our whole population, whose time has effectually been put out of joint, are to be sacrificed for the sake of the passengers travelling between this and London? Do the whole of us, or the half of us, or any of us, spend a considerable portion of our lives in whirling along the Caledonian or the North British railways? The Lord Provost may deem it necessary to go up to London once a-year on Parliamentary business; but surely it would be more decent in his Lordship to wait for the sun, than to move off in the proud conviction that the course of that luminary has been adjusted to suit his convenience. We are irresistibly put in mind of an anecdote told by Sir Edward Bulwer Lytton. A certain merchant, sleeping in a commercial hotel, had given orders overnight that he should be called at a particular hour. Boots was punctual. "The morning has broke, sir," said he, drawing the curtain. "Let it break, and go to the mischief!" replied the sleepy trader; "it owes *me* nothing!" Now, whatever may be the opinion of the provost and his subordinate senate, we, the people of Edinburgh, do set a certain value upon the morning, which we hold to be appointed by Providence, and not by the Town-Council; and we must have somewhat better reasons than have yet been adduced in favour of the change, before we consent to make

ourselves miserable for life. Early rising may be a very good thing, though, for our part, we always suspect a fellow who is over-anxious to get out of bed before his neighbours; but no man, or body of men, have a right to cram it as a dogma down our throats. And it is quite preposterous to maintain that the permanent comfort of many thousand people is to be sacrificed for the sake of a dubious convenience to the few bagmen who, maybe travelling with their samples to the southward. We protest in all sincerity, that, rather than subject ourselves to this *bouleversement* and disordering of nature, we would be content to see every railway throughout the kingdom torn up or battered down, and in every point of view we should consider ourselves gainers thereby. We, like the Lord Provost of Edinburgh, go once a-year to London, but then we rise from our bed every morning of the year. We are far more likely now to miss an early train than before; and yet, in order to secure that single disadvantage, we are compelled in all time coming unnaturally to anticipate the day.

It is probable that some of our sapient councillors think this a very grand and clever scheme for securing uniformity of time. We consider it neither grand nor clever, but simply stupid and idiotical; and we beg to tell them that they have not secured thereby even what they foolishly think to be an uniformity of time. They have merely, by attempting to meddle with nature, introduced an element of ceaseless and intolerable confusion. They have no jurisdiction beyond their limited parliamentary bounds. They cannot decree that their time is to be adopted by the county towns; and a glance at the map will show what a small portion of the population of Scotland is located upon the line of the railways. Then as to the country, where clocks are uncommon, and usual reference for time is made to that great disc which is flaring in the sky, are the people there also to submit to the dictation of the magistrates of Edinburgh, and, if they want to perform a journey, arrive too late for the coach or train, because they trusted to the unerring and infallible index of the Almighty? Then as to the dials, common on the terrace and garden, and not uncommon on the older country steeples—what is to become of them? Are they to be branded for ever as lying monitors by the decree of sundry civic dignitaries, and broken up as utterly useless? Are all those who pin their faith to them to be deceived? Really this is carrying matters with a high hand, with a vengeance!

Uniformity is the hobby of the age, and, more than the nine of diamonds, it has been the curse of Scotland. A certain set of people have been trying for these thirty years to assimilate us utterly to England, and in their endeavor to do so they have wrought incalculable mischief. They are continually tampering with our laws, and they would, if they dared, attempt to tamper with our religion. A man can neither be baptised, married, nor buried after the fashion of his forefathers. We are not allowed to trade with each other except upon English currency principles; and they have thrust the English system of jury trial in civil cases upon us, against the unanimous and indignant remonstrance of the nation. Now, *Cæteris paribus*, we are willing to admit that uniformity in the abstract may be a very good thing, if you can only carry it out. Uniformity of property, for example, upon principles of equal division, could hardly fail to be popular; and we should like to see every acre of land throughout Britain at a uniform rent of five pounds. But uniformity, in order to perfect the system, should be cosmopolitan, not national—universal, and not limited. It would, for example, be convenient, in a commercial point of view, if all the nations of Europe—nay, of the world—could be brought to speak a uniform language. Such a state of matters, we know, once existed, but it was put a stop to by a miracle at the building of the tower of Babel. It might possibly be convenient if the four seasons of the year were equally and simultaneously distributed throughout the world—if, when we are going to our beds, the huntsmen were not up in Arabia, but lying amidst their camels beneath a tent in some far oasis of the wilderness. But these matters have been regulated by Divine Intelligence, and uniformity is no part of the scheme. In a very few years we shall have direct railway communication throughout Europe, from the west to the east—will it therefore be advisable to adopt a common standard of time—say that of Greenwich—for all the trains? Are the inhabitants of Paris to be aroused from slumber some three hours before their wont, because the early train from Moscow is to start at nine o'clock? If not, why is it sought to apply the same principle here? Perhaps our excellent councillors are not aware that there is no such thing as a universal time. There is no peculiar virtue in the Greenwich time, any more than in that which is noted at the observatory on the Calton Hill. We are afraid that a gross misconception upon this point prevails in the High Street, and that some of our friends have got hold of a legend, said to be current in the Canongate, that the city clocks were put back twelve minutes and a half by Charles Edward in the

Forty-five—that they have given out false time for upwards of a century—and that the present is a patriotic and spirited move of the magistrates to restore the hours to their pristine order and arrangement. If any of our civic representatives have fallen into error on this account, and been led astray by the cunning fable, we beg to assure them that it rests upon no solid foundation. Our ancestors entertained an almost Persian veneration for the sun, and would not have suffered any such interference. The city clocks of Edinburgh were not set upon the authority of the famous watch discovered at Prestonpans, of which it stands recorded, that "she died the very night Vich Ian Vohr gave her to Murdoch."

We are not aware that any regulation of the Lord Provost and Magistrates of the city of Edinburgh has the force and authority of a statute, or that their voice is potential in opposition to the almanack. If we are right in this, then we beg to tell them that the new arrangement is utterly in the teeth of the law, and may lead to serious consequences. Suppose that any of us has granted a bill which falls due at twelve o'clock. The hour peals from the steeple, and the bill is straightway protested, and our credit damaged. Five minutes afterwards we appear to satisfy the demand, but we are told that it is too late. In vain do we insist upon the fact that the bill is dated at Edinburgh, not at Greenwich, and appeal to the almanack and observatory for the true state of the time. We proffer the sun as our witness, but he is rejected as a suspicious testimony, and as one already tried before the civic court and convicted of fraud, falsehood, and wilful imposition. What is to become of us in such a case? Are we to go into the Gazette, because the Provost has set the clocks forward? Or suppose a man on deathbed wants to make his will. It is Wednesday the ninth of February, close upon midnight, and the sufferer has not a moment to lose. A few hasty lines are written by the lawyer, and as he finishes them the clock strikes twelve. The dying man signs and expires in the effort. The testing clause of that deed would bear that it was signed on Thursday the tenth; but the fact is that the man died upon Wednesday, and we know very well that corpses cannot handle a pen. How is that affair to be adjusted? Are people to be defrauded of their inheritance for a whim of the Town Council, or the convenience of a few dozen commercial travellers? Or take the case of an annuitant. Suppose an old lady, and there are plenty of them in that situation, dies on the term-day exactly five minutes after twelve according to Greenwich time in Edinburgh

—who gets the money? Is it a *dies inceptus* or a *dies non*? If a new term has begun, her representatives are undoubtedly entitled to finger the coin, if not, the payer pockets it. By which arrangement—that of Providence, or that of the Provost—shall such a question be decided? Who is to rule the day, the term, and the season? We pause for a reply. Or let us take another and not imaginary case. A good many years ago we were asked to take shares in a tontine, and complied. Twelve of us named a corresponding number of lives, whereof all have evaporated, save that of which we are the nominee, and one other which had been selected by an eminent vice-president of the Fogie Club. Our man resides in Greenwich, is a pensioner, and we defy you to point out a finer or livelier specimen of the Celtic race, at the advanced but by no means exorbitant age of ninety-five. We are, from the best possible motives, extremely attentive to the old man, whom we supply gratuitously, but cautiously, with snuff and whisky; and his first caulker every day is turned over to our health, a libation which we cordially return. This year we were somewhat apprehensive, for his sake, of the prevalent fever and influenza; but M'Tavish escaped both, and is, at this moment, as hearty as a kyloe on the hills of Skye. The vice-president, oddly enough, had backed a superannuated chairman who is stated to be a native of Clackmannan. He is so extremely aged that the precise era of his birth is unknown; but he is supposed to have been, in some way or other, connected with the Porteous mob. With accumulations, there are about five thousand pounds at stake upon the survivorship of these two. Twice, in the course of the last ten years, have each of them been seriously ill, and precisely at the same time; and twice has the milk of human kindness been soured between the worthy vice-president and ourselves.

Should the invisible and mysterious sympathy between M'Tavish and Hutcheon operate again—should Celt and Lowlander alike be stricken with sickness, the contested point between us will, in all probability, be brought to an issue. Both have taken effectual measures to have the death of his neighbour's nominee noted with accuracy to a second. Now, if Hutcheon were to die to-day in Edinburgh at twenty minutes past eleven according to the present regulation of the clocks, and if the next post brought intelligence that M'Tavish had given up the ghost at Greenwich precisely five minutes sooner, which of us two would be entitled to the stakes? On the twenty-ninth of January, when the old and true time was in observance, there could

have been no doubt about the question. We should have been the winner by seven minutes and a half. Hutcheon would have died, like his forefathers, at seven and a half minutes after eleven, and M'Tavish at the quarter past. But, as it is, the life of M'Tavish has been cut short, or what is the same thing, that of Hutcheon has been preposterously prolonged. And so, if the alteration made by the Town Council be legal, we may be defrauded of five thousand pounds—if not legal, what pretext have they for making it?

We do not envy the situation of our civic representatives on the unfortunate occasion of the next public execution in Edinburgh. In the first place, should their present regulation be adhered to, every subsequent culprit will be deprived of twelve minutes and a half of his existence. So much shorter time will he have to repent of his sins, and make peace with his Creator; for the arbitrary alteration of the clocks will not alter the day of doom. The "usual hour" will be indicated in the sentence, and the trembling felon launched into eternity so much the sooner, that a few commercial travellers may be saved the pains of regulating their watches! We dare not speak lightly on such a subject; for who can estimate the value of those moments of existence which are thus thoughtlessly, but ruthlessly cut off? In the second place, whenever the like catastrophe shall occur, we have a strong suspicion that the magistrates will be morally responsible either for murder or for defeat of justice. It is in truth an extremely unpleasant dilemma, but one entirely of their own creating. For their own sakes, we beg their serious attention to the following remarks. We shall suppose the ordinary case of a man sentenced by the Justiciary Court, to be executed at the usual hour, which with us is eight in the 'morning. Hitherto we knew precisely what was meant by eight, but now we do not. But this we know, that if that man is executed at eight, as the clocks now stand, HE IS MURDERED, just as much as he would be, if, the evening before, he had been forcibly strangled in his cell! The felon's life is sacred until the hour arrives when justice has ordained him to die; and if the life be taken sooner, that is murder. Who, we ask, would be the responsible parties in this case, not perhaps to an earthly, but surely to a higher tribunal? On the other hand, if the execution does *not* take place at eight, it is highly questionable whether the criminal can be executed at all. The sentence must be fulfilled to the letter. Delay in such matters is held by the clemency of our law to interpose a strong barrier in favour of the criminal; and this at least seems certain, that a man

condemned to be executed on one day, cannot, without a new sentence, be capitally punished upon another. Hours—nay, minutes—are very precious when the question is one of life and death, and the consideration is a very grave one.

In short, the magistrates have landed themselves, and will land us in interminable confusion; and we foresee that not a little litigation will result from their proceedings. In all legal matters—and there are many in which punctuality is of the utmost moment—the clocks cannot be held to regulate time. They vary from each other according to their construction or their custody, and we have thrown away and abandoned the true standard. The difference of a single degree may prove as important as that of forty, and if there is to be a uniformity between the Edinburgh and the Greenwich time, why not extend it to the colonies? We warn the Town Council of Edinburgh that they may have much to answer for from the consequences of their absurd proceeding.

We understand that there are police statutes ordaining that all taverns shall be shut up at twelve o'clock of a Saturday night, and for breach of this rule people maybe taken into custody. The magistrates have peremptorily altered twelve o'clock, and have made that period arrive at forty-seven and a half minutes after eleven. Is it lawful to conduct us to the watch-house, if we should chance to be found at Ambrose's, lingering over a tumbler during the debatable twelve minutes and a half—or are we not entitled to knock down the ruffian who should presume to collar us during the interval? Whether have we or the follower of Mr Haining the best legal grounds for an action of assault and battery? We appeal to the heavenly bodies, and indignantly assert our innocence: Dogberry walks by the rule of the Right Honourable Adam Black, and accuses us of gross desecration. Which of us is in the right? and how is the statute to be interpreted? It is surely obvious to the meanest capacity that, if the magistrates of Edinburgh have the power to proclaim Greenwich time within their liberties, there is nothing to prevent them from adopting the recognised standard of Kamschatka, or from ordaining our clocks to be set by the meridian of Tobolsk. They may turn day into night at their own good pleasure, and amalgamate the days of the week, as indeed they have done already; and this brings us to a consideration, which, in Scotland at least, deserves especial attention.

The public mind has of late been much agitated by the question of Sunday observance. We do not mean now to debate that point upon its merits, nor is it the least necessary for our present argument that we should do so. Every one, we are certain, wishes that the Lord's day should be properly and decently observed. There are differences of opinion, however, regarding the latitude which should be allowed—one party being in favour of a total cessation from work, and founding their view upon the decalogue; whilst the others maintain that, under the Christian dispensation, a new order of things has been established. There has been a good deal of discussion upon this topic, and the practical subject of dispute has been, whether railway trains should be permitted to run upon the first day of the week. On that head we shall say nothing; but we maintain that both parties are alike interested in having the limits of the Sunday accurately and distinctly declared. Some observance, whatever be its limit, is clearly due to the holy day, whether men hold it to be directly of divine ordinance, or to have been set apart for divine worship by ecclesiastical and conventional authority. By the present arrangement, the feelings of both parties are outraged. Sabbath or Sunday—call it which you will—has been changed by the Town Council, and is not the same as before. It is easy to say that this is quibbling, but in reality is it so? Can the Town Council compel us to accept any day they may please to nominate instead of Sunday, and consecrate Wednesday, for example, as that which is to be dedicated to pious uses? We repeat that this is but a question of degree. No authority, at least no such authority as that of a body of local magistrates, can dovetail the Sabbath by making it begin earlier and end later than before. There are stringent ancient Scottish statutes, some of them not altogether in desuetude, against Sabbath desecration, and how are these now to be interpreted or enforced? No true Sabbatarian can support the present movement. His case is irretrievably lost if he acquiesces in the change; for the day has unquestionably been violated—and it may be violated as well in a minute as in an hour. Those who take the other view cannot fail to be equally offended. The order which they keenly advocate and maintain has been wantonly broken and destroyed. The limits of Sunday are annihilated. Men do not know when it commences or when it ends, and they may be gaming when they ought to be at prayers. Churches and congregations of every kind have a common interest in this. The individuality of the day must be supported, and there must be no doubt, and no loophole left for cavillers to carp at its existence.

Look at it in any light you please, the change is fraught with danger. We have enlarged somewhat on the score of inconvenience—for we thoroughly feel and resolutely maintain that the practical inconvenience is great—but the other results we have referred to are inevitable and are infinitely worse. Tampering with the laws of nature is not permitted, even to the most sapient of town councils; and, as they cannot wash the Ethiopian white, so neither need they try to control the progress of the sun, and to prove that great luminary a liar. Surely, they have plenty to do without interfering with the planetary bodies? We really thought better of their patriotism; nor could we have expected that they would falsify the host of heaven in order to take their future time from some distant English clock. So soon as the whole of the world is ripe for an uniformity of time, and contented to adopt it, we may then possibly become acclimated to the change, and rise at midnight, to go about our nightly, not daily duties, without a murmur. But pray, in this matter, let us at least secure reciprocity. If we are to be dragged from our beds at untimely hours, let the rest of the population of the globe suffer to a similar extent; for in community of suffering there is always some kind of dim and indefinite comfort. We are rather partial to bagmen, and would endure something, though not this, to accelerate their progress; but why should the whole Scottish nation be made a holocaust and an offering for our weakness? Falstaff, who, whatever may be said of his valour, was a remarkably shrewd individual, might give a lesson to our civic dignitaries. He counted the length and endurance of his imaginary combat with Percy, by Shrewsbury clock, and did not seek to extend his renown by superadding to it the benefit which might have been derived by a reference to Greenwich time. Let us do the like, and submit to the ordinances of Providence—not try to oppose them by any vain and extravagant alteration. Without the least irreverence, because we hold that the whole profanity—though it may be unintended—is on the other side, let us ask the Town Council of Edinburgh, whether they consider themselves on a par with the great leader of Israel, and whether they are entitled to say "Sun, stand thou still upon Gibeon, and thou, moon, in the valley of Ajalon?" And yet, what is their late move, but something tantamount to this? They have declared against the order of nature, and such a declaration must imply a species of gross and unwarrantable presumption.

And now, Messieurs of the Town Council of Edinburgh, what have you to say for yourselves? Are we right, or are we wrong?—have we failed, or have we succeeded in making out a lease against you? We think we can discern some symptoms of a corporate blush suffusing your countenances; and, if so, far be it from us to stand in the way of your repentance. We are willing to believe that you have done this from the best of possible motives, but without forethought or consideration. You probably were not aware Of the consequences which might and must arise from this singular attempt at legislation. Be wise, therefore, and once more succumb, as is your duty, to the established laws and harmony of nature. Leave the planets alone to their course, and be contented to observe that time which is indicated and proclaimed from heaven. Recollect wherein it is written that the sun, and moon, and stars were set in the firmament of heaven *to rule over the day, and over the night, and to divide the light from the darkness*. By no possible sophistry can you pervert the meaning of that wholesome text. Why, then, should you act in opposition to it, and introduce this element of disorder among us? Go to, then, and retrace your steps. Put the clocks backward as before. Let the shadows be straight at mid-day. Leave us our allotted rest, for it is sweet and pleasant. Defraud us not of our inheritance. Let our children not be born before their time. Let the miserable malefactor live until the last moment of his allotted span. Preserve the Sunday intact, and let us hear no more of such nonsense. Why should you be wiser than your forefathers? If any man had told them to alter their time from England, they would have collared the seditious prig, and thrust him neck and heels into the Tolbooth. When grim old Archibald Bell-the-Cat was Provost, no man durst have hinted at Greenwich time on pain of the forfeiture of his ears; for, notwithstanding his performances at Lauder Bridge, Bell-the-Cat was a Christian, the father of a bishop, and knew his duties better than rashly to interfere with Providence. Restore our meridian, and, if you are really anxious to do your duty, occupy yourselves with meaner matters. It would much conduce to the comfort of the lieges, if, instead of directing the course of the sun, you were to give occasional orders for a partial sweeping of the streets.

A MILITARY DISCUSSION TOUCHING OUR COAST DEFENCES.

SCENE.—*A mess-room after dinner, from whence the members have departed, except four, who draw round the fire.*

PERSONÆ.

Major O'SHEEVO.	Lieutenant and Adjutant PIPECLAY.
Captain OLDHAM.	Ensign LOVELL.

OLDHAM.—Well, Lovell, my boy, so you prefer the claret and the old Fogies this time to the sparks in the barrack-rooms; we feel the compliment, I assure you. There comes a clean glass: now, stir the fire; that's a good fellow.—I'll do as much for you, when I'm your age.

LOVELL.—Why you see, Oldham, they say you old hands won't let out while all the mess are here, and you keep your opinions and experiences for these cosy little horse-shoe sittings. I should like to pick up a little soldiering, if I could, and so have ventured to outsit the rest of them.

O'SHEEVO.—Ye're right, ye're right. A man that comes to value his claret early, has all the advantages of experience, without buying them dear. An old head upon young shoulders, in fact.

PIPECLAY.—And, you see, the youngster has an eye to a little military information: that's right.

LOVELL.—Why, these rumours of invasion make one look about him. If the French come, of course we shall give 'em an infernal good licking; but I am anxious to get an idea what sort of thing it will be, and I daresay you talk a good deal of these matters.

O'SHEEVO.—Ah! them French! Oldham, ye don't expect they'll come to spend next Christmas with us?

OLDHAM.—There's no saying what the rascals might be at; and as Lovell has broached the subject, we may as well talk it over.

O'SHEEVO.—Bravo! so we will: how say you, Pipeclay?

PIPECLAY.—By all means. You know I mentioned last night how ill I thought our formations adapted for manœuvring against a hostile force on the coast.

OLDHAM.—My dear Pipeclay, it is the misfortune of a long peace, and a theoretical education, that they narrow the mind to strain at matters of detail, and to neglect the greater consideration, *what* is to be done—not how should we do it. Now, in the old second battalion of the 107th, the lads were more apt to talk of the work than the drill-book, and a finer or more dashing set never wore scarlet.

O'SHEEVO.—Devil a doubt of it: not a man that wouldn't finish his three bottles before he'd think of stirring; and as for the seasoned files, the night was always too short for 'em. There's no saying what those men might have achieved, if they could have found the time.

LOVELL.—But if the French—

OLDHAM.—Excuse me, Lovell,—I know something about the French, if three years in the Peninsula could give knowledge; and I'll tell you, for a fact, whatever you may hear said, that the organisation of the French army —

PIPECLAY.—What! with that slovenly style of marching?

OLDHAM.—Never mind the style of marching: I say, that whether in the field, in camp, or in quarters—

O'SHEEVO.—Devilish bad quarters they'd be sometimes, in them same campaigns, eh, Oldham? Short commons, eh?

OLDHAM.—Short commons! sometimes no commons at all!

O'SHEEVO.—Thin claret?

OLDHAM.—Thin! the devil a drop. Sherry sometimes, of a quality according to our luck; but for claret we had to keep our stomachs till we got over the

Pyrenees;—then, I may say, it ran in the rivers.

O'SHEEVO.—The devil it did! Then I hope the next Peninsular expedition will sail direct for the coast of France.

LOVELL.—But if this invasion—

OLDHAM.—Well, now,—look here. Well, here's Cherbourg, this glass, do you see? well then, this is Portsmouth, this other—and this dirty one, if I can reach it—damn it, I've broke my own, stretching, across the table.

O'SHEEVO—PIPECLAY.—Two for one! Two for one!

OLDHAM.—Well, never mind; 'twas awkward. We don't stand the jokes the old 107th used to cut: there, if you only made the smallest chip in the stem of a glass, you were stuck for your new pair, while the damaged one did duty as well as ever. There wasn't a glass in the mess that hadn't reproduced itself in double at least nine times.

O'SHEEVO.—By the powers! that beats the phaynix, who never became twins, that I heard of. I'd not have stood it from any one. A glass that I broke and paid for, I'd consider my own intirely.

PIPECLAY.—They had no right to put a glass on the table after it had been paid for; the regulations wouldn't allow it.

OLDHAM.—Oh! nobody knew any thing about the regulations in the old 107th. The colonel was a trump, and the lads were trumps, so they followed suit, and no lawyering.

PIPECLAY.—A colonel has no right to enforce an unjust charge.

OLDHAM.—Well, perhaps not; but in our days we never troubled our heads about what was just or unjust. It's a bad sign of a corps when men begin to talk of their rights.

LOVELL.—True, Oldham; you were saying, suppose that Cherbourg, the other Portsmouth—here's a third glass for you to complete.

PIPECLAY.—I beg your pardon one minute, Lovell. I wish to convince Oldham that there is some advantage in knowing how to assert your own

rights.

O'SHEEVO.—I deny that *in toto*. The Ballyswig estate would have been in the O'Sheevo family to this day, if my great-aunt hadn't wished to assert her right to a haycock, which brought the title in question, and caused us to lose the whole property.

PIPECLAY.—But if another had a just claim?

O'SHEEVO.—Just humbug! The opposite side retained Counsellor Curran, who'd have persuaded a jury out of their Sunday waistcoats, with a five-shilling piece in the pocket of each.

OLDHAM.—Well, well. Now, look here, Lovell. This, as I said, is Cherbourg—this Portsmouth. Ellis, of the staff corps, used always to illustrate this way; did you ever meet him?

LOVELL.—What! the owner of May-Bee, who won the military steeplechase, two years ago? To be sure, I did: devilish sharp fellow he was too.

PIPECLAY.—I don't know that: he broke down in some charges he preferred against Sergeant O'Flinn of the Royal County Down, who was acquitted by a general court-martial. A fellow who does that, may be a very good fellow, but can't have much head-piece.

LOVELL.—May-Bee was a pretty piece of goods though. I saw the poor thing break her back last spring, under Jack Fisher of the carabineers: Jack nearly went out at the same time. Devilish sharply contested thing, till poor May-Bee's accident. Jack was picked up,—dreadful fall, as the papers said—gallant captain—small hopes of recovery—be universally regretted through the regiment—popular qualities—and that sort of thing; but somehow he marched to Nottingham at the head of his troop, a fortnight after, worth fifty dead men.

PIPECLAY.—What do you value a dead man at, Lovell?

O'SHEEVO.—If a thing's worth what it'll *fetch*, a dead man's value wouldn't burst the Exchequer.

LOVELL.—Thank you, Major, for getting me out of that; the Adjutant was going to bring me up rather straitly.

O'SHEEVO.—He's the very boy to do that. A bigoted ram's horn under his hands, would be forced to relinquish its prejudices. Nobody stoops to conquer in his academy. Send for another jug, and we'll go on with our discussion. Smart letter that of the old Duke's.

OLDHAM.—Who'll be commander-in-chief when the old Briton dies?

PIPECLAY.—It'll depend upon the ministry of the day, which I hope will be a distant one. If he could only anticipate his posthumous fame now, how complete would be his glory.

O'SHEEVO.—Sure, he's got his posthumous fame already: he's not obliged, like the ancients, to immortalise himself by committing suicide.

LOVELL.—Certainly not, Major. Well, you know the Duke sees the necessity of defending our coasts—

PIPECLAY.—And of increasing the army. I have a plan of my own for raising men, which I shall propose, some day or other, to the Horse Guards.

OLDHAM.—There's no difficulty in getting men; any quantity may be raised in Ireland.

O'SHEEVO.—That's true, because any quantity are knocked over every day there; but they, poor men! are beyond the skill of even an adjutant.

PIPECLAY.—At any rate I should like to give my system a fair trial.

O'SHEEVO.—I have no opinion of systems; I've known many men entirely ruined by them.

PIPECLAY.—How so, Major?

O'SHEEVO.—Why, I knew a man who used to get a little jolly two or three times a-week, as occasion invited. Some well-meaning friends reproached him with the irregularity of his life, and pestered him to adopt a system, which, for the sake of peace and quietness, he at last did, and got blazing drunk every night; his own spirit didn't like the foreign invasion, and evacuated the place—that was system!

LOVELL.—We don't much relish the idea of foreign invasion ourselves.

PIPECLAY.—Let 'em come. If they intend to get a regular footing here, they would probably make a dash at Portland island.

OLDHAM.—Now my idea is this. Suppose them embarked in steamers, and starting for a point on our coast,—a few old fellows, who know what Frenchmen are made of, are stationed at all the landing-places, while a railway communication enables them to be quickly collected in one point.

PIPECLAY.—I should object to old fellows as unfit for such sharp duties: active, intelligent young men would be better.

OLDHAM.—Pshaw! what's theory against Frenchmen? give me the old second battalion of the 107th before all the boys in the service.

PIPECLAY.—And give me smart youngsters, who would move.

OLDHAM.—I'd like to see such Johnny Raws oppose a landing.

PIPECLAY.—It stands to reason they must be better than a parcel of old worn-out sinners.

O'SHEEVO.—Bravo! I'd like to hear this question fairly handled. You see, Lovell, that's the advantage of military breeding; we can discuss these topics without the rudenesses that you observe in civil life. Every man, young or old, may give his opinion, and be patiently listened to at a mess table.

LOVELL.—It is certainly a great advantage.

OLDHAM.—I must maintain the superiority of veteran troops for all important duties;—you see a parcel of recruits would play the devil,—it's all stuff!

LOVELL.—But, if I may be allowed to remark—

OLDHAM.—You, sir! damme! what should you know about it? What are you, eh? A stripling, a mere stripling. By Jove, sir, if you had been in the 107th, you would have seen what they thought of such forwardness.

LOVELL.—You really mistake me,—I had no intention—

O'SHEEVO.—Well, well; but you mustn't be obstinate you know, my boy, in matters that you can't possibly know much about; you can never learn any thing that way.

PIPECLAY.—You should have a little modesty, Lovell.

O'SHEEVO.—We're a liberal set of fellows here; but, by Jove, Lovell, I've known many a man that would have asked you to a leaden breakfast. Young Spanker of the 18th was called out by old Mullins for only asking him to repeat the number of oysters he said he ate in his great bet with M'Gobble. They fired six shots without effect, and Mullins was thought very lenient in not asking for an apology or the seventh.

OLDHAM.—Oh! the service would go to the devil if youngsters were allowed to lay down the law.

PIPECLAY.—That would never do.

OLDHAM.—A strange file was that old Mullins you were talking of. Our second battalion was quartered with the 18th once, in Chatham barracks, when there were some memorable sittings.

PIPECLAY.—I saw old Mullins once only, and then I could form little opinion of him, as he was half screwed.

O'SHEEVO.—Half screwed! you must be mistaken.

PIPECLAY.—I assure you I am rather under the mark in saying half screwed.

O'SHEEVO.—Ah! I knew he never made so near an approach to sobriety as to be half screwed.

OLDHAM.—*He* would have been the fellow to receive the French! Come, now, Lovell, I'll show you, if you won't be obstinate and contradictory.

LOVELL.—Upon my word, Oldham—

OLDHAM.—There you, fly out again now; it's impossible to do any thing with a youngster unless he has a tractable disposition. Here now, as I said, is Cherbourg,—here Portsmouth,—this little streak that I draw with my finger,

the Channel. Jersey is somewhere there by the devilled biscuits; dy'e understand, Lovell?

LOVELL.—Thank you, I do.

OLDHAM.—Good. Then this is our coast well manned, throughout its length, with troops: steady tried troops, mind, none of your gaping, staring boys:—well protected.

PIPECLAY.—How protected?

OLDHAM.—How should I know? The engineers do that; of course they'd protect 'em with glacis, or ravelins or tenailles, or some of those damned jawbreaking named things;—well protected by works and cannon.

O'SHEEVO.—Did you see that extraordinary cannon that West made in the mess-room this morning?

PIPECLAY.—Ah! yes,—not bad, but I've seen finer strokes than that. You should have seen Legge of the 32d play.

LOVELL.—Or Chowse of the artillery; by Jove! how he knocks about the balls! like an Indian juggler.

O'SHEEVO.—Both good hands; ye're not a bad fist at billiards yourself, Oldham.

OLDHAM.—I seldom play now;—getting old;—played many a good match in the 107th's mess-room; but I think I could astonish Master West.

PIPECLAY.—Well, if he'll play a match, I don't mind backing him against you even.

O'SHEEVO.—And I'll go five to four on the youngster to make the thing worth your while.

OLDHAM.—Oh! no, no; 'twouldn't do for me to be playing matches with a raw recruit like that: 'twouldn't be dignified.

O'SHEEVO.—Would it be more dignified if I said three to two?

OLDHAM.—Say two to one and I don't mind a rubber;—one rubber, remember.

O'SHEEVO.—Done then. Let's have it to-morrow, if we can. West comes off guard in the morning, so there's the more chance of his being steady and willing to play; when they get hold of him overnight, he's always shaky and sulky next day till four or five o'clock. A bad constitution is a sad tell-tale under a red coat; a bishop chokes, or an anti-corn-law leaguer is attacked with pleurisy from his exertions in the cause of humanity; a lawyer's nose gets red from having his mind continually on the stretch; but if an ensign's colours only tremble a little in a strong gale, he's set down for a hard goer.

PIPECLAY.—It's a great thing to be able to carry one's liquor well.

O'SHEEVO.—Rather it's a dreadful misfortune when you can't. I always fancy that when a man can't show a bold face the morning after, he's been a great sinner.

OLDHAM.—Or that his forefathers have been so; I believe that posterity have to expiate the sins of their ancestors.

O'SHEEVO.—But, as a man can neither be his ancestors nor his posterity, I don't see that he need mind that.

PIPECLAY.—His ancestors' posterity is surely his affair.

O'SHEEVO.—It's quite enough for a man to think of his own posterity without minding that of his ancestors.

PIPECLAY.—He can't well help minding his ancestors when he daily and hourly feels the effects of their indiscretions.

O'SHEEVO.—But d'ye mean to say that if all his ancestors were fast men, the whole of their diseases would be accumulated on his shoulders?

PIPECLAY.—Not exactly. These things wear out in time, or are got rid of by crossing the breed; the nearer in time a man is to his rollicking ancestor, the more plainly he shows the hereditary taint.

O'SHEEVO.—Then if he's his contemporary he's as bad as himself. I don't think, though, that my father showed the want of the Ballyswig estate a bit

more than I do. Bad luck to my old aunt who forgot her successors though her ancestors remembered her.

OLDHAM.—Buzza that jug, Lovell, and touch the bell for another; these discussions make one thirsty.

O'SHEEVO.—Thirst is nothing here to what it is in the tropics. By Jove! how I used to suffer at Jamaica.

LOVELL.—Nature is said to have there provided for the craving by a bountiful supply of water. The name Jamaica signifies, I believe, the "Isle of Springs." You had excellent water there, Major, had you not?

O'SHEEVO.—I always understood the water was very good, but I can't exactly remember that I ever tasted it. Nature is an affectionate mother, but there's no nourishment in her milk, so I put myself out to nurse upon sangree and portercup.

PIPECLAY.—Nasty, unwholesome stuff; there's a yellow fever in every glass of it.

O'SHEEVO.—It may be one of the ingredients; but that's no matter, if it's well mixed, because the other things correct it.

OLDHAM.—Our old second battalion buried I don't know how many in the seven years they spent out there. They always took the more intricate mixtures in the day time;—madeira and champagne at dinner, claret after, and topped up with brandy and water; after which they adjourned to settle, in the morning light, any little affairs of honour that had turned up in the evening.

LOVELL.—Were these of so regular occurrence?

OLDHAM.—Seldom missed a night. The old cotton tree outside the mess-room, at Stoney Hill, was always one of the stations; and as full of bullets as a pudding is of plums. It was settling every thing before the meeting separated that made us such a united jolly set of fellows.

PIPECLAY.—How much better we do things in the present day!

OLDHAM.—Another of your modern prejudices. How can any man of spirit think the investigations, explanations, and newspaper correspondence as creditable as settling the matter off-hand and like gentlemen?

PIPECLAY.—But a duel does not always settle the right and wrong of an affair; and surely the party in the wrong ought to be the sufferer. Human life has a higher value than in old times; and, therefore, to avoid the casualties caused by duels, the laws punish the duellist.

O'SHEEVO.—That's just it. In old times, if a man was killed there was an end; but now, to show the value of human life, the law hangs the survivor. The fact is, they find it necessary to thin the population, and so they take two for one, as we do with the glasses.

OLDHAM.—I'm afraid, Pipeclay, you and I will never agree in these matters. It's a pity you never had the advantage of seeing a little active service, which would have enlightened you far more than all my preaching. We'll hope better things for these youngsters before they become irretrievably bigoted to these milk-and-water prejudices. Well now, Lovell, d'ye think you understand all I said about the French invasion? If you don't, ask, and I'll give you any explanation my experience supplies, with pleasure.

LOVELL.—I don't exactly understand how you would proceed after guarding your coast, and the enemy being off and on the shore.

OLDHAM.—Why, man, you never will understand if you don't attend. Here have I been talking this hour and a half exactly on that point, and you know no more about it than if I had not said a word. You must see, Lovell, that if you are thinking about horses, and women, and all sorts of nonsense, while I'm talking to you, you never can make a soldier. You should have seen our boys in the 107th. They would sit for hours and hold their breaths, while some old fire-eater told 'em his adventures and gave 'em advice.

O'SHEEVO.—Then they must have been as long-winded as he was.

OLDHAM.—Pshaw! Nothing of that sort ever seemed long-winded: the interest was thrilling, and every body was unhappy when a story was ended.

O'SHEEVO.—Except the man that was going to tell the next.

OLDHAM.—But really I wish we could get these youngsters to think a little more on professional subjects. I'm sure I'm always willing to give 'em any instruction in my power; and I think, Major, you'd not be behindhand in teaching the young idea how to shoot.

O'SHEEVO.—No, no, Oldham; every one to his trade,—that's the adjutant's business.

OLDHAM.—I don't mean literally that you'd show them how to let off a musket, but that you'd mould their dispositions, and guide their ardour to the best advantage.

O'SHEEVO.—My maxims are all summed up in a short sentence which I learnt from old Mullins himself, who found it carry him and his pupils through with honour—"Fear God and keep your powder dry." It's pithy, you see, and doesn't burden the memory.

PIPECLAY.—A liberal education for ingenuous youth.

O'SHEEVO.—I gave it for nothing, and so did old Mullins; so it's liberal enough, and the youth will be devilish ingenious if they find out any thing better.

OLDHAM.—I never, myself, see any good come of the hair-splitting and lawyering of the new school; indeed, I don't know what could be better than our second battalion was. Nowadays, by Jove! any whipper-snapper jackanapes, with a pocket full of money and the grimaces of a dancing-master, walks easily to the top of the tree, while an old soldier's services go for nothing. What did the Duke himself say to me thirty-five years ago? Never mind, damme!

LOVELL.—Indeed! what did he say?

OLDHAM.—Never you mind what he said; he'll never say it to you. An infernal system when fellows sit at a desk and think they're soldiers. I'm no office man, damme! leading on is my forte; let them promote quill-drivers and milksops if they like, what does Dick Oldham care? I've been bred among the right sort, and I'll go to my grave a real soldier, if not a fortunate one.

O'SHEEVO.—That's true, Oldham; when they fire over you, old boy, 'twont be the first time you smelt powder.

LOVELL.—I hope Oldham will have another meeting or two with his old friends over the water before that.

OLDHAM.—Oh! confound it! don't say a word about it; they'll soon forget what a soldier used to be. It's sickening—by Jove! sickening. I'd have been a colonel of infantry before now, if there'd been any thing like justice. Never mind.

O'SHEEVO.—It's not too late yet. They must have soldiers where there's danger; they'll restore the old second battalion of the 107th, when the French come, and you'll command it yet.

OLDHAM.—Ugh! bother! (*Sleeps.*)

PIPECLAY.—I thought so. The detail of his grievances, and a lamentation over modern degeneracy, are generally the prelude to a nap; fine old fellow, if he wasn't so sadly bigoted.

O'SHEEVO.—Yes, but when means are scarce, men are driven into extremes; we sometimes overrate our capacities; if our friend here were to be put into a colonel of infantry's shoes to-morrow, he'd not find his position a bed of roses.

LOVELL.—I wish he'd gone on about the coast defences, that's what I wanted to hear.

O'SHEEVO.—Sure, that's very ungrateful of you, when we've all been talking for your edification.

PIPECLAY.—Patience, Lovell, patience; you can't learn all the art of war in a minute; follow the thing up, and you'll know all about it by-and-by. A death vacancy'll be giving me my step, some of these days, and I should like to throw my mantle over you, I confess.

O'SHEEVO.—D'ye, mean that seedy old cloak that you've used these last fifteen years? if any one was to throw such a thing over me, I should consider it a personal affront.

PIPECLAY.—You're so literal, Major.

O'SHEEVO.—Ye're wrong there; I never composed any thing in my life, more to be blushed for than punch or sangree, and there's nothing literal in them except their being liquids.

PIPECLAY.—But I meant if Lovell could be eligible to succeed me in the adjutancy.

O'SHEEVO.—Oh! Lovell'll do very well by-and-by; those duties of yours are a little unpalatable at first; but by working at them they become easier, and an effort beyond that will make you do them quite involuntarily.

PIPECLAY.—There's encouragement for you, Lovell; the Major thinks you'll do, and I've great hopes of you myself.

LOVELL.—You're very good, I'm sure. Military discussions interest me much; I'm only anxious to hear you go on.

PIPECLAY.—It's getting late now; another time we'll resume the subject.

O'SHEEVO.—Yes, in a day or two. It's very good to rub up a little military stuff occasionally, but it is bad taste to be always talking shop. We've had a good dose for to-night, and to-morrow we must have a little light, easy conversation. Touch Oldham's arm, will you, Pipeclay, and let's jog. (*Pipeclay shakes Oldham.*)

OLDHAM.—Damned forward young humbugs! what the devil do they know about it? eh? what, going to mizzle?

O'SHEEVO.—Yes, the jug's empty, and I'm telling Lovell he must come again, and he'll like it better, and we'll make a soldier of him at last.

OLDHAM.—Ah! I'm afraid you'll do no good with any of them nowadays; he should have been in the 107th. Well, good-night, Lovell; we'll do what we can.

O'SHEEVO—PIPECLAY.—Good-night, Lovell; sleep upon it.

(*Exeunt Pipeclay, O'Sheevo, and Oldham. Lovell remains to light a cigar.*)

LOVELL.—Good-night. Well, I don't know but I might have spent the evening just as profitably if I'd gone to Jones's room, as he asked me. These old fellows are devilish close. However, patience, as the adjutant says. (*Exit.*)

HUDSON'S BAY.

[S]

How few school-boys, newly emancipated from the manual remonstrances of their respective Cleishbothams, but would welcome with overflowing delight the prospect of a distant and adventurous voyage, no matter whither or on what errand! How few but would prefer a cruise in the far Pacific, a broil amidst Arabian sands, or a freeze in the Laplander's icy regions, to the scholastic toga, the gainful paths of commerce, or even to the gaudy scarlet, so ardently aspired to by many youthful imaginations! But to how very few, in this iron age of toil, is it given to roam at the time of life when roaming is most delightful—when the heart is light and the body strong, when the spirits are high, and thoughts unclogged by care, and when novelty and locomotion constitute keen and real enjoyment! A book by one of the fortunate minority is now before us, and a very pleasant book it is, but as yet unknown to the public; since, for some unexplained reason, whose goodness we incline to doubt, it has been printed for the perusal of friends, instead of being boldly entered to run for the prize of popular approval. If timidity was the cause, the feeling was groundless; the colt had more than a fair chance of the stakes. We would have wagered odds upon him against nags of far greater pretensions. To drop the equine metaphor, we daily see books less meritorious, and infinitely less entertaining, than Mr Ballantyne's "Hudson's Bay," confidently paraded before a public, whose suffrages do not always justify the authors' presumption. Our readers shall judge for themselves in this matter. Favoured with a copy of the privately circulated volume, we propose giving some account of it, and making a few extracts from its varied pages.

First, as regards the author. It is manifest, from various indications in his book, that he is still a very young man; and although he does not explicitly state his age, we conjecture him to have been about fifteen or sixteen years old when, in the month of May 1841, he was thrown into a state of ecstatic joy by the receipt of a letter, appointing him apprentice-clerk in the service of the Honourable Hudson's Bay Company. At first sight there certainly

does not appear any thing especially exhilarating in such an appointment, which to most ears is suggestive of a gloomy office in the city of London, of tall stools, canvass sleeves, and steel pens. A most erroneous notion! There is not more difference between the duties of an African Spahi and a member of the city police, than between those of a Hudson's Bay Company's clerk and of the painstaking individual who accomplishes two journeys *per diem* between his lodging at Islington and his counting-house in Cornhill. Whilst the latter draws an invoice, effects an insurance, or closes an account-current, the Hudson's Bay man shoots bears and rapids, barter peltry with painted Indians, and traverses upon his snow-shoes hundreds of miles of frozen desert. We might protract the comparison, and show innumerable points of contrast, but these will appear as we proceed. Before we draw on our blanket coats, and the various wrappers rendered necessary by the awful severity of the climate, and plunge with Mr Ballantyne into the chill and dreary wilds to which he introduces us, we will give, for the benefit of any of our readers who may chance to have few definite ideas of the Hudson's Bay Company, beyond stuffed carnivora and cheap fur-shops, his brief account of the origin of that association.

"In the year 1669, a company was formed in London, under the direction of Prince Rupert, for the purpose of prosecuting the fur trade in the regions surrounding Hudson's Bay. This company obtained a charter from Charles II., granting to them and their successors, under the name of 'The Governor and Company of Adventurers trading into Hudson's Bay,' the sole right of trading in all the country watered by rivers flowing into Hudson's Bay. The charter also authorised them to build and fit out men-of-war, establish forts, prevent any other company from carrying on trade with the natives in their territories; and required that they should do all in their power to promote discovery. Armed with these powers, then, the Hudson's Bay Company established a fort near the head of James's Bay. Soon afterwards, several others were built in different parts of the country; and before long, the company spread and grew wealthy, and extended their trade far beyond the chartered limits."

Of what the present limits are, as well as of the state, aspect, arrangements, and population of the Hudson's Bay territory, a very clear and distinct notion is given by the following paragraph.

"Imagine an immense extent of country, many hundred miles broad and many hundred miles long, covered with dense forests, expanded lakes, broad rivers, and mighty mountains, and all in a state of primeval simplicity, undefaced by the axe of civilised man, and untenanted save by a few roving hordes of red Indians, and myriads of wild animals. Imagine, amid this wilderness, a number of small squares, each enclosing half-a-dozen wooden houses, and about a dozen men, and between each of these establishments a space of forest varying from fifty to three hundred miles in length, and you will have a pretty correct idea of the Hudson's Bay territories, and of the number of, and distance between, their forts. The idea, however, may be still more correctly obtained, by imagining populous Great Britain converted into a wilderness, and planted in the middle of Rupert's Land; the company, in that case, would build *three* forts in it—one, at the Land's End, one in Wales, and one in the Highlands; so that in Britain there would be but three hamlets with a population of some thirty men, half a dozen women, and a few children! The company's posts extend, with these intervals between, from the Atlantic to the Pacific Ocean, and from within the Arctic Circle to the northern boundaries of the United States.

"Throughout this immense country, there are probably not more ladies than would suffice to form half-a-dozen quadrilles; and these, poor banished creatures! are chiefly the wives of the principal gentlemen connected with the fur trade. The rest of the female population consist chiefly of half-breeds and Indians—the latter entirely devoid of education, and the former as much enlightened as can be expected from those whose life is spent in such a country. Even these are not very numerous; and yet without them the men would be in a sad condition; for they are the only tailors and washerwomen in the country, and make all the mittens, moccassins, fur caps, deer-skin coats, &c., &c., worn in the land."

To these desolate and inhospitable shores was bound the good ship Prince Rupert, on board of which Mr Ballantyne took his berth at Gravesend, converted in his own opinion, and by the simple fact of his appointment to the H. B. Company's service, from a raw school-boy into a perfect man of the world, and important member of society. He writes in a very lively style, and there is some quiet humour in his first impressions of the new scenes and associates into which he suddenly found himself thrust. He had not been many hours on board the Prince Rupert, when he beheld a small

steamboat approach, freighted with a number of elderly gentlemen. He was enlightened as to who these were by the remark of a sailor, who whispered to a comrade, "I say, Bill, them's the great guns!" In other words, the committee of the Honourable Hudson's Bay Company come to visit the three fine vessels which were to sail the following morning for their distant dominions. Of course this was too good a pretext for a dinner to be lost sight of by Englishmen; and before the gentlemen of the committee left the ship, they duly invited the captain and officers, and also, to the new apprentice-clerk's astonishment and delight, begged him to honour them with his company.

"I accepted the invitation with extreme politeness; and, from inability to express my joy in any other way, winked to my friend W——, with whom I had become, by this time, pretty familiar. He, having been also invited, winked in return to me; and having disposed of this piece of juvenile freemasonry to our satisfaction, we assisted the crew in giving three hearty cheers as the little steamer darted from us, and proceeded to the shore." At the dinner "nothing intelligible was to be heard, except when a sudden lull in the noise gave a bald-headed old gentleman, near the head of the table, an opportunity of drinking the health of a red-faced old gentleman near the foot, upon whom he bestowed an amount of flattery perfectly bewildering; and, after making the unfortunate red-faced gentleman writhe for half an hour in a fever of modesty, sat down amid thunders of applause. Whether the applause, by the way, was intended for the speaker or the *speakee*, I do not know; but, being quite indifferent, I clapped my hands with the rest. The red-faced gentleman, now purple with excitement, then rose, and, during a solemn silence, delivered himself of a speech, to the effect, that the day then passing was certainly the happiest in his mortal career, and that he felt quite faint with the mighty load of honour just thrown upon his delighted shoulders by his bald-headed friend. The red-faced gentleman then sat down to the national air of Rat-tat-tat, played in full chorus, with knives, forks, spoons, nutcrackers, and knuckles, on the polished surface of the mahogany table."

The whole account of the voyage out is very pleasantly given; but such voyages have often been described with more or less success; and we therefore pass to dry land, and to men and manners in Hudson's Bay, which have been far less frequently written about. In his preface Mr Ballantyne

affirms, and with reason, the novelty of his subject. "It is true," he says, "that others have slightly sketched it in books upon Arctic discovery, and in works of general information; but the very nature of these publications prohibited their entering into a lengthened or minute description of EVERY-DAY LIFE,—the leading feature of the present work." To this "every-day life," strikingly different from life in any other country of the world, we are first introduced at York Factory, the principal depot of the Company's northern department, the whole country being divided into four departments, known by the distinctive names of North, South, Montreal, and Columbia. At this factory, after a passage in a small craft up the Hayes River, Mr Ballantyne landed. Any one less willing to rough it, and less determined to encounter all disagreeables with perfect good temper, would speedily have been disgusted with Hudson's Bay by a residence in this establishment. Mr Ballantyne does not conceal its disagreeables. "Are you, reader," he says, "ambitious of dwelling in 'a pleasant cot in a tranquil spot, with a distant view of the changing sea?' If so, do not go to York Factory. Not that it is such an unpleasant place—for I spent two years very happily there—but simply (to give a poetical reason, and explain its character in one sentence) because it is a monstrous blot on a swampy spot, with a partial view of the frozen sea." Having given it this unfavourable character, the counsel for the prosecution stands up for the defence, and begins to prove York Factory better than it looks. But, argue it as he may, the abominations of the place, and especially of the climate, force themselves into prominence. Spring, summer, and autumn are included in four months, from June to September, which leaves eight months winter—and such winter! It is difficult for stay-at-home people, who at the first ice-tree upon their windows creep into the chimney corner and fleecy hosiery, to imagine such in execrable temperature as that of Hudson's Bay, where, from October to April, the thermometer seldom *rises* to the freezing point, and frequently falls from 30° to 40°, 45°, and even 49° below zero of Fahrenheit. Luckily, however, this intense cold is less felt than might be supposed; for the reason that, whilst it lasts, the air continues perfectly calm. The slightest breath of wind would be destruction to noses, and, indeed, no man could venture out in it. This dry, still cold is very healthy, much more so than the heat of summer, which for a short time is extreme, engendering millions of flies, mosquitoes, and other nuisances, that render the country unbearable. It seems strange that, in a region where spirit of wine is the only thing that can

be used in thermometers, because mercury would remain frozen nearly half the winter, mosquito nets are, for a portion of the year, as necessary as in the torrid zone. "Nothing could save one from the attacks of the mosquitoes. Almost all other insects went to rest with the sun: sandflies, which bit viciously during the day, went to sleep at night; the large *bulldog*, whose bite is terrible, slumbered in the evening; but the mosquito, the long-legged, determined, vicious, persevering mosquito, whose ceaseless hum dwells for ever in the ear, *never* went to sleep! Day and night the painful tender little pimples on our necks, and behind our ears, were being constantly retouched by these villanous flies." Worse even than midges by a Scottish burn; and those, heaven knows, are bad enough. The young gentlemen at York Factory, however, thought it effeminate to combat the bloodsuckers with the natural defensive weapon of a gauze canopy, and, in spite of various ingenious expedients, such as rendering their rooms unbearable by bonfires of damp moss and puffs of gunpowder, they were preyed upon by the mosquitoes, until frost put a period to their sufferings, and to the existence of their persecutors.

The account of York Factory, or Fort, (as all establishments in the Indian country, whether small or great, are called,) gives a general notion of the style and appearance of the more important of these trading posts. Within a large square, of about six or seven acres, enclosed by high stockades, nearly five miles above the mouth of Hayes River, stand a number of wooden buildings, stores, dwelling-houses, mess-rooms, and lodgings for labourers and tradesmen, as well as for visitors and temporary residents. The doors and windows are all double, and the houses heated by large iron stoves, fed with wood; "yet so intense is the cold that I have seen the stove in places *red-hot*, and a basin of water in the room *frozen solid*." So unfavourable is the climate to vegetation, that scarcely any thing can be raised in the small plot of ground called by courtesy a garden. Potatoes now and then, for a wonder, become the size of walnuts; and sometimes a cabbage and a turnip are prevailed upon to grow. The woods are filled with a great variety of wild berries, among which the cranberry and swampberry are considered the best. Black and red currants, as well as gooseberries, are plentiful, but the first are bitter, and the latter small. The swampberry is in shape something like the raspberry, of a light yellow colour, and grows on a low bush, almost close to the ground. The country around the fort is one

immense level swamp, thickly covered with willows, and dotted here and there with a few clumps of pine-trees. Flowers there are none, and the only large timber in the vicinity grows on the banks of Hayes and Nelson rivers, and is chiefly spruce-fir. On account of the swampy nature of the ground, the houses in the fort are raised several feet upon blocks, and the squares are intersected by elevated wooden platforms, forming the inhabitants' sole promenade during the summer, at which season a walk of fifty yards beyond the gates ensures wet feet. These, and other details, give so pleasant an idea of York Factory, that one wonders at and admires the philosophy exhibited by its residents; by that portion of them, at least, inhabiting the "young gentlemen's house." Bachelor's Hall, as the young gentlemen themselves call it, was the scene, during Mr Ballantyne's abode there, of much hilarity and frolic, and we get a laughable account of the high jinks carried on there. The building itself, one storey high, comprised a large hall, whence doors led to the sleeping apartments of the clerks, apprentices, and other subalterns. The walls of this hall, originally white, were smoked to a dirty yellow; the carpetless floor had a similar hue, agreeably diversified by large knots; and in its centre, upon four crooked legs, stood a large oblong iron box, with a funnel communicating with the roof. This was the stove, besides which the only furniture, consisted of two small tables and half-a-dozen chairs, one of which latter being broken, and moreover light and handy, was occasionally used as a missile upon occasion of quarrels. The sleeping apartments contained a curtainless bed, a table, and a chest; they were carpetless, chairless, and we should have thought supremely comfortless, but for Mr Ballantyne's assurance that "they derived an appearance of warmth from the number of great-coats, leather capotes, fur caps, worsted sashes, guns, rifles, shot-belts, snow-shoes, and powder-horns, with which the walls were profusely decorated." As we have already intimated, the amount of wrappers required to resist the cold out of doors is so great that it is difficult to conceive how the wearers can have sufficient use of their limbs, when thus swaddled, to follow field-sports, and go through exertion and exercise of various kinds.

"The manner of dressing ourselves was curious. I will describe C—— as a type of the rest. After donning a pair of deerskin trousers, he proceeded to put on three pair of blanket socks, and over these a pair of moose-skin moccasins. Then a pair of blue cloth leggings were hauled over his trousers,

partly to keep the snow from sticking to them, and partly for warmth. After this he put on a leather capote edged with fur. This coat was very warm, being lined with flannel, and overlapped very much in front. It was fastened with a scarlet worsted belt round the waist, and with a loop at the throat. A pair of thick mittens, made of deerskin, hung round his shoulders by a worsted cord, and his neck was wrapped in a huge shawl, over the mighty folds of which his good-humoured visage beamed like the sun on the edge of a fog-bank. A fur cap with ear-pieces completed his costume. Having finished his toilet, and tucked a pair of snow-shoes, five feet long, under one arm, and a double-barrelled fowling-piece under the other, C—— waxed extremely impatient, and proceeded systematically to aggravate the unfortunate skipper, (who was always very slow, poor man, except on board ship,) addressing sundry remarks to the stove upon the slowness of sea-faring men in general and skippers in particular." The intention of these preparations was an onslaught upon the ptarmigan, and upon a kind of grouse called wood-partridges by the Hudson's Bay people. The game is for the most part very tame in those regions. After nearly filling their game-bags, the sportsmen "came suddenly upon a large flock of ptarmigan, so tame that they would not fly, but merely ran from us a little way at the noise of each shot. The firing that now commenced was quite terrific: C—— fired till both barrels of his gun were stopped up; the skipper fired till his powder and shot were done; and I fired till—*I skinned my tongue!* Lest any one should feel surprised at the last statement, I may as well explain *how* this happened. The cold had become so intense, and my hands so benumbed with loading, that the thumb at last obstinately refused to open the spring of my powder-flask. A partridge was sitting impudently before me, so that, in fear of losing the shot, I thought of trying to open it with my teeth. In the execution of this plan, I put the brass handle to my mouth, and my tongue happening to come in contact with it, stuck fast thereto,—or, in other words, was frozen to it. Upon discovering this, I instantly pulled the flask away, and with it a piece of skin about the size of a sixpence; and, having achieved this little feat, we once more bent our steps homewards." Upon their way, they were surprised by a storm; a tempest of hail and a cutting wind catching up mountains of snow in the air and dashing them into dust against their faces. Notwithstanding all the paraphernalia of wool and leather above described, they felt as if clothed in gauze; whilst their faces seemed to collapse and wrinkle up as they turned their backs to the wind

and covered their agonised countenances with their mittens. On reaching Bachelor's Hall, like three animated marble statues, snow from head to foot, "it was curious to observe the change that took place in the appearance of our guns after we entered the warm room. The barrels and every bit of metal upon them, instantly became white, like ground glass. This phenomenon was caused by the condensation and freezing of the moist atmosphere of the room upon the cold iron. Any piece of metal, when brought suddenly out of such intense cold into a warm room, will in this way become covered with a pure white coating of hoar-frost. It does not remain long in this state, however, as the warmth of the room soon heats the metal and melts the ice. Thus, in about ten minutes our guns assumed three different appearances. When we entered the house they were clear, polished, and dry; in five minutes they were white as snow; and, in five more, dripping wet."

The principal articles in which the Hudson's Bay Company trade, are furs of all kinds, oil, dry and salt fish, feathers and quills. Of the furs, the most valuable is that of the black fox, which resembles the common English fox, but is much larger and jet black, except one or two white hairs along the back bone, and a white tuft at the end of the tail. This animal's skin is very valuable, worth twenty-five to thirty guineas in the English market, but the specimens are very scarce. Besides the black fox, there are silver foxes, cross foxes, red, white, and blue foxes, whose hides are variously esteemed. The black, silver, cross, and red, are often produced in the same litter, the mother being a red fox. Beaver was formerly the grand article of commerce, but Paris hats have killed the demand and saved the beavers, which now build and fatten in comparative security. The marten fur is the most profitable Hudson's Bay produces. All the animals above named, and a few others, are caught in steel and wooden traps by the natives. Deer and buffaloes are run down, shot, and snared. Mr Ballantyne rather startles us by the statement, that the Indians can send an arrow through a buffalo. "In the Saskatchewan, the chief food, both of white men and Indians, is buffalo meat, so that parties are constantly sent out to hunt the buffalo. They generally chase them on horseback, the country being mostly prairie land; and, when they get close enough, shoot them with guns. The Indians, however, shoot them oftener with the bow and arrow, as they prefer keeping their powder and shot for warfare. They are very expert with the bow,

which is short and strong, and can easily send an arrow quite through a buffalo at twenty yards off." We almost suspect Mr Ballantyne of drawing a longer bow than his Indian friends. We do not understand him, however, to have himself seen any of these marvellous shots, (although he gives a spirited little drawing of a buffalo hunt,) and perhaps some of the wild fellows of the Saskatchewan brigade imposed upon his youthful credulity. These "brigades" are flotillas of boats, manned by Canadian and half-breed *voyageurs*, who take goods for barter to the interior, and bring back furs in exchange. The men of the Saskatchewan "come from the prairies and the Rocky Mountains, and are consequently brimful of stories of the buffalo hunt, attacks upon grizzly bears, and wild Indians; some of them interesting and true enough, but the most of them either tremendous exaggerations or altogether inventions of their own wild fancies." To return, however, to the buffaloes. Two calves were wanted alive, to be sent to England, and a party was ordered out to procure them.

"Upon meeting with a herd, they all set off full gallop in chase; away went the startled animals at a round trot, which soon increased to a gallop as the horsemen neared them, and a shot or two told they were coming within range. Soon the shots became more numerous, and here and there a black spot on the prairie told where a buffalo had fallen. No slackening of the pace occurred, however, as each hunter, upon killing an animal, merely threw down his cap or mitten to mark it as his own, and continued in pursuit of the herd, loading his gun as he galloped along. The buffalo-hunters are very expert at loading and firing quickly while going at full gallop. They carry two or three bullets in their mouths, which they spit into the muzzles of their guns after dropping in a little powder; and, instead of ramming it down with a rod, merely hit the but-end of the gun on the pommel of their saddles, and, in this way, fire a great many shots in quick succession. This, however, is a dangerous mode of shooting, as the ball sometimes sticks half-way down the barrel and bursts the gun, carrying away a finger, a joint, and occasionally a hand.

"In this way they soon killed as many buffaloes as they could carry in their carts, and one of the hunters set off in chase of a calf. In a short time he edged one away from the rest, and then, getting between it and the herd, ran straight against it with his horse and knocked it down. The frightened little animal jumped up and set off with redoubled speed, but another butt from

the horse again sent it sprawling; again it rose and was again knocked down, and, in this way, was at last fairly tired out; when the hunter, jumping suddenly from his horse, threw a rope round its neck and drove it before him to the encampment, and soon after brought it to the fort. It was as wild as ever when I saw it at Norway House, and seemed to have as much distaste to its thralldom as the day it was taken."

Buffalo-meat, however, although abundant in the prairies, is scarce enough in other districts of the Hudson's Bay territory, and so, indeed, is game of all kinds; so that at certain times and seasons, both Indians and Company's servants are reduced to very short commons, and amongst the former starvation is by no means uncommon. The contrasts of diet are as striking as those of climate; the provender varying from the juicy buffalo hump and rich marrow-bone, to miserable dry fish and *tripe-de-roche*—a sort of moss or lichen growing on the rocks, which looks like dried-up sea-weed, and which only the extremity of hunger can render edible. From Peel's River, a post within the Arctic circle, a chief trader writes that all the fresh provisions he has seen during the winter, consisted of two squirrels and a crow. He and his companions had lived on dried meat, and were obliged to lock the gates to keep their scanty store from the Indians, who were literally eating each other outside the fort; for cannibalism is common enough amongst the Indians of that region, and Mr Ballantyne was acquainted with some old ladies who, on more than one occasion, had dined off their own children; whilst some, if report might be believed, had made a meal of their husbands. It is justice to the savages to say, that they do not eat human flesh by preference, but only when urged by necessity, and by the absence of all other viands. They will scrape the rocks bare of the *tripe-de-roche*—which, however, only retards starvation for a time, without preventing it, unless varied by more nutritious food—before cutting up a cousin. Now and then an aggravated case occurs, and one of these we find cited. In the middle of winter, Wisagun, a Cree Indian, removed his encampment on account of scarcity of game. With him went his wife, a son eight or nine years of age, two or three other children, and some relations—ten souls in all. Their change of quarters did not improve their condition. No game appeared, and they were reduced to eat their moccasins and skin coats, cooked by singeing them over the fire. This wretched resource expended, they were on the brink of starvation, when a herd of buffaloes was descried far away on the prairie.

Guns were instantly loaded, and snow-shoes put on, and away went the men, leaving women and children in the tent. But the famished Indians soon grew tired; the weaker dropped behind; Wisagun, and his son Natappe, gave up the chase and returned to the encampment. Wisagun peeped through a chink of the tent, and saw his wife cutting up one of her own children, preparatory to cooking it. In a transport of rage, he rushed forward and stabbed her and a woman who assisted her in her horrible cookery; and then, fearing the wrath of the other Indians, he fled to the woods. When the hunters came in and found their relatives murdered, they were so much exhausted by their fruitless chase, that they could only sit down and gaze on the mutilated bodies. During the night, Wisagun and Natappe returned to the tent, murdered the whole party, and were met, some time afterwards, by another party of savages, in *good condition*; although, from scarcity of game, every body else was starving. They accounted for their well-fed appearance, by saying they had fallen in with a deer, previously to which, however, the rest of the family had died of hunger.

This horrible story was told to an Englishman in the Indian hall of a faraway post in Athabasca, by a party of Chipewyan Indians, come from their winter hunting-grounds to trade furs. They were the same men who had met the two Crees wandering in the plains after getting up their flesh by swallowing their family. The loathsome food had profited them, however, but a short while; for the Chipewyans had hardly told the tale, when "the hall door slowly opened, and Wisagun, gaunt and cadaverous, the very impersonation of famine, slunk into the room with Natappe, and seated himself in a corner near the fire. Mr C—— soon learned the truth of the foregoing story from his own lips; but he excused his horrible deed by saying that *most* of his relations had died before he ate them."

Notwithstanding this sanguinary tale, the Crees, who inhabit the woody country surrounding Hudson's Bay, are the quietest and most inoffensive of all the Indian tribes trading with the Company. They never go to war, scalping is obsolete amongst them, and the celebrated war-dance a mere tradition. But their pacific habits and intercourse with Europeans seem as yet to have done little towards their civilisation. Some of their customs are of the most barbarous description. They have no religion, beyond the absurd incantations of the medicine tent; and the amount of Christianity English missionaries have of late years succeeded in introducing amongst them is

exceedingly small. They drink to excess when they can get spirits; and formerly, when the Hudson's Bay Company, in order to contend successfully with other associations, thought it necessary to distribute rum and whisky to the natives, the use of the "fire-water" was carried to a fearful extent. They smoke tobacco, mingled with some other leaf; are excessively lazy, and great gamblers. Polygamists, they ill-treat their wives, compelling them to severe toil, whilst they themselves indulge in utter indolence, except when roused to the chase. On the march, when old men or women are unable to proceed, they are left behind in a small tent made of willows, in which are placed firewood, provisions, and a vessel of water. Here, when food and wood are consumed, the unfortunate, wretches perish. The habitual dwellings of the Crees are tents, of conical shape, made of deerskin, bark, or branches. The manner of construction is simple and rapid. Three poles are tied together at the top, their lower extremities spreading out in the form of a tripod; a number of other poles are piled around these at half-a-foot distance from each other; and thus a space is inclosed of fifteen to twenty feet in diameter. Over these poles are spread the skin-tent, or the rolls of birch-bark. The opening left for a doorway is covered with an old blanket, a deer-skin, or buffalo-robe; the floor is covered with a layer of small pine branches, a wood fire blazes in the middle; and in this slight habitation, which is far warmer and more comfortable than could be imagined, the Indian spends a few days or weeks, according as game is scarce or plentiful. His modes of securing and trapping the beasts of the plain and forest are curious, often as ingenious and effective as they are simple and inartificial. Mr Ballantyne initiates us in many of them in the course of a nocturnal cruise overland with Stemaw the Indian, which gives an excellent insight into trapper-life at Hudson's Bay. We start with the Cree from his tent, pitched in the neighbourhood of one of the Company's forts, at the foot of an immense tree, which stands in a little hollow where the willows and pines are luxuriant enough to afford shelter from the north wind. We have no difficulty in realising the scene, as graphically sketched by our young apprentice-clerk, who is frequently very happy in his scraps of description:—"A huge chasm, filled with fallen trees and mounds of snow, yawns on the left of the tent, and the ruddy sparks of fire which issue from a hole in its top throw this and the surrounding forest into deeper gloom. Suddenly the deerskin that covers the aperture of the wigwam is raised, and a bright stream of warm light gushes out, tipping the dark-green

points of the opposite trees, and mingling strangely with the paler light of the moon; and Stemaw stands erect in front of his solitary home, to gaze a few moments at the sky and judge of the weather, as he intends to take a long walk before laying his head upon his capote for the night. He is in the usual costume of the Cree Indians: a large leathern coat, very much overlapped in front, and fastened round the waist with a scarlet belt, protects his body from the cold. A small ratskin cap covers his head, and his legs are eased in the ordinary blue cloth leggins. Large moccasins, with two or three pair of blanket-socks, clothe his feet, and fingerless mittens, made of deerskin, complete his costume. After a few minutes passed in contemplation of the heavens, the Indian prepares himself for the walk. First, he sticks a small axe in his belt, serving as a counterpoise to a large hunting-knife and fire-bag which depend from the other side. He then slips his feet through the lines of his snow-shoes, and throws the line of a small hand-sledge over his shoulder. The hand-sledge is a thin flat slip or plank of wood, from five to six feet long by one foot broad, and is turned up at one end. It is extremely light, and Indians invariably use it when visiting their traps, for the purpose of dragging home the animals or game they may have caught. Having attached this to his back, he stoops to receive his gun from his faithful squaw, who has been watching his operations through a hole in the tent, and throwing it on his shoulder strides off, without uttering a word, across the moonlit space in front of the tent, turns into a small narrow track that leads down the dark ravine, and disappears in the shades of the forest."

The snow-shoes above referred to, and which are in general use amongst both Indians and Europeans at Hudson's Bay, are as unlike shoes as any thing bearing the name well can be. A snow-shoe is formed of two thin pieces of light wood, tied at both ends, and spread out in the centre, thus making an oval frame filled up with network of deerskin threads. The frame is strengthened by cross-bars, and fastened *loosely* to the foot by a line across the toe. The length of the machine is from *four* to *six* feet; the width from thirteen to twenty inches. Being very light, they are no way cumbersome, and without them pedestrianism would be impossible for many months, of the year, on account of the depth of the snow, which falls through the meshes of these shoes, as the traveller raises his foot. That they are not fatiguing wear, is manifest from the fact that an Indian will walk twenty, thirty, and even forty miles a day upon them. Only in damp weather,

the moist snow clogs the meshes, and the lines are apt to gall the foot. Apropos of this inconvenience, Mr Ballantyne avails himself of the traveller's privilege, and favours us with a remarkable anecdote, told him by a Highland friend of his, Mr B——, chief of the Company's post at Tadousac.

"On one occasion, he was sent off upon a long journey over the snow where the country was so mountainous, that snow-shoe walking was rendered exceedingly painful by the feet slipping forward against the front bar of the shoe when descending the hills. After he had accomplished a good part of his journey, two large blisters rose under the nails of his great toes; and soon the nails themselves came off. Still he must go on, or die in the woods; so he was obliged to *tie* the nails on his toes each morning before starting, for the purpose of protecting the tender parts beneath; and every evening he wrapped them up carefully in a piece of rag, and put them into his waistcoat pocket,—*being afraid of losing them if he kept them on all night.*" This Mr B—— had had a long and eventful career in North America, and was rich in 'yarns,' more or less credible, with which he regaled Mr Ballantyne during a journey they made together. A deep scar on his nose was the memorial of a narrow escape he had made when dwelling at a solitary fort west of the Rocky Mountains. He had bought a fine horse of an Indian, one of the Blackfeet, a wild and warlike tribe, notorious as horse-stealers. The animal had been but a short time in his possession, when it was stolen. This was a very ordinary event, and was soon forgotten. Spring came, and a party of Indians arrived with a load of furs for barter. They were admitted one by one into the fort, their arms taken from them and locked up—a customary and necessary precaution, as they used to buy spirits, get drunk and quarrel, but without weapons they could do each other little harm. When about a dozen had entered, the gate was shut, and then Mr B—— beheld, to his surprise, the horse he had lost the previous year. He asked to whom it belonged, and the Indian who had sold it him unblushingly stood forward. "Mr B—— (an exceedingly quiet, good-natured man, but like many men of his stamp, very passionate when roused) no sooner witnessed the fellow's audacity than he seized a gun from one of his men, and shot the horse. The Indian instantly sprang upon him; but being a less powerful man than Mr B——, and withal unaccustomed to use his fists, he was soon overcome, and pommelled out of the fort. Not content with this, Mr B—— followed him

down to the Indian camp, pommelling him all the way. The instant, however, that the Indian found himself surrounded by his own friends, he faced about, and with a dozen warriors attacked Mr B——, and threw him on the ground, where they kicked and bruised him severely; whilst several boys of the tribe hovered around with bows and arrows, waiting a favourable opportunity to shoot him. Suddenly a savage came forward with a large stone in his hand, and, standing over his fallen enemy, raised it high in the air and dashed it down upon his face. Mr B——, when telling me the story, said that he had just time, upon seeing the stone in the act of falling, to commend his spirit to God, ere he was rendered insensible. The merciful God, to whom he thus looked for help at the eleventh hour, did not desert him. Several men belonging to the fort, seeing the turn things took, hastily armed themselves, and, hurrying out to the rescue, arrived just at the critical moment when the stone was dashed in his face. Though too late to prevent this, they were in time to prevent a repetition of the blow; and, after a short scuffle with the Indians, without any bloodshed, they succeeded in carrying their master up to the fort, where he soon recovered. The deep cut made by the stone on the bridge of his nose, left an indelible scar."

To return to Stemaw the trapper, whom we left striding along with confident step, as though the high road lay before him, although no track or trail, discernible by European eye, is there to guide his footsteps. After a walk of two miles, a faint sound a-head brings him to a dead halt. He listens, and a noise like the rattling of a chain is heard from a dark, wild hollow in his front. "Another moment, and the rattle is again distinctly heard; a slight smile of satisfaction crosses Stemaw's dark visage; for one of his traps was set in that place, and he knows that something is caught. Quickly descending the slope, he enters the bushes whence the sound proceeds, and pauses when within a yard or two of his trap to peer through the gloom. A cloud passes off the moon, and a faint ray reveals, it may be, a beautiful black fox caught in the snare. A slight blow on the snout from Stemaw's axe-handle kills the unfortunate animal; in ten minutes more it is tied to his sledge, the trap is reset and again covered over with snow, so that it is almost impossible to tell that any thing is there; and the Indian pursues his way." And here we have a drawing of Reynard the Fox, a fine specimen of his kind, black as coal, with a white tuft to his tail, looking anxiously about him, his fore-paw fast in the jaws of a trap, with which a heavy log,

fastened by a chain, prevents his making off. In the distance, the Indian, gun on shoulder, his snow-shoes, which look like small boats, upon his feet—strides forward, eager to secure his valuable prize. We give Mr Ballantyne all credit for the unpretending but useful wood-cuts scattered through his book, which serve to explain things whose form or nature would otherwise be but imperfectly understood. They are an honest and legitimate style of illustration, exactly corresponding to the requirements of a work of this kind.

The steel trap in which the fox is caught resembles a common English rat-trap, less the teeth, and is so set, that the jaws, when spread out flat, are exactly on a level with the snow. The chain and weight are hidden, a little snow is swept over the trap, and nothing is visible but the bait—usually chips of frozen partridge, rabbit, or fish, which are scattered all around the snare. Foxes, beavers, wolves, lynx, and other animals, are thus taken, sometimes by a fore-leg, sometimes by a hind one, or by two at once, and occasionally by the nose. By two legs is the preferable way—for the trapper, that is to say—for then escape is impossible. "When foxes are caught by one leg, they often *eat it off* close to the trap, and escape on the other three. I have frequently seen this happen; and I once saw a fox caught which had evidently escaped in this way, as one of its legs was gone, and the stump healed up and covered again with hair. When caught by the nose, they are almost sure to escape, unless taken out of the trap very soon after capture, as their snouts are so sharp and wedgelike, that they can pull them from between the jaws of the trap with the greatest ease." We are tempted to doubt the ease, or at any rate the pleasure, of such an operation, and to compassionate the unfortunate quadrupeds, whose only chance of escape from being knocked on the head lies in biting off their own feet, or scraping the skin off their jaws between those of a trap. The poor brutes have no chance of a fair fight, or even of a few yards' law and a run for their lives. Their hungry stomachs and keen olfactories touchingly appealed to by the scraps of frozen game, they eat their way to the trap, and finally put their foot in it. The trapper's trade is a sneaking sort of business; and one cannot but understand the feeling of self-humiliation of Cooper's Natty Bumpo, upon finding himself reduced from the rifle to the snare—from the stand-up fight in the forest to the stealthy prowling and treacherous trap. And hence, doubtless, do we find the occupation far more frequently followed by

Indians and half-breeds than by white men—at least at Hudson's Bay. Nevertheless Mr Ballantyne, whilst enjoying dignified solitude in the remote station of Seven Islands, his French-Canadian servant and his Newfoundland dog Humbug for sole companions, received the visit of a trapper, who was not only white, but a gentleman to boot. This individual, who was dressed in aboriginal style, had been in the employ of a fur company, had married an Indian girl, and taken to trapping. He was a good-natured man, we are told, and had been well educated—talked philosophy, and put his new acquaintance up to the fact, that what he for some time had taken for a bank of sea-weed, was a shoal of kipling, close inshore. He stopped a week at the station, living on salt pork and flour-and-water pancakes, and telling his adventures to his gratified host, to whom, in his lonely condition, far worse society would have been highly acceptable.

The trapper's occupation is not always unattended with danger. So long as he has only foxes and such small gear to deal with, whom a tap on the snout finishes, it is mere child's play, barring the fatigue of long walks and heavy loads; but now and then he finds an ugly customer in one of his traps, and encounters some risk before securing him. This we shall see exemplified, if we follow Stemaw to two traps, which he set in the morning close to each other, for the purpose of catching one of the formidable coast-wolves. "These animals are so sagacious, that they will scrape all round a trap, let it be ever so well set, and, after eating all the bait, walk away unhurt. Indians consequently endeavour in every possible way to catch them, and, amongst others, by setting *two* traps close together, so that, whilst the wolf scrapes at one, he may perhaps put his foot in the other. It is in this way Stemaw's traps are set; and he now advances cautiously towards them, his gun in the hollow of his left arm. Slowly he advances, peering through the bushes; but nothing is visible. Suddenly a branch crashes under his snow-shoe, and, with a savage growl, a large wolf bounds towards him, landing almost at his feet. A single glance, however, shows the Indian that both traps are on his legs, and that the chains prevent his further advance. He places his gun against a tree, draws his axe, and advances to kill the animal. It is an undertaking, however, of some difficulty. The fierce brute, which is larger than a Newfoundland dog, strains every nerve and sinew to break its chains; whilst its eyes glisten in the uncertain light, and foam curls from its blood-red mouth. Now it retreats as the Indian advances, grinning horribly as it

goes; and anon, as the chains check its further retreat, it springs with fearful growl towards Stemaw, who slightly wounds it with his axe, as he jumps backward just in time to save himself from the infuriated animal, which catches in its fangs the flap of his leggin, and tears it from his limb. Again Stemaw advances and the wolf retreats, and again springs upon him, but without success. At last, as the wolf glances for a moment to one side—apparently to see if there is no way of escape—quick as lightning the axe flashes in the air, and descends with stunning violence on its head; another blow follows, and in five minutes more the animal is fastened to the sledge."

Weary with this skirmish, and with the previous walk, Stemaw calls a halt under a big tree, and prepares to bivouac. Having started with him, we shall accompany him to the end of his expedition, the more willingly that his proceedings are very interesting, and capitally described by Mr Ballantyne, in whose words we continue to give them.

"Selecting a large pine, whose spreading branches covered a patch of ground free from underwood, he scrapes away the snow with his snow-shoe. Silently but busily he labours for a quarter of an hour; and then, having cleared a space seven or eight feet in diameter, and nearly four feet deep, he cuts down a number of small branches, which he strews at the bottom of the hollow till all the snow is covered. This done, he fells two or three of the nearest trees, cuts them up into lengths of about five feet long, and piles them at the root of the tree. A light is applied to the pile, and up glances the ruddy flame, crackling among the branches overhead, and sending thousands of bright sparks into the air. No one who has not seen it can have the least idea of the change that takes place in the appearance of the woods at night, when a large fire is suddenly lighted. Before, all was cold, silent, chilling, gloomy, and desolate, and the pale snow looked unearthly in the dark. Now, a bright ruddy glow falls upon the thick stems of the trees, and penetrates through the branches overhead, tipping those nearest the fire with a ruby tinge, the mere sight of which warms one. The white snow changes to a beautiful pink; whilst the stems of the trees, bright and clearly visible near at hand, become more and more indistinct in the distance, till they are lost in the black background. The darkness, however, need not be seen from the encampment, for, when the Indian lies down, he will be surrounded by the snowy walls, which sparkle in the firelight as if

set with diamonds. These do not melt, as might be expected: the frost is much too intense for that; and nothing melts except the snow quite close to the fire. Stemaw has now concluded his arrangements: a small piece of dried deer's meat warms before the blaze, and meanwhile he spreads his green blanket on the ground, and fills a stone calumet (a pipe with a wooden stem) with tobacco, mixed with a kind of weed prepared by himself."

His pipe smoked, his venison devoured, the trapper wraps him in his blanket, and sleeps. We are then transported to a beaver-lodge at the extremity of a frozen and snow-covered lake. Yonder, where the points of a few bulrushes appear above the monotonous surface of dazzling white, are a number of small earthy mounds, the trees and bushes in whose vicinity are cut and barked in many places. It is a lively place enough in the warm season, when the beavers are busy nibbling down trees and bushes, to mend their dams and stock their storehouses with food. Now it is very different: in winter the beaver stays at home, and sleeps. His awakening is sometimes an unpleasant one.

"Do you observe that small black speck moving over the white surface of the lake, far away in the horizon? It looks like a crow, but the forward motion is much too steady and constant for that. As it approaches, it assumes the form of a man; and at last the figure of Stemaw, dragging his empty sleigh behind him, (for he has left his wolf and foxes in the last night's encampment, to be taken up when returning home,) becomes clearly distinguishable through the dreamy haze of the cold wintry morning. He arrives at the beaver-lodges, and, I warrant, will soon play havoc among the inmates.

"His first proceeding is to cut down several stakes, which he points at the ends. These are driven, after he has cut away a good deal of ice from around the beaver-lodge, into the ground between it and the shore. This is to prevent the beaver from running along the passage they always have from their lodge to the shore, where their storehouse is kept, which would make it necessary to excavate the whole passage. The beaver, if there are any, being thus imprisoned in the lodge, the hunter next stakes up the opening into the storehouse on shore, and so imprisons those that may have fled there for shelter on hearing the noise of his axe at the other house. Things

being thus arranged to his entire satisfaction, he takes an instrument called an ice-chisel—which is a bit of steel about a foot long by one inch broad, fastened to the end of a stout pole, wherewith he proceeds to dig through the lodge. This is by no means an easy operation; and although he covers the snow around him with great quantities of mud and sticks, yet his work is not half finished. At last, however, the interior of the hut is laid bare, and the Indian, stooping down, gives a great pull, when out comes a large, fat, sleepy beaver, which he flings sprawling on the snow. Being thus unceremoniously awakened from its winter nap, the shivering animal looks languidly around, and even goes the length of making a face at Stemaw, by way of showing its teeth, for which it is rewarded with a blow on the head from the pole of the ice-chisel, which puts an end to it. In this way several more are killed, and packed on the sleigh. Stemaw then turns his face towards his encampment, where he collects the game left there, and away he goes at a tremendous pace, dashing the snow in clouds from his snow-shoes, as he hurries over the trackless wilderness to his forest home"—where, upon arrival, he is welcomed with immense glee by his greedy Squaw, whose lips water at the prospect of a good gorge upon fat beaver. We are not informed what sort of eating this is; but we read of soup made of beaver skins, which are oily, and stew well, resorted to by Europeans when short of provender in the dreary wilds of Hudson's Bay. Indeed all manner of queer things obtain favour as edibles in the territory of the Honourable Hudson's Bay Company. A party of Canadian *voyageurs* or boatmen find a basket made of bark and filled with bear's grease, which had been hidden away by Indians, who doubtless entertained the laudable design of forwarding it, per next ship, to the address of a London hairdresser. The boatmen preferred its internal application to the external one usually made of the famous capillary regenerator, and in less than two days devoured the whole of the precious ointment, spread upon the flour-cakes which, with *pemican*, form their usual provisions. Pemican is buffalo flesh, dried in flakes and then pounded between two stones. "These are put into a bag made of the animal's hide, with the hair on the outside, and well mixed with melted grease; the top of the bag is then sewed up, and the pemican allowed to cool. In this state it may be eaten uncooked; but the voyageurs mix it with a little flour and water, and then boil it; in which state it is known throughout the country by the elegant name of *robbiboo*. Pemican is good wholesome food, will keep fresh for a great length of time, and, were it not

for its unprepossessing appearance, and a good many buffalo hairs mixed with it, through the carelessness of the hunters, would be very palatable." The Indians, it has already been shown, are by no means particular in their diet, and devour, with equal relish, a beaver and a kinsman. Another unusual article of food in favour amongst them is a species of white owl, which looks, we are told, when skinned, comically like very young babies. They are large and beautiful birds, sometimes nearly as big as swans. Mr Ballantyne shot one measuring five feet three inches across the wings. "They are in the habit of alighting upon the tops of blighted trees, and on poles of any kind, which happen to stand conspicuously apart from the forest trees; for the purpose, probably, of watching for birds and mice, on which they prey. Taking advantage of this habit, the Indian plants his trap (a fox trap) on the top of a bare tree, so that, when the owl alights, it is generally caught by the legs." Owls of all sizes abound in Hudson's Bay, from, the gigantic species just described, down to the small gray owl, not much bigger than a man's hand.

Hudson's Bay not being a colony, but a great waste country, sprinkled with a few European dwellings, dealings are carried on by barter rather than by cash payments, and of money there is little or none. But, to facilitate trade with the Indians, there is a certain standard of value known as a castor, and represented by pieces of wood. We may conjecture the term to have originated in the French word *castor*, signifying a beaver—of which animal these wooden tokens were probably intended to represent the value. It stands to reason that such a coinage is too easily counterfeited for its general circulation to be permitted, and it consequently is current only in the Company's barter-rooms. "Thus an Indian arrives at a fort with a bundle of furs, with which he proceeds to the Indian trading-room. There the trader separates the furs into different lots, and valuing each at the standard valuation, adds the amounts together, and tells the Indian, who has looked on the while with great interest and anxiety, that he has got fifty or sixty castors; at the same time handing him fifty or sixty little bits of wood in lieu of cash, so that he may, by returning these in payment of the goods for which he really exchanges his skins, know how fast his funds decrease. The Indian then looks around upon the bales of cloth, powder-horns, guns, blankets, knives, &c., with which the shop is filled, and after a good while makes up his mind to have a small blanket. This being given him, the trader

tells him that the price is six castors; the purchaser hands him six of his little bits of wood, and selects something else. In this way he goes on till the wooden cash is expended. The value of a castor is from one to two shillings. The natives generally visit the establishments of the Company twice a-year; once in October, when they bring in the produce of their autumn hunts, and again in March, when they come in with that of the great winter hunt. The number of castors that an Indian makes in a winter hunt varies from fifty to two hundred, according to his perseverance and activity, and the part of the country in which he hunts. The largest amount I ever heard of was made by a man named Piaquata-Kiscum, who brought in furs, on one occasion, to the value of two hundred and sixty castors. The poor fellow was soon afterwards poisoned by his relatives, who were jealous of his superior abilities as a hunter, and envious of the favour shown him by the white men."

Mr Ballantyne visits and describes Red River settlement, the only colony in the extensive district traded over by the Hudson's Bay Company. It contained in 1843 about five thousand souls—French Canadians, Scotchmen, and Indians—and since then the population has rapidly increased. In the time of the North-West Company, since amalgamated, with that of Hudson's Bay, it was the scene of a smart skirmish or two between the rival fur-traders, in one of which Mr Semple, governor of the Hudson's Bay Company, lost his life, and a number of his men were killed and wounded. We find some curious particulars of the stratagems and manœuvres employed by the two associations to outwit each other, and get the earliest deal with the Indian hunters. But to this we can only thus cursorily refer; whilst to many other chapters of equal novelty and interest we cannot even do that. We are obliged to refuse ourselves the pleasure of a piscatorial page, in which we would have shown the brethren of the angle, roaming by loch and stream on trout and salmon intent, how in the land of Hendrik Hudson silver fish are caught whose eyes are living gold. All we can do, before laying down the pen, is to commend Mr Ballantyne's book, which does him great credit. It is unaffected and to the purpose, written in an honest, straightforward style, and is full of real interest and amusement, without the unnecessary wordiness and impertinent gossip with which books of this description are too often swollen. We are glad to learn, whilst concluding this paper, that the public will soon be enabled, by a second edition of the volume, to form a better idea of its merits than it has been possible for us to give by these few brief extracts.

THE BUDGET.

The budget has just been produced, and the country has heard the lamentable exposure which the prime minister of the United Kingdom has been forced to submit to parliament. Such is the state of our financial affairs and future prospects, under the operation of the free-trade mania: and it is matter of congratulation that the mischievous and anti-national doctrines of the Manchester school should have been refuted at so early a period of their practice, and that the results of democratic rule are already made apparent even to the dullest understanding. Since warning has failed—or rather, let us say, since deep and deliberate treachery has combined with ambition and selfishness to alter the system through which Britain obtained and maintained its greatness, it is well that the hard but wholesome admonitions of experience should be felt. Better, surely, now than hereafter; before we have become familiarised to the annual tale of a declining revenue, and before we have lost heart and courage to meet the danger with a front of defiance!

The balance-sheet of last year exhibits the deplorable fact, that there is an excess of expenditure over income to the amount of very nearly THREE MILLIONS. For such a result our readers must have been perfectly prepared. We have pointed out, over and over again, the disastrous effects which were certain to follow upon the adoption of the new theories; the depreciation of property, and the depression of industry, inevitable as the consequence of such measures: and the defalcation of the revenue is the best proof of the soundness and accuracy of our views. Not that such defalcation is to be taken in any degree as the measure of our loss. It is a mere trivial fraction of the injury sustained in consequence of misguided legislation; a little proof, but a sure one, that we have entered upon the path which we must retread, unless we are to move on deliberately towards ruin. Three millions is of itself an inconsiderable sum to be provided for by the British nation, if the exigency were only temporary, and the resources of the country augmenting. But three millions may be a serious matter, if the demand is to be annual and increasing, and if, withal, our means are dwindling and notoriously on the wane.

We write at so late a period of the month, that our remarks must necessarily be contracted. Before these sheets can issue from the press, the debate will have commenced in earnest, and the proposed financial measures be thoroughly discussed in parliament. We have no wish at present to fall back upon the earlier question, or to resume consideration of the causes which have led to this extraordinary deficiency. We are content to take Lord John Russell's figures and apology as we find them. His estimates may very possibly be within the mark, and we believe he has been cautious in framing them. Warned by the experience of last year, he has not ventured to calculate upon any increase in the cardinal items of the customs and excise, thereby tacitly renouncing his faith in the realisation of the Cobdenite prophecies; and the result of the whole is, that the yearly revenue of the country, even including the present income-tax, will be, short of the expenditure by more than three millions. It may be right to subjoin Lord John Russell's own calculations.

ESTIMATED ORDINARY REVENUE.

Customs	L.19,774,760
Excise	13,340,000
Stamps	7,150,000
Taxes	4,340,000
Property-tax	5,420,000
Post-office	923,000
Crown Lands	60,000
Miscellaneous	325,000
	L.51,332,760

ESTIMATED EXPENDITURE.

Funded debt	L.27,778,000	
Exchequer bills	752,600	
		L.28,530,600
Charges on Consolidated Fund		2,750,000
Caffre War		1,100,000
Naval excess		245,500

Navy	L.7,726,610}	
Army	7,162,996}	21,820,441
Ordnance	2,924,835}	
Miscellaneous	4,006,000}	
		L.54,446,541
	Add militia	150,000
		L.54,596,541

The calculated deficit will therefore amount to £3,263,781.

This is a lamentable enough exposition, more especially as it follows upon a year of singular hardship and depression. Burdened as we are already, both with state and with local burdens, we are now required to submit to a further pressure: the credit of the nation must be maintained, and in some way or other this additional impost must be levied. And here we shall state, at once, that, all things considered, we see no just grounds for charging Lord John Russell—or his Chancellor of the Exchequer, who seems, on this occasion, to have been superseded as incompetent—with any undue want of economy. An outcry will, of course, be made by the furious and fatuous fanatics of the League against the increase of the army and navy estimates, amounting altogether to about £300,000. This charge, for reasons which we have stated before, we believe to be just and reasonable, and it is certainly nothing more than the situation of the country demands. But supposing that not one additional shilling were to be laid out on the strengthening of either service, there would still remain a sum of nearly three millions to be provided for; and we have now to consider the means by which that additional impost may be fairly and equitably levied.

The system pursued of late years in this country, with regard to revenue matters, has been cowardly, dangerous, and, in one instance at least, deliberately deceptive. It has been cowardly, because ministers have not chosen to abide by principles which they have acknowledged to be just; but, on the contrary, for the sake of popularity and the retention of power, they have invariably yielded to clamour, and surrendered, one after another, many of the surest means of raising an adequate revenue. All idea of reducing the amount of the national debt has long since been abandoned.

The moment any surplus appeared, some minor tax was remitted. If the consumer did not gain thereby, as in most instances has been the case, the ministry at least could claim credit for their desire to remove burdens; and these reductions, however profitless to the public, looked well in a financial statement. It has been dangerous, because, as a natural consequence, the remissions made in a prosperous year, when the revenue was full, caused a corresponding defalcation in another when the scales had turned against us. It is easy and popular to remove an existing tax; but difficult and decidedly obnoxious to levy a new one. We had gradually cut down our indirect taxation so far, that any further reductions became impossible, without reverting to direct taxation, which is the most grievous and oppressive, as it is usually the most unequitable method of collecting a public revenue.

We were in this position when the great financial juggle of the age was attempted; and, we are sorry to say, successfully carried through by its schemer. The history of the imposition of the income-tax in 1842, must, hereafter, to the exclusion of all minor matters, be considered the point upon which the posthumous reputation of Sir Robert Peel will rest. No minister of this country ever assumed the reins of office under auspices more favourable, if his practice had been equal to his profession. In 1841—and the coincidence is singular—the Whigs found themselves placed in nearly the same financial difficulty as now. They had a deficit of about three millions to provide for, and they fell in consequence. All eyes were turned to Sir Robert Peel, whose prestige as a commercial minister was then at its very height. He was at the head of a great, concentrated, and enthusiastic party, whose chief fault was the consummate reliance which they were disposed to place in their leader; and the destinies of the nation were committed with extraordinary confidence into his hands. He had but to dictate his course, and every one was ready to obey. It was then that he came forward with the proposition of an income and property tax—not, be it remarked, as a permanent measure, but as the means of removing the temporary and pressing difficulty, and of sustaining the revenue until the ordinary sources should produce the necessary supply. It is needless, now, to recount the process of persuasive rhetoric employed by the minister to ensure the adoption of his scheme. The injustice of the tax was admitted; the sacrifice lauded as an example of public patriotism; and that portion of the community who were selected as the victims, so hugged, coaxed, and

wheedled, that it was almost beyond the power of human nature to deny a boon which was implored in such terms of seducing endearment. And, in truth, the scheme did involve a sacrifice; because it amounted to nothing less than a partial confiscation of property. One class of the community were to be directly taxed, whilst another was allowed to go free. What was still worse, two of the united kingdoms were to be subjected to a burden from which the third was altogether relieved. On principle, the income-tax was indefensible, nor did Sir Robert Peel attempt to place his measure so high. With much seeming candour he anticipated all objections, and his scheme was carried on the faith of its merely temporary endurance.

Instead of producing three millions, as was anticipated, the income-tax returns amounted to considerably more than five; and, as trade did revive, it was within the power of Sir Robert Peel to have redeemed his pledge with honour, and to have relieved the class which had been subjected, voluntarily, to this unusual burden, at the termination of the first period of three years. It then, however, appeared that the revenue so raised had been diverted from its proper purpose. It was not used as the substitute for a temporary deficiency, but as the means of making that deficiency absolutely permanent. More indirect taxes were taken off, more duties repealed; so that, at the end of three years, it was impossible to dispense with the income-tax. In fact, the minister had broken his word. The horse, says *Æsop*, being desirous to avenge himself on his old enemy the stag, allowed the man to clap a saddle on his back, and to ride in pursuit. He had his revenge, indeed, but the saddle has never been removed to the present day. It would be well if, in this age, when prevarication and disingenuity are so rife in high places, the fables of the shrewd Phrygian were consulted more frequently, for the sake of the morals which they convey.

Of all the gorgeous promises held out in 1842, and since repeated, not only by ministers, but by the accredited organs of free-trade, not one has been fulfilled. Instead of the Pactolus which was to flow in to us, we find that the ordinary streams of commerce have shrunk alarmingly in their channel: instead of being relieved from the temporary income-tax, there is another deficit of three millions staring us in the face. The statutory period of the income-tax expires in April next: we are now asked to renew it for another period of five years, and to augment it, for two of these years, from three to five per cent. The income-tax, therefore, has changed its character. It is no

longer a voluntary grant, but has become part and parcel of our national system of taxation. It is to be maintained and levied in order to make up for the deficiencies occasioned by the late commercial experiments; and Lord John Russell does not propose to modify or alter its arrangements in any degree whatever. It is to be drawn from the same class as before, with this difference, that whereas we have hitherto paid seven-pence in the pound, we are now to contribute a shilling.

This is, indeed, a most serious matter; and we shall look forward to the financial debate with feelings of the greatest anxiety. This is no ordinary crisis, and it must be met with corresponding fortitude and promptness. A measure, admittedly unjust in its principle, is now to be recognised as a law; and the faith which was plighted, a few years ago, to the most important section of the community, is now to be deliberately broken. Property is at last assailed, not covertly but openly; and the worst anticipations of those who deprecated our departure from the older system, are upon the eve of being realised.

Two considerations now arise, and each of them is of the utmost importance. The first concerns the policy of this measure: the second relates to its injustice. On both points we have a few words to say.

And first, as to its policy. A direct property or income-tax has hitherto been considered and acknowledged by all governments of this country as the very last which can be resorted to in cases of extraordinary emergency. In the event of danger, of war or of invasion, unusual imposts will be submitted to without a murmur: in time of peace it has always been held as a principle, that the ordinary expenditure should be met by the ordinary methods of taxation; and these have been for the most part indirect. Of all our sources of revenue, that derived from the customs, which has been most tampered with, is the easiest of collection. It amounts to much more than one-third of the whole, and in time of peace is capable of contraction and of expansion. That is the mark at which the free-traders have discharged the whole of their battery, and certainly they have succeeded in effecting a notable reduction. In consequence, we are now called upon in time of peace to submit to a war-tax, which is in effect a sort of monetary conscription. By adopting it, we sacrifice the power of falling back in any case of emergency upon a strong existing reserve. It will be conceded on all hands,

that in time of war we cannot look to the customs and excise for any additional support; and if we go on multiplying direct taxation in the time of peace, to what source can we turn in the event of an unforeseen emergency? This is perhaps the most mischievous result of our adoption of the free-trade doctrines, because it leaves us utterly fettered, at the moment when freedom of action is most necessary for the safety of the whole state. We are extremely glad that on this point we are corroborated by the opinions of Mr Francis Baring, formerly Chancellor of the Exchequer under the Melbourne administration, whose clear and forcible denunciation of the proposed financial policy must have been listened to by his former colleagues with feelings of considerable shame. "At a time," said Mr Baring, "when we talk of preparing our defences, I deeply regret that we should be throwing away that which is the most powerful financial weapon in our whole armoury in the case of a war. If you now lay on a tax of five per cent, in case of a war to what source of taxation would you turn? Do you think you could raise the income-tax above five per cent? or are you prepared, at a time when you shall be in difficulty and distress, to have recourse to the taxes on customs and excise which you have so lavishly thrown away? I opposed the income-tax at its first introduction, because I thought it a dangerous course to accumulate in direct taxation any very large amount of taxation of a different kind." With these sentiments we entirely coincide; nor could such a tax, we venture to say, have been originally imposed, unless it had been broadly and explicitly stated that it was only temporary in its duration. At every step we encounter the effects of Sir Robert Peel's indefensible and cruel want of candour. Had he acted in that noble and upright spirit which has characterised British statesmen of a former age, we should have been spared that distress and difficulty; but he chose to prefer the crooked path to the straight one; he hatched and harboured commercial designs which he did not dare to impart to his colleagues, and he asked the support of a large body of the community on the strength of representations which he never intended to fulfil. It is not surprising that Lord John Russell should adopt without hesitation the legacy of his predecessor, and attempt to profit by the income-tax when he has the machinery ready to his hand. But we warn the people of this country—we warn those who were betrayed into yielding by specious promises, but who now find to their cost that they in reality are to become the bearers of the burden of the state—we warn them that the same game will be continued, and that, if they consent to this augmentation, it

will not be by any means the last. If the proposals of the ministry should unfortunately be adopted, and if once more the defalcation in the national revenue should be made good—if trade again revives, and a surplus is exhibited in the balance sheet, more indirect taxes will be repealed, more tampering with our ordinary revenue be resorted to; free-trade will progress as it has begun, crippling our native industry, destroying our means, and sacrificing the British labourer even in the home market to the foreigner, until the defalcation again arises, and another attack is made directly upon property. When that time shall arrive—and unless prompt resistance is now made, we do not think it is far distant—the limits of taxation will have been reached. It will be no longer possible to go on. The lesser confiscation will give way to the greater, and the sponge be propounded as the remedy.

But the second point—that of the injustice of this measure—is most glaring, and demands immediate attention. Opposed as we are to the substitution of direct for indirect taxation, we can yet understand the motives of a minister who comes forward with a distinct and equable plan for an entire remodelment of the system. We believe that no such scheme can possibly be reduced to practice; and that, if attempted, it would prove utterly obnoxious and subversive of the national interest: we think that it would be unwise, but at the same time it might not be unjust as between man and man in the community. There is a certain burden to be borne by the whole of the nation, and the great problem is, to find out how every man can be made to contribute his proper share. Laws are framed and institutions founded for the protection of property and person; and, strictly speaking, every one is bound to bear the expense according to his means. The only effectual method which has ever yet been discovered for securing this, is the system of indirect taxation. By that system each man contributes to the revenue in proportion to the amount of taxed articles which he consumes. Wealth, in the aggregate, superinduces luxury, and the higher classes pay proportionably for the increased comforts they enjoy. Such were the principles of indirect taxation before Sir Robert Peel began to alter it, and even yet many of the original features remain. But we cannot recognise in his tariffs any thing of a consistent plan. That foreign luxuries, which cannot be produced in this country, should be brought in at as low a rate of duty as the state of the revenue will allow, is admitted on all hands. Wine, for example, which is no product of ours, is a case in point. But when we

find him deliberately fostering foreign industry at the expense of home manufactures—reducing or abolishing the duties upon such articles as ornamental glass, boots, gloves, or made-up fancy silks, which, from their natures, are consumed by the higher classes only, our belief in his sagacity vanishes. The time is fast approaching when the artisan will feel severely the effects of that departure from our older system, which regarded home industry with peculiar favour, and refused to sacrifice it for the sake of increasing the yearly amount of our imports. Every curtailed or superseded branch of employment in this overpeopled country is a national loss and a misfortune.

Direct taxation might be accepted as a substitute if it only could be adequately enforced. This, however, we know to be impossible. The expense of collection below a certain limit would entirely swallow up the profit; and besides, it is clearly beyond the power of human ingenuity to ascertain, with any thing like accuracy, the means of the whole population. The only approximation to the direct system which has ever been suggested, is through a regulated house-tax; but even that would fail in accomplishing its end, and the inequality would still prevail. Direct taxation is liable to infinite abuse. It is odious and inquisitorial in its nature, and no minister has been bold enough to propound a plan for making it supersede the other.

If, therefore, this income-tax, palmed upon us through fraudulent representation, and now proposed as perpetual on the plea of pressing emergency, is to be continued for ever, it will be necessary for us to consider how far it is levied on those benefited by the removal of indirect taxes—how far it applies to all classes—and whether it is one-sided and unjust, or fair and equitable, in its operation. Before we consent to an impost which must affect us and our children, it is well that we should thoroughly understand the nature of the obligation we undertake. The income-tax was originally proposed to supply the loss of revenue sustained in consequence of an over-reduction of the indirect taxes; and as a matter of equity it follows, that the supplies should be drawn, though in a different form, from the same portion of the community.

Is this the case? Can any man venture to say that the income-tax, as we have known it for the last five years, has been borne with equal fairness by

all classes of the community? Is it not, on the contrary, the most unequal, the most unjust, and the most oppressive tax that ever yet was levied? We hardly believe that on this point there can be any difference of opinion: and we shall now proceed to notice the separate considerations upon which our decided and determined hostility to the measure is based.

By exempting from taxation all incomes below £150, a glaring act of injustice is committed. There is no reason whatever why that amount should be fixed upon as the lowest point—why the tradesman, clerk, or rising professional man, who barely clears that amount of profit, should be made to pay permanently for the others who are not so industrious or so fortunate. It is not, however, difficult to understand why Sir Robert Peel, in proposing the tax as a mere temporary relief, should have been cautious to avoid any agitation of the masses on a question so vitally important to their well-being, had justice been the foundation of his plan. He probably thought that, by exempting that portion of the middle classes whose incomes did not reach the above amount, he would at all events secure their neutrality, and perhaps purchase their support in any subsequent attempt to render the tax perpetual. This view is fortified by the exposition contained in the famous Elbing letter, and though we may admire the ingenuity of the scheme, we cannot commend it for morality. If this tax is to be continued and augmented, we are in justice entitled to demand that it shall be carried down to the very lowest point at which the amount of revenue drawn may exceed the cost of collection. In 1798, according to Mr Porter, "an income tax was imposed at the rate of ten per cent upon all incomes amounting to £200 and upwards, with diminishing rates upon smaller incomes, down to £60 per annum, below which rate the tax was not to apply." If we are to persevere in this unwholesome style of taxation, there is no reason whatever why some such arrangement as the above should not be adopted. It is contrary to the constitution of a free country, that any class should be selected as the subjects of isolated taxation, and doubly so when the selection is made for the almost avowed purpose of relieving some other class from the impost. Equal laws and equal rights can only be maintained where there is a proper equality of burdens; and if it be difficult to arrange the scale, as it undoubtedly is, the difficulty must be met by those who propose to substitute this unconstitutional mode of taxation for that which applied equally to all classes of the community. Why should each and all of us, who

subsist by our own industry, and who are ready to pay our own share of the national expenditure, be forced in addition to pay the quota of others whose incomes do not amount to £150? Surely, there is less difference in position between the man who clears £140 a-year by his trade, and another whose gross profits amount to £155, than between the latter and the possessor of a revenue of £10,000 per annum? And yet, the two last are to be charged five per cent on their incomes, whilst the other, who has the sense to moderate his industry, is to be entitled to escape scot-free!

Another monstrous hardship of the income-tax is its pressure upon professional men, and upon those whose incomes are precarious. No distinction is made by the act of 1842, between profits accruing from realised property, and those which are entirely the product of individual and personal exertion; and yet, in every point of view, there is a vast difference between the parties so situated. The man who derives an income of £1000 a-year from landed property, or from the funds, is in a far better position than the divine, the lawyer, the physician, or the military officer, whose incomes perish with their persons. That most pressing duty of life, the necessity of laying by some provision for a rising family, is in the one case already fulfilled—in the other it is urgent; and yet no distinction whatever is made between the two. The professional man is compelled year after year to lay aside a large portion of his income, for the sake of securing, by insurance or otherwise, the means of subsistence for his family in the case of sudden death. He may not be able to spend one half of his apparent income, and yet no deduction is allowed on this account. He must pay for burdens not his own, and for ministerial folly in which he was no participator, an amount equal to that which is levied from the fund-holder or the man of acres, in the full knowledge that, when he dies, his capital is buried with him, whilst that of the other class remains tangible and available by inheritance. This is another ground upon which we decidedly object to the continuance and augmentation of the income-tax.

But the worst and most intolerable feature of the whole remains behind. Unjustly apportioned as this tax undoubtedly is among ourselves, the total exemption of Ireland from its operation is a matter which cannot fail to excite throughout Great Britain a feeling of universal and bitter indignation. Ireland, as we all know, is already exempted from several of our heaviest burdens: she is by far the greatest pensioner of the public purse; and the

charities and bounties which have been so indiscriminately lavished upon her, are beyond all bounds disproportionate either to her wants or her gratitude. But when it is seriously proposed to make this tax—which is a class one—permanent, and to exempt from its operation all persons of property and income in Ireland, it is full time that we should speak out boldly, and declare, that at all hazards we shall not submit to so gross and flagrant an injustice. This is no time for puerile remonstrance. We have already borne and suffered more than we are able to endure; and we must not permit ourselves to be sacrificed, in order that Lord John Russell may command the Irish votes; we must not be impoverished, in order to give a new impetus to the cause of turbulence and sedition. In particular, let us impress upon our representatives, that this is a matter in which Scotland is vitally concerned. We have submitted very tamely and quietly to much neglect, and to a good deal of palpable injustice; we have abstained from making that outcry which the notorious neglect, by each succeeding government, of our institutions and foundations rendered almost a national duty. We have allowed ourselves, though the poorer country of the two, to be taxed on the same scale with England; but we cannot, and must not, be silent sufferers under this crowning act of oppression. Ireland must not be permitted any longer to benefit by our patience and our thrift. On this part of the subject, Lord John Russell is peculiarly weak. He feels, and by implication admits, the impropriety of the Irish exemption; and he took refuge from the derisive cheering of the House in some general, but useless axioms, to the effect that the prosperity of Ireland involved the prosperity of the United Kingdom. All we can say upon that topic is, that if the well-being of Britain depends upon the exertions and tranquillity of Ireland, our existence as a great empire at the present day may be counted as the most stupendous of modern miracles. But this, even in the most favourable point of view, affords no argument at all. We presume it is admitted, that the prosperity of Scotland has something to do with the welfare of the United Kingdom; but are we on that account entitled to demand that the people of England shall bear at least one half of our proper fiscal burdens? The pretext is so flimsy, that we wonder how any prime minister could find courage to state it in his place. This is avowedly not a tax which is to affect the working or pauper population: it does not wring the pence from the hands of the peasant. It spares all incomes under £150; and are we now to be deliberately told, when this impost is sought to be made permanent, that

the lawyers, physicians, and tradesmen of Dublin are to be exempted from an assessment, occasioned by a general defalcation of the revenue, to the gross injury of their professional brethren who have the misfortune to reside in Edinburgh? But we go a great deal further than this. We say, that if exemption is to be given to the Irish landlords, a stronger case for the same immunity may be preferred in behalf of the landowners throughout the greater part of Scotland. The cruel suppression of the kelp manufacture has long ago reduced a vast portion of the population located in the Western Highlands and Islands to a state of pauperism. Poor-rates have been enormously increased; and the failure of the potato-crop was felt in those districts at least as severely as in Ireland. Very scanty indeed was the relief doled out by government here, at the time when large supplies were forced into the turbulent island; the burden of maintaining the poor was thrown upon our proprietors; and their reward is to be an augmented income-tax of five per cent, whilst the Irish, as usual, are to go free! Really, when we consider this matter in its broad and open bearing, the injustice appears so enormous, that we can hardly bring ourselves to believe that it is seriously intended to perpetrate it. At all events our course is clear. There can be no party distinctions in such a matter as this. Whatever difference of opinion may exist as to the policy of continuing the income-tax, there can be none as to the propriety of its just and equal distribution throughout the empire. The voice of Scotland must be heard upon this point, and loudly too, else our fragmentary representation is nothing more than a shadow and a dream. We trust that both the counties and the towns will bestir themselves to oppose this meditated act of spoliation; and by a ready and united resistance, compel the ministry to remember that higher and weightier considerations than the command of some Irish votes are involved in a question so momentous and so vital to the whole community.

Indeed, if the income-tax is really to become permanent, it must be placed upon an entirely different basis, and undergo a thorough revision. It cannot be suffered to pass in that light and easy manner which Lord John Russell seems to contemplate. His former colleague, Mr Baring, feels this, and does not hesitate to say it. We quote from his remarks upon the subject:—"It might be very well in times of great difficulty, or in time of war, to do that under the pressing necessity of the circumstances, which they were prepared to justify solely on the grounds of such necessity, but which would

not be justifiable without it. When, then, they proposed for two or three years to lay on an income-tax in time of war, they might not be very nice in seeing that the tax pressed equally on all classes; but when they came to raise all income-tax of five per cent, and made it part of the permanent system of taxation, he thought they were bound to make it a more equable and fair tax than it was at present. He alluded to the different manner in which the tax pressed upon incomes derived from property, and from those which depended on the exertions of individuals. He did not think this tax, as it was at present imposed, could long stand the test of fair reasoning." It may be very well for the premier to state, with Whig glibness, that "we propose, therefore, to take the tax exactly as it has been imposed in late years—on the same principles on which it was proposed and defended by Mr Pitt, on the principles on which it was increased by Lord Grenville and Lord Lansdowne." He is utterly wrong, both in his history and in his inference. The present tax is, in its most important features, defensible upon no principle that ever was enunciated before; and he is mistaken if he supposes that the British nation will consider a permanent impost in the same light as one which was merely temporary. We maintain that the measure, as a whole, is in the highest degree dangerous and unconstitutional; but if we are compelled to submit to it as the product of wild and reckless experiment, it is absolutely necessary that it should be reconstructed in accordance to the dictates of justice. The late act was neither so framed nor administered. Upon what principle, we should like to know, is the English landed proprietor assessed upon a rental from which all parochial and other burdens are deducted, whilst in Scotland the landlord is charged upon the gross amount? The Englishman is entitled to deduction of poor, county, highway, church, and police rates; whilst the Scotchman is very coolly handed over to the tender mercies of the commissioners under schedule A, and assessed to the uttermost farthing! This is but one instance of the inequality which pervades the act of 1842; and although it might have been passed over without much notice in a scheme of taxation which was only to last for a limited time, it must not be suffered to remain unaltered when a permanent burden is to be laid upon our aching shoulders. This country, far more than Ireland, stands in need of a national association to watch over and protect its interests.

We shall not venture to anticipate the reception of this most deplorable financial statement when it is fully brought before parliament. We fully agree with Mr Osborne, who said that, "had there been a regularly organised Opposition, such a statement would never have been made. In such a case, the fact of a minister under present circumstances calling for an increase in taxation, would have signed the deathwarrant of his cabinet. The present ministry, he believed, would be the most unpopular and the most unfortunate who had ever sat within these walls." Hard language this certainly, when addressed to the prophets of unbounded prosperity following in the wake of free-trade, but not more hard than true. Commercial distress, unexampled bankruptcy, money at a minimum rate of eight per cent, ruined colonies, and a war-tax made permanent and augmented, have been the first-fruits of that glorious measure which was absolutely to swamp us with an inundation of unexampled riches! How much further, we may ask, is it proposed to carry the experiment? Are the navigation laws to be repealed by a ministry which acknowledges the necessity of increasing our armaments? Which interest is next to suffer?

"Who else must be let blood—who else is rank?"

What other reductions are to be made—what further filching from the customs effected, in order that, in another year or two, a fresh direct demand may be made upon an isolated class of the community? We have read over every part of Lord John Russell's financial statement with the utmost attention; and, fully satisfied as we are that the deficiency in the balance must be made good, we have arrived at the conclusion that the proposed measures are upon no account whatever justifiable. Are the Whigs sincere in their belief that the free-trade experiment will prosper? If they are, why do they seek to make this income-tax permanent?—why do they ask for five years as the shortest nominal term? "Give us a fair time for the experiment!" shouts the free-trader whenever he is reminded of the utter failure of his scheme. But what is to be considered as a fair time? Are we to be taxed directly, and exorbitantly, for five years, in the hope that when these are over some ray of our former sunshine may revisit us? or are we to wait in patience, with a revenue yearly dwindling, until reciprocity shall arrive for the benefit of a future generation? The effects of the potato failure are now over, railway speculation has subsided, nothing stands in the way of free-trade to prevent us from participating in all its blessings. If the

ministry have confidence in it, as they have over and over again professed to have, why do they seek more than the prolongation of the present tax for another year? They know why. In their hearts they are thoroughly aware, that they have been led astray by a phantom; or rather, that they have fostered a gross delusion for the mean purpose of obtaining power, and the tone which they are now compelled to assume sufficiently proves it. There is no vaunting this time—no gay and golden prophecy. All is black and dreary before them; and they are trembling at the account which they will be forced to render to the country. Weak in purpose, they have not the courage to confess their former folly; to own that they have been misled by the dangerous example of their predecessor; and that, by deserting the older financial system which regulated the affairs of this country, they are plunging the nation into unheard-of difficulties, and preparing for themselves an early, and certainly an inglorious fall.

Unhappy indeed is their position, for even the most discreditable section of their allies is upon the eve of desertion. Mr Cobden of course is frantic at the idea of the smallest addition to our armaments. He wants the country party to join with him in a crusade against the army and navy, and is kind enough to propose a coalition. There is very small chance of the gentlemen of England being found in any such dubious company. Betrayed as they have been, they form not only a compact party, but they have high and patriotic principles from which nothing will induce them to swerve; and they can well afford to wait the time when the country, writhing under misgovernment, shall demand the restitution of those principles through which it rose to greatness, and by abandoning which, it has perilled its prosperity and its power. They have no aspirations after office, merely for its sake. Those who have left them, and deserted their early faith at the bidding of a shifty leader, may now, perhaps, be mourning their folly, when they see the precarious tenure of the Whigs, and the disgust which they are universally exciting. The time is rapidly approaching when the eyes of the people will be opened; and when, by deliberately contrasting their present deplorable state with the prosperity which they formerly enjoyed, they will arrive at the conclusion that they have grossly erred in giving any credence to the doctrines of fanatical demagogues, or in consenting to the schemes of their abettors. In patience, but in confidence, let us abide the time. No man knows better than Mr Cobden in which direction the popular opinion is

likely to set. He has had his period for delusion, and it is now nearly over. He is pleased to state that it is impossible in any way to recur to our older system; that even if we should be convinced of the falsity of the move, it is in vain to retract it; that nothing remains but a general attack upon the existing institutions of the country. Such language is rather ominous of the sponge, but the moral of it is unmistakable. It is Fagin's system. Once get a boy to pick a pocket, and he must go on until his career terminates at the gallows. There can be no relapse to honesty. Such an idea, to borrow Mr Cobden's own elegant phraseology, "is all sham and fudge!" Once let a woman lapse from virtue, and repentance becomes impossible; she must pursue her destiny till she dies in a garret or the hospital. These may be Mr Cobden's opinions, but they are not ours, and neither do we believe that they have received the sanction of the country. He seems at the present moment, to judge from the tone of his harangues, in the same state of excitement as the sailor, who, when the vessel is in danger, insists upon breaking open the spirit-room. He is determined to have free-trade for ever, let the experiment cost what it may.

One thing, however, is remarkable, and that is, that even Mr Cobden seems to have lost faith in the efficacy of his former nostrums. Neither at Manchester nor in the House of Commons does he attempt to explain the unaccountable absence of the vast benefits which he proposed to confer upon the nation. Probably he is wise in abstaining from any explanation which may draw attention to this subject. His attempt to get up a false alarm on the score of increased establishments, is not without adroitness, especially at the present time: but after all, it is a mere prolongation of his existence; he cannot hope to escape the penalty which is common to all false prophets—that of standing before his dupes in the character of a detected impostor.

However this matter may end, we have all a duty to perform. Those who think with us will do it fearlessly and frankly: without faction, but also without the compromise of a single principle. They will support the independence and the credit of the country from motives which Mr Cobden cannot understand, and which the leaders of the Whig party have not the courage or the manliness to avow.

FOOTNOTES:

[A] Vide Notes to Pope's *Dunciad*, book iii.

[B] *Italian Sketches*, No. V., August 1843.

[C] Epistle to the Hebrews, v. 13, 14.

[D] In an otherwise admirable lecture on schools, which was lately delivered by Professor Blount, at Cambridge, we were surprised to hear a general commendation passed on these books. We feel persuaded, that neither the gravity of the class nor the approval of the Professor would have held out long against the recital of a few extracts.

[E] Notwithstanding their number, we would suggest one more, the "corrective alphabet," in which all the symbols should stand representative for objects agreeable to babes, and, *ex. gr.*, after their innocent lips have been made to falter out Herod's formidable name, we would point to ours, where —

H stands for honey, so sweet and so good.

[F] (Les faux dieux.)

[G] "We were not" (says Jeremy Taylor) "like women and children when they are affrighted with fire in their clothes; we shook off the coal, indeed, but not our garments; lest we should expose our Church to that nakedness which the excellent men of our sister Churches complained to be among themselves."

[H] Bellarmine asserts (and who but a heretic shall dispute it with him?) that men are bound so far to submit their consciences to the Pope, as even to believe *virtue* to be *bad* and *vice* to be *good*, if it shall please his Holiness to say so. (BELLAR. *de Rom. Pontif*, lib. iv. cap. v.) When things came to this pass, were we not justified in the insertion of that rough deprecatory clause that stood in our Litany—"From the tyranny of the Bishop of Rome, and all his detestable enormities, Good Lord deliver us!"

[I] "We must seek to enter into the real divine unity; if not, the *pseudo* unity to which Mr Newman would bring us back will be attempted once more among us; only to be followed, when its hollowness, its nothingness, its implicit infidelity, is laid bare, by an explicit infidelity, an anarchical unity, without a centre, without a God." (MAURICE'S *Lectures on the Epistle to the Hebrews*, p. 111.)

[J] Imitated from JUVENAL, *Satire* viii.

[K] It is singular to observe how the "*votiva paries*," in the churches of Papal Rome, are hung with similar offerings to those which formerly ornamented her temples in Pagan times. We possess several of these ancient offerings; *inter alia*—a *uterus* and a *mamma*, in *terra cotta*, from the Temple of *Elvina Ceres* at Aquinum, and an *abortion*, in lead, from the same source.

[L] *Registrum Prioratus Sancti Andreæ*, 114.

[M] New Statistical Account, Aberdeenshire, 1089.

[N] Of the many spots traditionally connected with Ossian, we have no doubt that the association is no older than the days of James Macpherson. Yet, to show how fearlessly we adopt our theory, we shall here state a circumstance appearing to establish a genuine Ossianic tradition of no common interest, which we wonder never to have seen introduced in the controversy. The wild glen running from the neighbourhood of Crieff towards Loch Tay, called Glen Almond or Glen Almain, is the traditional resting-place of the bones of Ossian. The reader will remember it from Wordsworth's lines:—

"In this still place remote from men Sleeps Ossian in the narrow glen,	In this still place where wanders on But one lone streamlet, only one," &c.
---	--

Early in last century, a military road was carried through this glen, by a set of men brought up in the stiff formal engineering of the period, who went straight to their end, caring neither for scenery, nor for legends, for the graves of bards, nor for big stones, as one of their number—Captain Burt, a very matter-of-fact but clear narrator, who was present—shows.

"A small part of the way through the glen had been marked out by two rows of camp colours, placed at a good distance one from another, whereby to describe the line of the intended breadth and regularity of the road by the eye. There happened to lie directly in the way, an exceedingly large stone, and, as it had been made a rule from the beginning, to carry on the roads in straight lines, as far as the way would permit, not only to give them a better air, but to shorten the passengers' journey, it was resolved the stone should be removed, if possible, though, otherwise, the work might have been carried along on either side of it.

"The soldiers by vast labour, with their levers and picks, or hand-screws, tumbled it over and over till they got it quite out of the way, although it was of such enormous size, that it might be matter of great wonder how it could ever be removed by human strength and art, especially to such who had never seen an operation of that kind; and upon their digging a little way into that part of the ground, where the centre of the base had stood, there was found a small cavity about two feet square, which was guarded from the outward earth, at the bottom, tops, and sides, by square flat stones. This hollow contained some ashes, scraps of bones, and half burned ends of stalks of heath; which last we concluded to be a small remnant of a funeral pile."

Burt, returning to the spot after a short absence, asked the officer in charge "what had become of the sarcophagus." "He answered that he had intended to preserve it in the condition I left it, till the commander-in-chief had seen it, as a curiosity, but that it was not in his power so to do; for soon after the discovery was known to the Highlanders, they assembled from distant parts, and, having formed themselves into a body, they carefully gathered up the relics, and marched with them in solemn procession to a new place of burial, and there discharged their fire-arms over the grave, as supposing the deceased had been a military officer."—BURT'S *Letters*, ii. 188. The engineer officer, desirous to account for so unaccountable a proceeding naturally drew on the etiquette of his own profession. We make the supporters of Ossian a free gift of this anecdote, not doubting that they will appreciate our liberality.

[Q] Alas! it is a world of change. While correcting the press, we have just heard that some learned antiquary has enlightened the Lunfananers, and that they have set up a tavern called "The Macbeth Arms!"

[P] It may be found at the end of vol. i. of Pinkerton's *History of Scotland*, and in vol. ii. of the collection of reprints called *Miscellanea Scotica*.

[Q] See Tytler's *History*, iii. 307, *et seq.*

[R] *The Life and Correspondence of Admiral Sir William Sidney Smith, G. C. B.* By T. BARROW, Esq. F. R. S. Two vols. Bentley, London.

[S] *Hudson's Bay; or, Snow-Shoe Journeys, Boat and Canoe Travelling Excursions, and Every-day Life in the Wilds of North America, during Six Years' Residence in the Territories of the Honourable Hudson's Bay Company.* With Illustrations. By ROBERT MICHAEL BALLANTYNE. Edinburgh, 1847. Printed for Private Circulation.

*** END OF THE PROJECT GUTENBERG EBOOK BLACKWOOD'S
EDINBURGH MAGAZINE, VOLUME 63, NO. 389, MARCH 1848 ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project GutenbergTM License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.